

A Whim, and Its Consequences

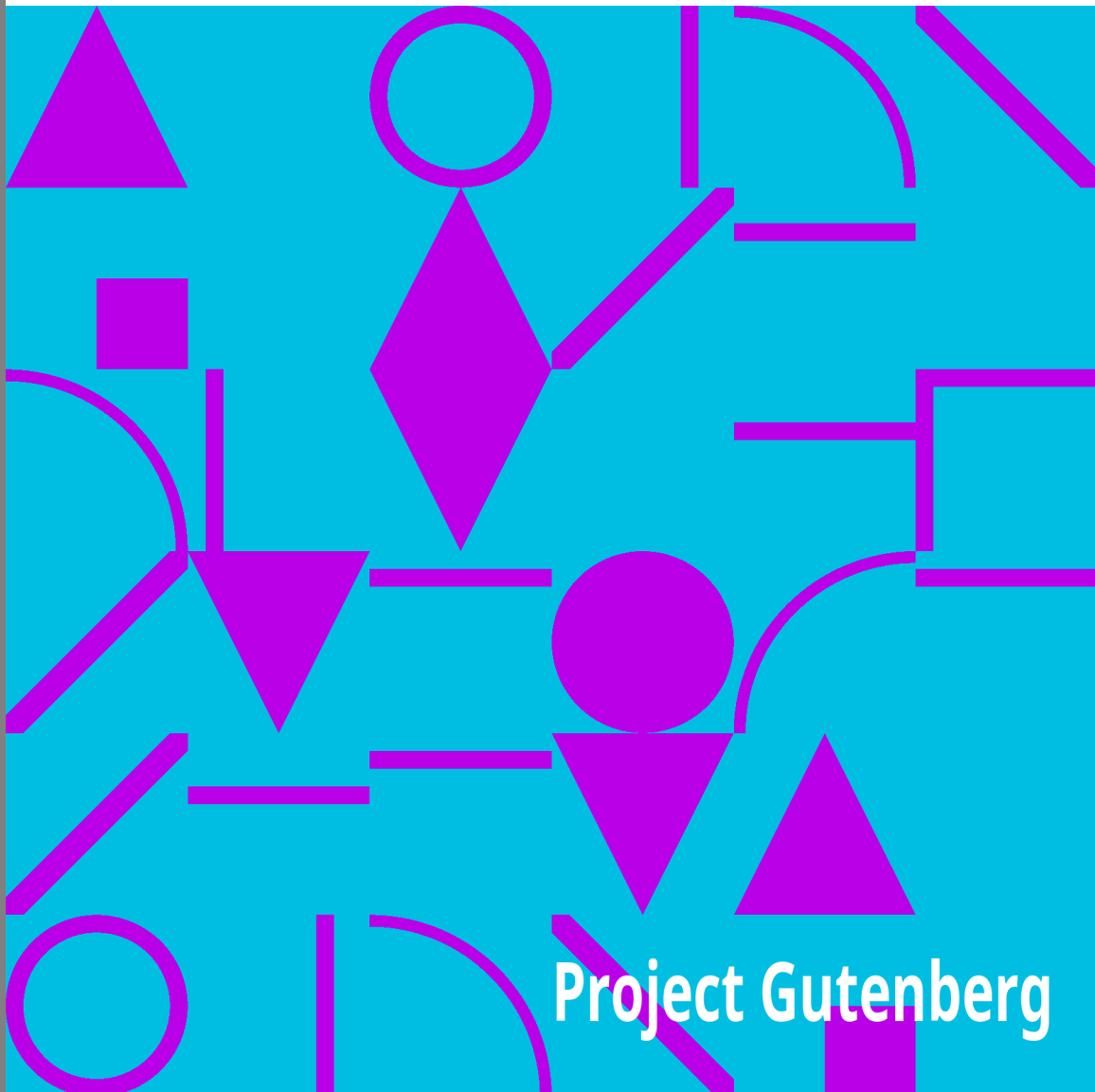
G. P. R. James



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VOL. CXIV.

A WHIM, AND ITS CONSEQUENCES.
IN ONE VOLUME.

A WHIM,

AND
ITS CONSEQUENCES.

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LEIPZIG
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A WHIM, AND ITS CONSEQUENCES.

CHAPTER I.

A solitary room at midnight: a single wax candle lighted on the table: the stiff dull crimson silken curtains of the bed close drawn: half a dozen phials and two or three glasses. Is it the chamber of a sick man? He must sleep sound if it be, for there is no noise--not even a breath; and all without is as still as death. There is awe in the silence; the candle sheds gloom, not light, the damask hanging sucks up the rays, and gives nothing back: they sink into the dark wood furniture: one could hear a mouse creep over the thick

carpet; but there is no sound! Is it the chamber of the dead? But where is the watcher?--Away! and what matters it here? No one will come to disturb the rest of that couch: no brawling voices, no creaking doors will make vibrate the dull cold ear of death. Watch ye the living! The dead need no watching: the sealed eyes and the clayed ears have sleep that cannot be broken.

But is it the watcher who comes back again through that slowly opening door? No, that is a man; and we give all the more sad and solemn tasks of life to women. A young man, too, with the broad, free brow gathered into a sad, stern frown. He comes near the bed; he draws slowly back the curtain, and, with the faint ray of the single candle streaming in, gazes down upon the sight beneath. There it lies, the clay--animate, breathing, thoughtful, full of feelings, considerations, passions, pangs, not six-and-thirty hours before. But now so silent, so calm, so powerfully grave: it seems to seize in its very inertness upon the busy thoughts of others, and chain them down to its own deadly tranquillity.

It is the corpse of a man passed the prime, not yet in the decline, of life. The hair is gray, not white; the skin somewhat wrinkled, but not shrivelled. The features are fine, but stern; and there is a deep furrow of a frown between the eyebrows, which even the pacifying hand of death has not been able to obliterate. He must have been a hard man, methinks. Yet how the living gazes on the dead! How earnestly--how tenderly! His eyes, too, fill with tears. There must have been some kindly act done, some tie of gratitude or affection between those two. It is very often that those who are stern, but just, win regard more long-enduring, deeper-seated, more intense, than the blandishing, light-minded man of sweet and hollow courtesies.

The tear overtops the eyelid, and falls upon the dark shooting-jacket; and then, bending down his head, he presses his lips upon the marble brow. A drop (of the heart's dew) will be found there in the morning; for there is no warmth in that cold forehead to dry it up.

The curtains are closed again; the room is once more vacant of breath. The image of human life upon the table, that decreasing taper, gutters down with droppings like those of a petrifying spring. A spark of fire, like some angry passion of the heart, floats in the melted wax above, nourishing its flaming self by wasting that it dwells in. Then comes back the watcher, with

bleared and vacant eyes, and lips that smell of brandy. She has sense enough yet to stop the prodigal consumer of her only companion of the night; and sitting down, she falls asleep in the presence of death, as if she were quite familiar with the grave, and had wandered amongst the multitudes that lie beneath.

CHAPTER II.

It was the autumn of the year, when men who do such things, shoot pheasants, and go hunting. The leaves had fallen from the trees, and were blown about in heaps by the chill wind; or if any hung upon the sapless branches, it was but as the tatters of a shroud on the dry bones of some violated tomb; the grass in the fields was brown, and beaten down by wind and storm; the streams were flooded with yellow torrents from the hills, and waved about in wild confusion the thick, fleshy stems of the water weeds; and the face of earth, cold and spiritless like that of a corpse, glared up to the sunless sky, without one promise of the glorious resurrection of the spring. It was night, too, dull, gray night. The raven's wing brooded over the whole world; clouds were upon the firmament; no moonbeam warmed with sweet prophecy the edge of the vapour; but, dim and monotonous, the black veil quenched the starry eyes of heaven, and the shrill wind that whistled through the creaking tree-tops, stirred not even the edges of that dun pall so as to afford one glimpse of things beneath.

There was a dark clay-like smell in the air, too, a smell of decay; for the vegetable world was rotting down into the earth, and the death of the year's life made itself felt to every sense. All was dark, and foul, and chilly as a tomb.

With a quick, strong step, firm, well-planted, unwavering, a man walked along with a stick over his shoulder, and a bundle on the hook of the stick. There was nothing gay or lightsome in his gait. It betokened strength,

resolution, self-dependence, but not cheerfulness. He whistled not as he went: the wind whistled enough for the whole world. He neither looked up nor down, but straight forward on his way; and though the blast beat upon his breast and over his cheek, though the thin, sleety rain dashed in his face, and poked its icy fingers in his eyes, on he went sturdily. He never seemed to feel it. He was either young and hardy, or had bitter things in his heart which armoured him against the sharp tooth of the weather--perhaps both. He seemed to know his way well too, for he paused not to consider or look round; but on--on, for many an hour he walked, till at length a stream stopped him, hissing along under its sedgy banks, and in some places overtopping them with the swollen waters.

There he halted for an instant, but not longer; and then with a laugh, short and not gay, he walked straight on, following the path. The turbid torrent came to his knee, rose to the hip, reached his elbows. "Deep enough!" said the night wanderer, but on he went. The stream wrestled with, and shook him, tugged at his feet, strove to whirl him round in its eddies, splashed up against his chest, and, like a hungry serpent, seemed to lick the prey it was fierce to swallow up. He let go the stick and the bundle, and swam. It was his only chance to reach the other bank alive; but he uttered no cry, he called for no help: perhaps he knew that it would be in vain. He could not conquer without loss, though he gave the torrent buffet for buffet, but, like a determined band fighting against a superior force, he smote still, though turned from his direct course, and still made progress onward, till catching the root of an old tree, he held firm, regained his breath and his footing, and leaped upon the bank.

"Who are you? and what do you want here?" asked a voice the moment after, as he paused by the tree, and drew a deep breath.

The wayfarer looked round, and saw, by what light there was a man of apparently his own height and strength, standing by an alder near. "I must first know where I am," he said in return, "before I can tell you what I want."

"Come, come, that will not do," replied the other; "you must have some sharp object, to swim across such a night as this, and must know well

enough where you were coming, and what you were coming for. Who are you? I say--and if you do not tell, I will make you."

"That were difficult," answered the other; "but I will tell you what I am, and why I swam the stream, if that will do. I am a man not of a nature nor in a mood to be turned back. The river lay in my way, and therefore I came over it; but I have lost my bundle, which is a pity; and I am wetter than is pleasant."

"As for your bundle," said the other, "that will stick upon Winslow wear; and as for your being wet, I could help you to dry clothes if I knew who you were."

"Not knowing will not prevent you," rejoined the other. "Winslow wear!--Now I know where I am. I was not aware I had walked so far by seven good miles. Then I must be in Winslow park."

"Not far wrong," said the other man; "but you seem to be a somewhat strange lad, and wilful withal. As you have lost your bundle, however, and got your clothes wet, you had better come with me; for after all, I dare say you mean no harm, and I may as well help you to a dry jacket."

"I mean no harm to any one," was the reply; "and I think I must stop somewhere near, for my clothes will not dry so soon to-night as they would in the summer sunshine."

"Certainly not," answered the other, "there is more chance of saturation than evaporation."

The swimmer of the stream turned suddenly and looked at him, in some surprise: then fell into a fit of thought: and in the end, without noticing his companion's fine words observed, "I am not getting any dryer by standing here: and you are getting wetter; for the rain is coming on more fiercely. If you have any will to give me shelter and dry clothes, now is the time. If not, I must go and seek them elsewhere."

"Suppose I say you shan't," inquired the other, "what would you do then?"

"Walk away," was the answer.

"And if I stopped you?" said the other.

"Pitch you into the river, and see if you can swim it as well as I did," rejoined the wayfarer.

"The chances would be against you, my friend," rejoined his new companion: "we are about the same height and size, I think; and not very different in make. Suppose us equal then in strength. You have, however, taken a walk to-night long enough to make you lose seven miles of your count; you have swam that river in flood, and have lost somewhat of your strength at every mile of the way, and every yard of the water. Your strength and mine then, being at first equal quantities, you must inquire, whether a can be equal to b , minus c the walk, and d the stream?"

"Yes," answered the other, "for there is one thing you do not take into account."

"What is that?" asked the arithmetician.

"Despair!" said his new-found friend; "for I tell you fairly, that if you make me try to pitch you into the river, I do not care a straw whether I go in with you or not."

"That is a different affair," replied his companion drily; "despair is an unknown quantity, and I have not time to arrive at it; so come along."

The other did not make any answer, but walked on with him, following a path which in ordinary times communicated with that which he had pursued on the other side of the stream, by a little wooden bridge, which had been apparently washed away in the flood. Both the men mused; and probably there was a good deal of similarity in the questions which they were separately trying in their own minds. When man first meets man, to each is presented a problem which he is bound to solve as speedily as possible. Every man is a sphinx to his neighbour, and propounds an enigma, which the other must answer, or woe be to him. The riddle is, "What is within this casket of flesh before my eyes?" and none can tell how important may be

the solution. We may be parted soon, whether the impression made by the one upon the other be like the ripple of the wind upon the sea, or profound as the channel which the torrent has worn in the rock; for--

"--many meet, who never yet have met,
To part too soon, but never to forget."

But on the contrary, under the most adverse circumstances, without a probability, against all likelihood, the companion led in by the hand of chance, is often linked with us by fate through life--bound by the iron chain of circumstances to the same column in the prison of destiny as ourselves, destined to work at the same day-labour, and accomplish, with our help, the same task. None but the dull, then, ever see another human being for five minutes, without asking, "What is the god of the temple? what are his powers?"

There was not a word uttered by either, as they walked along. Yet each knew that the other was not an ordinary man; but the person whom the wayfarer had found upon the bank was much more curious in his inquiries; for the other, though a quick and active-minded creature, had many other thoughts in his bosom, stronger, more continuous than those which the character of his companion had suggested, and which the latter might cross and recross, like the thread upon the shuttle, but did not interrupt.

Now for the first time on his long way--he had walked thirty miles that night--he sometimes looked around him. The faint gray of dawn aided his eyes; but the objects were not cheerful. The scenery indeed was fine. There were hill and dale; and river and lawn; wood and heath; fern, hawthorn, birch, oak, beech, and solemn yew, with the broad, sturdy chestnut, and the tall, ghostlike larch. There were jays amongst the trees, just stirring and screaming in the first light; and herds of deer, with the thick-necked bucks lifting their heads to snuff the morn. Nevertheless, there was a something which spoke neglect--a keeper's house untenanted, with broken windows--long rasping arms of bramble stretching across the paths, some trees cut down and rotting where they lay, a Greek temple in ruins, with marble columns, which in their own fair clime would have remained pure as the snows of Olympus, green with the dark mould of English humidity. Ducks were dabbling among their favourite weed, where swans had swam in the

clear water; and an infinite number of rich exotic evergreens, untrimmed and forgotten, were mingling their low branches with the long, rank grass. There was no mistaking it. The place had been long neglected.

They passed quite across the park to a spot where the solid brick wall had been carried out of the straight line, to enclose about half-an-acre of ground beyond the exact limits. An open fence of wood-work separated that half-acre from the actual park. The brick wall run round without, forming three sides of a parallelogram. The space within was neatly cultivated as a garden; and there were, besides the long, straight rows of cabbages amongst the well-trained trees, several beds of autumn flowers, still in bloom. They were as stiff as all late flowers are; but still they were flowers, and it was autumn; and they gave signs of care in the midst of neglect, of vigour amidst decay, of life in death.

There was a little wicket-gate in the centre of the wooden fence, with a latch, which the wayfarer's companion raised, and led the way down a gravel walk, to a house amongst the apple-trees at the other side, resting against the wall of the park--a small house of two stories--built of brown brick, and covered with white and yellow lichens. Another moment and they were within the door, which was not locked. The room they entered had a brick floor, clean swept and reddened. Everything was in good order, and a wood fire, which was already lighted, had fallen into that state where glowing eyes look out from the white ashes, like those of a lion from a bush. The walls had two rows of shelves hanging against them, and a great old dark oak armory or press, carved with apostles and wild beasts. Balaam and his ass, were there too; and the old prophet and the lion. The shelves supported, the one, crockery, the other, old books with greasy backs. Standing in front of the books, on the same shelf, were two or three small cups of precious old china, and an ink-glass. Amongst the crockery, were a bullet-mould, a powder-horn, and half-a-dozen floats. There was a neat white curtain over the window, and every one of the tiny panes was as clear as a diamond.

The wayfarer looked around him with a faint smile, and then turned to his host; and the two gazed upon each other in silence for a minute. If there had been a struggle between them on the bank of the stream, it would have

been a very doubtful one; for never were two men better matched. As they stood there, they looked like two well-chosen carriage-horses, of an equal height within a quarter of an inch, both broad in chest, strong in limb, thin in flank, both tanned with exercise and exposure; both of that hardy rich brown complexion, where the hair seems to curl from very vigour, and both in the prime of strength and activity, though in point of years lay the principal difference between them. The master of the house might, perhaps, be three or four years older than his guest; but as the latter was at least four or five and twenty, age gave the other no advantage.

The wayfarer was dressed in a dark velveteen shooting-jacket, leathern gaiters, and strong but well-made shoes; and under the coat was a waistcoat, with long rows of little pockets, for holding gun charges. He had what is called a foraging cap on his head, and a good deal of whisker and hair. His nose was straight, his eyes hazel, his teeth fine, and his chin rounded and somewhat prominent. The other was dressed in a fustian coat, with large pockets, thick hobnailed shoes, and leathern gaiters, with a straw hat upon his head, and corduroy breeches on his thighs. His features were good, and, like his guest, he had a straight nose and a rounded chin, with eyebrows exactly like the other's; but the eyes, instead of being hazel, were of a dark gray, and his beard and whiskers were closely shaved, and hair cut short. There were several points of difference between them, but more of similarity; and the similarity depended upon feature, form, and complexion, the difference more upon adventitious circumstances.

"You are my double," said the master of the house, after they had gazed at each other for some time, both feeling that there was a strong resemblance; "and as such you have as good a right to wear my clothes as myself. They are not as good as yours; but they are dry, which makes them better for the time."

He opened the old armory, which was full of guns and fishing rods, and from one of two drawers at the bottom took out a very little used suit of country-made clothes.

"There," he said, "put those on; and we will afterwards go and see if we can find your bundle at the wear. Here, come into the back room, and I will

give you a clean shirt and stockings. I never let cotton and wool lie together; for they might quarrel, being near akin."

The other followed, and after having fulfilled his promise as to the shirt and the stockings, the master of the house left him, and returned to blow the fire into a blaze.

CHAPTER III.

Man wonders why it happens so often that in our first manhood disappointments, bitter as undeserved, fall upon us--why we are crossed in honourable love--thwarted in noble ambition--frustrated in generous endeavour--distracted in a just course--denied our reasonable expectations. Some reply, It is a part of the original curse, and that we must go on struggling and grumbling. Others--better and wiser men, and far more religious--find out that it is to wean us from earthly affections which, when the world is in its spring loveliness, are apt to take too great a hold upon us. Both may be right; yet there may be something of training in it too. We have things to accomplish in our manhood, a course to be run, a contest to fight out; and at that time of youth we are colts which must be bitted and bridled, put at the longe, have the rollers between our jaws; and many a sore mouth and galled withers must be endured before we are fit for the hard rider, Fate, to get upon our back, and gallop us to the end of our career. Does not that filly sporting in the field think it very hard that she may not go on cantering up and down, with her head held high, and her nostrils snorting fire, or that she may not go on cropping buttercups and sweet grass--all very reasonable desires for a filly--but must come and be driven round and round a ring, with a long whip at her hocks, and a drunken horse-breaker in the middle, holding her from her joyous freedom by a long cord? Truly, she may well think it a hard case; but she was not made for her own service--nor was man.

There is something of the same feeling in the breast of that young wayfarer as he sits there by the fire, after having changed his clothes. That knitted brow and curling lip show that he thinks he has been hardly used by fortune; and yet there is a thoughtful look about his eyes which may indicate a search for, and a discovery of, the ends and objects of disappointment. The power of thought is a wonderful thing. See how it steals over him, smoothing the wrinkle out of the brow, relaxing the bitter turn of the lip. He is forming plans--or building castles--reawakening hope--recovering faith and trust. Something is working in his mind for peace!

"You have made me very comfortable," he said, abruptly, while the other lifted a small tin kettle from the fire, where it had been hissing and spluttering for a minute or two; "and I am now ready to go out and seek my bundle at the wear. My wet things can dry here till I come back."

"We will have a cup of tea first," said his entertainer, "the girl will bring the milk in a minute; and, though I can do without most luxuries, I cannot do without tea. It is the only thing that goes into the mouth which may be considered a luxury of the mind. It is wonderful how it clears a man's head, and gives him a command over his intellect. If I want to solve a problem, or translate a stiff passage, I must have my cup of tea. The Chinese must be a wise people to grow such a herb."

The wayfarer smiled. "You are a strange sort of person," he said; "and, I suppose, are of a better rank and station than your appearance betokens."

"I am the son of the blacksmith's daughter," replied the man, simply; "I can shoe a horse or forge a bar with any man in the country. That I learned from my grandfather. I can shoot a buck or bring down a snipe nineteen times out of twenty. That I learned from the head keeper. I know as much of gardening and botany as the old gardener did, who is now himself a compost, poor man; and I know somewhat more of mathematics, and Latin, and Greek, than the master of the grammar-school, who taught me; but yet I am nothing but the son of the blacksmith's daughter; and I wish to be nothing more."

"But what is your profession or trade?" asked his guest, with apparent interest.

"Profession, I have none," was the man's answer, pouring some water into the tea-pot. "They wished to make a parson of me, I believe; but my wishes did not go with theirs. I liked hammering iron, or shooting deer, or planting flowers and trees a great deal better. I was neither fond of preaching nor being preached to; and, therefore, I studied when I liked, wandered where I liked, read, shot, planted, worked at the forge when I liked. I do believe, from all that I have seen in the world, there has never been a man on earth who did as much what he liked as I have done--except Adam, who had only one thing forbidden him, and did that too. Now, however, I suppose the change is to come--for a change always comes sooner or later in every man's fate. One might as well expect to see four and twenty hours of sunshine as a life without a change--and I suppose I must buckle to some business; for, though I eat little, and drink little, and sleep little, yet that little must be had."

"But why should you not go on as you have hitherto done?" inquired the other. "Has anything happened to deprive you of your means?"

"Yes;" answered his companion, "I had fifty-two pounds allowed me a-year, just a pound a-week, and this little house and garden; and leave to shoot rabbits, ducks, and wild fowl of all kinds, except pheasants, one buck in the year, to keep my hand in, and the right to roam about the park at all times and seasons without question. I made my own terms, and got them. But he who allowed all this is dead, and the people tell me it will not be binding upon his heir. Well, what matters it? I can work; and as soon as I heard how things were, I determined I would first try a gardener's life, as Mr. Tracy, over at Northferry, wants one. I never let myself be cast down by anything; and when you talked about despair, an hour ago, I thought, What a fool you must be."

"I believe you are right," answered his guest, "your philosophy is far the best; but somehow I think you will not be obliged to take the gardener's place unless you like it. But there is some one knocking in the next room. I thought you were alone in the house. Are you married?"

"Poo!" cried the other, "what should I do with a wife? Thank God, there is no female thing about the place but my setter bitch. That is the girl with

the milk, knocking at the door in the park wall." And he walked out into the passage to receive what she had brought.

While he was gone the other sat quite still by the fire, with his eyes fixed steadily upon it. He saw not a spark, however. His contemplations were very deep; and as the other came back again, with the milk in his hand, he murmured, "If they would take him, why not another?"

"Well, you were saying just now," continued his companion, carrying on the conversation, "that you thought I should not be obliged to take the gardener's place. I should like to hear what you can know about it."

"Tell me your name," said the visitor, "and I will let you hear."

"You would not tell me yours, when I asked it," said the other, with a smile. "But it does not matter. My name is William Lockwood. Now, what do you say to that?"

"That you have no occasion to take the gardener's place," replied his guest. "Sir Harry Winslow is dead, as you say; but yesterday morning, in order to see what directions he had given for his funeral, the will was opened, and read before the whole family, servants, and secretary, and all. I was there, and heard it, and he did you full justice, left you the annuity and all you have mentioned, and added a legacy of five hundred pounds."

"And he left you nothing," said the other, fixing his eyes keenly upon him, "though you thought you had a right to expect it."

"He left me dependent upon another," replied the young man, "which I will not be," and he bent down his head and thought bitterly.

"That was hard! That was very hard!" said the other; "he was at times a hard man.--It often happens so. Those who have in their youth been what is called gay men, turn out in their old age as hard as the nether millstone. Whatever is in a man's heart remains there for ever, unless that heart be changed by the grace of God. Selfishness, which leads to one kind of vices in youth, leads to another kind in old age. The libertine turns the miser, that is all."

"But he was not a miser," cried the other, sharply, "that must not be said of him; and should not be by you, at least, his son."

"Hush!" said the master of the house, sternly, "I do not own him for my father; and I told him so. For the wrong he did my mother, and because of some letters of his which she held, and I hold, he did what he has done for her son. But do not you suppose, young man, that I ever basely truckled to him who injured her. As a child I took the education that was given me; but when I was older and knew more, I steadily refused to acknowledge him for my father, or to obey his behests in any way. It is this that has made me what I am. I would not go to a college as his bastard, and become a priest at his will. I received the small atonement that he offered, as atonement, but as giving no right over me; and I added other things, as demands, to that which he vouchsafed, in order to show that it was a contract I entered into, not a duty I acknowledged. Perhaps he was not a miser, as you say; but yet look at this place, and see what it has become within the last ten years. He has grudged every penny spent upon it since he last lived here himself, and unless it is that my mother's spirit, either visibly or invisibly, wandered round the place, and made it hateful to him for the wrong he had done her, what but the miser could make him discharge servants who had long dwelt here, and deny the means of keeping up in decent state a place that gave him name, and had descended to him from many ancestors? Now, what has he done with you yourself, according to your own admission. You stand in the same relation to him that I do--all the world knows it--your mother was his wife's maid--he educated you, made you his secretary, employed your talents, made you the companion of his amusements, took you out to shoot and hunt, to plays and operas, put you nearly on a level with his lawful sons, and then left you a dependant--I suppose, upon their bounty. You have done well to cast such pitiful slavery from you. I acknowledge you as a brother, which, perhaps, they will not; and the five hundred pounds he has left to me is yours if you will take it."

The young man grasped his hand warmly, but said, "No, no--that can never be. I have hands and arms strong enough to labour for myself, and I will do so. I cannot take what is yours. I have no title to it--I have no claim to it."

"I want it not," replied Lockwood. "I need nought but what I have. I would rather not take ought but what I bargained for."

"At all events I cannot accept it," was the young man's answer; "he left it not to me, but to you, and I will have none of it. Much that you have told me I had never heard before; I was not aware of his having had a son by Lady Winslow's maid, nor that his secretary was that son."

"Men ever know less of their own history than the world knows," said his companion; "but the thing is notorious. No one ever doubted who you were; so let us children without marriage, share what he has left to such, and let the lawful children take the rest amongst them."

"I cannot do that," said the young man; and leaning his head upon his hand, he added, after a few moments' thought, "We will talk of other things, my good brother--since such you are--I must meditate over all this; and when I have done so, I will ask your help perhaps to carry out my future plans of life. I can work as well as you, and am willing to do so, though it has fallen upon me, who did not expect it, instead of upon you, who did."

"My help you shall have as far as it will go," rejoined Lockwood, "but that is not very far. It is true people like me well enough here, because I never wronged any one of a penny, and give the old women rabbits to make broth when they are puling; and they like me, too, because I am one of themselves, and never pretend to be ought else, though my father was a rich man, and I am richer than most of them; but, poor things, the only matter I have to be proud of is, that I am a plebeian. Not that I am ashamed of my dear mother; for if a man will take advantage of a woman's weakness, under solemn pledge to marry her, and then break that pledge, let the shame rise on him, not her."

"Assuredly!" replied his companion, with a ready warmth which would have fully confirmed in the mind of Lockwood, had any confirmation been necessary, the supposition of his guest's illegitimate birth; but the moment after a deepened tint appeared in his cheek, and he said abruptly, "But let us talk of other things, Lockwood. What is the state of the people about here? I hope they have not been as much neglected as the place."

"Why, you should know all about it, Mr. Faber," said Lockwood, "for you used to write all the letters to the steward, he told me. However, they are not altogether so badly off as they might be. The farmer has his land at a fair rent enough, and so he can afford to give fair wages to his labourers. The old man was not hard in that. He took what was but just, for that which was his own, and the men have prospered under it; but he did nothing else for the neighbourhood. Some of the landlords round are different, get as much as they can wring from their tenants--force them to starve their labourers; and then spend a part of the money in parish schools and new churches. I have known many a one who has made every one under him labour like galley-slaves for mere existence, by reason of his exactions, cried up as a most liberal gentleman, because he whitewashed the cottages, and built a school-house. The whitewash and the school-house together did not cost one-tenth of what he took too much for his land; and yet, to hear all the gentry speak of him, you would have thought he was an angel of a landlord. Men are queer things, Mr. Faber."

"Do not call me Mr. Faber, Lockwood," said the other with a smile; "call me simply Chandos; that is better between brothers."

"Ah, that is your Christian name, then," said his stout kinsman; "'C. Faber,' I remember the letter I saw was signed; but I thought the name had been Charles. Take another cup of tea, Chandos: it is wrung from no man's hard earnings, and will do you good."

"After all," said Chandos, resuming the conversation at a previous point, "the man who does not exact too much is by far less culpable, though he do not do all the good to his people that he can, than he who, with a covetous grasp, wrings the last shilling from his property, and spends sixpence of it in instructing the peasantry, whitewashing their houses, or pampering his own vanity. The one is only guilty of doing less than he might, the other of taking more than he ought."

"I am not very sure," answered his companion, musing; "I have thought over these matters a good deal, and I am not fond of splitting hairs about right and wrong. If a man does not do what he ought, he does what he ought not. 'Sins of omission,' as the parson calls them, are, to my mind, sins of commission, as soon as ever a man knows what he ought to do, and does

not do it. I have a notion, Chandos, all these fine differences are only ways by which people cheat themselves to avoid self-reproach; and, I believe, what foolish people call the higher classes, are taught to do so more than any others by reading the classics; for a more wicked sort of worthless scoundrels than those old Greeks and Romans never was. The very best of them contrived to mix up so much bad with their best doings, that young lads at school learn not to know right from wrong, and to think things exceedingly fine that were very dirty."

"But there were some truly good and great men amongst them," replied Chandos, whiled away for a moment from himself by his companion's conversation: "they might be too stern and severe, perhaps, in their adherence to right; but still excess of virtue is not likely to lead others wrong who make it their example."

"I'll give you the advantage of the best of them," said Lockwood, "and be bound to pick a hole in any of their coats. We all know about Socrates, a nasty old he-goat, and won't talk of him. But take Lycurgus for an example, I mean, the Spartan. Now what he did to his countrymen would have been nothing better than swindling, if it had been about money instead of laws. He took an oath from them to do certain things till he came back from Delphi; and that certainly implied that it was his intention to come back. But instead of that, he went away from Delphi to Crete, for the express purpose of cheating the Spartans; had his old bones cast into the sea, that they might not play him as good a trick as he had played them; and left his laws to Sparta, and his name to immortality. But if I were to say to any man, 'Lend me five pounds till I come back from London,' and instead of going back, were to run away to Paris, just to avoid my creditor, what would be said of me? Now because the laws of Lycurgus were good, people think that his imposition was glorious; and thus they learn that Jesuitical maxim of the end justifying the means."

"I agree with you so far," said Chandos, gravely, "that there was a great deal of false philosophy, if I may use the term, amongst the ancients: and I am thoroughly convinced that the only true philosophy that ever was propounded to man is to be found in the Bible."

"Archimedes was the greatest man amongst them," rejoined Lockwood, following the course of his own thoughts, a habit of which he was very fond; "and in the study of his life and character, no great harm could be done to any one. But at our schools and colleges, what between Roman emperors, Greek magistrates, and gods and goddesses, we are brought all at once in our early youth into the midst of a crowd of rogues, prostitutes, and libertines, only fit for the back streets of a great town."

Unwittingly, Chandos had been led from many a grave memory and painful consideration to topics which had often engaged his youthful mind; and he replied, with a gay laugh, which showed how naturally light and cheerful was the spirit when free from the oppressive weight of circumstances: "As to the gods and goddesses, I agree with you entirely. There was not a lady amongst them who, in our times, would not have figured in the Arches Court; and as to the men, Apollo was the most gentlemanlike person of the whole, and yet he would have been transported for rape or hanged for felony long ago."

In such easy conversation they went on for half an hour more. It is no figure, but a certainty, that imagination has a charm--I mean, a power unaccountable, and almost magical, of wrapping the mind in a golden mist of its own, which hides or softens all the hard features of the scene around. But often, as with the fabled spells of the necromancer, the slightest thing--a word, a tone, a look--will waft away the pleasant veil, and restore the heart in a moment to the cold and black reality. Such was the case with Chandos. Something apparently indifferent threw him back into deep thought; and after a long pause, he started up, saying, "This is very strange, to be sitting here beside you, Lockwood, within three days! But come, let us seek the bundle I have lost. The clouds are clearing away. There is a gleam of sunshine. When will the like fall upon my fate?"

"Before long, if you are strong-hearted," answered the other, rising also. "One half of every man's fate is his own making; the other half is made for him. Fortune's store is like one of those shops at a country fair, where there are a number of articles of different value, and of different use, each at the price of sixpence. Your sixpence you must pay; but then you have your choice, if you choose but wisely."

"I am not sure of the choice," said Chandos with a sigh; "but I will choose soon, at all events:" and he walked towards the door.

"Stay a minute," cried Lockwood; "I will take my gun. We may find some teal by the wear; and you will want dinner."

As they walked along, the younger of the two remained in silent thought. He was not full of the energetic inspiration of hope; and the flame of expectation had waned dim and low. Doubtless he had dreamed bright dreams in former times--doubtless he had looked at life through youth's magnifying-glass--doubtless his anticipations had been exuberant of the pleasant things of the future. But there seemed a fiat gone out against him,--that he was not to enjoy even that which had seemed within grasp. He looked over the future that he had fancied his own but a few days before, and felt that, like the prophet on "the top of Pisgah, which is over against Jericho," though there was a fair land in sight, his feet would never tread it. He felt that he had been proud, that he was proud; and he resolved to humble himself. But there was a bitterness in his humility which produced a wayward pettishness in all the plans which floated, like wreaths of smoke, before his mind. They were many, many, like the troops of strange forms which sometimes sweep--as it were, interminably--before the eyes in dreams. Varying were they too, shifting and changing in hue, and form, and position, like the streamers of the northern meteor lights. Now he would forth into the great and busy world, and cull honour and distinction with a fiery energy, with the genius he knew himself to possess, with the learning he was conscious he had acquired, with the courage he felt in heart. He would seek the camp, or the court, or the bar, or the pulpit. He would make himself independent, he would make himself great. Then again he said, No; he would cast off all the ties which had hitherto bound him; the ties of blood, of station, of society. He would take his position at the lowest grade, at the very bottom of the ladder. He would try a state entirely new, a condition different from all he had yet tried, and see what would come of it. He could change, if he liked. His mind need not rust in humble life; his abilities would not get mouldy; his small means would accumulate: He would even, he thought, from time to time vary the scene: place humble life and a higher condition side by side, upon alternate days, and judge between them. As first disappointment is always whimsical, it was upon the last

scheme that his thoughts most pleasantly rested; and with it he busied himself as, crossing the further part of the park, they approached the river. The point they made for was lower down than where he had swum across; but he paid little attention to anything; and the first thing that roused him was the sudden rising of a plump of teal from the rushes. They whirled round in a dense cloud. Lockwood's gun was up in a moment, fired, and four birds came down together. Then Chandos gazed at the rushing water, red and foaming, and he thought it marvellous that he had ever crossed it alive. "Perhaps it would have been better," he said bitterly to himself, "if I had remained in its fell clasp." He spoke not a word aloud; but Lockwood answered as if he could see the thoughts written.

"Poo! nonsense!" he said; "there is always something to live for in life. And there lies your bundle, drifted ashore at the other corner of the wear. You pick up the teal, and get that one out of the water, and I will go and fetch it."

"How?" said Chandos. But the other made no reply, and, quietly mounting the top of the wear, began to walk along its slippery and narrow path towards the other side of the river. The younger man watched him for a moment with anxiety; but he saw that Lockwood trod the six-inch rail like a rope-dancer, and he turned himself to gather up the dead birds. He had got two, and was reaching over the river to pull out a third, which had fallen into the stream, with his head bent down, when a light touch on the shoulder made him look up.

"Why won't you speak to one this morning, Mr. Lockwood?" said a middle-aged man in a keeper's dress. "I thought it was your gun, but I came down to see notwithstanding; for though Sir Harry is dead, that's no reason the game should be poached."

The man looked down on his face while he spoke, and Chandos then became aware how great was the likeness between him and his companion.

"My name is not Lockwood," he said, rising up to his full height. The man drew a little back in surprise, saying, "Ay, I see you are not, now; but you are devilish like him. Then, my young gentleman, what are you doing shooting here?"

"It was Lockwood who fired," answered Chandos, gravely, with a certain degree of haughtiness in his manner and tone. "He is over there, seeking a bundle which I let fall into the water. There is his head amongst the weeds--don't you see?"

A friendly shout from the person of whom he spoke called the keeper's eyes in the right direction; and in a minute or two more, Lockwood, crossing back again over the wear, stood by them with the bundle in his hand.

"Here it is, Mr. Faber," he said; and instantly a gleam of intelligence passed over the keeper's face.

"Well, I thought you were very like," he said; "no offence to the gentleman I hope;" (for Chandos had coloured a good deal, either at his words, or Lockwood's;) "only he has got whiskers and you havn't, Lockwood. I was going down to your place this morning, to ask you if you would come up and take a bit of dinner with me and my old woman at the abbey; but as the gentleman is with you, I suppose I must not make so bold as to ask him too."

"I will come with all my heart," answered Chandos at once; "only you must take me in these clothes, for all the rest are wet."

Lockwood and the keeper smiled; and the former answered, "We don't stand upon such matters in our station, Sir! Clean hands and a good appetite are all that we need at our table. Well, Garbett, you had better give your dame the birds, to make the dinner bigger; and we will be with you at one, or before, for I dare say Mr. Faber has never seen the abbey."

"Yes I have, often," answered Chandos, abstractedly; "but it was long ago."

"Well I never knew that," replied Lockwood, with a puzzled look: but, bidding the keeper good bye, and still carrying the bundle, he walked back with his companion towards his house, both keeping silence.

CHAPTER IV.

"Here, you had better dry the things in the bundle," said Lockwood, "for they are as wet as a sponge--but that is a very illogical figure; for though a sponge may be wetted, yet a sponge need not always be wet."

Chandos took the bundle and went with it into the neighbouring room, on which the little sunshine that autumn had left was shining. He opened it, displayed the few articles it contained--half-a-dozen shirts, a suit of fashionable, well-cut clothes, with some combs and brushes, a small inkstand, and a roller dressing-case, richly mounted with silver. They were all as wet as water could make them; and he proceeded to unfold the various articles of apparel, placing them one by one over the backs of the wooden chairs. His eye was resting steadily upon one of the shirts, when Lockwood came in, with a face grave even to sternness, and an open letter in his hand, apparently just received.

"You have deceived me," were the first words he uttered; and as he did so his eye rested unwinking on his young companion.

"How so, Lockwood?" asked Chandos, without the slightest emotion. "If any one tells you in that letter that you are not named in the will in the manner I stated, he is deceiving you, not I."

"Not about that--not about that at all," answered Lockwood, "that is all true enough; but--." He paused, and laid his finger upon a mark in the wet linen, adding, "Look there!"

"My dear Lockwood," said Chandos, laying his hand familiarly upon his arm, "I did not deceive you--you deceived yourself; but I did not intend long to leave you in any mistake. I only wished my own plans to be first

arranged--I wished to give myself time to think, and be prepared to act, before I spoke of matters that concerned me only, and not you at all."

"It was hardly fair, Sir," answered Lockwood, not yet satisfied. "You left me to say things that might offend you; and though I am a humble man, yet we have what is called politeness of our own kind amongst us, as well as amongst others; and we do not like to say what may be offensive except upon necessary occasions."

"Could I have taken offence under such circumstances," replied Chandos, "I should have been a fool, deserving to suffer by his folly. But you must lay aside your anger, my good friend; first, because it is uncalled for; secondly, because I have enough to grieve me; and thirdly, because I am going to ask your hearty concurrence and assistance in plans which are now formed to meet very painful circumstances."

"Painful indeed!" said Lockwood, with much feeling.

"What has that letter told you?" asked his companion.

"All," replied the other; "everything. I now know why you have acted as you have. The steward was always a good friend of mine, and of my poor mother's; and he has told me all that happened. I do not wonder at what you have done; I shall not wonder at anything you may do."

"All, he cannot have told you," answered Chandos; "for no one knows all but myself and one other, who, I am sure, for his own sake, would not tell it; nor would I. However, what is necessary to be said I can tell you as we go up to the abbey. I would fain walk over the old place from one end to the other; and therefore we will set out as soon as you like. You shall hear my plans and purposes; you shall give me help, if you can and will; and, at all events, I am quite sure you will keep my secret."

"No fear of my not doing that. Sir," answered Lockwood, warmly; "and help you I will, as far as I can, if you will only tell me how. That is all that is wanted; for though I and mine have not been well treated, you have been treated worse, I think."

"Do not call me 'Sir,' Lockwood," replied his young companion, grasping his hand warmly; "call me Chandos; and say not a word against those who are gone, if you love me. There is something so sacred in death, that, though it may be a weakness not to scan the actions of the dead as we would do those of the living, yet it is a weakness I could not part with. There is something beyond--above reason in man's nature--something that distinguishes him more from the brute, raises him far higher above it. It is that feeling which is called by the Word of God, *charity*; (very different from that to which we men give the name;) and if we are forbidden to censure our living enemies, how much more our dead friends! In this matter there has been some mistake; the will is dated ten years ago, when all the circumstances were very different, when no unfortunate dissensions had arisen, when I was myself a mere stripling. So let that pass; and now let us go. As I walk along I will tell you my plans. Do not attempt to dissuade or advise me; for my resolution is taken, and all I require is help."

"I wish to Heaven you would have something more," rejoined Lockwood, earnestly.

"What is that?" inquired Chandos.

"Why, the five hundred pounds," answered the other. "I can make no use of it, indeed. I have no need of it. I am like a tree that has grown into a certain shape, and can take no other. I have enough, Sir, for all my wants and wishes. That is what few men can say, I know; but I can from my heart; and when I get the money I shall not know what to do with it. I shall only be put out of my way, and, perhaps, be tempted to play the fool."

"No, no," answered his guest, "I neither can nor will take that which was justly destined for you. Besides, I do not need it, I am not so destitute as you suppose. Something--a pittance indeed, but still something--was secured to me long ago, and it no one can take from me. But, come; as we walk along, we will talk more."

And they did talk as they walked along, earnestly, eagerly, and took more than one turn out of the way because their conversation was not done. At length, however, they directed their course in a straight line across the park, and in a few minutes Winslow Abbey stood before them. Many of my

readers who know the part of the country in which I live must have seen it, some few perhaps wandered all over it; but for those who have not, I must describe it as it appeared before the eyes of Lockwood and his companion.

Winslow Abbey was one of the few buildings of Richard the Third's reign. It was not of the most florid style of even that time, and much less so than that of Richard's successor; but still there was wonderful lightness and grace in the architecture. Some parts of the building, indeed, were older and heavier than the rest, but rich and beautiful notwithstanding. These were principally to be found in the abbey church, which was quite in ruins, mantled with green ivy, and fringed with many a self-sown ash. Growing in the midst of the nave, and rising far above, where the roof had once been, was a group of dark pines, waving their tops in the wind like the plumes upon a hearse. Who had planted them no one knew; but the record might well have passed by, for their size bespoke the passing of a century at least. There, ruin had fully done his work, apparently without one effort from man's hand to stay his relentless rage; but such was not the case with the rest of the building. Old and somewhat decayed it certainly was; but traces were evident, over every part, of efforts made, not many years before, to prevent the progress of dilapidation. In the fine delicate mullions, in the groups of engaged columns, in the corbels and buttresses, in the mouldings of the arches, were seen portions of stone, which the hand of time had not yet blackened; and here and there, in the ornamental part, might be traced the labours of a ruder and less skilful chisel than that which had sculptured the original roses, and monsters, and cherubims' heads, scattered over the whole. The ivy, too, which, it would seem, had at one time grown so luxuriantly as to be detrimental, had been carefully removed in many places, and trimmed and reduced to more decorative proportions in others. Where the thin filaments of the plant had sucked out the mortar, with the true worldly wisdom which destroys what it rests on to support itself, fresh cement had been applied; and though some years had evidently passed since these repairs had been made, the edifice was still sound and weather tight.

Projecting in the centre was a large pile, which had probably been the Abbot's lodging, richly decorated with mitre, and key, and insignia of clerical authority; for the Abbot of Winslow had been a great man in his day, and had sat in Parliament amongst the peers of the realm. On either

side were large irregular wings, with here and there a mass thrown forward nearly on the line of the great corps de logis, and more richly ornamented than the parts between; but all, as I have said, beautifully irregular, for one of the great excellencies of that style of building is the harmonious variety of the forms. From either angle of the façade ran back long rows of lower buildings, surrounding a court with cloisters, external and internal; and on both sides the deep beech woods came boldly forward, offering, in their brown and yellow tints, a fine contrast to the cold gray stone and the green ivy. All that appeared on the mere outside of the building, was of centuries long gone by, or, at least, appeared so to be. Even the terrace in front, raised by a step or two above the surrounding park.--though probably abbots and monks had passed away ere it was levelled--had been made to harmonize with the Abbey by a screen of light stone-work in the same style. But through the small-paned windows of the building, the notions of modern times peeped out in efforts for that comfort which we so much prize. Shutters of dark oak were seen closed along the front, except in one room, where three windows were open, and rich damask curtains of deep crimson flapped in the November wind.

Chandos halted on the terrace, and gazed round. How many sensations crowd on us when we first see again in manhood the places we have known and loved in youth! But whatever were those in the young man's bosom, they vented themselves in but one expression. "Pull it down!" he exclaimed, in a tone at once melancholy and indignant. "Pull it down!"

"Who, in the name of folly and wickedness, would ever think of such a thing?" cried Lockwood.

"It has been spoken about, nevertheless," answered Chandos; "and he, who had the bad taste to propose it, has now the full power to do it. But let us go in: the house seems well enough; but the park is in a sad neglected state."

"How can it be otherwise?" was Lockwood's answer, as he led the way across the terrace towards one of the doors near the eastern angle of the building. "There is but one keeper and one labourer left. They do all they can, poor people; but it would take twenty hands to keep this large place in order. But the house is better, as you say; and the reason of that is, that,

when Sir Harry was here last, just about five years ago, though he only stayed one day, he saw with his own eyes that everything was going to ruin. He therefore ordered it to be put in proper repair. But the park he took no notice of; and it has gone to rack and ruin ever since."

As he spoke, he pushed back a small door, plated with iron, and studded with large nails, hardly wide enough for two persons to pass at a time and pointed at the top, to fit the low arch of the stone-work. A narrow passage, guiltless of paint or whitewash, led to what had been the abbot's kitchen, in times long gone. It formed now the sitting-room of the good keeper and his wife, who had been put in to take care of the house. In honour, however, of an expected guest, the cloth, which was already laid, although it wanted near an hour of one, was spread in the housekeeper's room adjoining.

The good dame, who with a little girl fifteen or sixteen years of age, her niece, was busied in hospitable cares, viz., in the spitting of the already plucked teal, made a courtesy to Chandos on being caught in the fact, which had nearly run the poor bird in her hands through the body in a sense and direction totally different from that which she intended. But Chandos soon relieved her from any little temporary embarrassment, by saying, that he would walk through the house with Lockwood, till dinner was ready.

A flight of steps led them up to paved galleries and halls, many in number, confused in arrangement, and not altogether convenient, except for the purposes for which they were originally destined. Chandos seemed to need no guide, however, to the labyrinth; and it must be observed, that the only use of Lockwood, as his companion, seemed to be to exchange an occasional sentence with him, and to open the window-shutters of the different rooms, to admit the free air and light.

"Let us go this way, Lockwood," said his younger companion; "I wish to see the library first; and the best way will be through the glazed cloister, round the inner court."

"How well you remember it!" said Lockwood. "But I fear you will find the library in bad order; for the people left in the place do not know much about books."

Nevertheless, Chandos hurried on, and entered a long, broad, stone-paved passage, which had been ingeniously fitted up, so as to defend those who passed along from the wind and weather. This gallery, or cloister, ran along three of the internal sides of the building, only interrupted at one point by a large hall-door, through which carriages could pass from the terrace to the inner court; and, threading it quickly, Chandos and his companion reached a door at the opposite angle, which, however, was not to be opened easily. The key Lockwood had not got; but, pushing back a lesser door to the left, which was unlocked, they found their way through a small, elegantly fitted-up study to another door of the library, which did not prove so stubborn. In this little study, or reading-room, were six old oak chairs, curiously carved, and covered with rich crimson velvet; a sofa, evidently modern, but worked by a skilful, and, doubtless, expensive upholsterer, so as to harmonize with the other furniture; a writing-table, of old oak, with bronze inkstands, lamps, penholders, and some little ornaments of the same metal; and two small bookcases, with glazed doors, which covered and discovered the backs of a number of splendidly-bound books.

"This is all mine, Lockwood," said Chandos, gazing round with some pleasure. "It is left to me so distinctly, that there can be no cavil about it, or there would be a cavil, depend upon it. The words are:--"The library, with all the furniture, books, pictures, busts, and other articles of every kind whatsoever in the room so called; and also everything contained in the small writing-room adjoining, at the time of the testator's death.'"

"I'll make an inventory of them," said Lockwood, with a cheerful air. "The library, too? Why, that's a fortune in itself."

His younger companion mused for several moments, with his hand on the library-door. "That is true," he said; "I never thought of that. And yet it were a painful fortune, too, to turn to any account; for it would go hard with me, ere I sold the old books, over which I have pored so often. However, Lockwood, take you an inventory, as you say: and in the mean time, I will consider how I am to dispose of all these things. I shall never have a house big enough to put those bookcases in."

"You can't tell," answered Lockwood. "What you are going to try first, you will soon get tired of; and then you will take some other course, and

may raise yourself to be a great man, yet. You have had a good education, been to Eton, and college, and all that; and so you can do anything you please."

Chandos shook his head sadly, and replied: "The road to high fortune, my good friend, is not so easily travelled now as once it was. So many are driving along it, that there is no room for one to pass the other."

"There's another reason besides that," answered Lockwood, "why we see so few mount high now-a-days. It's all like bread and butter at a school; there's but a certain portion of butter for the whole; and if the number of mouths be increased, it must be spread thinner. However, as I have said, you can do what you like; for you are young, determined enough for anything, and have a good education, so you may be a great man, if you like."

"You have had a good education too, Lockwood," replied the other.

"Ay, but not so good as yours," said his companion. "Mine has been picked up anyhow; and a man never makes much of that. Besides, you have always been accustomed to keep company with gentlefolks; and I am a boor. Education means something else than cramming a man's head with Greek and Latin, or mathematics either; and, moreover, I don't want to be a great man, if I could. To me it would be as disagreeable, as you will find being a little one."

"Well, well, we have settled that question," said Chandos; "and for the future God will provide."

He then walked up to one of the large bookcases, carved like the screen of an old church, took down a volume so covered with dust that the top looked as if it were bearing a crop of wool, opened it, and read a few lines mechanically. Lockwood stood near, with his arms folded on his broad chest, gazing at him with a thoughtful look, then, tapping him lightly on the arm, he said, "You have forgotten one thing: you will have to receive all these fine things some day soon; how will that square with all your fine plans?"

Chandos took a moment or two to reply; for it would seem, he had not indeed considered the subject. "I will tell you, Lockwood," he said; "I will give you an order to receive them in my name. I shall be near at hand, to do anything more that may be necessary."

"But what am I to do with them?" asked Lockwood, frightened at the idea of such folio volumes, and awful bookcases. "But I will tell you what I can do," he added, a moment afterwards. "There's the young parson over at Northferry, he's a good young man and kind, I have always heard, though I don't know him, and has a large house not yet half furnished. He'll give them place, I'm sure. We can talk of that afterwards. But it must be the good folks' dinner hour, by this time; and keepers have huge appetites."

"Well, let us go back," said Chandos, with a sigh. "But we can walk through the rooms. It will not take us longer."

"The base and the perpendicular are always in their sum more than the hypotenuse," replied Lockwood, drily. "But doubtless they are not so ravenous as to grudge a few minutes to look at places you have not seen for so long, and may never see again.--Odd's life, pull the place down! They must be mad!"

Chandos made no answer, but walked on, passing from room to room, along the wide front of the building. He gazed around him as he went with a slow pace, but only twice he stopped. Once it was to look at a picture; that of a lady in a riding habit. It was an early portrait by Sir Thomas Lawrence, with great breadth and power, and some careless drawing and want of finish, in subsidiary parts. But the face was full of life. The liquid eyes, with the clear light streaming through the cornea, and illuminating the iris, seemed gazing into your heart. The lips spoke to you; but there was a sadness in the tones, which poured melancholy into the gazer.

"Ay, she had an unhappy life of it, poor thing," said Lockwood, at once interpreting the expression in the portrait, and the feelings in his companion's heart. "I, of course, had no reason to love her; but yet, I grieved for her from my soul."

Chandos turned abruptly round, laid his left hand upon Lockwood's shoulder, and seemed about to reply almost bitterly. But then he stopped suddenly, looked him full in the face, with the finger of his right hand extended to his companion's breast, and with a sad shake of the head, moved away. The next time he stopped, it was before a small work-table, which he gazed at for a minute or two, and then said, "If there is a sale, Lockwood, as I dare say there will be, I should like to have that. Purchase it for me; it cannot sell for much."

He then quickened his pace, and proceeded without a pause to the abbot's kitchen. There was apparent, however, as he went along, a quivering of the lip at times, and an occasional wide expansion of the nostril, which made Lockwood think that strong emotions were busy within him. Whatever they were, he threw off his gloom when he joined the good keeper and his wife at their meal; and though not gay, he chatted with the rest, and sometimes laughed; ate their good cheer with a hearty appetite, and drank more than one glass of old ale. The dinner was over, and they were sitting, about two o'clock, with that pause for digestion, the necessity for which all animals feel, when a grating sound, as of carriage wheels, was heard; and going to the window, the three men saw a post-chaise, dragged on slowly by two sorry jades, through the loose stuff of the long-neglected road.

"My goody! who can that be?" cried the keeper's wife, looking over her husband's shoulder.

"It is Roberts, the steward," said Chandos, with a grave face. "Do not let him be brought in here, Lockwood. I will see him afterwards; but it must be alone."

Lockwood nodded his head significantly, and went out with the keeper, who hurried to the principal entrance of Winslow Abbey, towards which the chaise directed its course.

"Don't say anything at present of the young gentleman being here," whispered Lockwood to the keeper, as the latter unbolted the great doors. An acquiescent nod was the reply, and the next moment Mr. Roberts approached the entrance.

I must pause, both upon the character and appearance of that person; for he was not an ordinary one. Richard Roberts was diminutive in person, though exceedingly well formed; most of his features were plain; and he was a good deal marked with the small-pox; but his eyes were fine, large, and expressive; and his brow was both broad and high. He had been educated as an attorney by his father, who was an attorney also; but the father and the son were different. The father was a keen, shrewd, money-making man, who had no scruples within the law. He had married the daughter of a country banker, and treated her very harshly from the hour the bank broke. He had been very civil before. She bore all patiently; for she had a very high sense of duty, which she transmitted to her son; but she died early; for she was too gentle and affectionate to endure unkindness long. The young man submitted to his father's pleasure, though the desk and the red tape were an abomination to him; and he went on studying deeply till he was out of his clerkship, when he entered into partnership with his father. The father, who was a thick-necked man, ate too much, and drank too much, at a hot corporation-dinner; and a thin alderman--for there are such things--remarked, that Roberts had eaten and drank enough that night to serve him his whole life. So it did, too; for, just as he was peeling his third orange after dinner, and somebody was getting up to make a speech, which nobody was likely to attend to, Mr. Roberts leaned amicably upon his next neighbour's breast; and that gentleman at first imagined--notwithstanding the improbability of the thing--that Roberts was drunk. When he was set up in his chair again, he moved not, except to fall slowly to the other side; and then it began to strike people, that a man might be dead instead of drunk, even at a corporation-dinner. So it proved; and the firm was changed from "Roberts and Son," to "Richard Roberts." To the surprise of everybody, however, the whole business of Mr. Roberts's office was wound up within three months, and the office closed. Every one knew, that the old man had been of a money-making turn; but still, they argued, that he could not have left enough for young Roberts to turn gentleman upon. This was true; and shortly after he accepted the situation of steward and law-agent to Sir Harry Winslow, rejecting all fees, and doing the whole business for a moderate fixed salary, which, with what his father had left him, was sufficient for his ambition. Thus he had gone on for five-and-twenty years. The tenants were always well pleased with him; for he forced no man to take a lease, when an agreement for one would do as well; but never refused a lease when it was

required. Sir Harry was not always well pleased; for there was a rigidity about Mr. Roberts, and about his notions, which did not quite suit him; but Mr. Roberts, like an indispensable minister, was always ready to resign. He was now a man of more than fifty years of age, with very white hair, very black eyebrows, and a pale, thoughtful complexion; and, as he walked up from the chaise to the house, his step, though not exactly feeble, had none of the buoyancy of youth and strong health about it.

"Good morning, Garbett. Good morning, Mr. Lockwood. You have got my letter, I hope?"

"Not till this morning, Mr. Roberts," answered Lockwood; "although I should have had it last night, if the postman would but take the diagonal line, instead of two sides of a parallelogram."

Roberts smiled gravely and entered the house, saying: "Mankind will choose devious ways, Lockwood; but, at all events, I hope you were satisfied with the information I conveyed. I thought it best to put your mind at ease at once."

"Oh! it was never uneasy," answered Lockwood. "I have always my hands and my head, Mr. Roberts, and I know how to make use of them. But I suppose you have come to seal the things up here."

"Not exactly," answered Roberts; "only a little business connected with my situation, which I trust to get over by to-morrow morning."

"Will your honour like any dinner?" asked Garbett, the keeper. "My old woman can get it ready for you in a minute."

"Not just yet," answered Roberts; "about four o'clock, perhaps; but I must get through some business first. Show me the way to the late Sir Harry's business-room, Garbett. It is so long since I was here, that I almost forget it."

The keeper did as he was desired; and Mr. Roberts, requiring pen and ink, and apparently wishing to be left alone, Lockwood and Garbett left him; and the former rejoined Chandos in the housekeeper's room. After time

had been given for the gamekeeper to supply the steward with writing materials, and the voice of the former was heard in the adjoining kitchen, Chandos walked away straight to the room where Roberts was shut up, and remained there for nearly an hour. At the end of that time the door opened; and Chandos shook the steward by the hand, saying: "I shall see you on Saturday, Roberts, for the last time, perhaps, for months, or years; but I trust entirely to you, to take care that whatever rights I have are duly protected."

"That I will do, you may depend upon it, Sir," replied the steward; "and, perhaps,--But no matter; things must take their course according to law; for we have no power, unfortunately, over men's hearts."

Chandos turned away; and the steward remained gazing after him till he was lost in the turning of the inner cloister.

CHAPTER V.

We have histories of almost everything that the earth contains, or ever has contained--of kings, and bloody battles; (almost inseparable from kings;) of republics, and domestic anarchy; (inseparable from republics;) of laws, rents, prices; (Tooke has despatched prices;) of churches, sects, religions; of society--that grand, strange, unaccountable compound of evil and good; where men's vices and virtues, ever at war, are made mutually to counteract each other, and bring about an equilibrium balanced on a hair; always vibrating, sometimes terribly deranged, but ever returning to its poise. But, thank Heaven! we have not absolutely histories of everything; and, amongst others, we have not a history of opinion. The world, however, is a strange place; the men and women in it, strange creatures; and the man who would sit down to write a true history of opinions, showing how baseless are those most fondly clung to, how absurd are those most reverently followed, how wicked are some of those esteemed most holy, would, in any country, and in any age, be pursued and persecuted till he

were as dead as the carrion on which feeds the crow; nay, long after his miserable bones were as white as an egg-shell. I am even afraid of the very assertion; for the world is too vain, and too cowardly, to hear that any of its opinions are wrong; and we must swim with the stream, if we would swim at all. There is one thing, indeed, to be said, which justifies the world, although it is not the ground on which the world acts--that he who would upset the opinions established, were he ten times wiser than Solon, or Solomon either, would produce a thousand evils where he removed one. It is an old coat that will not bear mending; and the wearer is, perhaps, right to fly at every one who would peck it. Moreover, there is *primâ facie*, very little cause to suppose that he who would overthrow the notions which have been entertained, with slight modifications, by thousands of human beings through thousands of years, is a bit more wise, enlightened, true, or virtuous, than the rest; and I will fairly confess, that I have never yet seen one of these moral knights-errant who did not replace error by error, folly by folly, contradiction by contradiction, the absurdities of others by absurdities of his own. Nay, more; amongst all who have started up to work a radical change in the opinions of mankind, I have never heard but of one, the universal adoption of whose views, in their entirety, would have made the whole race wiser, better, and happier. He was God as well as man. Men crucified him; and, lest the imperishable truth should condemn them, set to work to corrupt his words, and pervert his doctrines, within a century after he had passed from earth. Gnostics, monks, priests, saints, fathers, all added or took away; and then they closed the book, and sealed it with a brazen clasp.

Still there are some good men withal, but not wise, who, bold, and somewhat vain, set at nought the danger of combatting the world's opinion, judge for themselves, often not quite sanely, and have a pride in differing from others. Such is the case, in a great degree, with that old gentleman sitting at the breakfast-table, on the right-hand side, with the light streaming through the still green leaves of plants in a fine conservatory, pouring on his broad bald head and gray hair. I do not mean the man so like him, but somewhat younger, who is reading a newspaper at the end of the table, while he takes his coffee, colder than it might have been, if he had contented himself with doing one thing at one time. They are brothers; but very different in habits, thoughts, and views. The organ of reverence, if

there be such an organ, is very large in the one, nearly wanting in the other; and yet there are some things that the elder brother does reverence, too--virtue, honour, gentleness, purity. Now, he would not, for the world, shock the ears of those two beautiful girls, his brother's daughters, with many of the notions which he himself entertains. He reverences conscientious conviction, even where he differs; and would not take away a hope, or undermine a principle, for the world.

The elder girl asked him if he would take any more coffee. "No, my Lily," he answered, (for he was poetical in speech and mind,) "not even from your hands, love;" and rising for a moment from the table, with his hands behind his broad burly back, he moved to the window, and looked into the conservatory.

"What makes you so grave, dear uncle?" asked the other girl, following; "I will know; for I am in all your secrets."

"All, my Rose?" he said, smiling at her, and taking one of the rich curls of her hair in his hand. "What heart ever lays bare all its secrets? One you do not know."

"Indeed!" she cried, sportively. "Then confess it this instant. You have no right to have any from me."

"Listen, then," he answered, pulling her to him with a look of fatherly affection, and whispering: "I am in love with Rose Tracy. Don't tell Lily, for I am in love with her too; and unfortunately, we are not in Turkey, where polygamy gives vast scope to the tender passions."

"What is he saying about me?" asked Emily Tracy, the elder of the nieces, who caught the sound of her own abbreviated name. "Do not believe a word he says, Rose; he is the most perfidious of men."

"I know he is," replied her sister; "he is just now sighing over the prohibition of polygamy, and wishing himself in Turkey."

"Not if you were not with me, Rose," cried her uncle, with a hearty laugh that shook the room. "Why should I not have a whole garden of roses--with

some lilies--with some lilies too? Ha, ha, ha!"

"It is always the way with men who never marry at all," said Emily; "they all long for polygamy. Why do you not try what a single marriage is like, my dear uncle, before you think of multiplying it?"

"Because two panniers are more easily borne than one, my Lily," answered her uncle, laughing again.

The two girls united to scold him; and he replied with compliments, sometimes hyperbolic, sometimes bitter, and with much laughter, till his brother was roused from his deep studies, laid down the newspaper, drunk his coffee, and joined them at the window.

"Well, Walter," he said, "I see those amusing Frenchmen have given a verdict of guilty, with extenuating circumstances, against another woman who has poisoned her husband with arsenic. He was kind, tender, affectionate, the evidence shows; forgave her a great many offences; and treated her with anything but harshness, though she certainly was not the best of wives. She poisoned him slowly, quietly, deliberately, that she might marry a paramour, who had already corrupted her. Yet they find 'extenuating circumstances.'"

"To be sure," answered General Tracy. "Do you not see them, Arthur? You say, he forgave her a great number of offences, and consequently, did not do his duty to himself, or to her. But the truth is, these Frenchmen think murder better than execution; and, after massacring thousands of honest men, some forty or fifty years ago, will not now put one guilty man to death, though his crime is proved by irresistible evidence."

"It is all slop," replied Mr. Arthur Tracy. "The word is, perhaps, a little vulgar, but yet I repeat it, 'It is all slop.' I will write an essay upon slop, someday; for we have just as much of it in England, as they have in France; only we shelter murder under a *monomania*, and the French under *extenuating* circumstances. It is wonderful how slop is beginning to pervade all classes of society. It already affects even romance-writers and novelists. The people used to rejoice in blood and murder, so that an old circulating library was like a bear's den; nothing but gore and bones. But now one is

sickened in every page, with maudling sentimentality, only fit for the second piece of a minor theatre. Love-sick dustmen, wronged and sentimental greengrocers; poetic and inspired costermongers; with a whole host of blind, lame, and deformed peasantry and paupers, transformed into angels and cherubs, by the assistance of a few clap-trap phrases, which have been already hackneyed for half a century on the stage. Slop, slop, Walter; it is all slop; and at the bottom of every kind of slop, is charlatanism."

"Humbug, you mean," said his elder brother. "Why do you use a French word, when you can get an English one, Arthur?"

"If the men really wished to defend the cause of the poor," continued Mr. Tracy, taking no notice of his brother's reproach, "why don't they paint them and their griefs as they really are? Did you ever see, Walter, in all your experience, such lackadaisical, poetical, white-aproned damsels amongst the lower classes, as we find in books now-a-days?"

"Oh yes," said General Tracy; "I'll find you as many as you like, on the condition that they be educated at a ladies' charity-school, where they stitch romance into their samplers, write verses in their copy-books, and learn to scrub the floors to etherial music.--But come, my Flowers," he added, turning to his nieces, "will you take a walk? and we will go and see some real cottages, and see some real peasants."

His proposal was willingly agreed to; and Mr. Tracy--who was of a speculative disposition--was speculating whether he should go with them, or not, when the butler entered and put his negative upon it, by saying: "Please, Sir, here is a young man come to ask about the head gardener's place."

"I will see him in a minute," said Mr. Tracy. "Show him into the library."

While the father of the family, after looking at one or two more paragraphs in the newspaper, walked into his library, to see the person who waited for him, his two daughters had gone to put on bonnets and shawls; and the old General sauntered out, through the conservatory, to the lawn before the house. Nothing could be more beautiful, or more tasteful, than the arrangements of the whole grounds. Large masses of hardy exotics were

planted round, now, alas! no longer in flower; but a multitude of the finest and the rarest evergreens hid the ravages which the vanguard of winter had already made, and afforded shelter from the cutting winds to some few autumnal flowers, which yet lingered, as if unwilling to obey the summons to the grave. The old man gazed upon the gardens, and vacant parterres; upon the shrubberies of evergreen, and upon the leafless plants beside them; and a sad and solemn spirit came upon him as he looked. Poetry, the magic mirror in the mind, which reflects all external things with hues more intense than the realities, received and returned every sad image, that the decay of nature's children presents, in colours more profound and dark. He thought of the tomb, and of corruption, and of the vanity of all man's efforts upon earth, and upon the sleep that knows no waking, and the perishing of our very memory from among our kindred and our race. The warm life that still throbbed high in his old heart, revolted at the idea of cold extinction, he felt that it is a terrible doom that rests upon all the children of the dust; but threefold terrible, to the only being conscious of its inevitable coming, filled with the first of the waters of life, instinct with appreciation of all its excellence. He had been in battle, that old man, he had faced the cannon and the bayonet, had heard the eager balls whistle round his temples, screaming like vultures for his blood; he had seen thousands dying about him; but he had never felt what a dreary thing death is, as in the presence of those fading flowers.

At length the two girls joined him, and he put on a less thoughtful air; but Rose, the youngest and the gayest, had a shadow on her brow; he knew not from what. It was not altogether sad; but it was as if a cloud had passed for a moment between her eyes and the sun, rendering the deep blue more deep.

The day was fine and bright, but cold; and a shrewd wind moved the dry leaves about under the trees, making them whisper like ghosts as they rustled past. The old man breasted the breeze, however; and his clear rosy cheek seemed to glow only the more warmly in the spirit of resistance. So, too, his mind opposed itself to the blast of chill thoughts which had assailed him, and he laughed and jested with his nieces, as they went, on the very subjects which had oppressed him when alone.

"Look, Lily," he said, "how all the children of the spring are gathered into the grave of winter, already massed up to crumble down, and be succeeded by others doomed to pass away after a brief space like themselves! And thus we shall all tumble from our boughs and wither. There, that faded thing is me, full of holes and scars as a politician's conscience; and that Michaelmas-daisy is you, Lily, blossoming upon the arm of winter."

"You are lively, dear uncle," said Emily, laughing; "and Rose does not seem gay, though she was so merry just now. You must have said something very serious to her at the window, for she has been in a reverie ever since we left the breakfast-room."

"Faith, I was very serious," answered her uncle: "I offered her marriage; but she said it was against the laws of the realm and the common prayer-book, to marry your grandfather or your uncle. What is it, Summer-flower, that makes you hang your head?"

"Winter, I suppose, uncle," replied his younger niece. "But, if truth must be told, I am not warm. Lest us walk more quickly, till we get behind the grove, where there is shelter from this biting wind."

They did walk on more quickly; and Rose, either by an effort, or naturally, grew gayer. They passed through the grove, and out upon the fields, then through lanes again, deep, between banks, with withered shrubs above, when suddenly there came upon them a smell, pleasant in winter, of burning wood, mingled with turf.

"There are some of the yellow people near," said General Tracy. "Now, Rose, is the time, if you would have your fortune told."

"I should like it, of all things," cried the girl, gladly. "Dear uncle, let us find them out, and hear what a trifle of husbands and wives they will give us. You will come in for your share, depend upon it; and a sweet delusive vision of polygamy and 'famed Turkie' will be afforded you yet."

"Oh! I am quite ready," said her uncle. "But, what say you, Lily?"

"That I think it is always very foolish," answered Emily, "to have anything to do with such people. If you believe them, they make you uneasy, and play upon your credulity. If you do not believe them, why give half-a-crown for imposition?"

"Reasoned like Aristotle, dear Lily," exclaimed her uncle; "but there is one point in philosophy which you have not taken into consideration. Everybody has a certain portion of folly to expend, which, like a boy's new guinea, burns his pocket till it is all gone. Now I wish every one had as innocent a way of spending his foolishness: so Rose and I will have our fortunes told. You shall do as you like."

"I am as glad of having half-a-crown in my pocket," cried Rose, "as a housemaid when she first hears the cuckoo."

While they had been speaking they had walked on through the lane to a wider spot, where, under a yellow bank, with blackberries still hanging above, like dark eyes amongst the withered leaves, rose up the smoke of the forbidden pot. Two or three of the tents of Kedar were seen under shelter of the high ground, dingy and begrimed with manifold seasons of exposure, and apparently not large enough to hold one of the bipeds which usually nestle in them in multitudes. The reason given for an ostrich not sitting on its eggs (which is very doubtful, by-the-by) might well be given for a gipsy not living in his tent, *i. e.* because his legs are too long; but, not to discuss the matter too philosophically, there were the tents, but no gipseys in them. Nor were there many out of them in their immediate neighbourhood; for only one was to be seen, and that a woman. Not the slightest touch of Meg Merrilies, not the slightest touch of Lena, was apparent in the worthy dame. She was a woman perhaps of six or seven and twenty years of age, as yellow as a crow's foot, but with a good warm glow shining through the golden russet. Her eyes were black as sloes, and shining like polished jet. The features were all good, though not as new as they once had been; very like the features of figures found painted in Egyptian tombs, if ever you saw them, reader--straight, yet not Grecian, and more resembling those of the bust of the sybil than any others of classical lands and times. She was still plump, and in good case, without having reached the full amplitude (is that a pleonasm?) which it is probable she would

attain, and still farther removed from that state of desiccation at which she would certainly arrive if she lived long enough. Her head was covered with the peculiar straw bonnet, in the peculiar shape which has given a name to a part of ladies' head gear; from her shoulders hung the red cloak, and crossed upon her abundant bosom was a handkerchief of crimson and yellow. She was not at all poetical or romantical, but a very handsome woman notwithstanding. She was evidently a priestess of Vesta, without vows, left to keep the sacred fire in, while the rest of the sisterhood and brotherhood were absent upon different errands; and as soon as she perceived a well-dressed party approaching, she abandoned the flame, and came forward with her head bent coaxingly, and her black eyes gleaming forth from beneath the raven hair. The rapid look she gave to each, seemed enough to afford her every clue to character she might want; and with vast volubility she cried, in a musical but whining tone, "Cross my hand, dear ladies and gentleman; cross my hand, pretty ladies--cross it with silver, or cross it with gold, 'tis all the same; you have nice fortunes, I can see by the corner of the eye. I shall have to tell you wonderful things, when I look in your palms, I know, pretty ladies. And that old gentleman will have half a dozen wives yet, for all his hair is so white, and children like a covey of partridges."

Rose laughed gaily, drew out her purse, and tendered her fair hand. The gipsy woman, after having got her fee, took the rosy tip of the long, taper middle finger, and gazed as seriously into the palm as if she believed there was truth in her art. Perhaps she did, for imposture is often like a charge of gun-powder, and acts as strongly towards the breech as towards the muzzle. But when she had examined the few soft lines for a minute, she shook her head gravely, saying, "You will live long and happily, pretty lady, though there's a sad cross about the beginning of the line of life; but the line goes through, and then it's all clear; and, let me see--yes--you shall marry a gardener."

With a start, Rose drew away her hand, and her face became crimson; while her sister and her uncle laughed aloud, with a little spice of good-humoured malice.

"Come," cried the old General, "there's a fine fate for you, Flower! Now are you satisfied? It is true, depend upon it; it is true. These Egyptians were

always masters of mighty secrets; witness their rods turned into serpents, though it was but to feast Aaron's rod. But this brown lady of Egypt shall tell my fortune, too; for she looks

'A palace
For crowned truth to dwell in--.'

Here, my sorceress, look at my palm, and see what you can make of that! It has been crossed by many a piece of gold and silver in its day, as well as your own."

The woman resumed her examination; and studied the broad furrowed hand attentively. At length she said, looking up in the old man's face, "You shall live as you have lived, but not die as you have lived. You shall not fall by fire or steel."

"Nor lead?" asked the soldier.

"No," she answered, "nor by accident of any kind; but by slow decay, like a sick bird in a cage, or a sick horse in a stall; and you shall see death coming for long days before he comes."

"That's not pleasant," said General Tracy. "But what will become of my half dozen of wives?"

"They will all die with you," answered the woman with a grin, which showed her white teeth to the back; "for no other wife will you have than you now have."

"Hard fate!" cried Walter Tracy, lifting up his hands and eyes, and laughing--"six wives all in one day, and their husband, to boot! But I understand how it is. They must be all Hindoos, and will burn themselves at my funeral, poor things! Now, Emily, it is your turn."

"Not I," replied the young lady, gravely; "I have not the slightest inclination."

"Ah, pretty lady," cried the gipsey, "do cross my hand, and I will tell your beautiful fortune in a minute."

"No, indeed, my good woman," replied Emily Tracy. "I am quite contented to wait till God shows it to me. If I believed you could tell, I should think it wrong to ask you; and as I do not believe you can, it would be only foolish."

The gipsey woman looked at her fiercely, and exclaimed, with an angry and menacing voice, "You do not believe? I will make you believe. I don't need to look in your hand. Your proud heart will be humbled--you will marry a felon."

"Come, come, this is somewhat too much," said General Tracy; "no insolence, my good woman, or I may have occasion to punish it. Those who are foolish enough to ask you questions, you may answer as you will; but you have no right to say such things to those who make no inquiries of you."

"It is true, and so you will find," answered the woman, returning sullenly to her pot; and without taking any further notice of her, the party walked on.

CHAPTER VI.

In the gray of the early morning a young man walked across the country, near Winslow park. He was dressed like a respectable countryman, with a good plain fustian coat upon his back, and leathern gaiters on his legs. Robust and healthy, he went along at a quick pace; but yet his look was not joyous, and his brow was stern. The country rose gradually over gentle slopes at first, and then wooded hills. Soon it reached a barer region, where downs extended far and wide, and great hills were seen, scantily covered with short grass. No trees; but here and there a stunted hawthorn, or solitary

fir; no hedgerows, no cultivated field were there, except where now and then the traces of the plough were apparent in a dell, promising a thin crop of barley or rye for the ensuing year. The air was cold and invigorating, the sky clear, and the curlew, with its arched wings, and wild whistle, skimmed away from the white patch of uncovered cliff as the wayfarer passed by, even at a distance. He walked on, five--ten miles; and then he passed through a gap in the hills where they had been cut precipitously down, through chalk and flint, to give passage to the cross-country road. When he had reached the middle of the gap, another country was before him, lying beautiful and soft in the blue morning. Cold might be the colouring, but dark, and fine, and clear. There were woods, and fields, and two or three villages; and a small river, down, down, several miles below. After walking on, gradually descending, for about a quarter of an hour, the traveller saw a finger-post, where the road divided. "To East Greys," said one limb. "To Northferry," said the other; and he took the latter path.

Two or three minutes after, he overtook an old man in very ragged robes. His face was both yellow and dirty, like a copper pot which had been used several times. In his hand he carried an old kettle without a spout, filled with charcoal, and under his arm a basket and a pair of bellows. He seemed very poor.

"Won't you give a poor man something to help him on?" he said, in a cracked voice, as the traveller turned round and looked at him.

"My good friend, I am nearly as poor as yourself," replied the other; "however, there is sixpence for you.

'For the poor man alone,
To the poor man's moan,
Of his morsel a morsel will give, well a' day!'"

The travelling tinker took the money, and put it in his pocket, saying, "Thank you, Sir. Do you know where a man could get something to eat, and a pint of beer?"

"No, indeed," answered the other; "I do not know this side of the hills at all; and was just going to ask you the same question you have put to me. I

want very much to find some place where I can get food and drink, for I am very hungry; and information, for I have several questions to ask."

The tinker winked his eye; and, with his peculiar intonation, which from cold, or crying for half a century, "Old pots to mend!" was half a whisper, and half a scream, he said, "I think I know where we can find all, if you are not afraid to come with me."

"Why should I be afraid?" asked the other. "I have very little to lose but my skin, and it is not worth taking."

"I don't know that," said the tinker. "It would do finely to mend my bellusses. But, come along; your skin shall be quite safe, and all the rest too. You shall have your sixpenn'orth, for giving the sixpence kindly."

The traveller walked on with him without deliberation, saying, "You are going to a party of your own people, I suppose?"

"Ay," answered the other; "there are two or three of our families down here--some of the best of them; Stanleys, and others. They can't be far; somewhere out of the way of the wind."

With a few short sentences of this sort they went on for a mile and a half further, and wound in amongst the woods and sandy lanes, which now took place of the downs and chalk hills. Presently, the old man pointed with his free hand, saying, "They are down there."

"You must have known that before," said his companion.

"Not I," rejoined the tinker. "I can see things that you cannot."

In five minutes more Chandos was seated near the entrance of a gipsy-tent, with his comrade of the way by his side; about a dozen yellow people, of all ages, around; and a wild shaggy horse or two cropping the scanty grass hard by. They were a set of people he made himself at home amongst in a moment; and his introduction by the tinker was quite sufficient to obtain for him a supply of provisions, better than what his sixpence would have procured in any other place, and more than double in quantity. There

was one good-looking comely dame, of about six-and-twenty, who seemed to regard him with peculiar interest, and took care to see that his wants were attended to liberally, both with meat and drink. But the curse of all small communities, curiosity, was upon them; and every one asked him, instead of answering his questions. Where he came from, whither he was going, what was his business, what the object of his journey, was all inquired into without the least ceremony. His answers were cheerfully given, to all appearance. He told them, that he had come from a good distance, that he was going to Northferry, and that he was about to seek the place of head-gardener at the house of Mr. Arthur Tracy.

"Oh, it is a beautiful place, surely," answered the brown lady, who took so much care of him, and sat on his left hand.

"And a capital farm-yard there is," rejoined a stout merry young vagabond just opposite. "Such hens and turkeys, my eye!"

"I shall have nothing to do with the farm-yard," answered Chandos, with a smile and a nod; which the other understood right well, and laughed at in return.

"And so you are a gardener," whispered the woman, while the rest were talking loud. "I've a notion you have had other trades in your day."

"I never was of any other trade in my life," answered Chandos, boldly. The woman looked at him through her half-closed eyes for a moment, and then shook her head.

"Are you fondest of roses or lilies?" she asked in the same tone. "Lilies, I should think, by the colour of your hands."

"There you are mistaken," said Chandos; "I prefer roses, much. But tell me what you know of the place. Are they good, kind people there?"

"Oh, yes!--Two queer coves are the old men; (Did you never see them?) but good enough for that matter," was the brown lady's reply. "They are not over fond of persecuting, and such things. And then, the two girls are well enough to look at. The eldest seems cold and proud, and I dare say she is;

but she gave little Tim there a shilling one day. She didn't know he was a gipsey, as they call us, because he's so white; or she wouldn't, I dare say. But I can tell you what, my lad: if you do not understand your gardener's trade well, I'd advise you not to go there; for the old Squire knows every flower in the garden, they tell me, by its christened name."

Chandos laughed, and saying, "He won't puzzle me, I think," rose from the turf. "I must go," he continued; "for you say it is three miles yet, and I havn't time to spare."

To say the truth, he did not feel quite sure that he would be permitted to depart so easily; for it was very evident to him, that one at least of the party had found out that his profession of gardener was assumed for the nonce; and he might well fancy that she suspected him of having more money on his person than he really had. No opposition was made, however; and the old tinker, who seemed to be a man of consideration with his clan, sent one of the boys to show the traveller on his way to a finger-post, which would direct him further.

The real distance in a straight line was not, in fact, more than two miles; but the various turnings and windings which the road took rendered it little less than the woman had said; and it was about ten o'clock when he reached the back door of Northferry House, and stating his object, asked for admission. The butler brought him into the hall, and went, as we have seen in the preceding chapter, to ask if his master would see the applicant. While he stood there, he gazed around with some interest on the wide vestibule, the broad stone stairs, the handsome marble columns, and the view through a pair of glass doors into the garden beyond; but, whether he admired or not, his contemplations were soon interrupted. The door of the breakfast-room opened again, and while the butler held it back, two beautiful girls came out, laughing gaily. There was a column in the way, which made them separate, and the younger took the side of the hall, where he was standing. Her eyes fell upon him, rested on his face, as if spell-bound, and then her cheek turned first pale and next red. She passed on in haste; but Chandos could see that she lingered behind her sister on the stairs, and walked with her eyes bent down in deep thought. He saw it with a faint smile.

"Come with me, master," said the butler, as soon as he had closed the door; "Mr. Tracy will see you in a minute."

It was a large, fine room, into which Chandos was led, supported by six marble columns like those in the hall. On three sides there were books; on one, three windows down to the ground. And having been introduced, he was left there to follow his own devices. His first impulse was, to throw himself into a large easy chair; but then, recollecting that was not exactly a gardener's place, and that it was a gardener's place he was seeking, he rose up again, and walked to the window, out of which he looked for about three minutes. That was all very well, if he had remained there; for the windows fronted the gardens, and he might be supposed to be contemplating the scene of his expected labours. But Mr. Tracy did not appear very soon; the time grew tedious; and once more forgetting what he was about, Chandos walked up to one of the bookcases, and took out a large folio book, in a vellum cover. He first looked at the title-page, where, printed in all the luxury of amateur typography, stood the words--"Villa Bromhamensis." He had never heard of the Villa Bromhamensis; and turning over the leaves, he began to read some very fair Latin verses, descriptive of the countryseat of a noble family now, I believe, extinct.

While he was thus engaged, the door opened behind him. He was not too deeply interested not to hear it, and recalled to himself in a moment, he was hurrying to put the book back in its place, with an air of some confusion, when the bland voice of Mr. Tracy stopped him, saying, "What have you got there, my good man? Do not be alarmed, I like that people should take every opportunity of instructing themselves; but I should wish to see the subject of your studies."

Chandos gave up the book into his hands, with a low bow, and some doubt as to the result of the investigation; but he was not altogether without ready wit, and when Mr. Tracy exclaimed, with some surprise, "Latin! Do you read Latin?" he answered, "Certainly, Sir. How should I know my business else, when so many books are written upon it in Latin?"

"True, true," said Mr. Tracy, whose humour, by a lucky accident, was exactly fitted by such a reply; and at the same time, he looked the soi-disant gardener over, from head to foot. "You have made a good choice, too," he

added; "for my old friend here, has given a very pretty description of a very nice place."

"This, I should think, had the advantage, in point of ground, Sir," replied Chandos, in a well-chosen tone, neither too humble nor too elevated: "as that young plantation grows up, to cover the bare hill side, it will be very beautiful."

"I planted those trees five years ago, many of them with my own hands," said Mr. Tracy, with pride in his own work, which he feared might appear too plainly. "It is not very well done. You see, those larches in another year, will hide that beautiful bit of distance."

"One can never tell, Sir, how trees will grow up," answered Chandos, who was now completely in his part; "but that will be easily mended. Cut the back trees down that stand highest; and if you want to thicken the belt below, plant it up with a few quick-growing pines. You can move them at almost any age, so as to have it done without anybody knowing it, except by seeing the hills again."

"You seem to be a young man of very good taste," said Mr. Tracy; "but come out with me, and we will see more clearly what you mean." He opened the library window as he spoke, and they walked forth over the lawn. Mr. Tracy asked many questions as they went, cross-examined the applicant upon botany, and upon the more minute and practical part of his art; found him at least theoretically proficient, and ended by fearing that, notwithstanding his homely dress, he would prove too complete a gardener for the wages which he intended to give. It was a delicate point; for Mr. Tracy had a fondness for money. He was not a miser, far from it; he was not even one of those men--they are almost always vulgar men, in mind, if not in station--who love an economical ostentation, who are lavish for show, and stingy in secret. But there are a thousand shades in the passion of avarice, as well as in every other, from the reasonable, the just, and the wise, to the senseless self-abandonment to an all-consuming desire. Mr. Tracy had in his life known what it is to need money; he had felt in youth the pressure, not of actual want, but of straitened circumstances; and when his maternal uncle's death put him in possession of a fortune, greatly

superior to his elder brother's, he retained a strong sense of the value of money, and a passion for rapidly acquiring more.

"Well, my good friend," he said, as they approached the house again, "I am quite satisfied with your knowledge and experience in these matters; and, I dare say, you have got testimonials of your character; but I fear that you have imagined the place you are now applying for to be better than it really is. It is merely that of head-gardener, in the service of a gentleman of very moderate fortune. You would have an under-gardener, and three labourers to assist; but your own wages would not be so large as, perhaps, your acquirements may entitle you."

Chandos replied, that whatever had been given to his predecessor would content him; and produced a letter from Mr. Roberts, the steward of Sir John Winslow, giving a high testimony to his general conduct, and to his skill as a practical gardener. All was then soon arranged; Mr. Tracy was anxious that his new servant should enter upon his duties as soon as possible, for the predecessor had been dead some weeks; but Chandos claimed four days for preparation, and made one or two conditions; and having been shown the cottage which he was to inhabit, took his leave, with the contract complete.

It was done; the plan he had proposed to himself was so far executed: and when, after quitting Northferry, he sat down in a small solitary room of a little road-side inn, he began to laugh, and reconsider the whole with calmer, and less impassioned thoughts, than he had previously given to the subject. How different a thing looks when it is done, and when it is doing! As soon as Fate buys a picture from any man, she turns it with its face to the wall, and its back to the seller, writes INEVITABLE upon it, with a piece of black chalk; and the poor fool can never have the same view of it again.

Chandos was a gardener--a hired servant--in that balanced state where thirty shillings a-week is thrown into the scale against slavery, just to prevent freedom from kicking the beam. A great many things had entered into the concoction of the notable scheme which he had pursued. There was the first vehement impulse of a noble but impetuous disposition; a good deal of pride, a little philosophy, and a touch of romance. He had

determined to taste for a while the food of an inferior station, to know feelingly how the lowly earn their bread, and spend their lives; to see the things of humble condition not with a telescope from a height, but with the eye close to the object, and with a microscope, should need be. He had long been of opinion that it would be no misuse of time, were every young man even of much higher rank and pretensions than his own, to spend a year or more amongst the labouring classes of society, taking part in their toils, sharing their privations, learning in the school of experience their habits, wants, wishes, feelings. Our ancestors used to send their children out to a healthy cottage to nurse during their infancy, and, in many cases, (not all,) ensured thereby to their offspring robust and hardy constitutions, which could not have been gained in the luxurious dwellings of the great and high. Chandos had fancied often that such training might be as good for the mind as the body, had longed to try it, had thought it would do him good, especially when he found false views and cold conventionalities creep upon him, when he felt his judgment getting warped to the set forms of class, and his tastes becoming fastidious. Accident had fixed his resolution, and accident had given the direction in which it acted. But there were difficulties, inconveniences, regrets, which he had not thought of. We never embrace a new state without remembering with longing some of the advantages of the old one. He thought of being cut off from all refined society, with sensations not pleasurable; he thought of being discovered by old acquaintances with some sort of apprehension. But then he remembered that he was little likely to be brought into immediate contact with any of the great and high. He repeated to himself that no one had a right to question his conduct, or control his tastes. And in regard to refined occupations, to relieve the monotony of manual labour, had he not books? could he not converse with the dead? Besides, he had made one stipulation with Mr. Tracy--well nigh the only one--that he should have a month's holiday in the dead time of the year--to see his friends; such was the motive assigned. But Chandos' purpose was to spend that month in London; to re-appear for that period in his real character; to renew in it all those ties that were worth maintaining, and to enjoy the contrasts of a double life, combining the two extremes of society. His means might be small, but for that purpose they were quite sufficient; and with these consolatory reflections he finished his humble meal, and set out upon his way again.

He did not pursue the same way back which he had taken to come to Northferry, for he was anxious to save time; and he had learned at the public-house that there was a coach which passed upon the high-road at about two miles distance, which would spare him a walk of ten miles, and do in one hour what would take him two. He wound on then along lanes, through which he had been directed for about ten minutes, and was still buried in reveries, not altogether sweet, when he was suddenly roused by a loud and piercing shriek. There was a break in the hedge about fifty yards distant, showing, evidently, by the worn sandy ground before it, the opening of a foot-path. The sound came from that side, and Chandos darted towards it without further consideration.

CHAPTER VII.

There was a narrow broken path up the bank. There was a high stile at the top. But Chandos was up the one and over the other in a moment. He did not like to hear a scream at all, and still less a scream from a woman's lips. When he could see into the field, a sight presented itself not altogether uncommon in England, where we seldom, if ever, guard against an evil till it is done, and never take warning by an evil that is done. More than twelve years ago, a pamphlet was printed, called, "What will the Government do with the Railroads?"--and in it was detailed very many of the evils which a prudent and scientific man could foresee, from suffering railways to proceed unregulated. It was sent, I believe, by the author to a friend who undertook to answer it. The answer consisted of two or three sheets of paper, folded as a book, and bearing on each page the word "Nothing." The answer was quite right. Government did *nothing*--till it was too late.

People never tether dangerous bulls till they have killed someone; and when Chandos entered the field, the first sight that met his eyes was a tall, powerful old man on the ground, and two young and graceful women at some distance: one still flying fast towards a gate, under the first strong

irresistible impulse of terror; the other, stopping to gaze back, and wringing her hands in agony. Close by the old man was an enormous brindled bull, with short horns, which was running slowly back, with its eyes fixed upon the prostrate figure before it, as if to make another rush at him as he lay; and at a short distance from the bull was a ragged little boy, of some eight or nine years old, who, with the spirit of a hero, was running straight towards the furious beast, shouting loudly, in the vain hope, apparently, that his infant voice would terrify the tyrant of the field.

Luckily, Chandos had a stout sapling oak in his hand; and he, too, sprang forward with the swift fire of youth. But before he could reach the spot, the bull, attracted by the vociferations of the boy, turned upon his little assailant, and with a fearful rush caught him on his horns, and tossed him high into the air. The next moment, however, Chandos was upon him. He was young, active, tremendously powerful, and, though not quite equal in strength to bull-bearing Milo, was no insignificant antagonist. He had a greater advantage still, however. He had been accustomed to country life from his early youth, and knew the habits of every beast of the field. The bull, in attacking the boy, had turned away from both the old man and Chandos, and, with a bound forward, the latter seized the savage animal by the tail, striking it furiously with his stick. The bull at first strove to turn upon him, or to disengage himself; but Chandos held on with a grasp of iron, though swung round and round by the efforts of his antagonist; and all the time he thundered blows upon it as thick as hail; now upon its side, now upon its head, but oftener upon its legs; and still he shouted--as, in the desperate conflict, his eyes passed over the figures of the two ladies, or the old man, who was now rising slowly from the ground--"Run! run!"

How the combat was to end for himself, of course he knew not, for, though staggering, and evidently intimidated by so sudden an attack, the bull was still strong and furious; but Chandos had all his senses in full activity, and when, after several fierce plunges to escape, the animal again swung itself round to reach him, he aimed a tremendous blow with his full force at the fore-knee, on which its whole weight rested. The leg gave way under the pain, and the monstrous beast rolled prostrate on the ground.

Not a minute was to be lost: the bull was struggling up again; but the instinct of self-preservation is strong, and in a moment Chandos drew a knife from his pocket, and cut a sinew of the leg--although it was with pain and a feeling almost of remorse that he did it. The animal gave a sort of shrill scream, and instantly rolled over on its side again.

"There, that is done," said the young man, speaking to himself; and then running up to the old gentleman, he inquired, "Are you hurt, Sir?--Are you much hurt?"

"A little--not much," said General Tracy; "but the boy--the boy! You are a gallant fellow, upon my life; but so is that poor boy."

The General received no reply, for Chandos was already by the side of the boy. He gazed into his face as the little fellow lay upon his back motionless. The dark hazel eyes were clear and bright, and the complexion, bronzed with exposure, still showed a good ruddy glow in the middle of the cheek.

"He cannot be much hurt," thought Chandos, as he bent earnestly over him; "there is none of the paleness of bodily suffering; and, thank God! the after-crop of grass is long and thick. Well, my boy," he continued aloud, "what has the bull done to you?"

"Given me a skylarking," answered the boy, in a good strong voice.

"But has he hurt you anywhere?" asked Chandos; while General Tracy moved slowly up, and the two young ladies stood, trembling and out of breath, at a distance.

"No," said the little fellow; "he didn't poke me; he guv me a thump under the arm, and I went over his head."

"But why do you not get up then?" inquired Chandos.

"Because it is comfortable to lie here; and because, when I try to get up, my shoulder twinges," was the boy's answer.

"Let me look," said Chandos; and turning him upon his side, he pulled down the collar of the ragged jacket, when he evidently saw a protuberance which was never put upon any mortal shoulder by nature. It was dislocated. The grief of General Tracy was great for the poor boy's misfortune, incurred in his defence; but he gave it no exuberant expression.

"You are a good boy," he said; "a very good boy; and you shall be rewarded. Your shoulder will soon be well, and I will take care of you. Who are your father and mother? We must send and let them know;" and as he spoke, he looked round towards the bull, who, with a true philosophical spirit, seemed, by this time, to have made up his mind to his fate, and was lying quite still, with his fore quarters in the natural position of a bull at rest, and his hind quarters thrown over on one side, not altogether easy. His tongue was hanging out of his mouth, too.

"My mother is Sally Stanley," answered the boy; "and who my father is I don't know."

"Right," said the General, laconically; "right, to a proverb."

"Did not I see you with the gipseys this morning?" inquired Chandos. "Are you not little Tim?"

"Yes," answered the gipsy boy; and the moment after he added, "there comes farmer Thorpe. He'll be precious angry with you for hocking his bull."

"Then you are not the owner of the bull?" said General Tracy, turning quickly to Chandos.

"Oh, no, Sir," answered the other; "I was only passing by chance, and heard a lady scream, which made me run to give help. I have just been engaged as head-gardener to Mr. Arthur Tracy."

"He should have engaged you as bull-driver," said the General, "as bull-fighter, as matador."

"Perhaps he may not have much work in that way, Sir," answered Chandos; and was about to retire; but the General exclaimed, "Stay, stay! What can we do with this poor lad? He is a fine fellow. I must take care of him for life; for I rather think he has saved mine at the risk of his own. I wish we could get him down to my brother's place; for we must have his shoulder looked to, in the first instance."

At that moment, a stout, black-browed, middle-aged man came across the field, looked down at the bull for a moment, and then advanced, with a sturdy and determined look, to General Tracy and Chandos, without saying a word till he was close to them, when he exclaimed, with a very menacing air, "Holla, Sirs, what have you been doing with my bull?"

"What has your bull, if that one be yours, been doing with us? is the question which should be asked," replied General Tracy, turning sharp upon him; but wincing dreadfully, as if the sudden movement gave him great pain.

"That's by the mark," answered the farmer, staring at the General first, and at Chandos afterwards; as if the spirit of his own bull had entered into him, and he was determined to toss them both. "He is a brute beast, and accountable to no un; but them as ha' hocked un are reasonable creeturs, and accountable to I. So, I say, what ha' you two been doing with my bull?"

"The first thing I did with him," answered Chandos, "was what I will do to you, if you are insolent, master farmer. I gave him a good thrashing. And in the next place, as there was no chance of saving my life, and that of others, from him, if I spared him, I was obliged to cut the tendon of his leg, in self-defence."

"Oh! you thrashed un, did you?" said the farmer, pulling off his coat; "and you'll thrash me, will you? Now, let's see."

"I insist upon nothing of this kind taking place," said General Tracy, seeing Chandos quietly deposit his stick on the grass. "Rose, my love, run by that gate, to the Plough and Harrow public-house. The landlord is a constable. Tell him to come here. I intend to give this man into charge. I recollect hearing before of this bull being a dangerous animal, and of farmer

Thorpe having been warned to take proper precautions. Be quick, Rose; for I will punish this man if I live."

"Oh, that's to be the way, is it?" said the rude farmer, in a tone not less insolent than ever; "if folks can't fight without constables for their bottle-holders, that's not my plan; but I can tell you one thing, old Tracy--for I know you well enough--I'll have the law of you for doing a mischief to my bull; and this fellow I'll thrash heartily the first time I can get him without a constable to back him. So, good day to you all, and be damned."

With this just, eloquent, and courteous speech farmer Thorpe resumed his coat, and returned to the side of his bull. While General Tracy remarked dryly to the two young ladies, who had now joined him, "We came out, my flowers, to see a specimen of the real English peasant, and we have found one, though not a very favourable one, it must be confessed. But now, what is to be done with the poor boy. If I could but get him down to the house, we would send for old Andrew Woodyard, the surgeon."

"I'd rather go home to mother," said the boy; "she'll put my shoulder all right, in a minute."

"Your mother is no more capable of putting that shoulder right, than she is of flying through the air on a broomstick," replied the General.

"I will carry him down, Sir," said Chandos; "I was going to catch the coach; but I must put off my journey till to-morrow, I suppose; for the poor lad must be attended to."

He accordingly lifted him up off the grass, and was about to carry him down to Northferry House, in his arms; but little Tim, though by the grimaces he made it was evident he suffered much pain, declared he would rather walk, saying, that it did not hurt him half so much as being "lugged along by any one." Chandos, who knew something of the habits of his people, exacted a solemn promise from him, that he would not attempt to run away; and, in return, assured him that his mother should be sent for instantly. With this little Tim seemed satisfied; and as they walked along, the General entered into consultation with his nieces and Chandos, as to what was best to be done with the boy, on his arrival; for he suddenly

remembered a very fierce and intractable prejudice which his brother had against all copper-coloured wanderers. "The boy might pass well enough," he said, "for he's as fair (very nearly) as an Englishman; but if his mother and all his anomalous kindred, are to come down and visit him, we shall have brother Arthur dying of gout in the stomach, as sure as if he ate two Cantalupe melons before going to bed."

It was finally settled, however, on the suggestion of Chandos, that little Tim should be taken down to the head-gardener's cottage, which was at some distance from the house, and he himself promised to remain there the night, till the injuries the boy had received could be properly attended to.

In the council of war, which ended in this determination, it must be remarked that Rose Tracy took no part, though her sister Emily did. Rose said not one word, but came a little behind the rest, and more than once she looked at Chandos, with a long earnest gaze, then dropped into silent thought.

CHAPTER VIII.

About two o'clock in the day, Chandos sat in the cottage, which was destined to be his future abode for some time, with the gipsy-boy Tim seated on a chair beside him. The old General had gone up to the house to send off a servant to the village surgeon; and the two young ladies had accompanied their uncle, promising to dispatch the housekeeper immediately to aid Chandos in his task. The boy bore the pain, which he undoubtedly suffered, exceedingly well. He neither winced nor cried; but remained quite still in the chair, and only repeated, from time to time, that he should like to go to his mother. Chandos soothed and quieted him with great kindness, and was in the midst of a story, which seemed completely to engage the little man's attention, when the door suddenly opened; and a tall, thin old man entered, whose whole dress and appearance, showed him at

once to be an oddity. His head was covered with what much better deserved the name of a tile, than that which sometimes obtains it, in our good city of London. It was a hat with enormous brims, and the smallest possible portion of crown, so that it was almost self-evident that the organs of hope and veneration, if the old gentleman had any, must be somewhat pressed upon by the top of the shallow box into which he put them. From underneath the shelter of this wide-spreading beaver, floated away a thin wavy pigtail of white hair, bound with black ribbon, which, as all things have their prejudices, had a decided leaning to his left shoulder in preference to his right. He had on a coat of black, large, easy, and wrinkled, but spotless and glossy, showing that its original conception must have been vast, and that the disproportion between its extent, and the meagre limbs it covered, was not occasioned by those limbs having shrunk away from the garment, with which they were endued. The breeches fitted better: and, indeed, in some parts must have been positively tight; for a long line of snow-white cambric purfled up, like the slashings of a Spanish sleeve, which appeared between the top of the breeches and the remote silk waistcoat, showed that the covering of his nether man maintained itself in position by the grasp of the waistband round his loins. An Alderney cow can never be considered perfect, unless the herd can hang his hat on her haunch-bone, while he makes love to Molly, milking her; and the haunch-bones of worthy Mr. Alexander Woodyard, Surgeon, &c. were as favourable to the sustentation of his culottes, without the aid of other suspenders. Waistcoat and breeches were both black; and so, also, were the stockings and the shoes, of course. These shoes were tied with a string, which was inharmonious; for the composition of the whole man denoted buckles. Round his neck, without the slightest appearance of collar, was wound tight, a snowy white handkerchief of Indian muslin. In fact, with the exception of his face and hands, the whole colouring of Sandy Woodyard, as the people improperly called him, was either black or white. His face, though thin and sharp as a ferret's, was somewhat rubicund. Indeed, if any blood ever got up there, it could not well get out again, with that neckcloth tied round his throat, like a tourniquet: and the hands themselves were also reddish; but by no means fat, showing large blue veins, standing out, like whipcord in a tangle.

To gaze upon him, he was a very awful looking person; to hear him talk, one would have supposed him an embodied storm; so fierce were his denunciations, so brutal his objurgations. But he had several good qualities, with a few bad ones. He was an exceedingly good surgeon, a very learned man, and the most sincere man upon earth--except when he was abusing a patient or a friend, to their face. Then, indeed, he said a great deal that he did not mean; for he often told the former, when refractory, that they would die and he hoped they would, when he knew they would not, and would have given his right-hand to save them; and, the latter, he not unfrequently called fools and blackguards, where, if they had been the one or the other, they would not have been his friends at all.

When Mr. Alexander Woodyard entered the room, in the head-gardener's cottage, he gazed, first at the boy, and then at Chandos, demanding, in a most irate tone, "What the devil have I been sent here for?--Who is ill?--What's the matter, that I should be disturbed in the very midst of the dissection of a field-mouse in a state of torpidity?"

"If you are the surgeon, Sir," replied Chandos, "I suppose it was to see this little boy that you were disturbed. He has--"

"Don't tell me what he has," replied Mr. Woodyard. "Do you suppose I don't know what he has better than you. Boy, put out your tongue.--Does your head ache?--Let me feel your pulse."

The boy did not seem to comprehend him at all; neither put out his tongue, nor his wrist, and gazed at the old man with big eyes, full of terror.

"There, don't be a fool, little man," said the surgeon, taking him by the arm, and making him shrink with pain. "Oh, oh! that's it, is it? So, you have luxated your shoulder. We'll soon put it in, my dear. Don't be afraid! You are a brave boy, I dare say."

"That he is," answered Chandos; "for it was in endeavouring to defend General Tracy from a bull, which had knocked him down, that he got tossed and hurt."

"Plague light upon that old fool!" cried the uncourteous doctor; "he's always getting himself, or some one else, into a scrape. It is just two years ago I had to cut four holes in his leg, where he had been bit by a mad dog, because he was as mad as the dog himself, and insisted that the beast was quite sane, contrary to the opinion of the whole village. When doggy bit his best friend, however, he became convinced he was mad--though, if biting one's friends were a sign of madness, we should have to cage the whole world. I had my revenge, however, for I cut away deep enough--deep enough, till the old fool writhed. He wouldn't roar, as I wished; but never a bullet went into his old carcase, (nor ever will,) that made a larger hole than either of the four that I made.--And now he has had to do with a mad bull! I will answer for it, he went up and patted its head, and called it a curly-pated old coxcomb--Didn't he, boy?"

"No," replied little Tim, boldly, "he didn't. He knocked at farmer Thorpe's big bull with his stick, when it ran after the ladies; and the bull poked him down; for it did not get him on his horns, like it did me."

"That's a good boy--that's a good boy," replied the old man; "always tell the truth, whoever says the contrary. Now, master what's your name, we'll have his jacket off; for, though there seems but little of it, still it may be in the way. You look strong enough, and can help, I dare say; though I don't know who the devil you are--but mind, you must do exactly what I tell you, neither more nor less. If you do, I'll break your head, and not mend it. Put your arms round the boy's waist."

Chandos did as he was directed, after having taken the little fellow's jacket off; and the worthy surgeon then proceeded to replace the dislocated arm in the socket, an operation which required more corporal strength than his spare frame seemed to promise. He effected it skilfully and powerfully, however, giving the poor boy as little pain as possible; but, nevertheless, making him cry out lustily.

"Ay, that's right; roar!" cried the doctor. "That's the very best thing you can do. It eases the diaphragm, my lad, and keeps the lungs in play. I never saw any good come of a silent patient, who lets you cut him up without saying a word. They all die; but your roarer is sure to get well. There--there, it's in! Now, give me that bandage, my man; we must keep it down tight, for

the muscles have had an awful wrench. It's all over, my dear--it's quite done, and you shall have a shilling for bellowing so handsomely. You're a good little man for not kicking me in the stomach, as a great lubber once did, who should have known better. How do you feel now?"

"Oh, quite comfortable since it went *snack*," answered the boy.

The old gentleman laughed, saying, "Ay, '*snack*' is a pleasant sound in a case of dislocation. You see it is when the round end of the bone--;" and he was going on to explain to Tim and Chandos the whole process and causes of going '*snack*,' which is very different, it would seem, in the plural and singular number, when a voice was heard without, exclaiming "Where's my boy?--What has happened to my boy?", and the gipsy woman who had sat next to Chandos when he was at the encampment in the lane rushed in, with her glittering black eyes flashing like stars with excitement and agitation. "Where's my boy?" she screamed again, before she had time to look around; and then, seeing the little fellow in the chair, she exclaimed, "Oh, Tim, what are they doing to you?" and was running forward to catch him to her heart, when Mr. Woodyard waved her back with his left hand, while he held the last fold of the bandage with his right. "Keep back, you tawny baggage," he cried, "If you come near him till I've done, I'll bruise you. Sit still, you little infernal bit of Egypt, or I'll strangle you with the end of this thing. Hold him tight, young man, or he'll have the joint out again, by--!" And the old gentleman, who had been a naval surgeon in his day, added a very fierce nautical oath: one of those which were unfortunately current in all mouths on board ships of war in his youthful years.

The gipsy woman stopped at once, and made a sign to the boy, who was instantly as still as a ruin; but the old surgeon continued to abuse her most atrociously, till he had finished bandaging the arm, calling her every bad name that a fertile imagination and a copious vocabulary could supply. It is wonderful, however, how quick is sometimes the conception of character amongst the lower classes, especially those who are subject to any kind of persecution. The poor woman stood perfectly calm; a faint smile crossed her lip at the old man's terrible abuse, as if a feeling of amusement at his affected violence crossed the deeper emotions which filled her large black eyes with tears. She said not a word in reply; she showed no sign of anger;

and when at length all was done, and, patting the boy's head with his broad skinny hand, Mr. Woodyard said, in another voice, "There, you little dog, you may go to your mammy now," she started forward, and kissed the surgeon's hand--even before she embraced her child. She had understood him in a moment.

A short time was passed by mother and son in tenderness, wild and strange, but striking; she kissed his eyes and his lips, and held him first at a distance, then close to her heart; she put her hands upon his curly head, and raised her look upwards, where hope and thankfulness seek Heaven. Then she asked all that had happened; and with simple prattle the boy told her how he had seen the bull attack the old General, and had run to frighten it. And the woman laughed and cried at her child's courage and his folly. But when he went on to say--after relating how he had found himself flying in the air,--"Then that man came up, and caught him by the tail, and whacked him till he tumbled down," she turned to Chandos, and kissed his hand too.

"But the best of it all, mammy," cried the boy, who entered into the spirit of his own story, "was when farmer Thorpe came up, and bullied the two men as they were looking at me; and how that one told him he would whack him as he had whacked the bull, if he did not cut his quids."

"So farmer Thorpe bullied, did he?" cried the woman, "He's a tiger: but snakes even bite tigers." And she added something in a low voice, which sounded to Chandos's ear, "Let him look to his farm-yard."

Certain it is that the next night passed distressfully to the poultry of farmer Thorpe. When he looked in the morning, where many a turkey had been fattening for Christmas, and capons and fowls strutted proud, he found feathers but not fowls. The geese, indeed, were spared, Heaven only knows why; but from the imperial black bubblyjock down to Dame Partlet's youngest daughter, all the rest were gone. Yet there was a large fierce dog in the yard, as fierce as his master or his master's bull. There are, however, always in this world *moyens de parvenir*; and the fierce dog was found to have made himself very comfortable during the cold wintry night with feathers which must have been plucked off his tender flock under his nose. What a picture of

"A faithless guardian of a charge too good!"

However, putting the morality of the thing out of the question, the fact is curious, as the first recorded instance of a dog using a feather-bed.

The whole of the last paragraph is a huge parenthesis; and as it is not easy to get back again after such an inordinate digression without a jump or an hiatus, we will take the latter, and end the chapter here.

CHAPTER IX.

"There now, my good woman, you have hugged the boy enough," said Mr. Woodyard; "you have kissed my hand, and the young man's; and the next thing is to put the child to bed, and keep him there for the next three days. I will see that he is taken care of; but mind you don't give him any of your neighbours' hens, or hares, or partridges; not because he or his stomach would care a straw whether they were stolen or not; but because he must not eat animal food, however it is come by."

"Mayn't I take him up to my own people?" asked the woman, with an anxious look.

"Why! you lawless baggage, would you kill the child?" exclaimed the surgeon, fiercely. "I tell you that he has been tossed by a bull, had a severe shock to his whole system, has got his shoulder dislocated, requires perfect quiet and careful attendance, cool food, and an equable temperature, to prevent inflammation; and you talk of taking him up to a set of jolly beggars, in rotten tents, to sleep upon the ground, drink gin, and be stuffed with stolen poultry. You must be mad to think of such a thing; or not his mother at all; which I have a notion is the case, for he's as white as you are dingy."

The woman looked at him gravely for a moment, and shook her head with a gesture of deep feeling, saying, as she laid her hand upon her heart, "It matters little what you think; I feel that I am his mother. But will the gentlefolks let him bide here?"

"Here come some of them, and they can answer for themselves," answered the surgeon, pointing to the cottage window, before which General Tracy and his eldest niece were passing, on their way to the door.

"Well, Doctor, what is the state of the case?" asked the old officer, as he came in; "how is the poor boy?"

"A dislocated shoulder and a good shake," replied the surgeon, abruptly; "only a proper punishment for a mite like that trying to frighten a bull from goring an obstinate old man, who will go through a field where an animal known to be vicious is roaming at large. I hope, with all my heart, that some of your bones are broken."

"Your hopes are vain, Doctor," said Walter Tracy: "all my bones are as sound as ever they were: only a little soreness of my back, where the cursed beast struck me."

"Ay, you will have lumbar abscess," said the surgeon; "and a good thing too. But the imp must be put to bed. Here is his yellow-faced mother wants to carry him off to her filthy tents, where he would be dead in three days."

"That must not be," said General Tracy. "So you are his mother, my good woman. I am glad you have come down, for I want to speak with you."

"Let the boy be put to bed first, before you begin gossiping," cried Mr. Woodyard; "you can say all you have to say after. Here, young man, take his things off; though there is not much to take. His trousers and shoes are all that is needful; for as to a shirt, there is none to dispose of."

"Well, what of that?" cried the gipsey woman, sharply. "I suppose you had not a shirt on when you were born."

"No, indeed," answered Mr. Woodyard, gravely. "What you say is very true. Naked we came into the world, and naked shall we go out of it; so that it does not much matter whether we have shirts on while we are here or not. Nevertheless, I will send him up something of the kind from our school in the village; for I have somehow a notion, perhaps erroneous, that he will be more comfortable when he has got some clean calico about him."

"I don't think it," replied his mother; "he never had such a thing in his life."

"Well, we'll try it, at all events," returned Mr. Woodyard. "But now let us have quiet, and obey orders."

The boy was accordingly undressed, and placed in the gardener's bed; and then, while the surgeon looked him all over, to ascertain that there was no other injury, General Tracy took the gipsy woman to the door of the cottage, and spoke to her for several minutes in a low tone. His words brought the tears into her eyes, and the nature of them may be derived from her reply.

"God bless you, gentleman," she said. "I dare say, to be rich, and well brought up, and sleep in houses, and all that, is very nice when one is accustomed to it, and better than our way of doing; but for my part I should not half like it for myself. It is very kind of you, however; and as to the boy, I suppose it is for his good. But I can't part with him altogether. I must see him when I like. And if after he has tried both, he likes our sort of life better than yours, he must come away with me."

"Let him give it a fair trial, though," said General Tracy. "He is a brave little fellow, with a heart like a lion. I look upon it that in reality he saved my life; for if the bull had not run at him, it would have gored me as I lay; and therefore I wish to do for him what I can. He shall have a fair education, if you leave him with me; and I will at once settle upon him what will put him above want. Of course, I never think of preventing you from seeing your own child; but you must promise me not to try to persuade him that your wandering life is better than that which he will have an opportunity of following. Deal fairly with the boy; let him judge for himself, and pursue his own inclinations."

"That I will promise," answered the woman, in a decided tone; "for what will make him happiest, will make me happiest."

"Then go at once and talk to his father about it," continued General Tracy; "let him promise the same thing, and all the rest will soon be settled."

"His father!" said the woman, with a sad and bitter laugh. "I wonder where I should find his father? No, no, gentleman, there is no one to be

talked to about it but myself, Sally Stanley. He has never known what it is to have a father, and his mother has been all to him."

When, after a few more words, they went back into the cottage again, they found Emily Tracy sitting by the boy's bedside, and holding his hand in hers, with the little face turned sparkling up to her beautiful countenance, while with a smile at his eagerness she told him some childish story, to engage his attention during the time that Mr. Woodyard was employed in examining his spine. The gipsy woman gazed at the two for a moment in silence; then, creeping up to the young lady's side, she knelt down, and, with her favourite mode of expressing thankfulness, kissed her hand. "I am sorry I said what I did this morning," she whispered. "May God avert it!"

Emily started, and gazed on her earnestly. She had not suffered the woman's angry words of the morning to weigh upon her mind in the least. She had regarded them merely as a burst of impotent rage, and never fancied that Sally Stanley had attached any importance to them herself. But what she now said had a totally different effect. Emily saw by her look and manner that the woman really believed in the dark prophecy she had uttered; and there is something in strong conviction which carries weight with it to others, as well as to those who feel it. Emily was troubled, and for an instant did not reply. At length she said, sweetly, "Never mind, my good woman. Forget it, as I shall do. But do not give way to anger again towards those who have no intention of offending you. I trust your little boy will soon be well; and I am sure my uncle will reward him for so bravely seeking to defend him at the risk of his own life."

"God bless you, and him too!" said the gipsy woman. "There is no fear of my boy. He will do well enough. I knew he would meet with some harm when he went out in the morning; but I knew too that it would not be death, and would end in his good. So I only warned him to be careful, and let him go."

All the woman's words were painful to Emily Tracy; for there is a germ of superstition in every heart; and, in spite of good sense and every effort of reason, a dull sort of apprehension sprang up in her bosom regarding the bitter announcement which had been made as to her future fate. Its very improbability--its want of all likelihood in her station and position, seemed

but to render more strange the woman's evident belief that such an event as her marriage with a felon would actually take place. That the very idea should enter into her mind had something of the marvellous in it, and easily excited those feelings of wonder which are strongly akin to superstition.

Emily did not like to let her thoughts dwell upon the subject; and after telling her tale out to the boy, and making some arrangements with the housekeeper, who came down at the moment, so as to ensure that the little fellow should have the attendance of some woman, she thanked Chandos in graceful terms for the gallant assistance he had rendered in the morning, and proposed to her uncle that they should return home.

Emily remained grave and thoughtful, however, during the whole day, and Rose was also very much less gay than ordinary; so that when Mr. Tracy, who had been out all the morning on business, returned towards dinner time, he found the party who had left him a few hours before as cheerful as a mountain stream, more dull than perhaps he had ever seen it.

Before dinner but little time was given for narrative, and at dinner a guest was added to the party who has been mentioned incidentally once before. This was the young clergyman of Northferry, a man of about eight and twenty years of age, but who had been the incumbent of the parish only three or four months. Mr. Fleming was always a welcome visitor at Mr. Tracy's house, it must be said to all parties. It was not indeed because he was Honourable as well as Reverend; but because few men were better calculated to win regard as well as esteem. Handsome in person, there was a sort of harmony in his calling, his manners, and his appearance, which was wonderfully pleasing. Mild and engaging in demeanour, he was cheerful, though not perhaps gay; never checking mirth in others, though giving but moderate way to it himself. Yet his conversation, though quiet and calm, was so rich with the stores of thought, that it was brilliant without effort, and light even in its seriousness. Perhaps no man was ever so well fitted for the profession which he had chosen; but I must not be mistaken, I mean well fitted both as regarded his own destiny and that of others. In the first place he loved it, and in the next he estimated it justly. He was an aristocrat by family and by conviction; and he regarded an hierarchy in the church as the only means of maintaining order and discipline therein, of stimulating to

high exertion every member, and checking every tendency to neglect or misconduct. He had not the slightest touch of the democratic tendencies usually attributed to what is called the low church, but yet he had neither pride with him nor ambition. He was perfectly contented with a small rectory of four hundred a-year, with a congregation generally poor, and no prospect either of display or advancement. His private fortune was sufficient, not large; but it was enough with his stipend to maintain him in the rank in which he was born, and he asked no more. Had a bishopric been offered to him, he would certainly have refused it. In the next place he had little vanity, and detested eloquent sermons. He sought to convince and instruct, and belaboured night and day to qualify himself for those tasks; but his language was as simple as his mind. If a figure would now and then find place, it was because it sprung naturally from a rich imagination, and was so clear, so forcible, so just, that, like the rest of his discourses, there was no mistaking in the least what he advanced. He never tried to enlist the fancy, and seldom to engage the feelings of his hearers on his side. The latter he regarded as engines, to be used only on great occasions, in order to carry convictions into active effect; and he spared them purposely, feeling that he had within the power of rousing them when it might be necessary, and could do so more surely by rousing them rarely. Then he was a charitable man in the enlarged, but not the licentious sense of the word. He had vast toleration for the opinions of others, though he was firm and steadfast in the support of his own. Thus anger at false views never even in the least degree came to diminish the efficacy of his support of just ones. He fearlessly stated, fearlessly defended his own principles, but never disputed, and was silent as soon as a quibble or a jest took the place of argument. There was moreover a truth, a sincerity, an uprightness in his whole dealings and his whole demeanour, which had a powerful influence upon all who knew him. To every man but the most vain it became a natural question--"If one so vigorous in mind, so learned, and so wise, is thus deeply impressed with the truth of opinions different to my own, is there not good cause for re-examining the grounds of those I entertain?" And thus his arguments obtained more fair consideration than vanity generally allows to the views of those who oppose us.

Even General Tracy, who differed with him profoundly, always listened with respect, seldom indeed entered into discussion with him, and never

disputed. Not that he altogether feared the combat, for such was not the case; nor that he was convinced entirely, for he still held out on many points; but because he was thoroughly impressed with a belief of his young friend's reasonable sincerity, and revered it. Besides, General Tracy was a gentleman; and no gentleman ever, without a worthy object, assails opinions which another is professionally bound to sustain.

Such was the guest then at Mr. Tracy's dinner table; and there, as soon as the first sharp edge of appetite was taken off, the adventures of the morning were once more spoken of, and General Tracy, in a strain half serious, half playful, recounted the dangers which he and his nieces had encountered. The young clergyman's eyes instantly sought the face of Emily Tracy with a look of anxiety. He did not look to Rose also, which was not altogether right perhaps; at all events, not altogether equitable, for both had run the same risk.

"Well," continued Walter Tracy, "Emily ran and Rose ran; but I thought it beyond the dignity of my profession to run before a single enemy, though he was defended by a horn-work--perhaps lumbago had to do with it as well as dignity, if the truth must be told. But our worthy friend soon applied a cataplasm to my lumbago more effectual than any of Sandy Woodyard's; for in two minutes I was sprawling. Master Bull then thought he might as well take room for a rush, and ran back five or six steps to gore me the more vigorously; when suddenly a new combatant appeared in the field, in the shape of a little urchin, not so high as my hip, who made at the enemy with all sorts of shrieks and screams, so that if the beast did not think it was the devil come to my rescue, I did. But the poor boy fared ill for his pains; for just as I was scrambling up, I saw something in the air, small and black, with a great many legs and arms flying about in all directions, just like a spider in a web between two cabbages; and down came the poor child, with a fall which I thought must have dashed his brains out."

"Good Heaven!" cried Mr. Tracy, "was he hurt? Was he not killed?"

"Hurt, he certainly was," answered his brother; "and killed most likely, both he and I would have been, but--as in the story of Camaralzaman, which some heathen of the present day has changed into Kummer al Zemaun, or some other horrible name, violating all the associations of our

childhood, the true temple of Cybele to the heart--no sooner was one army disposed of than another appeared. Up ran a man with a stick in his hand, a stout, tall, powerful country fellow, in a fustian jacket; (Rose held down her head and smiled, without any one remarking her;) and, seizing our friend the bull by the tail, thrashed him for some five minutes in a most scientific manner. He must have been used to belabouring bulls all his life, like a Spanish *matador*; for nothing but long practice would have made him so proficient in an art not very easy to exercise. Rose, my flower, what are you laughing at?"

"I think it was enough to make any one laugh," answered Rose, "to see how foolish the representative of our nation looked while he was receiving such a cudgelling. I was too frightened to laugh then, my dear uncle; but here, by the side of this table, I can enjoy the joke at my ease."

"It was no joke then, indeed," said General Tracy; "for it was a matter of life and death between the brave lad and the bull. He had no resource in the end, however, but to hamstring him, which he also did most scientifically; and I believe that more than one of us has to thank him for being here at this moment. It turned out that the man was your new gardener, Arthur; and we must really see what can be done for him. As to the gallant little gipsy boy, I have taken care of him myself, and will provide for him."

This last announcement roused curiosity, and brought on explanations, in the course of which a good deal of what has been already told was detailed, with several other particulars which have not seemed necessary to relate.

"And did the woman really seem doubtful as to whether she should accept your offer or not?" asked Mr. Tracy.

"Yes, she did," replied his brother. "And I am not quite sure that she was not in the right. It is a very moot point with me, brother Arthur, whether civilization tends to the happiness of the individual, whatever it may do for society in general. When I offered what I did, I thought, not that I was doing the boy a favour, for a man never does another a favour; but that I was showing my gratitude for his self-devotion and the real service he had rendered me, when I proposed to put him in a position which I myself from my prejudices valued; but when I came to consider the woman's doubts, I

began to inquire, and to doubt also, whether he would be happier in the one state than the other."

"You proposed to give him a good education," said the young clergyman; "and if you did so, he would assuredly be happier; for he would be wiser and better."

"And yet, 'Where ignorance is bliss, 'tis folly to be wise,'" replied General Tracy.

"Ignorance of evil, granted," answered Fleming. "But could that be assured to him in the life he was likely to lead? Can it be assured to any man in any course? I think not."

"Perhaps not," answered Walter Tracy; "but yet I have many doubts, my young friend, whether the amount of evils of any kind is greater or less (to the individual) in a civilized or uncivilized state of society. These gipsies, were it not their misfortune to be placed amongst nations in a different condition to themselves, would be one of the happiest races on the face of the earth. Nomadic from their very origin, they would wander about hither and thither, feeding their sheep, or their cattle, or their horses, and pilfering a little. I dare say, from their neighbours, if they had any; but where the rights of property are very ill defined, a little pilfering is not very evil in its consequences; and with a thin population there is no opportunity of carrying it on to a great extent. Besides, I believe, that almost all the bad qualities of the gipsey proceed from his position. His hand is against every man's, because every man's hand is against him. He is a wanderer amongst settled tribes; a stern adherer to his ancient forms, amongst a people whose only constancy is that of a cat to the house in which it is kittenened; a despiser of the civilization which, as he has constant proof before his eyes, does not make those who are blessed (or cursed) with it a bit more wise, merry, or virtuous than himself. It is very natural, therefore, that he should despise the institutions and dislike the men, amongst whom he is so located only for a short time. For my part, I only think it wonderful, that these good people do not commit more crimes than they do; and that our purses and our lives are not taken, instead of our poultry, and the lives of our ducks and geese. I begin almost to think it a sin and a shame to withdraw that bold boy from his freedom amongst hedges and ditches, to poke him into a dull, fusty

school; and to cut him off from those blessings, of which he has learned the value and tasted the enjoyment."

Mr. Fleming smiled. "If the mother were really doubtful," he said, "it would be very easy for you, my dear Sir, to remedy the error you regret. But I cannot help thinking, that for the sake of the jest, you are taking a much narrower view of such questions than your mind would otherwise lead you to. You seem, General, to consider the individual as only born for the individual. But let me ask you, Is he not placed here for much more than that? I would not push my notion, on the subject to any of the extreme lengths which some of the gentlemen who have called themselves philosophers have done. I do not look upon man merely as a part of a great machine, one of the wheels or pulleys, or cogs, of the instrument called society, and that he is bound to regulate all his thoughts, feelings, and actions by one precise rule, for the benefit of the country in which he lives, or even for the more extended fellowship called society. There is a certain degree of individual liberty, surely, due to all men; and, to a certain point, they have a right to consult their own happiness, even by indulging their whims and caprices, provided they are not detrimental to others. The Spartan code and the Prussian system to me both equally tending to take from man many of his highest qualities and rights; but still, to a certain degree, man is bound to his fellow-man, as well as to God. I say, *as well as to God*, because I know that there are some persons who may not see that the one duty is a consequence of the other. But I fear I am preaching out of the pulpit," he continued, with a laugh; "and I must be forgiven as for an infirmity. The habit of preaching, I fear, is a very encroaching one, which, with the authority that the calling of teacher gives, renders many of us somewhat domineering in society."

"No one can say that of you," answered Walter Tracy, "But I must defend myself. I was certainly speaking of the boy's individual happiness, not of his duty to society."

"Can the two be separated?" asked Horace Fleming, in a thoughtful tone. "I have always myself considered that the greatest amount of happiness on earth, is only to be obtained by the performance of all duties. I should be sorry to part with that conviction."

"I doubt not it is just," answered General Tracy gravely; "and I would not seek to take it from you even if I did; for it is a pleasant one, and a most useful one. But I will only remark in passing, that the most difficult of all points in ethics, is to define what duties are. So many of those things that we call duties are but conventional opinions, that I fear a rigid scrutator of the world's code of obligations would soon strip moral philosophy very bare. As to society itself, its rules are very much like the common law of England; a code of maxims accumulated during centuries, by different races, and under different circumstances, often contradictory, often absurd, continually cruel, frequently unjust and iniquitous in practice, even when theoretically right, and yet cried up by those who gain by them as the perfection of human wisdom, to which all men must submit their acts, and most men do submit their reason. Of one thing I am very certain, that the aims and objects of society at present, the tendencies which it encourages, and the rewards which it holds out, are all opposed most strongly not only to that end which it professes to seek, but to that religion the excellence of which you are not one to deny--nor I either, be it remarked. Its tendencies, I contend, are anything but 'to produce the greatest amount of good to the greatest number,' which philosophers declare to be its object; its result is anything but to produce 'peace and goodwill amongst men,' which is the grand purpose of the Christian religion."

Mr. Fleming was silent; for he felt that, though he differed in some degree, there was a certain amount of truth in the assertion. But Mr. Tracy exclaimed, "I do not understand you, Walter. In what respect does society so terribly fail?"

"In a thousand," answered General Tracy, abruptly.

"But an instance, but an instance," said his brother.

"Look around," replied the other; "do you not see, wherever you turn, even in this very land of ours, which is not the worst country in the world, that wealth gives undue power? that it is not the man who labours in any trade who gains the reward of industry? that the produce of labour is not fairly divided between the labourer and the wealthy man who employs him? that the laws which regulate that division are framed by the wealthy? and that an inordinate authority has fallen into the hands of riches, which keeps

the poor man from his rights, drowns his voice in the senate, frustrates his efforts in the market, defeats his resistance to oppression, whether it take a lawful or unlawful form?"

"Pooh, pooh, Walter," replied Mr. Tracy; "this is all an affair of legislation and political economy, and has nothing to do with society."

"All laws spring from the state of society in which they are formed, brother," replied Walter Tracy; "and political economy is but the theory of certain dealings between man and man. But that society must be a fearful and iniquitous conspiracy where a few are rolling in riches, living in luxury, and rioting in idle wantonness, upon the produce of other men's labour who are suffering all the ills of extreme poverty, if not actually perishing for want. It is a gross and terrible anomaly, brother Arthur, to see the great mass of a people nearly destitute; to see many even dying of starvation; to see the honest and the industrious man unable, by the devotion of his whole time, and the exertion of all his energies, to obtain sufficient food for his family;--and yet to see enormous wealth, which, if the fruits of labour were fairly divided, would feed whole provinces of artizans, accumulating in the hands of a few men supported entirely by the labour of others. It is, I say, a gross and terrible anomaly; and it will bring its curse sooner or later."

"But you surely would not advocate an agrarian law," said Mr. Fleming. "That chimera has been slain a thousand times."

"Far from it!" exclaimed the old officer. "I would touch none of what are called the rights of property; but I would drive to the winds that most absurd of all false pretences, invented by the rich for the purpose of oppressing the poor; namely, that it is wrong and dangerous to interfere between master and workman. I contend, that instead of wrong and dangerous, it is right and safe; it is just and necessary. It is right to defend the weak against the strong; it is safe to ensure that despair does not give overwhelming vigour to the weak. But the question is not, what I would do. I was asked for an instance of the evils of the society in which we live. I have given you one, Arthur; but if that does not suit you, I could give a thousand others. I could show how that society, of which you are so fond, is wicked and iniquitous in every different direction, towards the rich as well as the poor; how it encourages vice and depresses virtue; how it leagues

with crime and scouts honesty. I could point to the same course pursued towards man, and more especially towards woman."

"Let us run away, dear uncle," cried Rose, "before we are brought upon the carpet. I am of an excessively rebellious disposition, as you well know; and I am afraid if I hear any more of such doctrines, I shall revolt against the powers that be."

"The revolt of the roses!" cried her uncle, laughing; and very glad to change the subject, though it was a hobby. "Heaven forbid such a catastrophe amongst the flowers! But who would you revolt against, my Rose? Against the gardener, eh?" and he looked shrewdly from her to Emily, who smiled also. Rose coloured more than the occasion seemed to warrant; but Mr. Tracy, who was not in the secret of the gipsy's prophecy, joined in with high praises of his new gardener's science and taste.

"He is a stout, good-looking, courageous fellow, as ever lived," said General Tracy. "Pray, where did you pick him up, Arthur? He is not from this part of the country, I should imagine, by his tone and manners; for we are not the most polished, either in demeanour or language."

"He came to apply this morning," answered Mr. Tracy; "and brought high testimonials both of skill and character, from Roberts, the steward of Sir Harry Winslow, who is dead, you know. I suppose he has served over at Elmsly Park, though I never thought of inquiring; for I was so much pleased with him, in every respect, that I engaged him at once."

"Upon my word, things are going on very favourably, Rose," whispered General Tracy to his niece, in good-humoured malice. "Few sons-in-law are received with such prepossessions." But he suddenly perceived that Rose's fair face bore a look of much distress, and stopped at once in his career of raillery, though not without some surprise.

A pause ensued, only interrupted by Mr. Tracy drinking wine with the young clergyman, and a few quiet words between Fleming and Emily; and then Rose Tracy asked, with a sort of effort, "How long has Sir Harry Winslow been dead, papa?"

"I only heard of it yesterday," replied Mr. Tracy. "The funeral is to take place the day after to-morrow, I hear."

"He was a very singular man, was he not?" inquired the young lady.

"Very," answered her father, laconically; "and by no means a good one. I knew little of him, never having met him but twice, and then on county business. But his haughtiness was insufferable, and his manners like ice."

"Perhaps," said Mr. Fleming, "he knew that he was not liked or respected. For I have often remarked that men who have placed themselves in a position which prevents others from desiring their society, affect to reject that which they cannot obtain."

"The fox and the grapes," said Emily, with a smile.

"As old as Æsop!" remarked her uncle; and there the conversation on that head dropped. Soon after, the dinner came to an end, and the whole party returned to the drawing-room. Mr. Fleming asked Emily to sing, and seemed delighted with the sound of her voice. General Tracy sat beside Rose and teased her; but not about the gardener any more. And Rose, after having been very thoughtful for some time, suddenly resumed all her good spirits, sung with her sister, laughed with her uncle, played a game at chess with her father, and was beat with perfect good humour. But on the following morning when General Tracy asked her, before breakfast, to go down with him to the cottage to see the gipsy boy, she at first made some objection. They were alone. "My dear Rose," said her uncle, "this is nonsense. You do not suppose for one moment, that though I might joke you on that silly woman's prophecy, I could think it would have the least effect upon your mind."

"Oh dear, no!" answered Rose, "I am not so foolish as that, dear uncle; and if it will give you any pleasure, I will go. But the gardener has nothing to do with it," she added with a gay smile; "for I happen to know he is not there, and does not take possession for some days. My maid told me so this morning, without my asking any questions; so your wicked smile has no point:" and away they went to the cottage.

CHAPTER X.

A fine, tall, broad-fronted house, massy in architecture, and placed upon a commanding height, in a beautiful park, had all the window-shutters closed along the principal façade, though a number of people going in and coming out showed that it was not empty. There was no attempt at decoration to be seen in the building. All was plain, solid, and severe. Some dark pines on either hand harmonized with the sternness of the mansion; and the brown oaks and beeches behind carried off the lines to the wavy hills above. Everything was neat and in good order around; the trees carefully confined to their exact proportions near the house, the lawns close mowed, the gravel walks free from the least intrusive weed. The gardens, with their long lines of green and hot houses, showed care and expense; and from a distance one would have supposed that the whole open ground of the park had been lately subject to the scythe, so smooth and trim did everything look.

Within was death.

In the state drawing-room, with crimson curtains sweeping down, and panelling of white and gold, upon a rich Axminster carpet, and surrounded by furniture of the most gorgeous kind, stood the dull trestles, bearing the moral of all--the coffin and the pall: splendour and ostentation and luxury without; death and foulness and corruption within. It was a still homily.

The library adjoining was crowded with gentlemen in black--they called it mourning--and they were eating and drinking cake and wine. Why should they not?--They would have done the same at a wedding. A little beautiful spaniel stood upon his hind legs to one of the mourners for a bit of cake. It was thrown to him; the dog caught it, and the *mourners* laughed. It was all very well.

Suddenly, however, they put on graver faces. Heaven! what a machine of falsehood is the face! The tongue may lie now and then--the face lies every minute. There was a little bustle at the door, and several of those near made way, speaking a few words to a young gentleman who entered, clothed, like the rest, in black, but with mourning written on his face. Where have we seen that face before? Is it Chandos? Surely it is. But yet how different is the air and manner; with what grave, sad dignity he passes on towards the spot at the other side of the room where Roberts, the steward, is standing, unconscious of his entrance! And who is that who stops him now, and shakes hands with him warmly, yet with a timid, half-averted eye--that pale young man with the waving fair hair around his forehead? Hark! Chandos answers him. "Well, quite well, Faber, I thank you. I have not been far distant; but I must speak to Roberts for a moment, and then," he added, slowly and solemnly, "I must go into the next room."

"You had better not, Sir," said Mr. Faber, the late Sir Harry Winslow's secretary, speaking in a low, imploring tone; "indeed you had better not."

"Do not be afraid, Faber," replied Chandos, "I have more command over myself now. I was too impetuous then. I was rash and hasty. Now I am calm; and nothing on earth would provoke me again to say one angry word. I shall ever be glad to hear of you, Faber; and you must write to me. Address your letters to the care of Roberts; he will be able to forward them."

He was then moving on; but the young man detained him by the hand, saying, in a whisper, "Oh, think better of it, Chandos. Be reconciled to him."

"That may be whenever he seeks reconciliation," answered Chandos; "but it will make no difference in my purposes. I will never be his dependent, Faber; for I know well what it is to be so."

Thus saying, he turned away, and spoke a few words to the steward; after which, with a slow but steady step, he walked towards the door leading to the great drawing-room, opened it, and passed through. Many an eye watched him till the door was closed; and then the funeral guests murmured together, talking over his character and history. In the meantime he

advanced through the drawing-room, and stood by the coffin of his father. Then slowly inclining his head to two men who stood at the opposite door, he bade them leave him for a moment. They instantly obeyed; and Chandos knelt down and prayed, with one hand resting on the pall. In a minute or two he heard a step coming, and rose; but did not quit the room, remaining by the side of the coffin, with his tall head bowed down, and a tear in his eyes. The next instant the opposite door opened quickly and sharply, and a man of two or three and thirty entered, bearing a strong family likeness to him who already stood there, but shorter, stouter, and less graceful. Though the features were like those of Chandos, yet there was a great difference of expression--the fierce, keen, eager eye, with its small, contracted pupil, the firm set teeth, and the curl at the corner of the mouth, all gave a look of bitterness and irritability from which the face of the other was quite free.

The moment the new comer's eyes rested on Chandos, the habitual expression grew more intense, deepening into malevolence, and he exclaimed, "You here, Sir!"

"Yes, I am, Sir William Winslow," answered the younger man. "You did not surely expect me to be absent from my father's funeral!"

"One never knows what to expect from you or of you," replied his brother. "I doubt not, you have really come for the purpose of insulting me again."

"Far from it," replied Chandos, calmly. "I came to pay the last duty to my parent; to insult no one. It is but for a few hours that we shall be together, Sir William: let us for that time forget everything but that we are the sons of the same father and mother; and by the side of this coffin lay aside, at least for the time, all feelings of animosity."

"Very well for you to talk of forgetting," answered Sir William Winslow, bitterly. "I do not forget so easily, Sir. The sons of the same father and mother!--Well, it is so, and strange, too."

"Hush! hush!" cried Chandos, waving his hand with an indignant look; and, not knowing what would be uttered next, he turned quickly away, and left the room.

"Oh, he runs," said Sir William Winslow, whose face was flushed, and his brow knit. "But he shall hear more of my mind before he goes. He said before them all that he would never consent to be dependent on one who was a tyrant in everything--to my servants--even to my dogs. Was that not an insult?--I will make him eat those words as soon as the funeral is over, or he shall learn that I can and will exercise the power my father left me to the uttermost. It was the wisest thing he ever did to enable me to tame this proud spirit. Oh, I will bring it down!--Sons of the same father and mother! On my life, if it were not for the likeness, I should think he was a changeling. But he is like--very like; and like my mother, too. It is from her that he takes that obstinate spirit which he thinks so fine, and calls resolution."

As he thus thought, his eyes fell upon the coffin; and he felt a little ashamed. There is a still, calm power in the presence of the dead which rebukes wrath; and Sir William Winslow looked down upon the pall, and thought of what was beneath with feelings that he did not like to indulge, but could not altogether conquer. He was spared a struggle with them, however; for a minute had hardly passed after Chandos had left him, when a servant came in, and advanced to whisper a word in his master's ear.

"Well, I am ready," replied Sir William, "quite ready. Where are all the carriages? I do not see them."

"They have been taken into the back court," said the man.

"Well, then, I am quite ready," repeated the baronet, and retired, but not by the door which led to the room where the guests were assembled.

Half an hour passed in the gloomy preparations for the funeral march. The callous assistants of the undertaker went about their task with the usual studied gravity of aspect, and, at heart, the cold indifference of habit to all the fearful realities which lay hid under the pageantry which their own hands had prepared out of plumes and tinsel, and velvet and silk. Then came the display of hearse and mutes and plume-bearers, and the long line of carriages following with the mourners, who were only in the mercenary point better than the hired mourners of more ancient days. And the people of the village came out to stare at the fine sight; and amongst the young,

some vague indefinite notion of there being something solemn and awful under all that decoration might prevail; but with the great multitude it was but a stage-procession.

None thought of what it is to lay the flesh of man amongst the worms, when the spirit has winged its flight away where no man knoweth.

To one person, indeed, amongst those who were carried along after the corpse, the whole was full of awe. He knew that his father had lived as if the world were all: he knew not if he had died in the hope of another; and the lessons early implanted in his heart by a mother's voice, made that consideration a terrible one for him. Then, too, the gaping crowd was painful to him. And oh, what he felt when the little village boys ran along laughing and pointing by the side of the funeral train!

They reached the gates of the churchyard, which was wide and well tenanted; and there the coffin had to be taken out, and Chandos stood side by side with his brother. Neither spoke to, neither looked at, the other. It was a terrible thing to behold that want of sympathy between two so nearly allied at the funeral of a father; but the eye that most marked it, saw that the one was full of deep and sorrowful thoughts, the other of fierce and angry passions.

The moment after, rose upon the air, pronounced by the powerful voice of the village curate, those words of bright but awful hope, "I am the resurrection and the life, saith the Lord, he that believeth in me, though he were dead, yet shall he live, and whosoever liveth and believeth in me, shall never die." That solemn and impressive service, the most beautiful and appropriate, the most elevating, yet the most subduing that ever was composed--the burial office of the English church--proceeded; and Chandos Winslow lost himself completely in the ideas that it awakened. But little manifested were many of those ideas, it is true; but they were only on that account the more absorbing; and when the words, "Earth to earth, ashes to ashes, dust to dust; in the sure and certain hope of the resurrection to eternal life," sounded in his ears, a shudder passed over him as he asked himself--"Had he such a hope?"

Most different were the feelings of the man who stood by his side. The customs of the world, the habits of good society put a restraint upon him; but, with a strange perversion of the true meaning of the words he heard, and a false application of them to his own circumstances, he fancied that he was virtuous and religious when he refrained, even there, from venting his anger in any shape upon its object; and heard the sentences of the Psalmist, as a sort of laudation of his own forbearance. When the clergyman read aloud: "I will keep my mouth as it were with a bridle, while the ungodly is in my sight," he fancied himself a second David, and reserved his wrath for the time to come.

At length all was over; the dull shovelfull of earth rattled upon the coffin; the last "Amen" was said; and the mourners took their way back towards the carriages, leaving the sexton to finish his work. But when Sir William Winslow had entered the coach with two other gentlemen, and the servant was about to shut the door, he put down his head, and asked in a low but fierce voice, "Where is my brother? Where is Mr. Chandos Winslow?"

"He went away, Sir William, a minute ago," replied the servant. "He took the other way on foot."

Sir William Winslow cast himself back in the seat, and set his teeth hard; but he did not utter a word to any one, till he reached Elmsly Park. His demeanour, however, was courteous to those few persons who were on sufficiently intimate terms to remain for a few minutes after his return; and to one of them he even said a few words upon the absence of his "strange brother." His was the tone of an injured man; but the gentleman to whom he spoke was not without plain, straightforward good sense; and his only reply was, "Some allowance must be made, Sir William, for your brother's modification at finding that your father has left him nothing of all his large fortune; not even the portion which fell to his mother, on the death of her uncle."

"Not, Sir, when my father desired me in his will to provide for him properly," said Sir William Winslow.

"Why, I don't know," answered the other in a careless tone. "No man likes to be dependent, or to owe to favour that which he thinks he might claim of right. I have heard, too, that you and Mr. Winslow have not been on good terms for the last four or five years; but nobody can judge of such matters but the parties concerned. I must take my leave, however; for I see my carriage, and I have far to go."

Sir William Winslow made a stiff bow, and the other departed.

"Now send Roberts to me," said the heir of immense wealth, as soon as every one of his own rank was gone, speaking of his father's steward and law-agent, as if he had been a horse-boy in his stable. But the footman to whom he spoke informed him that Mr. Roberts was not in the house. Sir William Winslow fretted himself for half-an-hour, when at length it was announced that the steward had arrived. He entered with his usual calm, deliberate air; and was advancing towards the table at which the baronet sat, when the latter addressed him sharply, saying, "I told you, Mr. Roberts, that I should require to speak with you immediately after the funeral."

"I have come, Sir William," replied the other, calmly, "as soon as important business, which could not be delayed, would permit me; and I had hoped to be here by the time most convenient to you. I did not know that the gentlemen who returned with you would go so soon."

"You have kept me half-an-hour waiting, Sir," replied Sir William; "and I do not like to be kept waiting."

"I am sorry that it so occurred," answered the steward. "May I ask your commands?"

"In the first place, I wish to know, where is my brother Chandos?" said the baronet, "I saw him speaking to you in the churchyard."

"He did, Sir," replied Roberts, "and he has since been at my house. But where he now is I cannot tell you."

"Oh, he has been arranging all his affairs with you, I suppose," said Sir William Winslow, with a sneer; "and, I suppose, hearing from you of my

father being supposed to have made another will."

"No, Sir William," replied the steward, perfectly undisturbed. "He did arrange some affairs with me; gave me power to receive the dividend upon the small sum in the funds, left him by Mrs. Grant, amounting to one hundred and sixty-two pounds ten, per annum; and directed me what to do with the books and furniture, left him by your father. But I did not judge it expedient to tell him at present, that I know Sir Harry did once make another will; because, as you say he burnt it afterwards, I imagined such information might only increase his disappointment, or excite hopes never likely to be realized."

"You did right," answered the baronet. "I saw my father burn it with my own eyes; and I desire that you will not mention the subject to him at all. It is my intention to let him bite at the bridle a little; and then, when his spirit is tamed, do for him what my father wished me to do. Have you any means of communicating with him?"

But Mr. Roberts was a methodical man; and he answered things in order. "In regard to mentioning the subject of the later will, Sir William," he said, "I will take advice. I am placed in a peculiar position, Sir: as your agent, I have a duty to perform to you; but as an honest man, I have also duties to perform. I know that a will five years posterior to that which has been opened, was duly executed by your father. I think you are mistaken in supposing it was burnt by him, and--."

"By him!" cried the baronet, catching at his words, "do you mean to insinuate that I burnt it?"

"Far from it, Sir William," was the reply of the steward. "I am sure you are quite incapable of such an act; and if I had just cause to believe such a thing, either you or I would not be here now. But, as I have said, my position is a peculiar one: and I would rather leave the decision of how I ought to act to others."

"You have heard my orders, Sir; and you are aware of what must be the consequence of your hesitating to obey them," rejoined the baronet, nodding his head significantly.

"Perfectly, Sir William," answered Mr. Roberts; "and that is a subject on which I wish to speak. When I gave up practice as an attorney, and undertook the office of steward or agent to your late father, I would only consent to do so under an indenture which insured me three months clear notice of the termination of my engagement with him and his heirs, &c.; during which three months I was to continue in the full exercises of all the functions specified in the document of which I beg leave to hand you a copy. This I did require for the safety of myself and of those parties with whom I might enter into engagements regarding the letting of various farms, and other matters which a new agent might think fit to overset, unless I had the power of completing legally any contracts to which your father might have consented, though in an informal manner. Your father assented, and had, I believe, no cause to regret having done so; as, without distressing the tenantry, the rental has been raised twenty-seven per cent, within the last fifteen years. Your father was pleased, Sir William, to treat me in a different manner from that which you have thought fit to use within the last week; and I therefore must beg leave to give you notice, that at the termination of three months I shall cease to be your agent. The indenture requires a written notice on either part; and therefore I shall have the honour of enclosing one this afternoon."

Sir William Winslow had listened, in silent astonishment, to his steward's words, and the first feeling was undoubtedly rage; but Mr. Roberts was sufficiently long-winded to allow reflection to come in, though not entirely to let anger go out. The baronet walked to the window, and looked out into the park. Had Mr. Roberts been in the park, he would have seen the muscles of his face working with passion; but when Sir William, after a silence of two or three minutes, turned round again, the expression was calm, though very grave.

"Do not send in the notice," he said; "take another week to consider of it, Roberts. I have had a good deal to irritate me, a good deal to excite me. I am, I know, a passionate and irritable man; but--. There, let us say no more of it at present, Roberts. We will both think better of many things."

It is wonderful how often men imagine that by acknowledging they are irritable, they justify all that irritation prompts. It affords to the male part of

the sex the same universal excuse that nervousness does to so many women. I am quite sure that many a lady who finds her way into Doctors' Commons, fancies she broke the seventh commandment from pure nervousness.

Mr. Roberts was not at all satisfied that Sir William Winslow's irritability would ever take a less unpleasant form; but nevertheless, without reply, he bowed and withdrew.

CHAPTER XI.

Our variable skies had cast off their wintry hue, and assumed almost the aspect of summer. Cloud and storm had passed away. Sleet and rain no longer beat in the face of the traveller; and though November was growing old, yet the melancholy month showed himself much more mild and placable in his age than in his youth: there was a bright, warm smile in the sky, and the sun towards midday was actually hot. There was a great deal of activity and bustle in the gardens of Mr. Tracy. The sage old folks in the neighbourhood remarked, that a new broom swept clean; and the head-gardener was certainly seen from day-break till sunset in every part of the extensive grounds, directing the labours of the men under him, and preparing everything against the wintry months that were coming. Mr. Tracy was delighted. For the first time he saw all his own plans proceeding rapidly and energetically; for the gardener, with more sound tact than gardeners usually have, applied himself to execute, alone, what his master proposed or suggested, but took care it should be executed well, and as rapidly as possible.

A new spirit seemed to come into the whole house with the new gardener. Everybody, but one, although it was certainly an unpropitious season of the year, seemed to be seized with the mania of gardening. Old General Tracy himself, after having been confined for four or five days to

his room, by the consequences of his intimacy with farmer Thorp's bull, which he had at first neglected, but was afterwards compelled to remember, might be seen with a spade in his hand delving with the rest. Mr. Tracy and Emily were constantly here and there in the grounds, conversing with the head-gardener, and laying out plans for immediate or future execution; and the only one who, like the warm beams of summer, seemed to abandon the garden as winter approached, was Mr. Tracy's youngest daughter Rose, whose visits were confined to the morning and the evening, when a task, to which she had accustomed herself from her childhood, and which she had no excuse for neglecting now, called her down to the end of what was called "the ladies' walk." This task was, indeed, a somewhat childish one; namely, to feed a number of beautiful gold and silver fishes collected in a large marble basin, and sheltered from snow and frost by a not very bad imitation of a Greek temple.

There is a very mistaken notion current, that fish are not overburdened with plain common sense. We have too few opportunities of observing them to judge; but Rose's gold and silver fish certainly displayed considerable discrimination. One would have thought that they knew the sound of her beautiful little feet; only fish have got no ears. However, as her step approached, they were sure to swim in multitudes towards her, jostling their scaly sides against each other, and evidently looking up with interest and pleasure. They did not do the same to any one else. They came indeed, but came more slowly, if Emily approached; and hovered at a timid distance from the side if anything in a male garb was seen.

Two or three times, whilst standing by the side of the basin, Rose saw the head-gardener pass by; but he took no further notice of her, than merely by raising his hat, with a bow, which might have suited a drawing-room as well as a garden.

Rose had become very thoughtful--not at all times--for when she was with the rest of the family, she was as gay as ever; but when she was in her own room with a book in her hand, the book would often rest upon her knee unread; and her eyes would gaze out of the window upon the far prospect, while the mind was very busy with things within itself. There was something that puzzled Rose Tracy sadly. What could she be thinking of?

Strange to say, Rose was thinking of the head-gardener; yet she never mentioned his name, even when all the rest were praising him, marvelling at his taste, at his information, at his manners for a man in that rank of life. She never went near the places where he was most likely to be found; and a fortnight passed ere she exchanged a single word with him.

At length, one morning, a short conversation, of which it may be necessary to transcribe only a few sentences, took place at breakfast between her father and her uncle; which worked a great change in Rose Tracy.

"It certainly is the most extraordinary will that ever was made," said Mr. Tracy; "and so unjust, that I cannot think it will be maintained in law. He leaves his whole property to his eldest son, towards whom he showed nothing but coldness and dislike for many years, and leaves the second actually nothing but a mere recommendation to his brother's favour. Now, the whole Elmsly property, to the amount of at least seventeen thousand a-year, came to him in right of Lady Jane; and it is generally the custom for the mother's property to descend to the younger children."

"At all events, they should have a fair share of it," answered old Walter Tracy. "For my part, I would do away with the law of primogeniture altogether. It is a barbarous and unnatural law. But perhaps Sir Harry, in his eccentric way, left verbal directions with his eldest son."

"Not at all, not at all," answered Mr. Tracy. "I understand from Lawrence Graves, who is their near relation, that Sir William declares he has no instructions whatever but those contained in the will. And, as Mr. Winslow and his brother have not been upon good terms for some years, the young gentleman refuses absolutely to receive any thing from him whatever."

"Then, in Heaven's name! what will become of him," exclaimed Emily, "if he is left penniless?"

"He might have done well enough in many professions," said the General, "if this had occurred earlier. But he is three or four and twenty now; too old for the army; and both the church and the bar are sad slow professions; requiring a fortune to be spent before a pittance can be gained."

"What will become of him no one knows," rejoined Mr. Tracy. "But it seems, he set out for London, with a bold heart, declaring he would carve his way for himself; and be dependent upon no man."

"A fine bold fellow--I like him!" cried the General. "Lily, my love, another cup of coffee, and more cream, or I will disinherit you."

When breakfast was over, Rose ran up to her own room, locked the door, and sat down and cried. "Then this was the cause," she murmured: "and he must think me unkind and mean."

About two o'clock that day, Rose went out in a little park phaeton, with a small postillion upon the near blood-horse. She had several things to do in the neighbouring village, about two miles distant: some shops to visit; a girls' school to look into; and one or two other matters of lady life. Horace Fleming, too, came up and talked to her for a few minutes, standing by the side of the phaeton.

The horses, one and both, agreed that it was very tiresome to be kept standing so long in the streets of a dull little place like that. As soon as they were suffered to go on, they dashed away in very gay style towards their home; but Rose was not likely to alarm herself at a little rapid motion, and the fastest trot they could go did not at all disturb her. Horses, however, when they are going homeward, and get very eager, are sometimes more nervous than their drivers or riders. All went well, then, through the first mile of country roads, and narrow lanes; but about a quarter of a mile further, a man very like farmer Thorpe--Rose did not see distinctly, but she thought it was he--pushed his way through the trees, on the top of the low bank, just before the horses. Both shied violently to the near side; the small postillion was pitched out of the saddle into the hedge; and on the two beasts dashed, no longer at a trot, but a gallop, with the rein floating loose. Rose Tracy did not scream; but she held fast by the side of the phaeton, and shut her eyes. It was all very wrong, but very natural, for a woman who knew that there were three turns on the road before the house could be reached, and there, a pair of iron gates, generally closed. She did not wish to see what her brains were going to be dashed out against, till it was done, nor to fly further when the phaeton overset than necessary; and therefore, she did as I have said. But after whirling on for two or three minutes,

turning sharp round one corner, and bounding over a large stone; she felt a sudden check, which threw her on her knees into the bottom of the phæton, and heard a voice cry, "So ho! stand, boy, stand! so ho! quiet, quiet!" and opening her eyes, she saw the horses plunging a little and endeavouring to rear, in the strong grasp of the head-gardener, who held them tight by the bridles, and strove to soothe them. One of the under-gardeners was scrambling over the palings of her father's grounds, where the other had passed before; and in a minute the two fiery bays were secured and quieted.

"I hope you are not much hurt or terrified, Miss Tracy," said the head-gardener, approaching the side, while the other man held the reins; and Rose saw a look of eager interest in his eyes, and heard it in his voice.

"Terrified, I am, certainly, Mr.--Mr. Acton," she said, hesitating at the name; "but not hurt, thank God! though, I believe I owe my life to you."

"I was much alarmed for you," he answered; "for I feared when I saw them coming, as I stood on the mound, that I should not be in time. But had you not better get out and walk home. I will open the garden-gate; and then go and look for the boy. I hope the wheels did not go over him, for I suppose he fell off."

"I trust he is not hurt," answered Rose, allowing him to hand her out. "The horses took fright at a man in the hedge, and threw him; but I think he fell far from the carriage."

"Here he comes, Miss," cried the under-gardener; "here he comes, a running. There's no bones broke there."

So it proved: the boy came with a face all scratched, and hands all full of thorns; but otherwise uninjured, except in temper. Vanity, vanity, the great mover in half--half! might I not say nine-tenth's?--of man's actions; what wonderful absurdities is it not always leading us into! All small postillions are wonderfully vain, whether their expeditions be upon bright bays or hobby horses; and if they be thrown, especially before the eyes of a mistress, how pugnacious the little people become! The boy was inclined to avenge himself upon the horses, and made straight to their heads with his teeth set, and his knotted whip, newly recovered, in his hand; but the under-

gardener was learned in small postillions, and taking him by the collar, before he could do more than aim one blow at the poor beasts, he held him at arm's length, saying, "Thou art a fool, Thomas. The cattle won't be a bit better for licking. They did not intend to make thee look silly when they sent thee flying."

"Thomas," cried the voice of Rose, "for shame! If you attempt to treat the horses ill, I shall certainly inform my father."

"Why, Miss, they might have killed you," answered little vanity, assuming--she is own sister to Proteus--the shape of generous indignation.

"Never mind," answered Rose. "I insist upon it, you treat them gently and kindly; or depend upon it you will be punished yourself."

"Half the vicious horses that we see, Miss Tracy," said the head-gardener, "are made so by man. We are all originally tyrants, I fear, to those who cannot remonstrate; and the nearer we are to the boy in heart and spirit, the stronger is the tyrant in our nature. It is sorrow, disappointment, and sad experience that makes us men."

He had forgotten himself for a moment; and Rose forgot herself too. She looked up in his face and smiled as no lady (except Eve) ever smiled upon a gardener, without being a coquette.

They both recovered themselves in a minute, however; and, walking on in silence to the garden-gate, about three hundred yards further up the lane, the gardener opened it with his key and then saw her safely till she was within sight of the house. Rose paused for a moment, and smiled when he had bowed, and retired. "This cannot go on," she said. "I may as well speak to him at once, now I know the circumstance; for this state of things must come to an end. I owe him life, too; and may well venture to do all I can, and proffer all I can, to console and assist him. My father, I am sure, would aid him, and my uncle too, if he would but confide in them." And with half-formed purposes she returned to the house, and horrified and delighted her sister, who was the only person she found at home, with an account of her danger and her deliverance.

About an hour and a half after, Rose Tracy stood by the basin of gold-fish, with her little basket of fine bread crumbs in her hand. The fishes were all gathered near in a herd, looking up to her with more than usual interest in their dull round eyes--at least so it might have seemed to fancy. Her fair face, with the large, soft, silky-fringed eyes, was bent over the water; the clusters of her dark brown hair fell upon her warm cheek, which glowed with a deeper hue, she knew not why. The light green hat upon her head seemed like the cup of a bending rose; and any one who saw her might have fancied her the spirit of the flower whose name she bore.

With a careful and equitable hand she scattered the food over the surface of the water; and never were brighter colours presented by the finny tenants of the pond of the half marble king of the black islands, than her favourites displayed as they darted and flashed, sometimes past, sometimes over each other, while a solitary ray of the setting sun poured through the evergreens, passed between the columns, and rested on the surface of the water.

A slow, quiet, firm step sounded near; and Rose's cheek became a little paler; but she instantly raised her head, and looked round with a sparkling eye. The head-gardener was passing from his daily avocations towards his cottage. Rose paused for a minute, with a heart that fluttered. Then she beckoned to him, (as he took off his hat respectfully,) and said aloud, "I want to speak with you."

He advanced at once to her side, without the slightest appearance of surprise; and Rose held out her hand to him.

"I have to thank you for saving my life," she said in a hurried and agitated tone--much more agitated than she wished it to be, or thought it was; "and I believe we have all to thank you for saving the life of my dear uncle. But I should take another time and means of expressing my gratitude, had I not something else to say. I have a sadly tenacious memory. Let me ask you frankly and candidly--have we not met before you came here?"

The head-gardener smiled sorrowfully; but he answered at once. "We have, dear Miss Tracy, in other scenes and other circumstances. We met at the Duchess of H----'s: a day which I shall never forget, and which I have never forgotten. And I had the happiness of passing more than one hour

entirely with you. For, if you remember, the crowd was so great that we could not find your aunt; and you were cast upon tedious company as your only resource."

Rose smiled, and answered not the latter part of his reply; but with a varying colour, and in broken, embarrassed phrase, went on as follows:-- "You thought I had forgotten your appearance, Mr. Winslow; but, as I have said, I have a sadly tenacious memory, and I recollected you at once. I could not conceive what was the cause of what I saw--of why or how you could be here--in--in such circumstances--and it puzzled and--and embarrassed me very much; for I thought--I was sure--that if I mentioned what I knew, it might be painful to you--and yet to meet often one whom I had known in such a different position, without a word of recognition--might seem--I do not know what, but very strange."

"I thank you deeply for your forbearance," replied Chandos, "and I will beseech you, dear Miss Tracy, not to divulge the secret you possess to anyone. If you do, it will force me immediately to quit your father's service, and to abandon a scheme of life--a whim, if you will, which--"

"My father's service!" cried Rose, eagerly. "Oh, Mr. Winslow, why should you condemn yourself to use such words. It is only this morning that I have heard your history; but indeed, indeed, such a situation becomes you not. Oh, be advised by one who has a title--the title of deep gratitude, to obtrude advice. Tell my father, when he comes to-morrow to thank you for saving his child's life, who you are. He already knows how hardly, how iniquitously you have been used, and this very day was expressing his sense of your wrongs. Oh tell him, Mr. Winslow! You will find him kind, and feeling, and ready, I am sure, to do anything to counsel and assist you. Pray, pray do!" and Rose Tracy laid her fair beautiful hand upon his arm in her eager petitioning.

Chandos took it in his and pressed it, not warmly, but gratefully. "Thank you; a thousand times thank you," he answered. "Such sympathy and such kindness as you show, are worth all the assistance and the encouragement that the whole world could give. Yet forgive me for not following your advice. I am poor, Miss Tracy; but not so poor as to render it necessary for me to follow this humble calling for support. I am quite independent of

circumstances. A relation left me sufficient for existence some years ago. My father bequeathed me a fine library and some other things of value. But it is my wish to try a different mode of life from that to which I have been accustomed. I will confess to you," he added, "that when I came here, I had no idea you were Mr. Tracy's daughter, or perhaps I should not have come--"

Her colour varied, and he went on--"The same causes," he said, with a rapid and hasty voice, "which, had my expectations, reasonable or unreasonable, been fulfilled, might have brought me hither eagerly, would, in changed circumstances, have prevented me from coming. But enough of this. I will not trouble you with all my motives and my views--call them whims, call them follies, if you like; but I will only say that I wish, for a short time, to give my mind repose from the daily round of thoughts to which every man moving in one particular circle alone is subject, which grind us down and fashion our very hearts and spirits into artificial forms, till we deem everything that is conventional right, and, I fear, are apt to imagine that everything which is natural is wrong. I wish to see all objects with different eyes from those with which I have hitherto seen them; or, perhaps, to use a more rational figure, I would fain place myself on a new spot in the great plain of society, whence I can obtain a sight of the whole under a different point of view. I have looked down at the world from the hill, dear Miss Tracy, I am determined now to look up at it from the valley."

Rose smiled with a look of interest, but yet a look of melancholy; and shaking her head she answered, "You will soon be found out for a mountaineer; they are already wondering at you."

"That I cannot help," replied Chandos. "But at all events give me as much time as possible; and if you would really oblige me, do not mention to any one who and what I am. Let me be the gardener still--except when, perhaps, at such a moment as this, you will condescend to remember me as something else."

"Oh, I am bound to keep your secret," said Rose; "or, indeed, to do much more, if I knew how. But my father must express both his own and his daughter's gratitude for the preservation of her life; and in the meantime I will of course be silent as to your name and character. But had I not better,

Mr. Winslow, let you know, if I perceive any probability of your being discovered?"

"That would indeed be a great favour," replied Chandos; "for circumstances might occur which would render discovery not only painful, but highly detrimental."

"Then I will give you warning of the first suspicion," answered Rose. "And now farewell; for it is nearly dark, and the dinner bell will soon ring."

Chandos bent down his head, and kissed her hand. It was the first act touching in the least upon gallantry which he had permitted himself; but it called the colour into Rose's cheek; and with another farewell, she left him.

CHAPTER XII.

It was evening. The cottage fire blazed bright and warm. Two tallow candles were upon the table; for Chandos loved light, and burnt two tallow candles. Moreover, the people of the hamlet thought him a great man because he did so. Such is the appreciation of the world--such the all-pervading influence of the spirit of the country and the times--such the admiration of money in the *United Kingdom!* of Great Britain and Ireland, that the neighbouring peasantry thought him a much greater man than the last head-gardener, because he burnt two tallow candles, and the last burnt only one. Take it home to you, ye gentlemen in Grosvenor-square. Your services of gilded plate, your rich dinners, your innumerable lackeys, (none below six feet two), which gain you such envious reverence from those who use Sheffield plate, and content themselves with a foot-boy, is nothing more than the burning of two tallow candles, in the eyes of your inferiors in wealth. Be vain of it, if you can!

There was a neat row of books upon a shelf, against the little parlour wall. Many related to gardening; but there was Shakespeare and Milton, Ben, Beaumont and Fletcher, Herrick and Donne, and Cowley. Ranged near, too, were seen, in good old bindings, Virgil and Horace, Lucan, Tibullus, Martial, and Cicero. Ovid was not there; for Chandos had no taste for gods and goddesses *en bagnio*. Homer and Lucretius were put behind the rest, but where they could be got at easily.

There were tea-cups and saucers on the table; and the old woman who had been hired to keep his house orderly, and attend upon little Tim, after he had become a denizen of the cottage, was boiling the water in the adjoining kitchen.

"Great A," said Chandos; and, out of a number of pasteboard letters on the floor, the boy brought one, saying, "Great A. It looks like the roof of a house."

"Great B," repeated his self-installed master; and the boy brought great B, remarking that it was like two sausages on a skewer. For every letter he had some comparison; and it is wonderful how rapidly by his own system of mnemonics he had taught himself to recollect one from the other.

"Now for the little bit of catechism, Tim," said the young gentleman; "then a piece of bread-and-jam, and to bed."

The boy came and stood at his knee, as if it had been a father's, and repeated a few sentences of the First Catechism, in answer to Chandos's questions; and the young gentleman patted his head, gave him the thick-spread bread-and-jam, and was dismissing him to the care of Dame Humphreys, when the room-door was quietly pushed open--it had been ajar--and the tall, fine form of Lockwood appeared.

"Ah, Lockwood! good evening," said Chandos. "Why, you are a late visitor.--But what is the matter? You seem agitated."

"Nothing, nothing. Sir," answered the other. "Only, to see you and the little boy, put me in mind of my poor mother; and how she used to cry sometimes when she was teaching me my catechism, long before I could

understand that it made her think that she had been wronged, and had done wrong, too, herself. But who is the lad? if it be not an impertinent question. He's not one of your own angles?"

"I do not understand you, Lockwood," replied Chandos, in some surprise. "If you mean to ask, whether he is a child of mine, I say, 'Certainly not.' Do you not see he is eight or nine years old?"

"I call all children angles," answered Lockwood, smiling, "because they are the meeting of two lines. You, for instance, are an isosceles angle, because the two sides are equal. I am not, you know; which is a misfortune, not a fault. But whose son is the boy? He seems a fine little fellow."

Chandos explained, and his explanation threw Lockwood into a fit of musing. During its continuance, his half-brother had an opportunity of examining what it was which had effected, since they last met, a considerable difference in his personal appearance; and at length he interrupted his meditation by observing, "I see you have let your whiskers grow, Lockwood."

"Yes," replied the other. "Yours pleased me; and so I determined to be *barbatus* also. Why men should shave off their beards at all I cannot divine. Saints and patriarchs wore them. All the greatest men in the world have worn them, with the exception of Newton, Moses, Mahomet, Friar Bacon, King Alfred, and Numa Pompilius, were all bearded, as well as Bluebeard, that strict disciplinarian, with Mr. Muntz, and his brother, the Shah of Persia, and Prester John, who, if we knew his whole history, was probably the greatest man amongst them. But whiskers must do for the present. Perhaps I shall come to a whole beard in time. I have brought you a leash of teal, and some news; for which you shall give me a cup of tea."

"I can give you a bed, too," answered Chandos; "for, thanks to your good care, all the rooms are furnished now."

"Not for me," answered Lockwood: "I am back by moonlight. The goddess rises at eleven, I think; and I will be her Carian boy to-night--only I will not sleep, but walk while she kisses my brow."

Another cup was brought, and Chandos added some more tea to the infusion. His companion seemed in a somewhat wandering mood of mind, and many were the subjects started before he came to the news which he had to tell. "What capital tea!" he said. "Mine is but sage and sloe leaf to this. How we go on adulterating! There is not a thing now-a-day that we eat or drink which is pure. Good things become condemned by the foul imitations which men sell for them; and the cheater of the multitude robs the honest man of his due repute. Instead of standing out in bright singularity, he is confounded in the mass of rogues. Short measure, false weights, diminished numbers, forged tickets, fictitious representations, adulterated goods, and worthless fabrications, are the things upon which the once glorious British trader now thrives. But it is only for a little day. Found out, he will soon be despised; despised, neglected; and neglected, ruined--or, at least, if it touches not this generation, it will the next."

"But, my good friend, it is not the British trader or manufacturer alone," answered Chandos; "I can tell you, by having travelled a good deal, that it is the spirit of the age, and pervades the whole world, except in its most uncivilized districts. You can depend upon nothing that you buy. A rich traveller orders his bottle of Champagne at an inn, and is charged an enormous price for a deleterious beverage prepared within half-a-dozen yards of the spot where he drinks it, though that may be five hundred miles from Champagne. A spirit drinker requires a glass of brandy, gets some fermented juice of the potato, and is charged for *old Cognac*. Another asks for Saxony linen, and receives a mixture of cotton and lint that is worn out in half the time which would be required to use the article he paid for. Every man in Europe, with a very few exceptions, thinks only of present gain, without regard to honesty or future reputation."

"He will kill the goose with the golden eggs," said Lockwood.

"He cares not for that," answered Chandos. "The grand principle of action in the present day was developed nearly forty years ago, when one of a family, the wittiest perhaps that ever lived, and the one which most quickly seized the feelings of their times, asked, 'What did posterity ever do for me?' That is the secret of everything strange that we see around us. Each man lives alone for his own earthly life: he cares not either for those who

come after, or for remote reputation, or for a world that is to come. In regard to the first, he thinks, 'They will take care of themselves, as I have done.' In regard to the second he says, 'It is a bubble that, as far as I am concerned, breaks when I die.' In regard to the third, his ideas are indefinite; and while he admits that there may be an hereafter, he takes his chance, and says, 'A bird in the hand is worth two in the bush.'"

"Ay, so it was with Mr. Parkington, the rich manufacturer who bought Greenlees, close by Winslow, and died there," said Lockwood. "When he was upon his death-bed, the parson of the parish went to console him, and talked of the joys of Heaven. He spoke too finely for the old spinner, I've a notion; for after he had told him of eternal happiness in the knowledge and love of God, the sick man raised his gray head and said, 'Thank you, thank you, Mr. Wilmington; but, after all, *Old England fur my money!*'"

Chandos could not refrain a smile. "Too true a picture," he said, "of the mind of a money-getting man. But the state of our society is in fault in giving such a bias to human weakness. We are taught from the earliest period of our lives to think that the great object of existence is money, and what money can procure. The whole tendency of the age, in short, is material; and political economists, while systematizing one class of man's efforts, have (unwittingly, I do believe) left out of all consideration the higher and more important duties and efforts which his station in creation imposes upon him. Were man but the most reasoning of animals, such systems might do very well; but for those who believe him to be something more, who know, or feel, or hope that he is a responsible agent, to whom powers are confided in trust for great purposes, a system that excludes or omits all the wider relations of spirit with spirit, which takes no count of man's immortal nature, which overlooks his dependence upon God and his accountability to Him, is not only imperfect, but corrupt. It may be said that it teaches man but one branch of the great social science; and that to mix the consideration of others with it, would but embarrass the theories which in themselves are right; but when a system affects the whole relations of man with his fellow-creatures, such an argument is inadmissible, upon the broad ground of reason, if it be admitted that man is more than a machine, and most vicious, if it be allowed that he is an accountable being under a code of laws divine in their origin. These two questions are inseparable from

every argument affecting the dealings of man with man. Let those who reason either admit or deny our immortality. If they deny, they may be right, I say nought against it; and their reasoning regarding the machine, *man*, would in most instances be very fair;--but if they admit, they must take a wider grasp of the subject, and show that their doctrines are compatible with his responsibility to God."

"It would be wide enough and difficult enough," answered Lockwood. "But it is a science of which I understand nothing. It seems to have taught us more of the acquisition of wealth, than the acquisition of happiness; and to lead inevitably to the accumulation of money in few hands, without tending to its after-distribution amongst many. This is all I have seen it do yet."

"And that is a great evil," replied Chandos.

"A great evil, indeed," answered Lockwood, laughing. "For instance: your brother is a great deal too rich; and it would be a capital thing, if his property were distributed."

Chandos thought for a moment or two, very gravely, and then replied: "I envy him not, Lockwood. Perhaps you may think it strange; but, I assure you, what I am going to say is true: I would a great deal rather be as I am, with the poor pittance I possess, than my brother with his thoughts and feelings, and all his wealth. There must be things resting on his mind, which, to me at least, would embitter the richest food, and strew with thorns the softest bed."

"Ah, I know what you mean," answered Lockwood; "I heard of it at the time: seven or eight years ago. You mean that story of Susan Grey, the Maid of the Mill, as they called her, who drowned herself."

Chandos nodded his head, but made no reply; and Lockwood went on,

"Ay, I remember her well; she was as pretty a creature as ever I saw, and always used to put me in mind of the ballad of the 'Nut-brown Maid.' You know, the old man died afterwards. He never held up his head after your brother took her away. He became bankrupt in two years, and was dead

before the third was over. And the ruins of the mill stand upon the hill, with the wind blowing through the plankless beams, as through a murderer's bones in chains on a gibbet. But, after all, though it was a very bad case, Sir William was but following his father's example. The Greeks used to say, 'Bad the crow, bad the egg!' and he trod in Sir Harry's footsteps."

"No, no, no!" said Chandos, vehemently; "my father might seduce, but he did not abandon to neglect and scorn. He might carry unhappiness--and he did--to many a hearth; but he did not, for the sake of a few pitiful pounds, cast off to poverty and misery the creature he had deluded. I know the whole story, Lockwood. This was the cause of the first bitter quarrel between my brother and myself. I was a boy of but seventeen then. But often I used to stop at the mill, when out shooting, and get a draught of good beer from the miller, or his pretty daughter. I was very fond of the girl, not with an evil fondness; for, as I have said, I was a boy then, and she was several years older than myself. But I thought her very beautiful and very good, blithe as a lark, and, to all appearance, innocent as an early summer morning. I saw her but two days before she went away; I saw her, also, on the very day of her death, when she returned, pale, haggard, in rags that hardly hid the proofs of her shame, to seek some compassion from him who had ruined and deserted her; ay, and driven her mad. It was I, who went in and told him she was in the park; and I did so fiercely enough, perhaps. He called me an impertinent fool; but went out to speak to her, while I ran hastily to my own room to bring her what little store of money I had; for I doubted my brother. What passed between them I do not well know; but, when I came to where they stood in the park, under the lime trees, not far from the high bank over the river, my brother's face was flushed and his look menacing; he was speaking fiercely and vehemently; and in a moment the girl turned from him and ran away up the bank. I followed to console and give her assistance, never dreaming of what was about to happen; but when I came up, I found some labourers, who were at work there, running down the little path to the river side. One of them had his coat and hat off, and, to my surprise, plunged into the water. But I need not tell you more of that part of the story; for you know it all already. I went back to the house, and straight to my father's room, and I told him all. There, perhaps, I was wrong; but indignation overpowered reflection, and I acted on the impulse of the moment. A terrible scene followed: my brother was sent for; my

father reproached him bitterly for his ungenerous abandonment of the poor girl. He again turned his fury upon me, and struck me; and, boy as I was, I knocked him down at a blow before my father's face. Perhaps it is a just punishment for that violence, that to his generosity my fate in life was left. But yet it is very strange; for my father never forgave him; and me he was always fond of."

"Very strange, indeed," answered Lockwood. "But this brings us by a diagonal line to what I have got to tell you. Mr. Roberts has been over at the Abbey for these last two days, and is putting all things in order. A number of the tenants have been sent for, especially those who have not got leases, but stand upon agreements; and he has given them to know, that he is likely to quit your brother's service at the end of three months."

"Indeed!" exclaimed Chandos. "I am sorry for that. But yet it does not much surprise me. He and William are not made to act together. What else has he done?"

"Why, he has behaved very well," answered Lockwood; "and I believe he is an honest man. He left the people to judge for themselves, whether they would demand leases upon their agreements, or not. But it has got abroad, that the Abbey is to be immediately pulled down, all the furniture sold, and perhaps the estates sold too. At all events, the park is to be divided into two farms; though Mr. Roberts laughed and said, he did not know who would take them, with my rights of free warren over both."

Chandos leaned his head upon his hand, and closed his eyes with a look of bitter mortification. "This is sad," he said, at length: "the fine old Abbey, which has been in our family for three centuries! Well, well! Every one has a bitter cup to drink at some time; and this, I suppose, is the beginning of mine. Everything to be sold, did you say, Lockwood? The family pictures and all?"

"All of them," answered Lockwood; "everything but what is left to you: that is, the furniture of those two rooms and the books."

"I must have my mother's picture, let it cost what it will," said Chandos. "I will write to Roberts about it, if you will give him the note."

"Oh, there is time enough," rejoined his half-brother; "the sale won't take place for some weeks yet. In the mean time we must think of placing the books and bookcases, and all the rest of the things, in some secure place; and next time I come over, I will go and talk to Mr. Fleming about it. Here is the inventory I took of the things. Roberts went over it with me and signed it, as you see. He says, you may be rich enough after all; for, besides the books, which he estimates at seven thousand pounds, he declares that the marble things in the library are very valuable; and calls the little pictures in the study, gems. I don't know what he means by that; for to me, they seem as exactly like places, and things, and people I have seen a hundred times, as possible. There's an old woman looking out of the window, with a bottle in her hand, that, if the dress were not different, I could swear, was a picture of my grandmother. However, he vows it is worth a mint of money, though it is not much bigger than a school-boy's slate."

"The Gerard Dow," said Chandos, smiling. "It is very valuable, I believe; but I am so covetous, that I do not think I can make up my mind to part with any of them. You must see to their being well packed up, Lockwood; for the least injury to such pictures is fatal. The books also must be taken great care of, especially those in the glazed bookcases."

"Ay; but have you got the keys?" asked Lockwood. "Mr. Roberts was asking for them, and says he does not know where they are."

"I have them not," answered Chandos; "I never had. My brother has them, most likely."

"No," answered Lockwood; "he gave all the keys belonging to the Abbey to Mr. Roberts; and these are not amongst them. But the locks can easily be picked. I have always remarked, when people die, or change their house, the keys go astray. But there's some one tapping at the door; and so I shall go."

"Stay, stay," cried Chandos; "I should like to write that note to Roberts at once: I would not have that picture of my mother go into other hands, for all I possess. Come in!" and as he spoke, the door of the room opened, and the head of the gipsy-woman, Sally Stanley, was thrust in.

"You are not afraid of a gipsey at this time of night, master gardener?" said the woman with a smile. "I want to see my boy, and give him a kiss; for we are off at day-break to-morrow."

Lockwood stared at her, with a sort of scared look, as if her race stood higher in his fears than estimation, and shook his head suspiciously; while Chandos replied: "No, no, Sally, I am not afraid. Go into that room; and the old woman will take you to your boy. He is getting on very well, and knows his alphabet already."

The woman nodded her head, well pleased; and, with a glance from the face of Chandos to that of his guest, walked on towards the door of the kitchen.

"Now, Chandos," said Lockwood, "let me have the note."

The young gentleman raised his finger as a caution to his half-brother not to mention aloud the name which he no longer bore. But the warning was too late; the name was pronounced, and the gipsey-woman heard it.

CHAPTER XIII.

Time flew rapidly with both Chandos Winslow and Rose Tracy. They knew not what had thus now plumed the great decayer's pinions for him. Chandos thought that, in his own case, it was, that he had assumed one of those old primeval occupations which in patriarchal days made the minutes run so fast that men lived a thousand years as if they had been but seventy. There was nothing for him like the life of a gardener.

Rose was somewhat more puzzled to account for the cheerful passing of the minutes. When she had been a hundred times more gay, which was, upon a fair calculation, some six weeks before, she had often called the hours lazy-footed loiterers; but now they sped on so fast--so fast--she hardly

knew that the year was nearly at the end. She was now as much in the garden as her father, her sister, or her uncle. Whenever they were there, she was with them. When they talked to the head-gardener, she talked to him too; and sometimes a merry smile would come upon her warm little lips, of which her companions did not well see the cause. But Rose was seldom in the garden alone--never indeed but at the two stated times of the day when she went to feed her gold-fishes. That she could not help. It must be deeply impressed upon the reader's mind--ay, and reiterated, that from childhood this had been her task; and it was quite impossible that she could abandon it now--at least, so thought Rose.

Every morning, then, and every evening, she visited the little basin, and hung over her glossy favourites for several minutes. Well was she named--for she was like her name--and very seldom has the eye of man beheld anything more fair than Rose Tracy as she looked down upon the water under the shade of the marble dome above: the soft cheek like the heart of a blush rose, the clustering hair falling like moss over her brow, the bending form, graceful as the stem of a flower.

I know not how fate, fortune, or design had arranged it; but so it was, that the hours when Chandos returned to his cottage, either in the morning to breakfast, or in the evening to rest, were always a few minutes after the periods when Rose visited the basin; and his way at either time was sure to lie near that spot. If Emily was with her, as sometimes happened, the head-gardener doffed his hat and passed on. If Rose was alone, Chandos Winslow paused for a time, resumed his station and himself, and enjoyed a few sweet moments of unreserved intercourse with the only person who knew him as he really was.

The strange situation in which they were placed, their former meeting in a brighter scene, the future prospects and intentions of one, at least, of the parties to those short conversations, furnished a thousand subjects apart from all the rest of the world's things, which had the effect that such mutual stores of thought and feeling always have--they drew heart towards heart; and Chandos soon began to feel that there was something else on earth than he had calculated upon to struggle for against the world's frowns.

Yet love was never mentioned between them. They talked confidently and happily; they did not know that they met purposely; there was a little timidity in both their bosoms, but it was timidity at their own feelings, not in the slightest degree at the fact of concealment. She called him Mr. Winslow, and he called her Miss Tracy, long after the names of Chandos and Rose came first to the lip.

The quiet course of growing affection, however, was not altogether untroubled--it never is. A gay party came down to Mr. Tracy's, to eat his dinners and to shoot his pheasants. There were battues in the morning, and music and dancing in the evening; and the wind wafted merry sounds to the cottage of the gardener. Chandos was not without discomfort; not that he longed to mix again in the scenes in which he had so often taken part, to laugh with the joyous, to jest with the gay. But he longed to be by the side of Rose Tracy; and when he thought of her surrounded by the bright, the wealthy, and the great; when he remembered that she was beautiful, graceful, captivating, one of the co-heiresses of a man of great wealth; when he recollected that there was no tie between him and her, he began to fear that the bitterest drops of the bitter cup of fortune were yet to be drank.

He knew not all which that cup might still contain.

When they went not out early to shoot, the guests at Northferry House sometimes would roam through the grounds, occasionally with their inviter or his daughters, occasionally alone; and one day, when an expedition to a high moor in the neighbourhood, where there was excellent wild shooting, had been put off till the afternoon, a gay nobleman, who fluttered between Emily and Rose, perfectly confident of captivating either or both if he chose, exclaimed as they all left the breakfast table, "I shall go and talk to your gardener, Tracy. Such a fellow must be a curiosity, as much worth seeing as a bonassus.--A gardener who talks Latin and quotes poetry! Upon my life you are a favoured man! Will you not go and introduce me, Miss Tracy, to this scientific son of Adam, whom your father has told me of."

"Excuse me, my lord," answered Emily, "your lordship will need no introduction. I have a letter to write for post."

"Will not the fair Rose take compassion on me, then?" asked Viscount Overton. "Who but the Rose should introduce one to the gardener?"

"Roses are not found on the stalk in the winter, my good lord," replied General Tracy for his niece, who, he saw, was somewhat annoyed. "But I will be your introducer, if needful, though, according to the phrase of old playwrights and novelists, a gentleman of *your figure* carries his own introduction with him."

"General, you are too good," replied the other, with an air of mingled self-satisfaction and persiflage. "But really that was an excellent jest of yours--I must remember it--Roses are not found *on the stalk* in the winter! Capital! Do you make many jests?"

"When I have fair subjects," answered Walter Tracy, with perfect good humour. "But let us go, Viscount, if you are disposed. We shall find Mr. Acton in the garden at this time. It is a pity you are not an Irishman; for he is the best hand at managing a bull I ever saw."

As they went, the story of the adventure with Farmer Thorpe's wild beast was related, much to the delight of Lord Overton, who was a man of a good deal of courage and spirit, though overlaid with an affectation of effeminacy; and by the time it was done, they were by the side of Chandos. General Tracy informed the head-gardener who the noble lord was, and jestingly launched out into an encomium of his taste for and knowledge of gardening.

"I can assure you, Mr. Acton," said Lord Overton, in a tone of far too marked condescension, "that, though the General makes a jest of it, I am exceedingly fond of gardening, and both can and do take a spade or rake in hand as well as any man."

"I am glad to hear it, my lord," replied Chandos, who did not love either his look or his manner; "our nobility must always be the better for some manly employments."

The Viscount was a little piqued, for there certainly was somewhat of a sneer in the tone; and he replied, "But I hear that you, my good friend,

occasionally vary your labours with more graceful occupations--studying Latin and Greek, and reading the poets, thinking, I suppose, 'Ingenuas didicisse fideliter, artes, emollit mores, nec sinit esse feros.' I dare say you know where the passage is."

"In the Eton Latin Grammar," answered Chandos, drily; and turning to one of the under-gardeners, he gave him some orders respecting the work he was about.

"He does not seem to have had his manners much softened," said Lord Overton in a low voice to Walter Tracy. But the General only replied by a joyous peal of laughter; and, though the peer would not suffer himself to be discomfited, and renewed the conversation with Chandos, he could win no sign of having converted him to a belief, that he was at all honoured by his condescension.

"He's a radical, I suppose," said Lord Overton, when they turned away. "All these self-taught fellows are radicals."

"No, there you are mistaken, my good lord," answered Walter Tracy; "he is a high tory. That is the only bad point about him."

"Ah, General! you always were a terrible whig," said the Viscount, with a shake of the head.

"And always shall be," replied his companion, with a low and somewhat cynical bow; "though the great abilities I see ranged on the other side may make me regret that I am too old and too stiff to change."

"Oh, one is never too old to mend," said Lord Overton; "and one never should be too stiff. That harsh, violent, obstinate adherence to party is the bane of our country."

"Surely your lordship has no occasion to complain of it in our days," observed the General. "If one read the speeches of the present men, delivered twenty, fifteen, ten years ago, and mustered them according to their opinions of that date, where should we find them? But I am no politician. It only strikes me that the difference of the two great parties is

this, if I may use some military phraseology: the whigs, pushing on, bayonet in hand, are a little in advance of their first position. Their opponents are scattered all over the field, some fighting, some flying, and more surrendering to the enemy. But, to return, this young man, as I have said, seems to me a very rabid tory--I beg your pardon--but a very honest fellow, notwithstanding."

"The two things are quite compatible, General," said the Viscount, stiffly.

"Oh, perfectly," replied Walter Tracy. "As long as tories remain tories they are very honest people; but when they have turned round two or three times, I do not know what they are."

Lord Overton did not like the conversation, and changed it; and the two gentlemen returned to the house. Not many days after he took his departure for London, not quite able to make up his mind whether Rose or Emily, or either, was qualified by wealth, beauty, and grace to become Viscountess Overton. After three days thought in London, he decided that neither was, upon the consideration of the great moral objection that exists to men of rank marrying *Misses*, especially where that most horrible denomination is not corrected by the word honourable before it. If Emily had been even a maid of honour, so that her name might have appeared in the newspapers as the Honourable Miss Tracy, he might have consented; but as it was, he judged decidedly it would be a *mesalliance*, although Mr. Tracy's direct ancestors stood upon the rolls of fame, when his own were herding cattle.

He saved himself a very great mortification; for, to be rejected when a man mistakenly thinks he is condescending, is the bitterest draught with which false pride can be medicined.

Both Emily and Rose Tracy were very glad when the peer was gone, for his fluttering from one to the other (though he annoyed Emily most) had much the same effect as having a bee or large fly in the room; but there was another person in the neighbourhood who rejoiced still more, and that was Horace Fleming. He had dined twice at Mr. Tracy's while the party of visitors were there, and he did not at all approve of Lord Overton's attentions to Emily. Chandos Winslow was not sorry, for although he had not such definite cause for uneasiness as Fleming, yet that little god of love,

whom we hear so much of, and so seldom see, is not only a metaphysical god, but a very irritable god too. The sight of Rose Tracy had always been pleasant to him during the whole time he had been in Mr. Tracy's service. Her beautiful little ancle and tiny foot, as she walked along the paths, had to his fancy the power of calling up flowers as it passed. Her smile had seemed to him to give back summer to the wintry day; the light of her eyes to prolong the sunshine, and make the twilight bright. In the morning she was his Aurora, in the evening his Hesperus; and in a word, in the space of six weeks and a day, Chandos Winslow had fallen very much in love. But it must be remarked, that the odd day mentioned, was far detached from the six weeks, dating nearly one year before. It had been an epocha which he had always remembered however--one of the green spots in the past. A lovely and intelligent girl, fresh, and unspoiled by the great corruptor of taste, feeling, and mind--fashionable society--had been cast upon his care and attention for several hours, in a crowd which prevented her from finding her own party at a fête. They had danced together more than was prudent and conventional, because they did not well know what else to do; and the little embarrassment of the moment had only excited for her an additional interest over and above that created by youth, beauty, grace, and innocence. At the end of the evening, she had passed from his sight like a shooting star, as he thought, for ever. But he remembered the bright meteor, and its rays sometimes even had visited him in sleep. Thus that day had as much to do with the love of the case as the far-detached six weeks; though they had served to ripen, and perfect, and mature a passion of which but one solitary seed had been sown before.

Four days after Lord Overton had departed, and three after the rest of the guests had taken flight, Chandos saw Rose through the trees come along towards the marble basin with a quicker step than usual. The little velvet and chinchilla mantle was pressed tight over her full, fine bosom, to keep out the cold wind of the last day of the year; but there was an eager look in her bright eyes which made him think that her rapid pace had other motives than mere exercise; and he, too, hurried his steps, to reach the spot to which her steps tended, at the same time as herself. Just as they both approached it, however, one of the under-gardeners came up to ask a question of his superior officer. He got a quick but kindly answer; but then he asked another; and that was answered too. The devil was certainly in the man; for,

having nothing more to say to Chandos, he turned to Rose, and inquired whether she would not like the screens put up to keep the pond from the cold wind; and by the time he had done, General Tracy appeared, and took possession of his niece's ear.

Rose went away with a slower step and less eager look than she came. But Chandos took care to be near the little basin at the time of sunset, marking out some alterations in the surrounding shrubs which he intended to propose against the spring. When Rose appeared, Emily was with her; and Chandos was again disappointed. He showed the two fair girls, however, what he intended to suggest to their father; and, for one single moment, while Emily, taking the basket, scattered some crumbs to her sister's favourites, Rose followed the head-gardener to a spot which he thought might be well opened out, to give a view beyond; and then, she said, in a low, hurried tone, "I am going to do what perhaps is not right; but I must speak to you to-morrow morning, at all risks. I will be here half-an-hour earlier than usual;" and with limbs shaking as if she had committed theft, Rose left him, and hurried back to her sister, ere Emily well perceived that she had left her side.

They were two sisters, however; loving like sisters, trusting like sisters, with barely a year between them; and though they knew that the one was younger, the other elder, they hardly felt it; for Lily was gentle and unpresuming, though firm as she was mild. She took nought upon her; and though she acted as the mistress of her father's house, yet Rose seemed to share her authority, and more than share her power. Emily pretended not to question or to rule her sister; and, had she been suspicious, she would have asked no questions: but she suspected nothing.

CHAPTER XIV.

"Fie, for shame!" cries the old lady so exceedingly smartly dressed in the corner, whom one who did not see her face, or remark her figure, but who only looked at her gay clothing, would take to be twenty-three, though forty added to it would be within the mark--I mean the old lady with the nutmeg-grater face, so like the portrait of Hans Holbein's grand-aunt, which figures in many of his wood-cuts, but, especially in the accouchement of the Burgomaster's wife of Nuremburg. "Fie, for shame! What a very improper thing for a young lady, like Miss Rose Tracy, to make an appointment with her father's head-gardener. It is a breach of three of the Commandments!" (Let the reader sort them.) "It is indecent, dangerous, abominable, terrible, disgraceful, contrary to all the rules and regulations of society! What a shocking girl she must be!"

I will not defend her; I know that all the old ladies, in whatever garments, whether bifurcate or circumambient, will reasonably cry out upon Rose Tracy; but let us for a moment hear what it was that induced her to perform that which the philosophers and critics of Lambeth, and especially those nearest to the door of the famous peripatetic school of the Bricklayers'-arms, would call "a very young trick."

"Well, Arthur, what news do you bring us from the other side of the hills?" asked General Tracy, when his brother appeared at the dinner-table, on the second day after the departure of his last guest.

"Why, that the Abbey estate is certainly to be sold," replied Mr. Tracy. "I met Sir William at the court-house; and he informed me that it was his intention to dispose of the property in lots. He was particularly civil, and said, whatever arrangement might be necessary, either for my convenience or that of this part of the county, he would willingly make: so that the land required for the new road from H---- to Northferry, will not cost more than the mere worth of the ground at a valuation. I have seldom met with a more gentlemanly man, at least in manners."

"The heart may be a very different affair," said General Tracy.

"Of that we may discover something more in a few days," answered the other brother; "for I have asked him hereto settle the whole of this affair

with me, as the Germans say *unter vier Augen*; and he comes here on Friday next, to spend a few days."

Emily made no remark. She would have been very well satisfied to be without the company of Sir William Winslow; for from all she had at different times heard of him, she had not conceived a high opinion of him. But she cared little about the matter, Rose, however, was alarmed and agitated on Chandos's account; and she conjured up all sorts of fears--lest she should not have an opportunity of giving him notice of his brother's coming--lest he should not be able to avoid him--lest they should meet and quarrel, and a thousand other *lests*, with which it is unnecessary to embarrass the page.

Turn we rather to the early hour at which she hastened down to her little marble basin, where her gold-fish were certainly not expecting her at that precise moment. Some one else was, however; and in that expectation he had taken care that no such interruptions should occur as on the preceding day. Dear Emily's graceful limbs were still in soft repose too, or at least not clad in any presentable garments; and, therefore the two had all the world of the little glade to themselves.

Rose, however, trembled more with agitation than fear. There were doubts in her mind, doubts as to her conduct, doubts as to her feelings; and those doubts were continually asking, "What stirred the bosom of the Rose so powerfully?" a very unpleasant question, which she was not inclined to answer.

Chandos saw the agitation, and thought it very beautiful; for it made her eye sparkle, and the colour of her cheek vary, and gave a quivering eagerness to the half-open lips. Admiration was the first feeling as he saw her come; but then some degree of anxiety to know the cause of her emotion succeeded, and he advanced a step or two to meet her.

"Oh, Mr. Winslow," said Rose, as she approached; "I fear you must think this very strange of me; but I made you a promise that if ever I saw any likelihood of your being discovered, I would give you immediate notice; and I must keep my promise before anything else."

"And does such a likelihood exist?" asked Chandos, in some alarm; "does any one suspect?"

"Oh no," replied Rose; "but your brother is down at Winslow Abbey, or in the neighbourhood; and my father has asked him here for a few days. He comes on Friday."

Chandos mused for a moment or two; and at length a faint and melancholy smile came upon his fine countenance. "I know not well what to do," he said at length, in a thoughtful tone, looking up in Rose's face as if for counsel.

"I thought it would embarrass you very much," she answered; "and I was most anxious to tell you yesterday; but some obstacle always presented itself, so that I was obliged to risk a step, which I am afraid will make you think me a strange, rash girl."

"A strange, rash girl!" said Chandos, gazing at her till her eyelids fell, and the colour came up in her cheek. "A kind, noble, generous one, rather; who will not let cold ceremonies stand in the way of a good action, or mere forms prevent the fulfilment of a promise." He took her hand and pressed his lips upon it; and then, looking into her eyes, he added abruptly--"O, Rose, I love you dearly--too dearly for my own peace, perhaps--and yet why should I fear? Rasher love than mine has been successful; and one gleam of hope, one word of encouragement will be enough to give me energy to sweep away all the difficulties, to overcome all the obstacles, which seem so formidable at a distance--nay, dear one, do not tremble and turn pale; surely you must have felt before now that I love you--you must have seen even on that first day of our meeting, which we both remember so well, that I could love you, should love you, if we were to meet again."

"I must go," said Rose in a low voice; "indeed, I must go."

"Not yet," said Chandos, detaining her gently. "Sit down upon this bench and hear me but for a moment; for my whole future fate is in your hands, and by your words now will be decided whether by efforts, stimulated and ennobled by love, I raise myself high in the world's esteem, and recover that position in society of which I have been unjustly deprived; or whether I

linger on through a despairing life without expectation or exertion, and leave my wayward fate to follow its own course, without an attempt to mend it."

"Oh do not do so, Chandos," replied Rose Tracy, raising her eyes for the first time to his. "Make those great and generous efforts; put forth all the powers of a fine, high mind; control by strong determination the adverse circumstances that seem to have set so strongly against you; and depend upon it you will be enabled to stem the torrent which seems now so black and overwhelming."

She spoke eagerly, enthusiastically; and her words were full of hope to Chandos Winslow's ear--of hope; because he felt that such interest could not be without its share of love; ay, and the very figure which in her eagerness she used, recalled to his mind the swimming of the stream near Winslow Abbey, which in its consequences had brought him even where he then was.

"I will stem the torrent, Rose," he answered, "I will swim the stream; but I must have hope to welcome me to the other bank. I came hither with a dream of other things; but you have given me new objects, new inducements. Take them not from me, Rose; for the light you have given, once extinguished, and all would be darkness indeed."

"What would you have me say?" answered Rose, holding out her hand to him frankly. "Were I to make any promises, were I to enter into any engagements without my father's consent, you yourself would disapprove, if you did not blame, and would not value a boon improperly granted, or would always remember I had failed in one duty, and doubt whether I would perform others well. You must not, Chandos, no, you must not ask me to say or do anything that would lower me in your opinion:" and she added, in an under tone, "I value it too highly."

"Not for the world," cried Chandos eagerly; "for even to ask it would sink me in your esteem; but only tell me this, Rose, only give me this hope--say, if I return qualified in point of fortune and expectations, openly to ask your hand of your father, and gain his consent, may I then hope?"

The colour varied beautifully in her cheek, and this time she did not look up; but, with her eyes bent down on the pebbles at her feet, she said in a low, but distinct voice, "The objection shall not come from me--I must not say more, Chandos," she continued in a louder tone; "you must not ask me to say more. I know not on what your hopes and expectations of success are founded; but you shall have my best wishes and prayers."

"Thanks, thanks, dearest," answered Chandos, kissing her hand: "my hopes are not altogether baseless of advancement in any course I choose to follow. I have had an education which fits me for almost any course; and although I know that, in this hard world, the possession of wealth is the first great means of winning wealth, that poverty is the greatest bar to advancement in a country which professes that the road to high station is open to every one, still I have quite enough to sustain myself against the first buffets of the world. A relation, thank God, left me independent. My father's will adds property, which, when sold, will amount to eight or ten thousand pounds more; and with the dear hopes that you have given me, I will instantly choose some course, which upon due consideration may seem to lead most rapidly to the end in view. I have relations, too, powerful and willing, I believe, to serve me; and with their aid and my own efforts I do not fear."

"But what will you do at present?" said Rose anxiously. "If your brother comes, of course he will recognise you. I have heard he is very violent in temper, and I fear--"

"Nay, have no fears," answered Chandos; "We must not meet at present. But I stipulated with your father for a month's leave of absence at this season of the year; and, although I have lingered on here, if the truth must be told, to sun myself in the light of those dear eyes from day to day, yet I almost resolved to spend one month, at least, of every year, resuming my right character, in London. I will now claim your father's promise, as little remains to be done here. Long ere I return, my brother will be gone; and by that time too I shall have fixed upon my future course of life, so as to communicate to you all my schemes for the future. I will speak to Mr. Tracy this very morning: and to-morrow, if he does not object, will take my departure. But before then I shall see you again; is it not so, Rose?"

"I dare say it will be so," she answered, with a faint smile: "there has been seldom a day when we have not met. I begin to judge very badly of myself; but I can assure you, I had no notion of what you were thinking of till--till within these last few days, or I should have acted differently, perhaps."

"Ob, do not say so," replied her lover. "Why would you make me believe you less kind, less gentle than you have shown yourself? Why say that if you had known how great was the happiness you gave, you would have deprived me of the brightest consolation I could have, under many sorrows and disappointments."

"If it consoled you I shall be more contented with myself," said Rose. "But now I must go, Chandos; for indeed if any one were to catch me sitting here talking to you, I should die of shame."

"All that could then be done," answered her lover, "would be to tell, that Thomas Acton is Chandos Winslow, and to say how he and Rose Tracy met one bright day many months ago, and how she passed hours leaning upon his arm amongst gay bright folks, who little suspected that he would one day turn out a gardener."

Rose laughed, and gave him her hand, only to be covered with parting kisses; and, while she walked thoughtfully and with a much moved heart back to the house, Chandos paused for full a quarter-of-an-hour to gaze upon a bright and beautiful view, full of summer sunshine, and life and light, which had suddenly opened before him in the world of fancy. Oh what immense and uncountable wealth lies hid in the chambers of a castle in the air! In youth we are all chameleons, and our lands and tenements are as unsubstantial as our food.

When he had lived in cloudland for a while, Chandos went round the grounds, gave various orders, directions, and explanations; and then, following the path which Rose had pursued--he loved to put his feet on the same spots where hers had trod--he too went up to the house, and desired to speak with Mr. Tracy.

CHAPTER XV.

Amongst a crowd of persons who were waiting to get into the train, at the--station of--railway, was one exceedingly well dressed young man in deep mourning. He was tall, perhaps standing six feet in height, or a little more, exceedingly broad over the chest, with long and powerful arms, and a small waist. His features were fine, and the expression of his countenance though very grave, was engaging and noble. He had a first-class ticket, and got into a carriage in which were already three other passengers. One was a tall middle-aged man, with a dull-coloured handkerchief, high up, upon his chin; another, a young dandified looking person, not very gentlemanly in appearance; and the third, was a short personage, with an air of great importance, a tin case, and a large roll of papers and parchments, tied up with a piece of green ribbon. His face was round, his figure was round, his legs were round, and his hands were round. In short, he would have looked like a congeries of dumplings, if it had not been for the colour of his countenance, which equalled that of an autumnal sun seen through a London fog. Round and rosy countenances are not generally the most expressive; and there was but one feature in that of this worthy personage, which redeemed it from flat insipidity. That was the eye; black, small, twinkling, ever in motion, it was one of the shrewdest, cunningest little eyes that ever rolled in a human head. There was not a vestige of eyebrow above it--nothing but a scalded red line. There was very little eyelash around it, but yet it is wonderful how it twinkled, without any accessories: a fixed star, shining by its own light; and yet the simile is not a good one, for it was anything but fixed, glancing from person to person, and object to object as fast as it could go.

When the stranger entered the carriage, this round gentleman was holding forth to him in the dark handkerchief, upon some subject which seemed to be provocative of that very troublesome quality, called *eloquence*; but, nevertheless, without for one moment interrupting his

declamation, he had in an instant investigated every point of his new fellow-traveller's exterior, while he was getting in, and had doubtless made his own comments thereon, with proper sagacity.

"It matters not one straw, my dear Sir," said the round man, with infinite volubility, "whether it be the broad gauge or the narrow gauge, whether it be well-constructed or ill-constructed, whether well-worked or ill-worked, what are its facilities, whence it comes, whither it goes, or any other accidental circumstance whatever. It is a railroad, my dear Sir--a railroad, *in esse* or *in posse*; and a man of sense never considers a railroad, except under one point of view, videlicet, as a speculation. That is the only question for any man--How is it as a speculation? Is it up or down? Has it had its *up*?--And here I must explain what I mean by having its *up*. Every railroad that can be conceived, will, and does rise in the market, to a certain height, at some time. Let me explain: By a certain height, I mean a height above its real value. Well, it is sure to reach that height at some time. All things are relative, of course. For instance, and by way of illustration: Suppose some ingenious surveyor, with the assistance of an engineer in some repute--say, Brunel, Cubit, Vignoles--and a railway solicitor, were to start the project of a railway to the Canary Islands. A number of stupid fellows would at once say, 'That is impossible!' and scrip would be very low. But then the projectors would wisely put a number of influential names in the direction. The least scrap of writing in the world, will suffice to justify you in putting a man's name in the direction; and if you cannot get that, you take it for granted that he will support so excellent a scheme, and put him on without. Well, *the rail to the Canary Islands* is before the public for some time--scrip very low--perhaps no quotations--but two or three knowing ones are well aware that it will have *its up*, and they buy. It gets rumoured that Rothschild has bought, or Goldschmid has bought, or any other great name has bought; scrip begins to rise. The bill goes in to the Board of Trade--not the slightest chance of its being recommended--never mind! There's an immense deal of bustle, an immense deal of talk: one man says, it is folly; another, that it is a bubble--but then comes some one and says, 'Look at Rothschild, look at Goldschmid, look at the list of directors.' Scrip goes up! People begin to bet upon its passing the Board. Scrip goes up! The last minute before the decision arrives; and then, or at some period before or after, it may be said to have its *up*. Then all wise men sell, and

scrip goes down. If it is a very bad job, it goes down, down, down, till the whole thing bursts. If, however, it is feasible, with good and sturdy men concerned, it will go on varying, sometimes high, sometimes low, for months or years. But I would never advise any one to have to do with such a line as that. The very worst and most impracticable are always the best speculations."

"I do not understand that," said the man in the dull handkerchief. "I made ten thousand clear in one day by the Birmingham, which, after all, is the best line going."

"You might have made a hundred thousand if it had been the worst," answered the man of rounds. "You say you don't understand it. I will explain--I am always ready to explain. On uncertain lines, very uncertain indeed, there is always the most fluctuation. Now the business of a speculator is to take advantage of fluctuations. You will say it is not safe, perhaps; but that is a mistake. The speculation in the bad-line business can be reduced to a mathematical certainty, as I proved to the worthy gentleman with whom I have been a doing a little business this morning, Mr. Tracy, of Northferry. He preferred good lines, and thought them both safer and more right and proper, and all that sort of thing. So I only dealt with the safeness; for, after all, that is the question with a speculator; and I showed him that the very worst lines have their up at some time; it may not be very great, but the difference between it and the down is greater always than in good lines. 'Suppose, my dear Sir,' I said, 'that the fifty-pound share is at first at ninety per cent. discount; then is the time to buy. You never suppose that it will rise to par; but when the surveying is all done, the notices are served, the forms all complied with, and after a tremendous bustle--always make a tremendous bustle, it tells on the market--and, after a tremendous bustle, you have got your bill into the Board of Trade, the share is sure to go up till it sticks at seventy or seventy-five per cent, discount. Then sell as fast as possible, and you gain more than cent. per cent. upon your outlay.' There is no scheme so bad upon the face of the earth that it cannot be raised full ten per cent. with a little trouble. Let a man start a line to the moon, and if I do not bring it up ten per cent. from the first quotations, my name is not Scriptolemus Bond."

"You must have made a good thing of it, Mr. Bond, I suppose," said the man in the handkerchief.

"Pretty well, pretty well!" answered the other with a shrewd wink of the eye; "not quite up to Hudson yet; but I shall soon be a head of him, for he does nothing but dabble with paltry good lines. I have enough in this box to make three men's fortunes;" and he rapped the tin case by his side.

How the real Charlatan does vary its operations in different ages! This same man, a century ago, would have been selling pills and powders at a fair. His attention, however, was at this point called in another direction, by the tall, elegant stranger in mourning, who had lately come in, inquiring in a quiet tone, "Pray, Sir, does Mr. Arthur Tracy speculate much in railroads?"

"No man more," answered Mr. Scriptolemus Bond. "Are you acquainted with him, Sir?"

"I have seen and conversed with him several times," replied the other; "but we are no farther acquainted."

"Well, Sir, Mr. Tracy is a lucky man," said Mr. Bond; "he has several hundred thousands of pounds in some of the most promising speculations going. Too much in the good lines, indeed, to get as much out of it as possible; but he has this morning, at my suggestion, embarked in an excellent affair. 'The diagonal North of England and John-o'-Groats-House Railway.' The fifty-pound share is now at seventeen and sixpence, and I'll stake my reputation that in six weeks it will be up at five pounds; for a great number of capital people are only waiting to come in when they see it on the rise. Now the very fact of Mr. Tracy having taken five hundred shares will raise them ten or twelve shillings in the market; so that he might sell to-morrow, and be a gainer of fifty per cent. Oh, I never advise a bad speculation. I am always sure, quite sure. Would you like to embark a few hundred pounds in the same spec as your friend, Sir? I have no doubt I could get you shares at the same rate, or within a fraction, if you decide at once. To-morrow they will probably be up to twenty or five-and-twenty. How many shall I say, Sir?" and Mr. Scriptolemus took out his note-book.

"None, I thank you," answered Chandos Winslow; "I never speculate."

"Humph!" said the other; and turning to the dandified young man in the corner, he applied to him with better success. The youth's ears had been open all the time, and the oratory displayed had produced the greater effect, because it was not addressed immediately to him.

No further conversation took place between Chandos Winslow and Mr. Scriptolemus Bond. The latter found that he was not of the stuff of which gentlemen of his cloth make conveniences, and, what is more, discovered it at once. Indeed, it is wonderful what tact a practised guller of the multitude displays in selecting the materials for his work.

At the London terminus, the young gentleman got into a cabriolet, and took his way to a small quiet hotel in Cork-street, and remained thinking during the evening a great deal more of Mr. Scriptolemus Bond and his sayings and doings, than of anything else on earth, except Rose Tracy. It was not that the prospect of making rapidly large sums of money by the speculations of the day had any great effect upon him, although it must be owned that such hopes would have been very attractive in conjunction with that bright image of Rose Tracy, had it not been for certain prejudices of habit and education. But he had a higher flying ambition; he longed not only to win wealth for Rose Tracy's sake, but to win it with distinction, in the straightforward, open paths of personal exertion. He did not wish that his marriage with her should be brought about like the denouement of a third-rate French comedy, by a lucky hit upon the Bourse. It was the words which Mr. Bond had spoken regarding the large speculations of Mr. Tracy which surprised and somewhat alarmed him. He knew well that the railroad mania was the fever of the day, that it affected every rank and every profession, that neither sex and no age but infancy was free; but he was sorry to find that Rose's father was infected with the disease in so serious a form. What might be the consequences of a mistake in such a course, to her he loved best! How great was the probability of a mistake on the part of a man in Mr. Tracy's position! He was removed from all sources of immediate information; he had few means of ascertaining the feasibility of the schemes in which he engaged; he had no means of ascertaining the characters of those with whom he was associated. Young as he was, Chandos saw dangers great and probable in such a course; and not knowing the almost omnipotent power of a popular passion over the minds of men,

he could not conceive how a person of Mr. Tracy's sense, blessed with affluence, in need of nothing, with but two daughters to succeed to wealth already great, could yield himself to such infatuation.

The next morning passed in visits to several of his old friends and some of his mother's relations. His story, as far as regarded his father's will, was already known, and he was received everywhere with kindness--apparent, if not real; for it is a mistake to suppose that the world is so impolitic as to show its selfishness in a way to ensure contempt. One or two were really kind, entered warmly into his feelings and his wishes, and consulted as to how his interests were best to be served, his objects most readily to be gained. A cousin of his mother's, an old lady with a large fortune at her disposal, wrote at once to her nephew, one of the ministers, who had a good number of daughters, begging him to espouse the cause of Chandos Winslow, and obtain for him some employment in which his abilities would have room to display themselves. An answer, however, was not to be expected immediately; and Chandos went back to his solitary hotel with gratitude for the kindness he had met with, but nevertheless with spirits not raised.

Several days passed dully. The hopes of youth travel by railroad, but fulfilment goes still by the waggon. He found petty impediments at every step: people out whom he wanted to see; hours wasted by waiting in ante-rooms; ministers occupied all day long; friends who forgot what they had promised to remember, and were very much ashamed to no effect. To a man who seeks anything of his fellow-men, there is always a terrible consumption of time. Sometimes it is accidental on the part of those who inflict it--sometimes, alas! though by no means always--it is in a degree intentional, for there is a pleasure in keeping application waiting. It prolongs our importance.

"My dear Sir, I am very sorry to have detained you," said a high officer one day, running into the waiting room and shaking his hand; "but I have had pressing business all the morning, and now I must ask you to call on me to-morrow about two, for I am forced to run away upon a matter that cannot be delayed."

What had he been doing for the last hour? What was he going to do? He had been reading the newspaper. He was going to trifle with a pretty woman.

A fortnight passed, and on the second Saturday of his stay in London, Chandos, who loved music, went with a friend, a young guardsman, to the opera. During the first act, for they were both enthusiasts in their way, neither Chandos nor Captain Parker saw or heard anything but what was going on upon the stage--I call him Captain Parker by a licence common to those who write such books as this; for in reality his name was not Parker, though in other respects the tale is true. At the end of the first act, as usually happens with young men, they began to look round the house from their station below in search of friendly or of pretty faces. "There is my aunt, Lady Mary," said Parker; "I must go up and speak with her for a minute. Will you come, Winslow? I will introduce you. My two young cousins are very handsome, people think."

"Not to-night," said Chandos; "I am out of spirits, Parker, and unfit for fair ladies' sweet companionship."

Parker accordingly went away alone, and spent some time in his aunt's box. Chandos looked up once, and saw bright eyes and a glass turned to where he sat in the pit. "Parker is telling my story," he thought; and an unpleasant feeling of being talked about made him turn away his eyes and look at some other people. A few minutes after, his friend rejoined him, and sat out the opera; then went to speak with some other party; and Chandos, who was in a mood to be bored by a ballet, and to detest even Cerito, walked slowly out. There were a good many people going forth, and a crush of carriages. Lady Mary Parker's carriage was shouted forth. (There may be another Lady Mary Parker; I believe there is.) The lady advanced with her two daughters: the servant was at the carriage-door: a chariot dashed violently up, and, as her carriage had not drawn close to the curb, on account of another that was before, cut in, jamming the footman, and almost running down the old lady. Chandos started forward, caught the intruding horses' heads, and forced them back, the coachman, as such cattle will sometimes do, cutting at him with his whip. Of the latter circumstance Chandos took but little notice, the police interfering to make the coachman

keep back when the mischief was done, according to the practice of the London police; but he instantly approached Lady Mary, expressing a hope in very courteous terms, that she was neither hurt, nor much alarmed.

"Oh, no! Mr. Winslow," said the lady, leaning on her eldest daughter; "but I fear my poor servant is. He was jammed between the carriages."

Ere Chandos could say anything in return, some one pushed roughly against him, exclaiming, "Get out of the way, fellow!" and the next moment Lord Overton was before him.

"What do you mean, Sir?" cried Chandos, turning upon him fiercely, and for an instant forgetting the presence of women.

"I mean that you are an impertinent, blackguard," replied Lord Overton. "I hope, Lady Mary, my fellow did not frighten you. He is rather too quick."

"So quick, my lord, that he should be discharged very quickly," said Lady Mary Parker, taking Chandos's arm unoffered, and walking with him to the side of her carriage. The young ladies followed; a question was asked of the footman, who said he was a little hurt, but not much; and the door was shut.

Before the vehicle drove on, however, the ladies within had the satisfaction, if it was one, of seeing Chandos Winslow lead Lord Overton towards his carriage by the nose.

CHAPTER XVI.

Let us write an essay upon noses. Each organ of the human body, but more especially an organ of sensation, has a sort of existence apart--a separate sphere of being from the great commonwealth of which it is a member, just as every individual has his own peculiar ties and relationships distinct from the body of society, though affecting it sympathetically and remotely. Each organ has its affections and its pleasures; its misfortunes and its pains; its peculiarities, generic and individual; its own appropriate history, and its unchangeable destiny and fate. As the eye is supposed (wrongly) to be the most expressive of organs, so is the nose of man the most impressible. Tender in its affections, enlarged in its sympathies, soft in its character, it is in this foul and corrupt world more frequently subject to unpleasant than to pleasant influences. During one season of the year alone does nature provide it with enjoyments; and during the long cold winter it is pinched and maltreated by meteoric vicissitudes. It is a summer-bird; a butterfly; a flower, blossoming on the waste of man's countenance, but inhaling (not exhaling) odours during the bright period when other flowers are in bloom. During the whole of the rest of the year its joys are factitious, and whether they proceed from Eau de Portugal, bouquet à la Reine, or Jean Marie Farina, it is but a sort of hot-house life the nose obtains, produced by stoves and pipes, till summer comes round again.

Like all the sensitive, the nose is perhaps the most unfortunate of human organs. Placed in an elevated situation, it is subject to all the rude buffets of the world; its tender organization is always subject to disgusts. Boreas assails it; Sol burns it; Bacchus inflames it. Put forward as a leader in the front of the battle, men follow it blindly on a course which it is very often unwilling to pursue, and then blame it for every mischance. Whatever hard blows are given, it comes in for more than its share; and, after weeping tears of blood, has to atone for the faults of other members over which it has no control. The fists are continually getting it into scrapes; its bad

neighbour, the tongue, brings down indignation upon it undeserved; the eyes play it false on a thousand occasions; and the whole body corporate is continually poking it into situations most repugnant to its better feelings. The poor, unfortunate nose! verily, it is a sadly misused organ. It matters not whether it be hooked or straight, long or short, turned-up or depressed, a bottle, a bandbox, a sausage, or the ace of clubs; Roman, Grecian, English, French, German, or Calmuc, the nose is ever to be pitied for its fate below.

I can hardly forgive Chandos Winslow for fingering so rudely the nasal organ of Viscount Overton. It was of considerable extent, and very tangible qualities: an inviting nose, it must be said, which offered almost as many temptations to an insulted man as that of a certain gentleman in Strasburg to the trumpeter's wife. So much must be said in Chandos's favour; but yet it was cruel, harsh, almost cowardly. The poor nose could not defend itself; and yet he had the barbarity to pinch the helpless innocent between his iron finger and thumb for full three seconds and a half. Pain and amazement kept the owner of the nose from putting forth his own powers to avenge it for the same space; and indeed it would have been to little purpose had he attempted such a thing, for he was no more capable of defending his nose against Chandos Winslow, than the nose was of defending itself.

At length the grasp of his antagonist relaxed, and the peer exclaimed aloud, "Police! police! You scoundrel, I will give you in charge."

"That you can do if you please," answered Chandos, with a sneer; "but methinks your honour will somewhat suffer. There, Sir, is my card, if you wish to know who it is has punished your impertinence."

The police were very busy at a little distance; and the noble lord, left to his own resources, exclaimed, "Your card, fellow! Do you suppose I do not know you--a low vagabond dressed up as a gentleman!--Police! I say."

A crowd had gathered round, and two gentlemen in anticipation of the arrival of the police, were investigating the contents of the peer's pockets, when a tall, thin, gentlemanly man, one Sir Henry d'Estragon, a Lieutenant-Colonel in the service, well known about Wimbledon and Molesey, and who had even reminiscences of Primrose Hill when there was such a place unpolluted, pushed his way through, crying, "Why, Winslow, what is the

matter? How do you do, my dear fellow? Here seems a row. What is going on?"

"Perhaps, d'Estragon, you can persuade this person, whose nose I have just had the pleasure of pulling," replied Chandos Winslow, "that I am not a low vagabond dressed up like a gentleman. He is not inclined to take my card, but calls for the police."

"Rather strange," said Sir Henry d'Estragon. "I thought it was Lord Overton: but I must be mistaken."

"No Sir, you are not," replied the peer; "but I have every reason to believe this person to be an impostor."

"Pooh!" said the officer, turning away with a scoff. "Come, Winslow; if he chooses policemen for his friends on such occasions, we had better get away. Here they come."

"Stay a moment, Sir," said Lord Overton; "if you will be answerable that this person is--"

"Mr. Chandos Winslow, my lord," replied Sir Henry, "second son of my old friend Sir Harry Winslow, whom I had the honour of accompanying in 'twenty-seven, when he shot Michael Burnsley. I have nothing more to say, except that there is the gentleman's card. Any friend of yours will find me with him till twelve to-morrow. But if you prefer the police, you must send them after us. Goodnight, my lord."

Lord Overton took the tendered card; and Sir Henry, putting his arm through that of Chandos, walked away up Charles-street, while the policemen came up and inquired what was the matter; but got no satisfactory answer.

The next morning Sir Henry d'Estragon sat at breakfast with Chandos Winslow in his hotel, making himself very comfortable with all the etcæteras of an English breakfast, when Lord George Lumley was announced; and, as Chandos knew no such person, the object of his visit was not difficult to divine. All formal courtesies were gone through in a

very formal manner; and then, after a single instant's pause, and a look at a patent-leather boot, Lord George addressed himself to the business in hand.

"I have the honour, Mr. Winslow," he said, "of bearing you a message from my friend, Lord Overton. It would seem a very strange misconception took place last night, according to Lord Overton's account, from whom I required a full explanation of the whole circumstances, as I never undertake anything of this kind, without having made myself master of the facts."

Sir Henry d'Estragon showed some signs of an impatience, which was not decreased when Lord George went on to say: "Lord Overton mistook you, it would appear, for a person in an inferior station, very like you; I myself see no reason why mutual apologies should not set the whole matter to rights; but--"

"We have no apologies to make, my dear lord," replied Sir Henry; "your friend called Mr. Winslow an impertinent blackguard, in the presence of three ladies; adding, afterwards, some very insulting language. Under those circumstances, my friend pulled his nose--he always does; it is a habit he has--and there we rest satisfied: if Lord Overton is not satisfied, it is another thing."

"I will only add one word," said Chandos, "on my own part, and then leave you two gentlemen to settle the matter; as, when I have put myself in the hands of another, I have no farther right to interfere. What I have simply to say, is this: that the language and manner of Lord Overton towards me is not to be justified or excused by the plea that he mistook me for any one else, for it was ungentlemanly and unjustifiable towards any man, who gave him no offence, let that man's situation be what it would. And now, gentlemen, I will leave you." And he walked into the neighbouring room.

In about five minutes after, Sir Henry d'Estragon came in to him and said, "Lord George requires, on the part of his friend, that you should say you are sorry for having pulled his nose. I have already given a general refusal; but Lord George is peacefully as well as valiantly disposed; and, therefore, wishes the proposal to be submitted to you, with a hint at the same time, that he does not know whether his principal will be contented

with the terms; but that he shall withdraw from the business, if Lord Overton is not. What say you? Do not let me bias you."

"I shall certainly not say that I am sorry," replied Chandos; "for if I did, I should tell a lie. I think it was the only fitting punishment for Lord Overton's conduct, though perhaps, less than he merited."

"Bravo!" said Sir Henry; and returning again into the sitting room, he remained for about ten minutes in consultation with Lord George Lumley, and then notified to Chandos, that all was arranged for a meeting on the day after the next.

At seven o'clock in the morning--it was just gray daylight--a post-chaise and a travelling-chariot were seen drawn up, near the mill, on Wimbledon Common. At the distance of about five hundred yards stood five persons, of whom Chandos Winslow and Viscount Overton were the principals. Chandos was cool and calm, though there was some little degree of hesitation in his own mind regarding his conduct. Lord Overton was considerably excited, and eyed his adversary with a steady look and a frowning brow. Lord George Lumley made one more effort to bring about a reconciliation; but the peer repelled even his own friend haughtily, saying aloud, so that no one could avoid hearing him: "I tell you, Lumley, the time is past. I would accept no apology now, if it were offered; and pray take care that there be no foolery: for it is my determination not to quit this spot, till one or the other of us cannot fire a shot."

Such a declaration was well calculated to remove any doubt from Chandos's mind. D'Estragon placed him very scientifically, spoke a word or two of caution and direction, and then retired with Lord George to give the signal. The distance was eight paces; the ground flat and unencumbered; both men very cool and steady; for Lord Overton had grown calm, as soon as he was in position; and the "one, two, three," were pronounced in a clear, loud voice. Both pistols were fired in an instant. Chandos Winslow's hat was knocked off his head, and fell a step or two behind; but he stood firm. On the contrary Lord Overton wavered on his feet, though no one saw where the ball had taken effect; and then dropped slowly down, with a motion as unlike a stage death as possible. The surgeon and the seconds all ran up; and Chandos Winslow, after pausing for a moment, followed more

slowly. D'Estragon, however, met him, as he came near, saying: "Come along, come along! he has got sufficient." And, taking him by the arm, he hurried him towards the chaise, into which they both got.

"Cork-street," he said to Winslow's boy; and, putting his head out of the window, he called to the man with the other horses, "You had better get up there as near as you can to those gentlemen."

Chandos leaned back in his carriage with very painful sensations at his heart: he felt what it is for two men to meet full of life and energy, and but one to go away again. At that moment he would have given almost all he possessed on earth, that he had not fired.

"Is he dead?" he inquired at length.

"No, he was not when we came away," said d'Estragon, gravely, "but hurt quite badly enough for you to be off, my dear fellow, and me too. Just drop me at my house as we go by; and then get this fellow to take you another stage out of town. It will be better for us to go separately; for I have known awkward consequences from two men travelling together under such circumstances."

The arrangement he proposed was followed, as far at least as dropping him at his own house was concerned; but Chandos then returned to the hotel, and remained for nearly half-an-hour in sad thought. He had scarcely the heart to fly; but after a while, recalling the unpleasant image of long imprisonment before trial, he made up his mind to his course, and quitted London by one of the few stage coaches remaining. About ten days were spent in retirement at one of the small villages which are found scattered over the country within about twenty miles of London, and then he made his way back towards Winslow Abbey. He had heard no news of his antagonist's fate after he had left him with his friend and the surgeon on Wimbledon Common. In a country paper, indeed, he had seen, copied from a London paper, an account of the duel, in which the facts were of course misstated, without being altogether false. If newspapers would content themselves with telling the plain truth or the plain lie about anything, they would be beneficial or harmless; but it is the mixture of both which often renders them dangerous and detrimental, ay, sometimes even after nineteen

years. From the journal which fell into his hands, all he gathered was that Lord Overton had been carried to his own house, supposed to be in a dying state, while the peer's conduct towards himself was grossly exaggerated by a democratic paper, for the purpose of crying down the aristocracy. He was grieved, anxious, remorseful; for he could not exculpate himself from all blame. He knew that Lord Overton had just cause to think that he was assuming a character which did not belong to him; and all the motives which had actuated before and during the duel seemed to vanish into thin air when he came calmly and without passion to examine his own conduct. In vain he asked himself if he could stand and be insulted without resentment in the presence of persons nearly strangers to him. In vain he thought that no law required him to remain passive and be shot at by a man who declared his determination of not quitting the ground till one fell. In vain he argued, that having put his honour into the hands of a friend, he was bound to abide by whatever determination that friend came to. He felt that he might have done better, and that by not doing so he had endangered, if not taken, the life of a fellow-creature.

It was with a heavy heart then that, after having quitted the railroad and the cross coach, and left his baggage to be sent to the little public-house at Northferry, he walked on in the garments of an inferior station, which he had resumed, towards the ancient seat of his family, wishing to see his half-brother, Lockwood, and obtain further information upon many points before he proceeded to Mr. Tracy's.

The sun had set before he reached the park; and walking slowly along under a row of broad chestnuts which bordered the paling on the east, he approached Lockwood's house, thoughtful, and perhaps more sad than when he had first visited it. But the house was all dark, and he rapped and tried the door in vain. Then thinking that perhaps the person he sought had gone up to the Abbey, he crossed the wide savannahs and groves of tall trees, and came upon the house towards the eastern angle. There were lights in several of the rooms, and a suspicion that his brother might be at the house crossed his mind. How to ascertain the fact without discovering himself, became the next question; but the night was very dark, the tall windows came down to within three feet of the ground of the terrace; the wind was high and noisy, so as to cover the sound of his footfalls, and in most of the rooms the

curtains seemed not to have been drawn. He would look in, he thought, and see who were the tenants.

The rooms nearest to him he knew were those inhabited by the keeper, Garbett, and his wife; and passing on along the principal front, he paused at what had been called in his boyish days the little drawing-room. There were candles on the table, and two men within, one holding a light in his hand, the other mounted on a ladder, pasting printed numbers upon the old family pictures, previous to a sale. The next room, the great drawing-room, was dark; but the music-room beyond displayed to his eyes a tall, dry-looking person, in a frock coat and a yellow waistcoat, probably an auctioneer, striking the keys of an old piano which had stood there since his mother's days. Then came the boudoir, without lights, and a little ante-room, also in darkness. Beyond was the small study, the furniture of which had been bequeathed to himself, and in it was a faint light, which, when he looked through the windows, he perceived was afforded by the open door of the library adjoining. Going on a few steps, he paused and gazed, not doubting that if Lockwood was at the Abbey he would be there; but no such figure presented itself.

At the large table sat Mr. Faber, the late Sir Harry Winslow's secretary, and probably his son, with writing materials before him; and--opposite one of the large gothic bookcases, with a candle on a small table at his side--was Roberts, the steward. He was busily engaged with a set of strange-looking iron instruments on a ring, in what seemed to be picking the lock of one of the drawers, a range of which ran between the book-shelves above, and a row of cupboards below. The next instant, while Chandos was still gazing, the drawer was pulled out, and Roberts took forth a whole handful of papers. He threw one after the other down into a basket at his side with very little consideration, till suddenly he paused, looked earnestly at one of the few which remained in his hand, and then seemed moved by stronger emotions than Chandos had ever before observed in his calm and little perturbable countenance. The moment after he said something to Mr. Faber, and then Chandos heard him distinctly say, "Call him, call him."

The young secretary rose from the table, paused to look earnestly at the paper in the steward's hands, and then left the room. Roberts sat down and

wrote, looking from time to time at the paper as if he were copying something inscribed upon it; and at the end of perhaps two minutes, Mr. Faber returned. As he entered the room his eyes turned towards the window where Chandos stood, and he suddenly lifted his hand and pointed. It was evident that he saw somebody looking in; but Chandos was sure that in the darkness, and at the distance at which he stood, his features could not be distinguished. He was agitated, and his thoughts troubled with all he had seen. He felt convinced that his brother was in the house, and had been sent for by Roberts. He feared an encounter with Sir William at that moment and in that garb. He feared himself and his own vehemence--it was a lesson he had lately learned; and hurrying away, he plunged into the woods, crossed the park again, and sought a village about two miles distant, where a little inn was to be found.

Entering with as composed an air as possible, Chandos Winslow asked for a room and some tea; and having been accommodated at once, for persons dressed like himself were frequent and honoured guest, he sat down to think.

What was the meaning, he asked himself, of the scene he had just beheld at the Abbey? It was evident that the drawers of the bookcases which had been left to him with all their contents of every kind, had been opened without his consent or knowledge. All that those two rooms contained, of every kind and description whatsoever, had been left to him by his father's will. The papers which he had seen taken out might be of infinite importance to him. Who could tell what might be done with them? Roberts he believed to be perfectly honest. Faber, though very weak, was kind and gentle; but his brother he felt he could not depend upon. His notions of right and wrong were anything but strict; and his ideas of his own privileges and rights distorted by that species of haughty selfishness, which makes despots of crowned monarchs and tyrants and unjust men in every walk of life, might induce him to read the legacy to his brother in a very different sense from the plain one, and lead him to take possession of the papers which had been found by his steward and his secretary.

Chandos thought long--sadly--seriously. There are despairing moments, when all earthly things seem nothing. When the objects of hope and desire

appear valueless--when we feel tired out with the struggle against fate, and are inclined to give it up and let all things take their chance. Those are dangerous moments. Let every man beware of them. They are the first symptoms of the worst kind of mental malady--apathy; and without prompt and speedy remedies, the disease will get such a hold that it will be with difficulty cast off. Chandos felt it creeping upon him, as he had once felt it before. It seemed as if his destiny was to misfortune; as if nothing could go right with him; as if every effort, every hope failed. What was the use of prolonging the strife? What mattered it how the papers, the furniture, the books, the busts, the pictures, were disposed of? Why should he play out a losing game? Were it not better to spread out his cards upon the board, and let his adversary make the most of them?

But, happily, like a ray of light breaking through the storm clouds--like the first smile of summer after winter--like an angel sent to comfort, the image of Rose Tracy rose up before his memory. For her was the struggle. She was the spirit of hope to him; and the strife against fortune was renewed. Every possession--every chance became an object worth preserving, as Rose Tracy presented herself to thought, and for her he resolved to neglect no effort which he had power to make. The first thing he decided upon was to let Roberts, at least, know that he was aware of what had taken place; and, calling for pen and ink and paper, he wrote him a short formal note, to the following effect:--

SIR,

I am much surprised to find that the drawers of the bookcases left to me by my father's will, together with everything that the library and adjoining study contain, of every kind whatsoever, have been opened with pick-locks, without my consent. I write this merely to remind you that you are accountable to me, and only to me, for everything that you may have found in those drawers, and to insist that the papers of which you have taken possession, be given into the hands of no one but

Your obedient servant,

CHANDOS WINSLOW.

CHAPTER XVII.

There is no sorrow like self-reproach. Chandos Winslow was by no means a perfect character: he inherited much of his father's vehemence of nature, though far less than his brother: but at the same time, whether it be a natural or an acquired quality, (I think, the former,) he had great conscientiousness. Now, great conscientiousness cannot exist in the same breast with much vanity. They are incompatible ingredients: the vain man thinks all he does is right; the conscientious man is always trying if it be so, and censuring himself more than he would others when he finds he has acted wrong. Chandos felt that he had done so in the case of Lord Overton. How much soever worldly usages might justify him, he would not exculpate himself. And the burden was heavy: he groaned under it.

When he had written the note to Mr. Roberts, and obtained some tea, he sat meditating sadly on his fate, till at length he thought, "It would be better to give myself up! It is a duty--it may be some atonement. I will see Mr. Tracy first; and Rose. Dear girl, I fear she has suffered on my account."

His thoughts still remained sad; but they were calmer after he had taken this resolution. And ringing the bell, he asked if there was a newspaper in the house to amuse the time. The landlady, who appeared herself, said there was no "fresh ones," as she termed them; for Mr. Tims, the sexton, always had them first, and he kept them full three days; which was a shame. She had all last week's Times, however, she added, if the gentleman would like to see them.

"Better that than none," Chandos thought; and accepted, the offer. In a few minutes, the huge pile which a week's accumulation of the Times newspaper is sure to form in the month of January, when parliament meets early, was placed before him, and he opened the one at the top. It was six days old; but the young gentleman's eye rested first upon one of those

eloquent and masterly leading articles, where all the powers of language and the acuteness of human reason, sharpened by art and use, are employed to give a peculiar view of some passing subject, in what may well be called an essay, which, if mental labour and literary merit ever obtained reward in England, would raise the writer far above the great body of those who are honoured by the crown and paid by the nation. The vigour, the subtlety, the eloquence, ay, and the wisdom of many passages captivated the mind of Chandos Winslow; but they brought a sad moral with them. He had dreamed of employing his own talents in the world of letters, of seeking fame and recompense by mental exertion. But he now asked himself--"Who is it wrote this splendid essay? What has been his reward in life? Who will ever hear of him? What will be his future fate? A man who can shake public opinion to its foundation, who can rule and command the minds of millions by the sceptre of genius, will live unhonoured but by a few, unrewarded except by the comparatively small remuneration, which even such a journal as this can afford, and die forgotten. Print calico, Chandos Winslow, twist cotton, paint portraits, feel pulses, plead causes bad and good, cut throats, do any thing but follow a course which in England is luxurious to the rich and great, thorny and stony to all else. We are a great commercial people! we are a nation of shopkeepers; and even in the distribution of honours and rewards, those who have them to dispose of expect their material pennyworth in return. Mind is nothing in Great Britain, except as it is employed upon matter."

While indulging in such reveries Chandos had laid the paper down; but when they were over, he took it up again; and his eyes fell upon several other paragraphs, one after the other, till they rested upon a brief passage, copied from another journal, and headed "THE LATE DUEL."

"We are happy to be able to state," it went on to say, "that Lord Overton, the sufferer in the late duel with Mr. Chandos Winslow, is proceeding rapidly towards convalescence.--Very little fever followed the extraction of the ball, and that which did supervene has quite subsided. The answer to inquiries yesterday at his lordship's house was, that he had been permitted to sit up for several hours. Under these favourable circumstances, Sir Henry d'Estragon and Mr. Winslow have returned to town, but have not yet shown themselves in public."

Chandos would have felt more satisfaction if there had not been one lie at least in the paragraph; but still he judged that the writer was more likely to learn Lord Overton's real state than his own movements; and he sought eagerly through the later papers for further information. He found at length a paragraph which stated that "Viscount Overton, who was wounded in the late duel at Wimbledon, is now quite convalescent, and drove out yesterday for two hours in the park."

Chandos felt as if some angel's hand had effaced the brand of Cain from his brow: his resolution of giving himself up was of course at an end, it being, like all resolutions in regard to definite acts, the mere plaything of circumstances; but he set to work to form other resolutions, which men may frame with better hopes of their durability, if their own minds be strong. They affected the regulation of his own passions, the course of his own conduct, the control of his own spirit. They were good; and they were lasting.

It is excellent for man to stand as on a mountain in the outset of life, and gaze over the many ways before him; to choose deliberately and with cool judgment, that upon which he will bend his steps, and to pursue it to the end. Verily, he shall not want success.

Chandos Winslow did so; and he rose tranquillized. Warm and eager by nature, he had learned from his mother to control himself to a certain point; but that control was merely according to or within the limits of worldly conventionalities. He had now found that there were wider obligations; that to rule his own passions, to check his own vehemence, to submit all his first impulses to a rigid law, totally independent of the factitious regulations of society, was a duty which, performed, must lead to peace of mind; and he resolved to strive so to do against original disposition, and against what is even more strong--habit.

On the subsequent morning he set out early for Northferry, not choosing to revisit Winslow park again, lest he should encounter one "a little more than kin and less than kind."

CHAPTER XVIII.

"Patience, and shuffle the cards," said the sleeper in the cave of Montesinos; and an excellent good rule it was. Our cards want shuffling; for the trumps have got packed.

A little more than a fortnight after Chandos Winslow had left Northferry for London, the party assembled at the house of Mr. Tracy on the evening of a cold January day, consisted of two or three persons besides his own family. There was the clergyman, Horace Fleming. There was an old lady, who lived at about twenty miles' distance, and spent the night there, when she dined--very rich, and somewhat egotistical. There was her niece, an exceedingly pretty little girl, without a penny, and totally dependent upon her bounty, who sang beautifully, and was kept under strict rule by her aunt--a sort of human singing bird, which old ladies will keep in cages now and then; and "last, but not least," was Sir William Winslow, who had come for two days, and had stayed seventeen. Not that he had entirely passed his time at Northferry; for he had ridden over more than once to Winslow Abbey, had met lawyers, and agents, and surveyors, and had received a proposal and nearly concluded an agreement, for selling the estate, land, park, and house to the law-agent of Viscount Overton, acting on his lord's behoof. Some little matters remained to be settled, but nothing of any great importance. The title was to be taken as it stood; the money was ready to be paid; and the only question was, whether the timber should be given at a round sum, or be regularly surveyed and valued. It was altogether an excellent arrangement; for, although perhaps the price offered was about five thousand pounds less than the real worth of the property, yet it saved Sir William the barbarism of pulling down the Abbey; and that was well worth the money.

These periods of his absence from Northferry, however, were very short. Sir William brought them to a close as speedily as possible; agreed to proposals, which nobody thought he would agree to, with a facility most extraordinary; gave short answers and few words to every one who applied

to him on business, and rode back to Northferry as soon as by any means he had scrambled through what he had got to do.

Sir William seemed a changed man; and nobody could tell by what means the alteration had been effected. Most people indeed seemed to like him, and to wonder at the bad reports which had got about concerning him; but the cause of this marvellous change must be explained.

It was a change external, not internal. The man was the same; the demeanour was altered. The same vehement passions were upon him which had always moved him; but their operation had taken a different direction. The first day he had passed at Mr. Tracy's, he had given his arm to Emily, to take her in to dinner, and he had thought her exceedingly beautiful. The high, pensive character of her countenance, the voluptuous beauty of her form, the grace of all her movements, even the coldness of her manner towards himself, had all excited--however opposite in their apparent tendency--first admiration, and then passion. He saw her every day; and, with the uncontrollable impetuosity of his nature, he hurried on, pressing his suit upon her, only restrained from declaring it openly by the extreme brevity of their acquaintance. Every time he beheld her, his heart seemed on fire; every time she spoke to him, her words were enchantment that he could not resist; every time he touched her hand, it sent the blood thrilling through his veins; and day by day, and night by night he drank in draughts of love from her eyes, which seemed to intoxicate and leave him no command over himself. It was, in short, more like the passion of some warm eastern land than of our cold climate; and there was no folly, hardly any impropriety, that he would not have committed to call her his with as short a delay as possible.

Emily, indeed, shrank from his fierce and fiery advances, but as he had yet said nothing, it was impossible to check them as far as she could have wished. Still she retired from his pursuit; but her very hesitation and withdrawal seemed to inspire him with fresh vehemence and ardour; and the strong passion that he felt, all animal as it was, seemed to grow more and more upon him hour after hour. Mr. Tracy saw the whole with some uneasiness; for he saw no sign of his daughter returning the feelings which she had evidently inspired in Sir William Winslow. He was not at all a man

inclined to sacrifice his daughter; nor was he indeed one, in any ordinary circumstances, to thwart her inclinations; nor did he feel at all sure, in the abstract, that Sir William was the man he would himself have chosen for her. Not that the latter made himself by any means disagreeable; far from it. The bird plumes his feathers in the eyes of his mate; the tabby cat washes her face, and smooths her fur for the eyes of her companion, according to Pope; and the intensity of his feelings, by the unaffected course of nature, caused Sir William Winslow to display all that was good or bright in his character, all that might captivate or attract. He was witty, he was brilliant, he was gay; and the depth of his passion gave a vigour and profoundness to his thoughts, a figurative splendour to his expressions, which might well have carried away any heart not armed and prepared against him. He was certainly very handsome, too; not that in features or in form he could compare with his brother; but still, when Chandos was absent, one would hardly be found to say, that they had seen a finer looking man.

It was on the seventeenth evening of his stay there, that, with the party I have mentioned, he was seated in the drawing-room, after dinner. He had placed himself as near Emily as he could, but that was not exactly at her side; for she had contrived, by an intuitive skill in the science of defence, to get the old lady on one side of her, and her uncle on the other. Mr. Tracy was talking to the pretty girl who sang, and Horace Fleming--very wretched--was speaking in a low voice to Rose. Rose was charity itself; and somehow, within the last two months, her eyes had become wonderfully sharpened to what was going on in people's hearts. What beautiful eyes they were, when she looked kindly upon one; shining soft and yet bright, like the light of a planet!

What Mr. Fleming had said I did not hear; but Rose replied, "It will be of no avail. He can never induce her to like him."

They were the sweetest words Horace Fleming had ever heard; and with courage renewed he went over, and standing before Miss Tracy, joined in the conversation with quiet grace, which woke a world of fiends in Sir William Winslow's bosom.

Now, there was one curse upon Northferry, proceeding directly from the original sin--the love of the fruit of the tree of knowledge. There was a post

from London twice a-day--excellent for commercial men; sometimes good for solicitors; always agreeable to gossiping ladies, young or old; but the greatest annoyance possible in a calm, quiet little society, where all the business or agitation of the day is as well got over at once. The second post at Northferry House arrived about half-past nine; and the moment after Horace Fleming had left Rose's side, the butler entered with a salver, upon which appeared an enormous collection of letters, and a newspaper. Mr. Tracy took the letters, and the General the newspaper. The former apologized for looking at his correspondence, and the latter was besought by Rose to see if any one was dead or married.

Poor girl, she did not know what she asked. She was like one of those who seek to look into fate, and find condemnation in the voice of the oracle.

General Tracy opened the paper, and turned to seek the important part which gives so much satisfaction to all ladies; but as he ran his eye down the columns, it was caught by the words "DUEL AT WIMBLEDON." He was a soldier, be it remembered; so that he might be excused for pausing.

"Why, what is the matter, my dear uncle?" asked Emily. "Are you appointed to the command of the forces in India?"

"No, saucy flower," answered the old officer; "but here is something in which we shall all take an interest, though a somewhat painful one--a duel, Sir William, in which one of our acquaintances has been engaged, with a relation of your own;" and he proceeded to read,--"This morning, at an early hour, a hostile meeting took place, near the old mill at Wimbledon, between Viscount Overton and Chandos Winslow, Esq., younger brother of Sir William Winslow, Bart., of Elmsly and Winslow Abbey, the consequences of which, we are sorry to say, are likely to prove fatal"--Rose turned as pale as death; but her uncle went on--"to the noble Viscount. The cause of quarrel, it appears, would not admit of any apology on either side; and after having in vain endeavoured to effect an accommodation on the field, the seconds, Lord George Lumley and Colonel Sir Henry d'Estragon, measured the ground; and at the first fire, Lord Overton fell, severely wounded. The ball penetrated the right side, about six inches below the clavicle, and is supposed to have lodged under the blade bone, after having traversed the lungs. The noble Viscount was promptly attended to by Mr. G--e, who was

on the ground; but after having staunched the effusion of blood, the eminent surgeon advised the immediate removal of the patient to his house in ---- street, for further treatment. After having ascertained that his opponent was not actually dead, Mr. Winslow set out for the continent in a post-chaise and four, which was in waiting, accompanied by Sir Henry d'Estragon; and Lord George Lumley has also judged it expedient to absent himself from London, till the fate of Lord Overton is ascertained. We regret to say that the report in ---- street, is very unfavourable."

"I thought my brother would not be a fortnight without quarrelling with somebody," said Sir William Winslow.

"Indeed, Sir William," said General Tracy, who did not love him; "what made you so prejudge your brother? I have heard him very highly spoken of."

"A poet shall answer for me, General," replied Sir William Winslow; who, though the old officer's words did not please him, was unwilling to take offence at anything said by Emily's uncle;--

"There is a history in all men's lives
Figuring the nature of the times deceased,
The which observed, a man may prophesy,
With a near aim, of the main chance of things
As yet to come to life, which in their seeds
And weak beginnings lie intreasured."

"I judge of my brother by the past, my dear Sir. But it is not for brother to speak ill of brother; and, therefore, I can but say I am very sorry for this affair, especially as Lord Overton is a very popular man in London, and by no means quarrelsome."

"He is not a very popular man in the country," said Rose Tracy, warmly; "and what you have said, Sir William, is surely quite condemnatory enough of your brother, without your adding any more."

"We do not yet know the circumstances," said Mr. Fleming, in a mild tone; "perhaps Mr. Winslow may not have been the aggressor."

"Really Sir, I do not see why you should 'perhaps' the matter," answered Sir William Winslow; "I must know my brother best, I imagine. And I was not aware that clergymen advocated duelling."

"Nor do they, Sir William," replied Fleming; "on that point, both were equally in fault. But the question was, I think. Who was the aggressor in the quarrel which led to so sad and criminal a result? You will excuse me, however, for believing that brothers do not always know brothers best. Brotherly love is not found in all families; and where it does not exist, the judgment is apt to be prejudiced."

"Sir, you are a clergyman," answered Sir William Winslow, with marked emphasis, "and can venture to comment on family disagreements in a way which others could not do."

"I was utterly unaware that there were any," answered Horace Fleming; "and sincerely beg your pardon for touching on a subject which, whatever be the circumstances, must be deeply painful to any right-feeling man. My observation was intended to be as wide and open as the day, I assure you."

"It was somewhat pointed for the breadth you give it," was the other's reply; and turning away with a quivering lip, he crossed the room, and spoke to the pretty little girl, who was seated not far from the small table, where Mr. Tracy was reading his letters by a lamp. That gentleman had not heard a word of all that passed regarding the duel between his acquaintance, Lord Overton, and Chandos Winslow. There was something in the very first letter he opened which took the colour from his cheek; and the second and the third but blanched his face still more. As the half light of the shaded lamp fell upon his countenance, the deep line which had indented itself during the last few minutes between his eyebrows looked like a dark gash, and every furrow of the brow seemed doubly deep. General Tracy fixed his eyes upon him with some anxiety; but Mr. Tracy communicated the contents of his letters to no one; and as soon as Sir William Winslow crossed the room, he rose and left it, carrying his papers in his hand.

When he reached his library, where a light was always burning at that time of night, he sunk into a chair, and suffered the letters to drop upon the floor, murmuring, "Heaven and earth! This is destruction--The North line,

too! To be made responsible for debts I had no share in contracting, simply because I let them advertise my name as a director. The Junction down at nothing, and to be abandoned! The Western branch rejected! Why two hundred thousand pounds will not cover it!" and he pressed his hand upon his brow, as if to control the turbulence of thought.

Then he rose and paced the room rapidly, gazing wildly round him at all the pomp and circumstance of wealth that surrounded him, and comparing it bitterly with the future beggary which he saw impending. But ere he had taken more than two or three turns, the door opened, and his brother entered.

"What is the matter, Arthur?" he said. "Something has agitated you terribly."

Mr. Tracy stooped, picked up the papers from the floor, and put them in his brother's hands, with the simple word, "Read!"

General Tracy did read, and his countenance fell for a moment. He instantly recovered himself. "A heavy loss, Arthur," he said; "and lost in a very foolish manner. I like plain, straight forward gaming better than this; but still the affair might be worse. Do not give way after this fashion. We must meet the matter as it can best be met. There is enough between you and me to cover more than this; and you know, my dear Arthur, I have none but you and the two sweet girls--and that little devil of a boy. A hundred a-year he must have; that I have settled in my own mind. The girls must have their fortunes. That must be done; but still the two estates will bear more weight than all these sums; and if not, there is my pay. Two old men do not need much, Arthur; and we shall have enough for a beefsteak and a bottle of wine, notwithstanding."

Mr. Tracy pressed his brother's hand, murmuring, "Oh, Walter, how can I involve you in my ruin? Besides, large sums will be required immediately, or I shall be disgraced."

"Poo, poo!" said General Tracy; "no man is ruined so long as he has a bed to sleep on, clothes to wear, a house to cover him, and food to eat. We shall want none of these things, Arthur. We shall be as rich as Sandy

Woodyard, who is reckoned very well to do; and, as to raising large sums, that will be easily done, without any loss of time. But your thoughts are all in confusion with this unexpected stroke. Cast the whole from your mind for to-night; come back into the drawing-room, and do not let either the baronet or the parson see that you are troubled; sleep quietly over the affair, and we will arrange the whole to-morrow. I can raise seventy or eighty thousand pounds at a day's notice. You can double that; and all I can say, my dear brother, is, that, barring a fair provision for the two girls, I care not a rush what becomes of the rest. Besides, some of the shares are worth something. It is not all lost."

"Heaven forbid!" answered Mr. Tracy; "but the actual loss is immense; more than you know, Walter."

"Oh, no! I see it all," replied the General, glancing again at the letters. "But it is not so bad. It will be easily managed. The first sight of bad tidings is always through a magnifying glass. The spectacles will have fallen off your nose before to-morrow; and in the mean time shut your eyes to the whole concern. Come along; the people will think it strange if we are both absent together any longer; and the dear girls will think it strange, which is worse."

Mr. Tracy suffered himself to be led back to the drawing-room; and there, by a great effort, so far conquered the busy and rebellious thoughts within, that his guests did not discover any difference of manner. His daughters did, indeed; and both Emily and Rose retired to bed that night thoughtful and sad; for they were well aware that their father's friendship for Lord Overton was not strong enough for the intelligence of his being wounded to cause the degree of agitation they beheld. Rose, too, had her own particular share of sorrow and anxiety, and her cheek was pale when she arose the next morning, as if she had known little rest during the night.

With Mr. Tracy, the effect of a night's consideration--for it certainly was not a night's sleep that he obtained--was to plunge him into despair. The first blow had been stunning. As not unfrequently happens with corporeal injuries, it had for a time crushed out the full perception of the wound; but when he thought of the immediate pressure, and the future beggary--when he looked all the difficulties and disgraces which surrounded him in the

face, as they stared at him through his bed curtains, in the midst of the night, his heart sunk low, low; and his brain had well nigh given way under the anguish of mind he endured. He was up early the next morning, with the letters in his hand, and pen and ink beside him, calculating the full amount of his disaster. It would be tedious to the reader to enter into details or explanations on the subject--how it happened, or by what means it was brought about. Suffice it, that he found his ultimate loss would probably be so large, as to compel the sale of all his estates. That, if still willing to assist him, his brother must sell, or mortgage deeply, the family property; and--a matter of much more immediate concern--that the sum of one hundred and fifty thousand pounds must be raised within a fortnight, to save him from disgrace. He had taken up money largely, which must be instantly repaid; and when he thought of all the tedious processes of the law--the impossibility of hurrying a transaction of such magnitude--the few persons who were capable, or would be willing to lend such a sum without full investigation of the security--the utter improbability of his obtaining it in time, his brain whirled, and in imagination he saw himself torn away from his luxurious home, a beggar, a bankrupt, and a prisoner.

He gazed wildly at the window; his daughter Emily passed across from one green-house to the other--a vision of loveliness. "Better die," muttered Mr. Tracy, with his thoughts all whirling; "better die at once!" and he reached out his hand to the pistols which lay upon the top of the scrutoire. He looked at them for a moment, laid them down beside him on the table, and pressed his hand upon his brow. Someone knocked, and, without waiting for an answer, came in. General Tracy looked at his brother, advanced to the table, put the pistols in his pocket, and rung the bell sharply. "Arthur," he said, "you are not well. We must have the doctor.--Go down immediately to Mr. Woodyard," he continued, when the servant appeared, "and tell him I should like to see him without a moment's delay."

In half an hour more, Mr. Tracy was bled copiously, and found instant relief.

"Good God!" he said, in a low tone, turning towards his brother, who was the only person in the room besides the surgeon and himself, "what was I going to do."

"Now what the devil is all this, Sir," said the surgeon, who had been perfectly quiet, and even tender with his old friend, till he saw that he was freed from the imminent danger which had menaced him, but then instantly resumed his rude familiarity. "You have been about some cursed folly, Tracy, and burnt your fingers. I know you--I know you! Every man has some point on which he is a fool; and the wiser he is on others, the greater the fool he is on that. I can guess what it is; so there is no use of denying it. That infernal blackguard Scriptolemus Bond, was not with you a whole morning for nothing, about a fortnight ago. He has gone to smash; all his bubbles have burst, and he is off to America with all he could collect. Thank God, he did not get a farthing from me, though he tried hard; but I know he took you in to the tune of many thousand pounds; for he told me so, and showed me some of the drafts."

"That is not the worst of it, my good friend," answered Mr. Tracy, in a low tone; "there is not one line in which I have taken shares--and I am sorry to say I have done so to a large extent--which has not fallen almost to the ground."

"Upon my word, you must be a very unlucky fellow, not to have one folly escape without punishment," answered the surgeon. But General Tracy interfered, saying, "There, there, let him alone, Woodyard. He is not in a fit state of health or mind to be railed at."

"Do you suppose you know better than I do?" asked Sandy Woodyard. "You are a conceited old gentleman, upon my word. Stick to your own tools, General. I am determined I will know all about this business; for I must, and will be informed of what is pressing on my patient's mind."

"It is," replied Mr. Tracy, in a slow, thoughtful tone, "that within one fortnight, my good friend, I have to pay nearly one hundred and fifty thousand pounds; and forty-nine thousand pounds thereof within four days, without time to make the necessary arrangements, almost without time for thought. I wrote up to sell shares, to meet the latter sum, at whatever might be the loss; and the answer was that letter, telling me that the shares I mentioned were a mere drug--worth nothing in the market. Is not that enough to press hard upon any man's mind, Woodyard."

"No," answered the surgeon, bluntly, "not unless he be a fool. You've plenty to meet the demand. You may not be as rich as you have been; but you have chosen to have your dance, and so you must pay the piper. As to the forty-nine thousand pounds, you can get somebody to advance it. If nobody else can be found, I will."

"You!" said Mr. Tracy.

"You, Woodyard!" cried the General.

"Oh, yes--why not?" replied the surgeon; "I'm a poor devil; but I have got something, and I have made a little more by these same speculations which have burnt your fingers, Tracy; only you see I never ventured upon any thing that was not sure--I touched nothing that was not going--I did not sow a field that was not ploughed and harrowed. You have nothing to do, therefore, but to let me know the day, and give me a little bill of sale of your personals and timber to the amount advanced, and the money shall be ready. Come, come!--do not lose heart. You will get somebody to advance the other money wanted; and in the mean time, if I were the General, I would run up to London, and look after these shares and scrip. I do not believe a word of some of them not bringing in money yet."

Mr. Tracy pressed his hand for his only reply; but he felt deeply the worthy man's kindness, the more, perhaps, from the blunt way in which it was offered.

"There, now, keep yourself quiet, and all will go well," continued Sandy Woodyard, taking up his hat and cane, and bending his steps homeward. But Mr. Tracy could not do what the surgeon directed. What man of lively imagination can ever keep himself quiet when danger is still impending over him? Who but Washington Irving's Dutchman could ever batten down the hatches, and sleep out the storm. Mr. Tracy felt that the storm was not passed yet. The good surgeon had afforded unexpected relief, it is true; but still the enormous sum to be paid within one fortnight, without any preparation for it, rose up to his eyes like the rock of adamant before the ship of Sinbad the sailor; and he asked himself again and again how it was to be raised, where it was to be found. There was no answer. Nevertheless, he assumed a tranquillity which he did not feel; and assuring his brother

that he was better, and his mind relieved of its greatest burden, he went in with him to breakfast.

Rose was pale; but Emily seemed to have had bright dreams, for seldom had her beauty been more resplendent. Sir William Winslow sat near and gazed at her from time to time, with eyes full of passion; and as soon as breakfast was over, he requested to speak a few words with Mr. Tracy alone. That gentleman had not yet got his newspapers, and, to say the truth, was anxious in no light degree to look at the share list; but he courteously acceded at once, and led the way to his library. The conference was long; and when the young baronet came out, his eyes were sparkling and his air triumphant. He ordered his horses instantly, to ride over to Winslow Abbey; but while he waited at the door for their coming, he murmured, "She must be mine--she will never hesitate when her father's safety depends upon it!"

At a furious pace, up hill and down dale, rode Sir William Winslow, to his old family property, half-killing the groom behind him; and as soon as he arrived, he asked if Mr. Roberts or Mr. Grubbup, the law-agent of Lord Overton, had been there.

"Mr. Roberts hasn't been since Thursday last, Sir William," replied Mrs. Garbett, who opened the hall doors; "but the other gentleman with the queer name, is in the drawing-room, waiting for you, Sir."

Sir William strode to the drawing-room, horsewhip in hand, as if meditating mischief; but his salutation of the man of law was, on the contrary, quite condescending; "Well, Grubbup," he said, "I have just heard sad news of Lord Overton and my mad brother Chandos."

"Ay, very sad indeed, Sir William," said Lord Overton's agent; "but I suppose, of course, Sir, you do not take up the quarrel of your brother in a matter of business."

"Oh, certainly not, Mr. Grubbup," replied Sir William. "I do not take up his quarrels at all. But what I wished principally to know was this. How will the transaction between us be affected by the state of Lord Overton. He was not expected to live, I understand?"

"He is better, Sir William, he is better," answered the man of law. "There is every hope of his doing well. But even were it not so, I took a little precaution, luckily, after our last conference, with the approval of Mr. Roberts, which would render the arrangement binding upon his heirs, exors, and admors. I drew up this agreement of purchase and sale, which on Saturday last, not ten minutes before he went to the opera, I got him to sign. Nothing is wanting but your own signature, Sir William, and the transaction is complete."

"With the exception of the payment of the money," said Sir William Winslow; "but that is a very important part, Mr. Grubbup, especially at the present moment."

"But, Sir William," said the agent, "you know the timber--and it is only usual--"

"All very well, my good Sir," rejoined the young baronet, whose eyes had been running over the paper, and who assumed a very decided, not to say domineering tone; "but I see the question of the timber is provided for. It is, by this document, to be taken at a valuation, although I fixed my own valuation before. Let that pass, however; I will not contest that point. In regard to the payment, I am decided: I will sign no paper till I am made sure that, by the fifth of next month, at least one half of the purchase-money shall be paid into my hands. If you do not make me perfectly sure of that, I will dispose of the property at once to some one else. You know I have another offer."

Mr. Grubbup looked amazed and confounded; but Sir William Winslow convinced him he was in earnest, by informing him that he had, in fact, need of the sum of one hundred and twenty thousand pounds, on the day named. The man of law was terribly afraid of losing all the various comfortable pickings, which men of law get out of such transactions, if he did not comply; but, after a little bush-fighting, he found means to satisfy Sir William Winslow that all he desired should be done; and the baronet rode away with a feeling of triumphant joy in his heart, at the idea of soon possessing her who had inspired him with a passion which deserved hardly any other epithet than that of *fierce*.

CHAPTER XIX.

It was the evening of a beautiful day in February, when Chandos Winslow returned by the lanes at the back of Northferry house towards his gardener's cottage. The scene and the hour were peaceful; and their tranquillity overspread his heart as if a balm were poured upon it. Frosts had departed to the pole. A west wind, slightly veering to the south, had brought the breath of summer from the distant lands. The early-loving thrush was singing his first sweet song upon the top of a bare tree. It was very pleasant. Chandos wished he had been born a gardener. Nevertheless, he hurried his pace; for he had a rose to tend. He fancied--he hoped that she might soon be by the little basin of gold and silver fish; but he had only two ways of approaching it: one by the gate near his own house, one by that at the other end of the grounds, which would have brought him before the windows of the mansion. He went into the cottage then for the key; and there good dame Humphreys detained him, impatient, for a few minutes, telling him how kind Miss Rose had been, coming down often to see little Tim; and how the boy had been sent daily to the school in the village, from which he had not yet come back, though it was late; and how the gentleman, who had been there with him one night, (*i. e.* Lockwood,) had been there the night before, and again, not ten minutes before, asking about him, and exceedingly anxious to see him, and very much provoked to find he had not come back; and how he had gone away grumbling and mumbling, as the old woman called it, and saying to himself, that as he, Mr. Acton, was not there, he must do it himself, for there was no time to be lost.

Chandos did not mark her much; but merely telling her, if Lockwood returned, to say that he would be back in half-an-hour, he took up a light Dutch hoe, which stood in the corner of the cottage parlour, and went out to the garden.

With a hand trembling with that sweet expectation which sometimes shakes the powerful frame even more than the feeble one, he opened the garden gate and went in. Close to the entrance he met one of the labourers in the garden, who wished him good evening, and said he was glad to see him, for the busy time was coming on. The man was going home for the night, and Chandos soon got rid of him, and of one of the boys who followed; for the sky was already very grey, and he feared that any delay might deprive him of the sweet moments coveted. He felt sure he should find Rose there. The very air seemed to breathe of love. She could not be absent.

He was right. Rose was beside the marble basin, but her eyes were dropping tears into it. He leaned the hoe against one of the pillars, and her hand was soon in his. Chandos could not resist the impulse to hold her for one moment to his heart.

"Oh, do not; do not, Chandos," she said. "I have much, very much to tell you; and it is all sad."

"Speak, dear Rose," he answered; "let me hear it at once. Tell me everything; tell me anything but that you are not mine--that you are to be another's."

"Oh, no; it is not that," she said, with a faint smile. "I have not time to tell you to-night, for you see it is growing quite dusk. Come to-morrow. I must see you--I must speak with you."

"Oh, stay one minute!" cried her lover, detaining her; "let me know something, at least, of what it is that grieves you--but a few words, dear Rose."

"They must be very sad ones," she answered. "My father is ruined, Chandos. My poor sister, dear, dear Emily, has consented, to save him from immediate destruction, to wed, with terrible haste, a man she does not, cannot love--your own brother, Chandos--and, oh!--what is worse than all--I fear, I am sure, she loves another;" and Rose wept bitterly.

Chandos was silent for an instant, holding her hand in his, and gazing upon her with love and sympathy; but the next instant he heard voices speaking, and steps advancing, in the narrow winding walk behind.

"Good Heaven, it is your brother!" cried Rose. "I hear his terrible voice. Fly! fly! Where can I escape him?"

"Up that walk, dear girl," replied Chandos. "I will easily avoid him. I will leap the hedge there. But let me see you safe first."

"No, no! Go at once, go at once," she cried; and Chandos, in obedience to her wish, passed through between the pillars, and leaped the low hedge which bordered a haw-haw that divided the grounds of Northferry from the neighbouring fields. He had, at first, proposed to cross the next enclosure at once, and return to his cottage; but it was lighter beyond the precincts of the garden, than under the shadow of the trees. He did not wish his brother to find him there; he wished to assure himself that Rose got away unseen, and he remained on the other side of the hedge, which, as he stood with his feet at the bottom of the haw-haw, overtopped his head by about nine inches. He had no idea that he would be witness to more than his brother passing by along the walk, which approached within about ten paces of the haw-haw on one side, and which skirted the little factitious ruin above the fish-pond, within a foot or two, on the other. Had he had an idea of the possibility even of his becoming an eves-dropper, he would not have hesitated, but crossed the field at once; but the path was, as I have said, at ten paces' distance, and unless the persons walking along it spoke very loud, it was impossible for any one in the haw-haw to hear more than an occasional word, unless the passers-by paused. Thus much is necessary to the character of Chandos. He paused, but it was to conceal himself, not to listen.

The moment after he had leapt the hedge, Sir William Winslow appeared at the turn of the little path; but he was preceded a step by another. His brother's figure Chandos recognised at once, notwithstanding the growing obscurity; but, for an instant, he could not distinguish who was his companion; for the short, slight-made man, who accompanied the baronet, was wrapped in one of those loose formless sort of coats, called paletôts. The next moment, however, the sound of their voices, raised exceedingly high, and in angry tones, reached him as he stood and gazed through the

hedge; and he recognized that of Mr. Roberts. None of the words were distinct; but it was evident that both were highly excited; and, by the sharp and vehement gestures of Roberts, so unlike his usual, quiet, and staid demeanour, and by the rapid pace at which he walked, with the baronet following, Chandos judged that the good steward was endeavouring to escape from provocation beyond endurance, even to his tranquil and equable disposition. Just as they came up to the little Greek temple, which had been built over the fish-pond--that is to say, at the nearest point of the walk to the spot where Chandos was concealed--Sir William Winslow laid a grasp upon Roberts's collar, as if to stop him in his rapid advance, exclaiming at the same moment, "Damn you, Sir, what do you mean?"

Roberts instantly shook off his grasp, and whirled round confronting him. At the same moment he exclaimed vehemently, "I will not, Sir William Winslow! If you will have it, I believe you burnt it."

The baronet instantly struck him with his fist, exclaiming, "You damned rascal!" The next instant his eye seemed to light upon the Dutch hoe, which Chandos had left leaning against the pillar. He snatched it up, struck the steward a violent blow on the head with it, which brought him instantly to the ground, and added another as he fell.

Chandos sprang up, struggled over the hedge, and ran forward. But his brother, hearing some one coming, darted away up the shrubbery walks, and was out of sight in a moment. Kneeling down by poor Roberts's side, the young gentleman raised his head. But what was his horror and distress, when he found that the two middle fingers of his left hand rested in a deep indentation in the skull, while a gaping wound in the scalp, cut by the iron of the hoe, was pouring forth blood profusely! Bending closely down, he saw a portion of the brain mingled with the gray hair; and, with a feeling of sickening horror at his heart, he laid the body gently on the ground again, and gazed at it for several minutes, as if the sight had turned him into stone.

Oh, what a dark and terrible moment was that! What a whirlpool of horrible thoughts did his brain become! What anguish of mind--what wavering hesitation of purpose--what indignation--what sorrow did he not feel! The first impulse was to run and call for assistance; but then he shook his head, and murmured "He is dead! he is dead! No aid can ever bring him

back to life." Bending down again, he pressed his hand upon the wrist, and then upon the heart. There was no pulsation. All was still for ever! The complicated machine was broken, never to be repaired again. The lamp drowned out, not to be re-lighted.

What should he do? How should he act? He had seen an honest, upright, noble-minded man murdered before his eyes: but the murderer was his own brother! They had lain in the same womb; they had hung at the same breast; they had joyed in the same smiles; the same blood flowed in their veins;--and yet one was a murderer, the other, the witness of the crime. It was a terrible struggle. Duty called upon him to denounce the criminal; indignation prompted him to the same course. By that very brother's acts, brotherly love had long seemed extinguished between them. Yet Chandos could not make up his mind to be his brother's accuser, to give him up to trial and to death.

"I cannot--I cannot," he said, after a long and painful revery. "Poor Roberts, I can do thee no good; and I cannot be a destroying angel to my own race. 'Vengeance is mine, saith the Lord, I will repay;'" and, turning away from the fatal scene, he hurried back to the small gate which led out towards his own cottage.

CHAPTER XX.

"Who was that I saw crossing the lawn a little while ago?" said Mr. Tracy, speaking to his valet, who came in to assist him in dressing for dinner.

"I saw a gentleman at the door asking for Acton, Sir," replied the servant; "and, as one of the men met him coming back this afternoon, I told the person that he would most likely find him in the garden; for he seemed

quite a gentleman, and in a great hurry to speak with him. I hope I did not do wrong, Sir?"

"Oh dear, no," answered Mr. Tracy; "I am glad to hear Acton has come back. Let him know to-morrow morning, that I want to talk to him."

Mr. Tracy went on calmly with his dressing; and when he had done, as the second bell had rung, he took up a book and read. He was very grave. Thought was importunate; for, though he had freed himself from present difficulties, yet the future was dark and menacing; and, at what a price had he purchased temporary relief? His daughter's happiness--he felt it--had been the sacrifice. He saw that she did not, that she could not love Sir William Winslow; and yet the baronet, bending all the energies of his mind to the speedy gratification of the passion which moved him, had skilfully contrived, with as little appearance of selfish policy as possible, to make the sum which was immediately necessary to Mr. Tracy dependent upon the time of the union of his daughter with himself. Without entering into long explanations, he had stated that he had the power to settle that sum upon his wife; implying, untruly, that he had not the power of lending it under other circumstances. Mr. Tracy was obliged to accept his terms without inquiry. Emily yielded with despair in her heart, and dark forebodings in her mind. She had but one consolation--one support--that, by the sacrifice of all that was most dear, she was saving her father. She repeated it to herself a thousand times a-day; and kept it ever before her in the weary and wearing hours of the night. It was the only means she had of keeping the bitter anguish of her spirit from bursting forth before every eye. Do what she would, it did sometimes appear: and Mr. Tracy felt the silent reproach, and dared not pause and think; but filled every moment with some occupation, however trifling, which might withdraw his mind from the terrible consciousness, that he was sacrificing his child.

When the bell rang, he walked down to the drawing-room with a quick step. His two daughters were there alone--Emily exceedingly pale, but calm, though very grave; Rose striving for cheerfulness with an effort almost hysterical. The General was absent in London. Sir William Winslow was not yet down, though he had only arrived that morning from town, and might be supposed to feel eagerness to be with his betrothed as much as

possible. Five, ten minutes passed; dinner was announced; and then some more time went by; till, at length, Mr. Tracy sent up a servant to inform his guest that they waited for him; and in a few minutes more, Sir William presented himself. His appearance, however, struck everybody as very strange. His face was usually florid; his manner calm and resolute; his tone quick and decided,--but now his cheek was like a sheet of gray paper; his eyes wandering and haggard; his step vacillating; his tone wavering, and his words confused. He apologized for the tardiness of his appearance, saying, that he had felt fatigued with his journey, and somewhat ill, and had fallen asleep. Emily expressed no concern or sympathy, though his excuses were principally addressed to her. They had had a full explanation together. He knew the terms on which he obtained her hand; and she did not wish him to suppose her moved by feelings she did not experience. It was her person he sought to possess, not her love. That he obtained; she could give no more.

Mechanically he offered her his arm, to take her in to dinner; sat beside her, and talked. It was strange, rambling conversation; sometimes distilled drop by drop, as if each word were the last he would ever speak; sometimes frightfully rapid. They formed a strange contrast, he and Emily--she in her calm taciturnity; he in his perturbed, unequal eloquence. Yet there were strong feelings at the heart of both: hers high, grand, ennobling; a battle fought, a struggle striven, a victory won over self:--his turbulent, agitating, oppressive; a fierce contest, a terrible strife, a losing battle against remorse and dismay. There was nothing harsh, nothing resisting in her demeanour. It was all done; the combat of the mind was over--the assent was given: she yielded herself to the knife: she was Jephthah's daughter in the mountains, the expiation of her father's folly, prepared or preparing for the sacrifice. She was cold. How could she be otherwise? But there was no harshness.

He, on the contrary, was strangely excited. Every time the door opened, he turned round with a start, and looked with straining eyes behind him. When the butler asked in a whisper of Mr. Tracy, what wines he should set upon the table after dinner--a question he had forgotten to put before--Sir William Winslow listened with all his ears to catch the sounds, as if they bore matter of life and death to him; and when Mr. Tracy answered aloud, "Some red hermitage and claret," he applied himself to talk again with exceeding vehemence.

The shadow of the dead haunted him. The gaunt spectre of Remorse was ever before his eyes.

Doubt too--terrible, vague, cloudy, indefinite doubt, the most oppressive of all states of mind, the most fearful form of Nemesis--hung over him like a brooding fury. "Was he really dead?" he asked himself; "Was the man slain?" He had fallen very heavily. That last blow had been followed by a sound strange and frightful: the cracking of solid bone mingled with a deathly groan. The eyes--he had seen them even in the dim twilight--had swum mortally in the sinking head. There had been a gasp which he did not like to think of, a dire clutching after breath of lungs that would receive it no more. What he would have given to creep quietly and silently down those wintry walls, and look at the spot where he had left him! to feel about with his hands in the darkness, and ascertain if the body was still there! But he sat chained to his seat in marble terror. He dared not turn his eyes towards the side where the deed had been done; he hardly dared to think of it, lest his thoughts unwittingly should find a tongue to bear witness against him. Yet he remembered that no one had seen the deed, as far as he knew; that he had met the object of his crime by accident, as he was returning to the house after a short walk in the grounds; that he had encountered no one by the way, either going or coming; that he had even gone out of the house by one of the conservatories, which led directly to a close and narrow walk, so that none could tell he had ever set his foot across the threshold. All these seemed comfortable reflections; but yet, strange to say, they brought neither comfort nor assurance. There is a consciousness that murder has its mysterious witnesses, which ever sits heavily on the felon's spirit. Why, he knew not, but he felt detected, even while he strove to prove to himself that detection was impossible. Oh, crime is a terrible thing!

Nevertheless the whole of dinner-time passed over quietly: there was nothing took place to cause alarm; and when Emily and Rose left the table, Mr. Tracy remarked, "Sir William, you do not seem well. If you would take my advice, you would send for our worthy surgeon, Mr. Woodyard, and adopt some precautionary measures. I think you must have overfatigued yourself."

"I had a hard day's work in London, yesterday," replied his guest, "running after those lawyers all day long; and I travelled all night. I did not sleep either, though I usually sleep as well in a carriage as a bed. Perhaps I am a little heated. My face is flushed, is it not?"

It was as pale as death.

By Mr. Tracy's persuasion the surgeon was sent for; and was soon in the house.

"Well, what is the matter with you?" he asked, as soon as the young baronet was pointed out as his patient; and, pressing his hand upon the pulse, he stared into Sir William's face, as if he wished to put him out of countenance.

"I do not know, doctor," replied the other. "I do not feel well--am fatigued--have got a head-ache--my temples throb; and my thoughts are somewhat confused."

"You have got something on your mind," said Sandy Woodyard, thinking of Emily, whom the old man loved dearly, and did not like to see sacrificed; "your conscience is not quiet, I should think--this is all mental."

"What do you mean, Sir?" asked Sir William Winslow, fiercely; his pride and his courage coming arm in arm to his aid the moment he was attacked in front.

"I mean just what I say," replied the surgeon, nothing daunted; "there is no sign in the pulse or the temperature of the skin, to show any corporeal ailment. It must be mental; and the best thing to prevent the mind acting too strongly on the body, will be to let you bleed. Bring me a basin and a good stout stick, flunky."

Sir William Winslow submitted willingly enough, though he hated the old man mortally, for words which touched rudely but unwittingly on the deep concealed wound. Sandy Woodyard made him grasp the stick tightly in his hand, pierced the arm, and as the blood spirted forth, indulged in a

grim smile, muttering. "Ay, black--damned black--black blood as ever I saw--very needful to draw this off--we must have a good drop!"

And a good drop he did certainly take; for, whether, from judging it really necessary, or from a slight touch of malice, he bled the baronet till he fainted. Sir William was carried to his room, and soon brought to consciousness again; but good Mr. Woodyard was not aware that, in one respect, at least, he had conferred a favour, by affording a fair excuse to his patient for not joining the party below any more that night. Even that was a relief; but it was not till the next morning that Sir William Winslow was aware of all he had escaped.

It was the custom at Northferry, for the under gardener, every night, before he retired to rest, to perambulate the grounds, and then to let loose some large dogs, serving as very necessary guards to a place which, by its open boundaries, and solitary situation, was much exposed to depredation. On the night in question, about ten o'clock, he sallied forth, when the moon was just rising, faint, dim, and watery, as she not unfrequently appears after one of those fine, warm, unseasonable, February days, with a few thin lines of gray and white cloud drawn across her sickly disk. She gave a good deal of light, however; and he took his way along the paths, rather enjoying the walk than feeling it a burthensome task. When he approached the confines of the grounds, on the field side, and came near the little temple so often mentioned, he saw, by the beams of the moon, something lying, partly on the path, partly off, like a large dog curled up to spring at him; and he paused in doubt and some alarm. The object remained quite still; and drawing slowly nearer, he found it was the body of a man. He touched the hand; it was deadly cold; and in terror and consternation he ran straight across the lawns back to the house. Servants and lights soon followed him down to the spot; and consternation and horror reached their height, when it was found, that the very person who a few hours before had been asking for the head-gardener, at the mansion, had been murdered in the grounds. The body was already quite stiff; but it was taken up and carried into one of the tool-houses, while some of the people ran back to give Mr. Tracy information of the event. The rest gathered round the corpse as it lay upon a gardener's bench; and many were the comments made--some ridiculous and almost laughable, some sad, some sublime in their simplicity.

"Well, it is a queer thing to see a dead man, any how," said one of the spectators, in a very low tone; "they all look so dull like."

"Poor man! I wonder what his wife is thinking about now," said another.

"Ah! he saw the sun go down that will rise again to-morrow as bright as ever, and he see it no more," was the observation of an old servant. "Well, my night will soon come too. God send it be not a bloody one, like his!"

Mr. Tracy was soon upon the spot; and walking up to the body, he took a lantern from the hands of one of the men and held it near the corpse, before he asked for any further information than he had received by the way.

"I have seen that face before," he said, after considering the countenance of the dead man for a moment. "It surely is Mr. Roberts, the steward and agent of Sir Harry Winslow. Yes, it certainly is his face. Here, come forward, Taylor, and bear witness what we find upon the body. This is a most strange and terrible affair. I feel almost sure that this is poor Roberts, and the fact of his being killed in these grounds is most extraordinary."

The man he spoke to was his butler, and advancing to his master's side, he held the lantern while Mr. Tracy examined the contents of the dead man's pockets. The first thing that was taken out seemed to settle the identity at once. It was a letter, which had been opened, addressed to "Richard Roberts, Esquire, Winslow Abbey;" and although Mr. Tracy proceeded to read it, in search of any information which could lead to a discovery of the murderer, it may be unnecessary to give the contents in this place, as they have been already laid before the reader. The epistle, in short, was that which Chandos had written the night before, after having quitted the park; but to Mr. Tracy's mind it conveyed no hint of the state of the case. He only saw, that Mr. Winslow had written somewhat sharply, and he thought, "The poor young man will regret this when he finds what a sad fate has overtaken an old and faithful servant of his family."

He handed over the letter, when he had read it, to the butler, with a pencil, saying, "Mark it;" and then proceeded with his examination. Nothing had been taken from the body. The watch was there; the purse was safe in the pocket, though it contained a good deal of money. The pocket-

book, with various papers, receipts, bills, promissory notes, memoranda, and letters, was also there. Even a pair of silver spectacles, in a morocco-leather case, had not been disturbed in the waistcoat pocket; and it became apparent that robbery had not been the object, or that the assassin had been disturbed before he had time to reap the fruits of his crime.

The next object of examination was the exact spot where the body had been found; and Mr. Tracy proceeded thither with the under-gardener, followed by all the rest. There were but few traces of feet, for the gravel walk was hard; but there was a quantity of blood where the poor man had lain; and while Mr. Tracy was looking narrowly at the place, one of the men cried, "Here is what did it, Sir;" and at the same time took up the Dutch hoe which was lying on the grass hard by. On holding the lantern to the tool, some blood and gray hair was found upon the blunt edge, and at one corner; and Mr. Tracy ordered it to be conveyed, exactly as it was, to the tool-house, whither, after having concluded his personal inspection of the spot, he returned himself. He there paused and meditated, and at length said to the under-gardener, "Go and call Mr. Acton hither."

In a few minutes, Chandos was in the tool-house. He was perfectly calm and grave, for he had had time to think and to determine upon his conduct.

"Here is a very terrible affair, Acton," said Mr. Tracy. "This poor gentleman has been murdered in the grounds, close to the fish-pond. He asked at the house for you, it seems; and was directed to seek you in the garden. Look at him close, and tell me who he is."

"I do not need to look nearer, Sir," replied Chandos, gazing firmly on the corpse; "it is the body of poor Mr. Roberts, the late Sir Harry Winslow's agent--as good a man as ever lived."

"Did he find you in the garden?" asked Mr. Tracy.

"No, Sir," replied Chandos; "I quitted the garden after speaking a few words to Miss Rose Tracy, by the basin, as she was feeding the gold-fish."

"That must have been very nearly at the time he was seeking you," said Mr. Tracy. "I saw him cross the lawn, and I saw my daughter return about

ten minutes afterwards. Did you quit the garden immediately after you saw her?"

"Immediately," answered Chandos.

"Do you know whose hoe that is?" inquired Mr. Tracy, pointing to the one that lay by the dead man.

"Mine, Sir," replied Chandos at once; "I left it leaning against the pillar." And, taking it up, he added, as he looked at it, "The murder must have been committed with this."

"Leave it there," said Mr. Tracy. "Pray what did Mr. Roberts want with you?"

"Of that I can have no notion, Sir," was the young gentleman's reply. "I did not even know that he had been seeking me, till you informed me of the fact just now." He saw that some suspicion was beginning to attach itself to him; but Chandos Winslow was not a man to suffer himself to feel personal alarm easily, and he remained so calm and self-possessed, that Mr. Tracy felt that some vague doubts which he had entertained had done him injustice.

"This affair," he said, at length "is as strange as terrible, and must be immediately inquired into further. Taylor, you remain here with one of the men till the constable can be brought up from the village. Then give the body and the hoe into his charge, and render him every assistance he may require; but nothing must be taken away or altered till the coroner, to whom I shall write immediately, arrives. Let everybody, too, avoid the spot where the crime was committed, in order that any traces which may perhaps be apparent to-morrow, though we have not been able to find them to-night, may not be effaced."

"It may perhaps be better, Sir," said Chandos, "to keep the door by my cottage locked. Then the men will not pass that way to their work. Here is my key; I can go round by the house. Sandes has also a key, which can be fetched from him, if you like."

"Do you know when Sandes left the garden?" asked Mr. Tracy quickly, as if a new thought had struck him.

"A little before myself," answered Chandos. "I met him and his boy in the walk going homeward."

"And are you certain this crime had not been committed before he went home?" was the next inquiry.

"Perfectly, Sir," said Chandos; "for I must have seen the body if it lay by the fish-pond, as you said just now. Sandes must have been out of the grounds, if he went straight forward, before I reached the basin."

"It is all very strange!" said Mr. Tracy; and, taking the key, he left the spot, followed close by Chandos, and some of the servants. No further conversation took place, however; and the young gentleman, with a feeling of deep gloom, returned to his cottage, leaving fate to direct the course of events which had commenced so terribly.

CHAPTER XXI.

It was half-past eleven when Mr. Tracy returned; and Emily and Rose had retired to rest. He had been called out of the room on business, and neither of the two girls had an idea that anything painful had occurred which might render their waiting his return either a duty or a consolation to their father. Emily's days were days of hard labour; of constant combat with feelings wearing and oppressive; and she first proposed to her sister to go to bed.

"I am weary, dear Rose," she said; "weary of the world, and of myself. Perhaps I may sleep, and that would be a blessing."

Rose hung upon her neck, and wept; but she answered not in words, for she dared not counsel, and she could not console.

Mr. Tracy sat and wrote for some time after his return--to the coroner, to some of the neighbouring magistrates; and then he, too, retired to rest, excited, but not too much for sleep.

On the following morning he rose about half-past eight o'clock, and rang his bell. It was one of the footmen who appeared, and informed him that the valet had been summoned to attend the coroner's inquest, which had been sitting since seven.

"It is strange they did not inform me," observed Mr. Tracy.

"Why, Sir, Taylor said he had all the papers," replied the man; "and that it was a pity to disturb you, as you had not seemed well of late."

"Is Sir William Winslow up?" inquired Mr. Tracy.

"No, Sir," answered the footman; "his windows are tight closed, and his man says he often sleeps till ten."

Mr. Tracy dressed himself, and went down stairs. He found Rose alone in the breakfast-room, making tea, after having inquired if he had risen.

"Emily does not feel well, papa," she said; "and I advised her to remain in bed. But what is this terrible news my maid tells me--a man found murdered in our grounds last night?"

"Too true, my love," answered Mr. Tracy. "The coroner's inquest, it seems, is now sitting; and I am not sure that your evidence may not be required, Rose. I know you have a strong mind, my dear child, and a true heart; and therefore I trust you will not let the unpleasantness of such a circumstance pain you too much."

"My evidence!" cried Rose--"mine! What can I tell them? I saw nothing of the matter, or you may be sure I should have told you at once."

"Of course," replied Mr. Tracy. "But it seems that Acton, the head-gardener, must have been in the grounds, and nearly at the spot, within a few minutes of the time when the crime was committed. He says that he spoke with you at the basin, and then quitted the grounds at once."

Rose now felt how dangerous a thing it is to have any concealment from a parent. She had gone on in perfect innocence with Chandos Winslow; she was accidentally a participator in his secret; she would have thought it base to betray it, even if she had not loved him; yet how much pain and embarrassment did the concealment in which she had shared, in which she must still share, cause her at that moment. She answered then with agitation and hesitation: "He spoke a few words to me at the basin as I was feeding my gold-fish, and left me as if to go from the garden. I was at the side of the pond after he quitted it. I am sure he left the garden directly."

Mr. Tracy marked his daughter's manner, and thought it strange; but he was not a very observant man; and his thoughts soon wandered away from that which he concluded was some merely accidental circumstance. "I must get some breakfast, and go down directly," he said: "so ring the bell, my love, and pour me out some tea. Where is the inquest sitting?" he continued, when the servant appeared.

"Down at the Cross-Keys, in the village," replied the man.

"Well, let me know when they come to view the body," rejoined Mr. Tracy; but the footman informed him, that the part of the proceedings which he mentioned had taken place a full hour before. Mr. Tracy then ordered his horse in half an hour; but the first post came in earlier that day than usual. Several letters engaged his attention first, and then a paragraph in the newspaper; so that the horse was kept walking up and down for fully twenty minutes. At the end of that time he mounted and rode away; but, before he had been gone a quarter of an hour, the butler, who had taken a cross-cut over the fields, entered the breakfast-room, as if looking for his master.

"Papa's gone down to attend the inquest, Taylor," said Rose, who had remained in deep thought at the table. "Tell me what has taken place?"

"Why, Ma'am, the inquest is all over," answered the butler; "and master will find them all gone."

"But what is the verdict, then?" inquired the young lady eagerly; "what have the jury discovered?"

"Why, I am sorry to say, Miss Rose," replied the man, who seemed to be made very unwillingly the bearer of bad tidings, "they have given a verdict of 'wilful murder' against Mr. Acton, our head-gardener."

"Impossible!" cried Rose, gasping for breath. "He could not be the murderer; for he quitted the garden while I myself stood by the basin."

"He came into it again, Miss Rose," said the butler in a sorrowful tone; "his feet were traced straight from the haw-haw, back to the very spot where the dead body was found. Some of his clothes were bloody, too, and those the very clothes he had on last night. The hoe too, with which the poor old man was killed was his; and nobody can deny it is all very suspicious: and so they have sent him off to the county gaol."

"Nonsense! nonsense!" cried Rose; "it was not, it could not be he;" and darting out of the breakfast-room, she entered the adjoining chamber, cast herself into a chair and burst into a violent fit of tears. Then rising suddenly, she threw open the glass doors and walked out into the grounds, as if she were half-crazed, without bonnet or shawl. On she went straight towards the basin where the fatal event had taken place, hurrying forward with a rapid pace, as if in hopes of discovering something which might exculpate her lover. She had passed through the first plantation, which lay within sight of the house, and was then going round by the walk which bordered a little second lawn, among the shrubberies, when she thought she heard a voice near, cry, "Hist! hist!" and turning round, she saw coming out between two of the stone-pines on the other side of the lawn, the gipsy-woman, Sally Stanley.

"Rose! Rose Tracy!" cried the woman; "hark to me, pretty lady; I have something to say to you."

"What is it?" cried Rose, advancing to meet her; "tell me, tell me quickly! I think I shall go mad."

"Amongst the trees, amongst the trees," said the woman, "where nobody can see us; though the gardener-people are all out of the way, revelling, as men always do, over the misfortunes of their fellow-creatures."

The day before, Rose would have been afraid to trust herself alone with that woman among the shrubberies; but anxiety for him she loved had extinguished all personal fear, and with a quick step she led the way into a dark, narrow walk, seldom trodden.

"What is it?" she asked, as soon as they were beneath the boughs; "what have you to tell me?"

"I saw him, as they were putting him into the chaise," said the old woman, with a low voice; "and the constable let me ask him, what was to become of my little boy. I knew what the answer would be well enough; but I thought it would give him the means of speaking a word with me."

"What did he say? what did he say?" cried Rose, totally forgetting in her eagerness how she was committing herself to a stranger, of not the most reputable class of society.

"He said," replied the woman, "that the boy would be taken care of by the General, and then, in a quick whisper, he bade me 'tell her who would be most interested in his fate' not to be alarmed; for he could clear himself in a moment, whenever he chose to speak."

"Thank God!" cried Rose Tracy; and, clasping her hands together, she burst into a flood of tears.

The woman stood and gazed at her with evident interest. "Ay," she said at length, "love's a pretty thing; but yet it breaks many a heart and turns many a brain. It turned mine once. But you'll marry him yet, pretty lady; I know it, and I have told you so."

Her words recalled Rose to herself; and the thought of how clearly she had exposed all the innermost feelings of her heart to that gipsy-woman, made the blood rise to her cheek till it glowed with crimson. Nevertheless, taking out her purse, she drew forth a sovereign, to reward her for the relief she had given; but the woman put it away with her hand, saying: "Not a penny--not a penny, from one that he loves and who loves him. I will bring you news of him from time to time. And don't you be afraid when you see the gipsies near you; there is not one of them will hurt you. And he will be proved innocent, depend upon it."

A thought--perhaps I ought to call it a suspicion--suddenly crossed the mind of Rose Tracy. "Could the gipsies," she asked herself, "have any share, or any knowledge, of the crime which had been committed?" Here was one of them now in the garden, when she had every reason to believe the gates were locked. Might not such have been the case with some of the men of the tribe on the preceding evening? They were a bold, reckless, lawless race; and any slight offence, any small temptation, might have led them, she thought, to commit such an act. Yet what was she to do? She was there alone with that strange woman; there might be others near at hand. She had no proofs; she had no legitimate cause even for imputing to her people so terrible a crime. She dared not do it; and yet to save Chandos Winslow, what would she not have done? A tremor came over her; and she continued for more than a minute gazing fixedly upon the dark, sun-burnt countenance before her, which, with all its beauty, had something wild and strange about the eyes.

"What is the matter?" asked the gipsy at length; "what do you fear?"

"Nothing, nothing," replied Rose. "But I would only say one word to you. Oh, if you know who has committed this crime! oh, if you can save an innocent man by revealing the name of the guilty, I adjure you, by all that is most sacred, to do so; I adjure you by the God that made us, by the Mediator who saved us, by your feelings as a woman, by your feelings as a mother, if you would not one day see your own child condemned for crimes he did not commit, speak now, if you can give the name of the real murderer."

"Poor thing!" answered the gipsey, "poor thing! you love him very terribly. But be assured, that if I knew who had done this deed I would tell it at once, even if there was no such person as Chandos Winslow upon earth. The murdered man was a good man, and kind--kind to me and my people, when there were few to be kind. But it will be found out. Murdered men die; but the murder dies not; and it hunts the doer of it to death. Murdered men are silent; but their blood cries out from the dust, and makes itself heard. Murdered men are still; but there is an arm stretched out to strike the murderer, which faileth not, no, and shall never fail!"

She spoke like one inspired, with her dark eyes flashing, her round, beautiful arm raised, and the extended finger trembling in the air; then suddenly turning away, she left Rose silent and overpowered.

CHAPTER XXII.

The three following days were days of terrible activity; but that was what was requisite to every one at Northferry--even for peace. There was only one who took no part in all that occupied the rest--Emily Tracy. She was totally inactive. She did nothing, spoke little, hardly seemed to think.

Sir William Winslow was all fire and haste. When the news was first communicated to him, that his agent, Mr. Roberts, had been murdered in the grounds of Northferry-house, his manner denoted a severe shock; and when it was added, that the head-gardener, one Acton, between whom and Mr. Roberts there was some unexplained connexion, had been committed for the murder, he seemed to rejoice almost with a fiendish sort of triumph. He declared he would spare no means to bring the fellow to justice--that he would pursue the rascal who had killed good old Roberts, as if he had slain a relation of his own. Then, however, he recollected what embarrassment and annoyance might take place, in regard to all the affairs that his steward had been conducting, just upon the eve of his marriage too; and he rode

over to Winslow Abbey, drove to Elmsly, paying the post-boys enormously to go quick. He went hither and thither like lightning; never stayed in any place more than an hour or two; was quick and hurried in his conversation, though sometimes lapsing into fits of intense thought. He drank a great deal of wine, too, at dinner, at supper, even in the morning; but it did not make him tipsy; and he transacted much business in the most rapid manner. Indeed, it was necessary that he should do so; for the third day after the committal of Chandos was the time appointed for the payment of the sums owed by Mr. Tracy, and for the signature of the marriage settlements. The morning of the fourth the marriage was to take place; and Sir William had a-thousand things to do before that event. However, all was done. The agreement for the sale of the Winslow Abbey estate finally signed, part of the purchase-money paid, and received; Mr. Tracy's pressing debt discharged; and the marriage settlements of Emily Tracy and Sir William Winslow marked with the signature of both. Emily's name was written in a fine, clear, distinct hand, every letter as straight and as firm as if it had been a specimen of penmanship. Sir William's, on the contrary, was hardly legible; each stroke running into the other, some big, and some small, with a break here and there, as if the pen, or the hand, had refused to perform its office.

Mr. Tracy was occupied all day, and the part of several nights, in the business of different kinds which had lately accumulated upon him. He had many letters to write, many preparations to make; and he made the many more, the unimportant important. He saw little of his children, except at their meals. Emily's eyes reproached him, and perhaps Rose's still more; for she felt deeply--terribly, for her sister. But Mr. Tracy tried hard to steel himself. He recollected all the conventional cant of "romantic girls," and of "love coming after marriage;" and of "those marriages being generally the happiest where reason was consulted rather than passion." But Mr. Tracy could not convince himself. He had lived too long out of the sphere of the great world for its cold sophistries to have much weight with him. He felt that he was destroying his daughter's happiness, if not affecting her health, and endangering her life; and the only tangible consolation he could apply to his own heart, was found in the reflection, that she must herself have shared in the ruin which her marriage with Sir William Winslow averted.

General Tracy was not at Northferry. Mr. Tracy had, with a cowardice not altogether singular, concealed from his brother the compact between Sir William and himself, till the old officer was in London; and had then written to tell him that Emily was engaged to the young baronet, and to be married immediately. Sheets of paper do not blush, which is a great relief to many who are doing weak, wicked, or foolish things. General Tracy had replied in a letter which Mr. Tracy had only read half through, and then burned, with a shaking hand; but as the day of the marriage approached, and he knew his brother would arrive before it, he became uneasy, irritable, listening for carriage-wheels, and evidently working his courage up for an encounter that he dreaded.

It was not till the day before that appointed for the marriage, however, that General Tracy arrived; and his carriage passed the gate about an hour before dinner. He found his brother, Sir William Winslow, and Rose, in the drawing-room; shook hands with the former and the latter, and bowed stiffly to the baronet. For five minutes he talked of ordinary subjects, mentioned the world of fashion, and the world of politics, talked of the mutations of stocks, and corn, and men's opinions; and then saying, "I have a good deal of news to give you, Arthur, after dinner; but it will keep till then," he rose, and left the room.

General Tracy proceeded not to his own chamber, however; but walked straight to that of Emily, and knocked at the door. The well-known step was heard by her within, and the voice of Miss Tracy instantly answered, "Come in." The maid, who was dressing her, left the room; and the moment she was gone Emily threw herself into her uncle's arms, and wept. "Oh, I am so glad to see you," she said.

"Calm yourself, dear Lily," said General Tracy, "and speak to me two or three words with your own truth and candour. Answer me first one question."

"Stay, my dear uncle," said Emily; "you first answer me one. I am sure you went to London to seek means of relieving my father. He has told me all; and therefore there need be no concealment. What have you done to assist him?"

"But little, my dear child," answered her uncle. "There is every probability, indeed, of many of these speculations rising in importance ere long; but at the present moment, the sale of all the shares would not produce a sufficient sum to meet even the first pressure. Nevertheless, dear Emily, that must not be the cause of your whole happiness for life being sacrificed. I have seen the principal parties concerned; they seem ready to receive an offer I have made them, after having my estate valued; and if, as I fear, this proposed marriage is repugnant to all your feelings, it must not take place."

"After having your estate valued," repeated Emily, in an abstracted tone; but then raising her head suddenly, she added, "my dear uncle, the marriage is not only proposed, but finally settled. I will not jilt any man. I will not ruin my uncle and my father. I will not retract my promise given. Thank you, thank you, dear uncle. Love your poor Emily ever; and your affection and my father's will be my reward."

Emily again cast herself into his arms to weep there; but General Tracy could make no impression, though he tried to shake her resolution. Her fate was fixed; her mind made up. She was not to be changed.

"What if I were to quarrel with, call him out, and shoot him?" thought General Tracy, as he retired from his niece's room to his own. "Why, it would be murder--that will not do." And, sad, angry, and discontented, he dressed, and went down to dinner. He was a gentleman, however; and he carefully avoided every subject which might lead him to show the irritation he felt. He did not, indeed, court conversation with Sir William Winslow; and his words, when any took place between them, were as brief as possible, but perfectly civil. Indeed, when he looked at him, and saw his pale cheek and haggard eye, he felt inclined to pity him. "That fellow is creating his own wretchedness, as well as that of the poor girl," he thought. "What a fool he must be! He sees she does not love--never will love him; and yet he persists. If he must *buy* an unwilling wife, why the devil does he not go to Constantinople?"

A moment or two after, however, anxious to turn his thoughts from the most painful subject they could rest upon, he addressed Mr. Tracy, saying--"By the way, Arthur, let me hear something more of this horrible event which you just mentioned in your last letter; but which is filling all the

London papers, with tales of blood. Is it true, that Acton has been taken up on suspicion?"

"Not only taken up, but committed upon the verdict of the coroner's jury," replied Mr. Tracy.

Sir William Winslow filled the tumbler that stood next to him with wine, and drank it off.

"The coroner's jury must be a pack of fools," said General Tracy. "Really, juries are becoming worse than a farce: a pest to the country. I have not seen a verdict for twenty years that did not bear the stamp of prejudice, falsehood, or idiotcy upon it. There is a regular hierarchy of fools in England, proceeding from the coroner's jury to the grand jury, assisted by all their officers, from the coroner to the chairman of the magistrates. Rose, my flower, you do not seem well. Take a glass of wine with me."

"I do not wonder she turns pale," said Mr. Tracy, "when you call up such a terrible subject again, Walter."

"Well, let us try something better," said the General. "How is Fleming going on? Has he got his house in order, yet? all the great rooms papered and painted?"

"He has been absent for ten days," said Mr. Tracy, who felt at his heart that his brother had not been more fortunate in his choice of a topic this time than before. "He is not expected back for a month."

"I am sorry for that," said General Tracy; "he is the most agreeable parson I ever met with--a gentleman--a man of sense, of feeling, and of talent. Such a man is a great resource in a neighbourhood like this."

Rose raised her eyes imploringly to her uncle's face, then turned them towards Emily, and the subject dropped.

With such a beginning, how could the evening pass?

The next morning, at the hour of nine, Mr. Tracy's carriage conveyed four people, each enduring their own peculiar sort of wretchedness to the parish-church of Northferry. Emily was--or seemed--the least agitated of the whole party.

Sir William Winslow was there before them; and, in a few minutes, he and his poor bride stood before the altar. She was deadly pale; but she shook not, she wept not. She made no responses; but the clerk did it for her; for he was so much accustomed to marrying, and giving in marriage, that he could not refrain from playing the part of bride or bridegroom, as the case might be, whenever he saw or thought the parties were incompetent to play it for themselves.

At length there came something which roused the unhappy girl from the stupor of her misery. The ring touched her finger, glided up it, making her his with its cold chilling clasp. It was over--the effort was complete--the struggle finished! the die cast! She was the wife of a man she detested! She felt it but for an instant. The next, she was lying like a corpse at her father's and her husband's feet--pale as monumental marble; and, to all appearance, as cold and lifeless, too.

They took her up, and carried her into the vestry; but nought they could do seemed to have any effect in restoring animation. Yet it was evident, that though the swoon was deathlike, it was not death; and Mr. Woodyard was sent for in haste. Sir William Winslow gazed on her with a dark brow and a chilled heart. He felt that she hated him: he knew that he had marred her young dreams of love and joy; that he had made life to her like her own fine frame as it lay there before him--a body without a spirit. A cloud came over him, and snow fell from the cloud upon the fierce animal fire of his breast. As he remained, with eyes intent, and fixed upon her, some one opened the vestry-door, and a voice asked, "Is Sir William Winslow here?"

He turned suddenly round, and after looking at the man who made the inquiry--a man like an ostler or a groom--he replied. "Yes. What do you want with me?"

"Please you, Sir William," said the man, advancing, and tendering a letter, "I was told to bring you this as hard as I could gallop from the town

of S----; and I have not been more than two hours from post to post. I was to deliver it wherever you might be."

The baronet took the letter, and as he gazed at the superscription, a contemptuous smile curled his lip. "That will do, my good fellow," he said, without opening it. "I know whom it comes from."

"Ye'd better read, Sir," said the man; "for the lawyer gentleman who gave it me, said it was matter of life and death."

"I don't think so," answered the baronet. But he broke the seal, nevertheless; and the moment his eye had run over the first lines, his countenance changed. He became, if possible, paler than her on whom he had just been gazing. He trembled in every limb. He could not at all restrain it; his whole frame shook.

"Good God! what is the matter now?" cried Mr. Tracy, looking up from his child. "What has happened, Sir William?"

"I must go," said the other wildly. "I must get over at once--I must leave you, Mr. Tracy---leave my bride--my wife. This, Acton--this--this--Heaven and earth, how shall I act?--what shall I do?--He--he whom I--he is my brother--he knows--he is--my brother."

He let the letter drop as he spoke; but instantly picked it up again, and grasped it tightly in his hand. Mr. Tracy and the General, greatly shocked, and feeling for the agitation that they witnessed, though they knew not all its causes, pressed him to go over to his brother at once, leaving Emily to their care.

The young clergyman who officiated for Mr. Fleming, ventured quietly to say--he was of a somewhat strict school--"The marriage cannot yet be considered as complete, Sir; and the ceremony had better be performed entirely again upon another day; for I have not yet joined their hands."

Sir William Winslow gave him a fierce, impatient look, hurried out of the vestry, threw himself into his carriage; and, amidst the wonder and

disappointment of the crowd of townsmen, ordered the post-boys to drive to S----.

A moment or two after, Mr. Woodyard came in. The surgeon was an old and dear friend; he was the first person who had held Emily in his arms when she came into the world; his love for her was almost paternal; and the sight of her in such a state, acting on his affection and his peculiar character, induced him in the very first instance to abuse everybody in the room in the most violent and outrageous manner. Her father, her uncle, even the curate and clerk had all some share of vituperation; but the moment the storm had blown over, he applied himself zealously to restore her to consciousness, and succeeded in about half-an-hour. As soon as she seemed capable of comprehending anything that was addressed to her, General Tracy bent down his head, saying, in a low voice, "He is gone, Lily--he is gone, and will not be back for some time."

It was a strange topic of consolation for a bride to hear that her bridegroom had left her; but yet, it afforded to Emily the only comfort she was capable of receiving. She looked round the circle, she saw none but friendly faces, and a faint smile came upon her beautiful lips. Rose pressed her hand tenderly, and in doing so her fingers touched the fatal ring. Without knowing well why--without pausing to consider--acting solely on impulse, Rose drew it gently off, without Emily being conscious of what her sister did. The moment it was done Rose was half frightened at her own act. But she recollected that the clergyman had said, the marriage was not complete, and she internally prayed to Heaven that it might never be rendered so.

A few minutes more, and Emily could sit up; but it was nearly an hour before Mr. Woodyard would suffer her to be removed to Northferry house. Once there, she returned immediately to her own room, with Rose; and an eager consultation followed between Mr. Tracy and his brother, in regard to the embarrassed circumstances in which the family were placed. General Tracy had much consideration for his brother--I might almost call it tenderness. He felt that he wanted vigour of character and power of mind; and he had all his life been accustomed to spare him, from motives of affection and a certain sense of dignity, which always prevented him from

triumphing over weakness. In the present case he recurred not at all to the past; but, with his usual cutting decision, he expressed his opinion upon the present and the future.

"The marriage is not complete, Arthur," he said; "and I thank God that it is not--hear me out, my good brother. The clergyman himself has pronounced, that the ceremonies required by the church have not been performed, and we are bound, as Emily's relations, to look upon it as no marriage at all."

"Then the whole will have to be performed over again," said Mr. Tracy; "which will be terribly distressing to the poor girl's mind."

"I never yet heard," answered General Tracy, dryly, "that a man who is going to be hanged objected to a respite, though the hanging might come after all. Emily will have time for thought, aye, and time for decision."

"I do not see that there can be any doubt to decide," said Mr. Tracy; "although, as you say, the marriage may not be complete, yet it has proceeded sufficiently far to be a bar to her union with any one else."

"I dare say she would rather never marry at all," replied the General, "than marry a man she hates. But, at all events, my dear brother, we can have lawyers' opinions on that point. For my own part, I thank God for any obstacle."

"But you do not consider, Walter, the whole of this large sum of money which he advanced in my greatest need, must be repaid immediately, even if we hesitate."

"Damn the money!" cried General Tracy, his impatience getting the better of him. "Did I not write you word, Arthur, that the people who hold the most pressing claims were willing to receive my property in pledge for the payment?"

"But it was then too late," replied Mr. Tracy; "the whole matter was arranged; my word given, and Emily's."

"The whole matter is now disarranged," answered General Tracy; "and if Emily's reluctance, which is self-evident, continues unabated, I tell you Arthur, it is your duty as her father to sell your estates at any loss, to do anything, in short, rather than sacrifice your child. However, I am determined that if there be a possibility of rescuing her, I will do it. The point of law shall be ascertained immediately; and I would rather fight Sir William Winslow a dozen times over, than see our poor Lily as I saw this morning. If I shoot him the matter is settled, and if he shoots me, I am sure enough that she will never have anything to say to the man who killed her uncle."

"Nonsense, nonsense," cried Mr. Tracy, "do not talk of such extreme measures."

"Why not?" demanded the General, "I have seen you going to shoot a much honester man than he is, Arthur, merely to deliver yourself from sudden embarrassment. Do you think I would not do the same, or be shot myself, to deliver that sweet girl from the misery of a whole life?"

Mr. Tracy coloured highly, but did not reply. The consultation, however, as so many consultations do in the world, proved perfectly in vain. The day passed over without the return of Sir William Winslow. General Tracy explained to Emily, first, what had so strangely and unpleasantly called away Sir William Winslow, and then that her marriage was not complete, that he and her father had determined that the ceremony, if performed again at all, should not be renewed for some weeks; and that in the meantime he would take the opinion of some eminent lawyers, as to how far the engagement entered into was actually binding. He asked her for no decision on her own part. He hardly even hinted that she might be called upon to decide; and Emily gladly seized the present relief, and cast the burden of thought upon the future. More than once she looked down at her hand, however, and at length said, in a low voice, "Surely the ring was upon my finger, and now it is gone. Could it be a dream?" General Tracy could give her no explanation, and therefore he held his tongue; but he had the satisfaction of seeing that his niece's spirits in some degree returned during the evening, that from time to time she was even cheerful, although she

often fell into deep fits of thought; and that on the whole, her mind was relieved by delay.

On the following morning the post from S----, brought a letter for Mr. Tracy, in Sir William Winslow's hand, the contents of which may tend to shorten explanations. It was very brief and to the following effect:--

"My dear Sir,

"I write with a mind terribly agitated. The horrible situation in which my brother is placed, the doubts I entertain of the result of his trial, the disgrace and shame of such a proceeding altogether, quite overwhelm me; and I feel myself unable to face the world.--I hardly know what I write or what I am doing.--I have determined to quit England till the first scandal of this has passed by. My love for Emily is unabated--will never abate; but I dare not--cannot face all this. I will write again when I can calm my mind, and will return as soon as anything is sure regarding my brother's fate--at present I am half-distracted; but nevertheless,

"Yours ever,

"WILLIAM WINSLOW."

Emily was not down, and Mr. Tracy handed the letter to his brother, saying, "Some of our difficulties are removed for a time, Walter."

"A very strange epistle, indeed," replied General Tracy, when he had read it. "I think he is somewhat more than *half* distracted."

"May I see it?" asked Rose; and her uncle gave her the letter. She read it attentively once--then read it again; and then she thrust it from her, with a shudder.

"What is the matter, Flower?" asked her uncle, as he marked her emotion; but Rose held down her head, with her eyes fixed upon the pattern of the table-cloth, and replied, "Nothing, my dear uncle; but that I do not think that letter is true. It does not seem to me sincere. I think there is something more under it."

"Rose, you are prejudiced," said Mr. Tracy; for weak people are always fond of being very candid. "You do not like Sir William Winslow, and you judge harshly of him. His faults were anything but those of a man wanting in sincerity--he was too vehement, too passionate for that. What makes you think that there is any thing untrue in his letter?"

"Because he never showed the least feeling of any kind for his brother," said Rose. "I do not think all this agitation, all this distraction is natural, unless he is moved by stronger and more personal feelings than either regard for his brother, or fears of disgrace through him. But you must not ask me, my dear father, what I think, what I feel, or why. I have often heard you say, that women have more instinct than reason. God grant that my instinct be wrong in the present instance."

"Rose, Rose," cried her father, "this is really too much, my love. Be more generous; be more candid!"

"Well, papa," she answered, "I may be wrong, very wrong; but it would be a great satisfaction to me to know, if Sir William Winslow ever saw his brother yesterday--if he has taken any measures, or provided any means for his defence."

Rose, to her own horror and dismay, had been suddenly led very near the truth, by the doubts created in her mind by the wild and rambling tone of Sir William Winslow's letter. Two or three facts presented themselves to her memory in an instant, which, if she had not quite forgotten them, had not connected themselves before in her thoughts with the crime which had been committed. She now remembered that while speaking with Chandos by the side of the pond, she had heard the voice of his brother coming towards the very spot where the deed was done; she remembered that there was another voice also speaking in tones not familiar to her; and she also recollected that the sound of both was loud and angry. She dared not express what she

thought, without further consideration; she feared to cast an unjust doubt upon a man who might be innocent; but she determined, without the slightest consideration of how it might affect herself, to state all that she knew, if necessary, to Chandos Winslow's justification.

"You shall have your doubts solved this very day, my Flower;" her uncle replied to her last words; "for I will go over to S----, and see our poor prisoner. I like the lad much; I am quite sure he is innocent; and I think with you, that this letter is not written in a natural tone. As soon as I have seen dear Lily, I will have horses, and go."

General Tracy did not fail to execute the intention thus expressed; but it may be as well to state at once, what had been the course of Sir William Winslow, without waiting for the old officer's report. On quitting Northferry, the baronet sunk back in his carriage, and gazed forth from the windows with a straining eye, full of horror and dismay, for nearly a quarter of an hour. Then, with a start, he raised himself, and looked at the letter which he held crumpled up in his hand. He smoothed it out, he tried to read it; but his hand shook so fearfully, that he could with difficulty make out the characters. "You had better quit England as soon as possible!" he repeated. "He is right--he is right!" Then turning to the page, he read--"I will not betray you--but facts may be elicited at the trial of a dangerous kind." "Not betray me," continued the baronet, commenting upon what he read; "to be sure he will to save his own life--I will not trust him--no, no! He is right. I will quit England. Shall I see him first? It might be better, perhaps--No, I cannot, I will not--I must try and be calm, however. People will suspect something. What shall I do with this?" and he looked at the letter. "I wonder how he got them to bring it without breaking the seal?--By the lawyer, I dare say--I must destroy it."

He proceeded to do so, tearing it into very minute pieces. But then he feared that they might be found, and put together again; and some he strewed upon the road from the carriage window, letting piece by piece blow away, each at a great distance from the other.

Some he let fall into the bottom of the carriage, taking care that they should be disunited from the rest, and that they bore nought but the most ordinary words without the context. Some he actually ate. Do not let the

reader think it improbable or exaggerated. He actually ate them. When he arrived at the inn at S----, he did not either walk or drive to the prison; but he ordered horses on to the sea-coast, and then entering the hotel, wrote the short note we have already read to Mr. Tracy. In ten hours his feet were no longer upon British ground.

CHAPTER XXIII.

It was in a cell of the prison of S----. The prison had not been modernized. It was not a red brick building picked out with white: a gaol in a harlequin's jacket. Nor was it a snug, free-stone, gentlemanly house, with big fetters and a figure of Justice over the door, looking half asleep under her bandage, and ready to drop both scales and sword. It was an old-fashioned English prison--not a bit the better for that--heavy, massive, soiled with the smoke of manufactories, and turning its black unmeaning shoulder to the street, with one window looking out, like the eye of Polyphemus, over the huge mouth-like door, where so many victims went in. The interior accommodation corresponded well with the unpromising exterior. Nobody could say he had been deceived into high expectations by the outside, when he found himself ushered into a cell of nine feet by six, with a grated window high up, a chair, a table, and a bed. It was just what the bricks in the wall foretold. There sat Chandos Winslow, by the table, with fetters on his legs. The magistrates were very fond of fetters. They fettered everybody and everything--even their own intellects--and they instantly fettered Chandos Winslow, though the utility of the thing was not apparent, seeing that he could sooner have eaten the prison than got out of it; and the injustice of the act was self-evident, for he had neither committed nor been found guilty of any crime "worthy of death or bonds."

Chandos was not alone, however. On the other side of the table sat a gentleman of a very prepossessing countenance, dressed in black, with exceedingly white linen. He was neither tall nor handsome, but his figure

though slight was well formed, and his face, though certainly plain, was sparkling with high intelligence. There was a mildness in it too, which chastened the vivacity; and an earnestness which gave depth to the whole. You have seen him, reader, have you not, either moving the hearts of the jury, and shaking the opinions of the judge; or pouring forth in the Commons those rich, clear streams of convincing eloquence, which carried heart and mind away with them. He is gone! The brief bright career is finished! The grave holds him! Peace to his ashes! honour to his memory!

And now he sat opposite Chandos Winslow gazing in his face with those large earnest eyes of his, and addressing to him a solemn and impressive exhortation. He had known him intimately for some years; indeed, they were distantly connected, for Lady Winslow had been a Devonshire woman; and the eminent barrister had come down at once, at a great sacrifice, to make himself master of his friend's case in person, more completely than he could have done, had he trusted alone to briefs and consultations.

"My dear Chandos," he said, "the very first thing between us must be perfect frankness. I have got rid of your solicitor, because he might be an impediment; but I must know exactly how you stand, in every respect, in order that I may defend you to the best of my ability."

"Of course, F----." said Chandos, "you do not suppose me guilty of the murder of poor Roberts."

"Guilty of his murder, I certainly do not," answered the barrister; "but a man may produce death without being guilty of murder. Now you are all a very vehement family. Your father was hasty, your brother is still more so; and you are yourself not without a tinge of the family infirmity. You are by no means an unlikely man to strike a rash blow in a moment of passion; but all I say is, you must give me a clear view of all the circumstances, not for your own sake alone, but for mine; for you must recollect that a lawyer, if he be worthy of his calling--which is a high one whatever men may say--considers his own honour as involved in the manner in which he conducts a cause; and he never can do so well, without full and candid explanations on the part of his client."

There are various modes of smoothing the way to confession, and the great lawyer was trying one of them.

"All you say is very true," answered Chandos Winslow, "and had I any acknowledgment to make, I assure you I would do it at once; but I give you my word of honour as a gentleman, I declare by everything I hold most sacred, that I had as much to do with this crime as you have."

"Well, I must believe you," replied the barrister; "I am sure you would not deceive me in such a case, and with such asseverations. But we must look at the case as it stands;" and he took some written papers and a notebook out of his pocket. "I have read the evidence as far as it goes," he continued, "as I came down; and I am bound to inform you, Chandos, that the case looks very serious. I find, first, that there was some dispute between you and your father's late steward, proved by a letter found upon his person. This may be a trifle; but stress may be laid upon it, and it may be magnified by other circumstances into a fact of great importance. Secondly: it appears that he came over to seek you at Northferry House, and went out into the gardens in search of you. Thirdly: I perceive that it is established beyond all doubt, that you were at, or very near the spot where the event took place, at the time of its occurrence. A man named Sandes saw you going in that direction, as did also his nephew. They vary as to the time, I see: one says, it was not three minutes before five; the other, five or ten minutes. Something may be made out of that. Fourthly: it appears from the testimony of these two men, that you had a Dutch hoe in your hand at the time they met you. Fifthly: that a similar implement was found near the body, the edge being covered with blood and gray hair. Sixthly: the surgeon pronounces the wound which produced death to have been inflicted by such an instrument. And seventhly: that the hoe found belonged to you. Moreover, it is shown, that a few minutes after five, you returned to your cottage in great agitation, washed your hands, and threw away the water yourself. Nevertheless, some large marks of blood are found on the dress which you wore that evening; and it is at the same time shown, that though you might have quitted the garden without meeting Mr. Roberts, as you assert, yet you must have passed to and fro from the hedge to the very spot where the body lay, for there were traces exactly fitting your shoe both ways, and one of the footprints was marked with blood, as if you had

stepped in the pool which lay round the poor man's head when he was found."

Chandos listened with sad and serious attention till his friend paused, and then replied: "It is certainly, as you say, a case of heavy suspicion; and, what is more, my dear F----, I do not know that I can do anything to remove it."

The barrister looked very grave. "My dear Chandos," he said, "something must be done. You must give some account of your proceedings--you must make some statement--or you are inevitably lost. It is rare in instances such as this, where circumstantial evidence is all which judge or jury have to guide them, that so strong and unbroken a train is to be found against an accused person. In Heaven's name! say something--tell me something."

"To you, I will," answered Chandos; "but it is upon one condition alone, namely, that you give me your word of honour, not to use in my defence any of the facts I am going to state, without my permission."

"It is a strange request; and I cannot conceive the motives," replied the other; "but as you have it in your own power to grant or withhold your confidence, I must accede, as your friend. Were I merely your counsel, I would refuse."

"Well then, on that condition, I will tell you all that occurred on that night, with the exception of one single fact," said Chandos; "and you will see that I could break to atoms this chain of circumstantial evidence in a moment, if I thought fit. But I do not. Some of the facts may be useful, perhaps, as you will turn them, and some I shall not object to have used in my defence; but others must remain for ever between your breast and mine. I was in the garden, then, when Roberts came to seek me. What he wanted, I do not know. I was close to the spot where he was afterwards found murdered, when he must have been in the walk leading thither, and not a hundred yards from it. I had laid the hoe, in a sloping direction, against one of the pillars of a little temple, covering a fish-pond, and was standing by the pond, talking to Miss Rose Tracy, when--"

"Stay, stay!" cried the barrister. "Did Miss Tracy know who you really are?"

"Rose did; not Emily," answered Chandos; "we had met before; and she has known me all along."

"Ah! then the strange whim is accounted for," said the other with a smile.

"Not quite," replied Chandos; "but I do not mean to conceal from you that I love her. However, I was talking with her by the fish-pond, when we suddenly heard the voices of persons coming quickly towards us; for poor Roberts must have met another person in the grounds, after inquiring for me at the house. Rose recognized one of the voices; I both: and, as I had the strongest reasons for not wishing to be found there by one of the persons who approached--"

"Mr. Tracy?" asked the barrister.

"No," answered Chandos, in a decided tone; "quite another person. But as I did not choose him to find me there, while Miss Tracy made her escape up one of the paths, I ran straight to the hedge, leapt it, and stood in the ditch of the haw-haw for some time, concealed by the hedge. While there, Roberts and the other person approached. They were evidently in high dispute--indeed, they never agreed; but now, it would seem, Roberts lost all respect; and when they were just opposite the fish-pond and the little temple, the other person struck him a blow with his fist. Then, perceiving the hoe, he snatched it up, and hit him with it, twice, upon the head. I got over the hedge directly, resolved to interfere, though I knew I should be recognized at once; but before I could make my way over, poor Roberts lay dead upon the ground, and the other person, hearing, and perhaps seeing some one coming, had fled."

"Your brother!" said the barrister, in a tone of full conviction.

"Not even to you, my dear friend, will I say who that person was," replied Chandos. "Suffice it that I raised poor Roberts from the ground, covered my hands and coat with blood, and perhaps my feet also. I soon

found that life was quite extinct; and, in horror and anguish, which I will not trouble you with describing, I laid the body down again, and returned to my cottage, in the hope of escaping all question as to the perpetrator of the crime. At first, I never thought that suspicion might attach to myself; but when I began to look at the matter more closely, I saw the danger in which I stood. I then considered my course; and I made up my mind never, under any circumstances, to shield myself by accusing the person really criminal. You must, therefore, according to your promise, let me know precisely what line of defence you are inclined to adopt; for I will not consent to anything being done by me or for me to point suspicion against another."

The barrister fell into deep thought, and for many minutes he uttered not a word. He was arranging all the facts and circumstances with that wonderful precision which, when he pleased, rendered the most dark and intricate subject as clear as noon-light. "Your position, my dear Winslow," he said at length, "is indeed a very painful and very difficult one; but I must exhort you, as a man of honour, and a respecter of the laws of your country, not to let any personal feelings impede the course of justice."

Chandos waved his hand. "There is no law," he said, "which could require me to denounce the guilty in this instance."

"Oh yes, there is!" replied his friend: "no tie should throw a shield over a murderer. But I can understand your feelings, and respect them. However, your own life must not be risked; and it is now for me to consider how, if I hold my promise to you, I can frame a reasonable and legitimate defence. If you simply plead 'Not guilty,' and give no account of yourself which may break through the chain of evidence against you, there is not a panel in all England that will not condemn you. If you state openly what you saw and heard, there may still be great doubts and difficulties to contend with: the probability of your having killed your father's steward will seem greater to a jury as the case stands at present, than that your brother did so."

"Good God! why?" demanded Chandos.

"Because, in your case," answered the barrister, "a letter was found upon the dead man, showing that some irritation of feeling had taken place between you; and in his case there does not appear at present any

reasonable motive for the act. As far as I see things at present, then, I believe that the best course will be to follow the line you would yourself desire--to leave the matter vague; to let suspicion float generally of the crime having been committed by another without giving it a particular direction."

"But how can that be done?" asked Chandos, in amazement.

"Very easily," replied the barrister, "if your fair Rose be willing to give her evidence, and have sense enough to give it in a particular manner. If she will but swear that while talking with you near the fountain or fish-pond, she heard the voices of two persons approaching, and that those voices seemed to be speaking in angry tones, it will create a doubt in the minds of the jury of which you will have the benefit. She must stop there, however, and not enter into particulars. Nor must you, in whatever defence we frame for you--which will require much consideration; for the blood on your clothes and hands must be accounted for as well as many other circumstances--nor must we, I say, unless with some corroborative proof, let you cast the charge upon your brother; for it unfortunately happens that you have long been upon bad terms with him; that your father's will has added other causes of family dissension between you; and that you are next heir to his property. Under these circumstances, if you were to accuse him when you are yourself accused, without being able to bring very strong corroboration, and to show some reasonable cause, you would only create a prejudice against yourself, which would inevitably destroy you. I will think over it all; but as far as I see at present, we may very well say, that of the two voices which you heard as well as Miss Tracy, you recognized one as that of Mr. Roberts; that not wishing to be recognized before a third person, you had sprung over the hedge, which perhaps Miss Tracy can confirm; and that from the other side of the hedge you saw a blow given on the head to the unfortunate victim, by a man who fled immediately. Luckily, not being subject yourself to cross-examination, there will be no opportunity of asking you, if you knew the person of the assassin. The want of explanation on this point will certainly be an omission which the counsel for the prosecution will remark upon; and therefore we must make the whole statement as brief and laconic as possible, leaving out even some other facts of moment, in order that this may not stand alone. But we must notice

particularly your having returned and raised the dead body. The difficulty will be to account for your not giving immediate information; and that will be very hard to get over. I think I can manage it, perhaps, by some bold figure or daring appeal to the credulity of the jury. All, however, will depend upon Miss Tracy; and however irregular the proceeding may be, her I must see and converse with. I go to town to-night; to-morrow and the next day I am engaged; but I will see her on Saturday; for I suppose the trial will come on before the end of the next week. The calendar at--is light; so that we shall have the judges here very soon."

He ceased speaking. Chandos did not reply, and both sat in silence for several minutes.

The lawyer saw that there was a great and terrible probability that the course he proposed to pursue--the only one open to him--would not be successful. A sort of intuitive feeling that it was a desperate game, came upon him. There was a want of confidence in the arrangement; a want of trust in his own powers to carry it out successfully, which oppressed him. The truth was, it was what may be termed a mixed case. He was certain of the innocence of his client, yet he was obliged to pursue as tortuous a course as if his client had been guilty. The combination perplexed him. Could he have met the charge with a bold and open defence, with no concealment, with no reserve, he would have found no difficulty. Had he only had to make the best of a bad case by legal skill, he might have disliked the task, without any apprehensions of the result. But now to defend a just cause insincerely; to prove the innocence of his friend, without showing the guilt of that friend's brother; to keep back portions of the truth, when the whole truth, if it could be proved, was Chandos Winslow's best defence, puzzled and cowed him.

Chandos was filled with very different feelings; and I much doubt whether I shall be able to convey to the reader any adequate idea of his sensations at that moment. A sort of despair had come over him--a self-abandonment--a loss of the bright hopes and strong aspirations which had lately supported him--a paralysation of some of the great energies of his nature; while others--the powers of passive endurance--seemed strengthened and acuminated. He was disinclined to struggle further with

fate. Fortune had proved so adverse, whichever way he turned, that he hoped not for her favour; and he was unwilling for a bare chance to expose her he loved to all the pain and grief of a public examination in a court of justice; to the badgering of rude second-class lawyers; and, perhaps, to insinuations which he would rather have died himself than have brought upon her head.

After a long silence, then, he tried to explain his feelings to his companion; said he would rather not subject Rose to such agitation and distress; that he was ready to rest upon his own innocence, and to endure the worst, if that did not avail him.

But the barrister shook his head. "Not so, Chandos," he said, rising and taking his hat. "I will see Miss Tracy. I will ascertain her own views. Afterwards, I will frame your defence as best I can, upon the grounds laid down. But mark me, my good friend, I have a duty to God and my own conscience to perform; and if I should fail of convincing the jury of your innocence, I will tell the whole to the advisers of her majesty."

"But you have promised--you have pledged your honour!" cried Chandos.

The barrister wrung his hand hard. "Remind me of that afterwards," he said, "and I will prove my confidence in your innocence by fighting you." Without waiting for a word of reply, he retired.

CHAPTER XXIV.

The lock of the door grated again, within half-an-hour of the time when his friendly lawyer left Chandos Winslow. It had a harsh sound to his ear, that heavy lock, whether it opened to admit or give exit to a visitor. It must always be so with a prisoner; for though he may long to see a friendly face, though his heart may yearn for the dear embrace and the look of love, yet there are always sad drawbacks in the anguish, and regret, and fear of those who come, which all seem to speak out in that rough grating sound.

"General Tracy is here, Mr. Winslow," said the turnkey, putting in his head, "with a magistrate's order to see you, if you like him to come in."

"By all means," answered the captive; "I shall be happy to see him;" and in a minute after the old officer was in the cell.

He advanced straight towards Chandos as an old friend, and shook him warmly by the hand; "Well, Mr. Gardener," he said, with a forced laugh, for his heart was sad, though he sought to be cheerful, "see what are the consequences of a whim; but I trust they are not likely to be long as well as heavy--though disagreeable they must be."

"No one can tell the result, my dear Sir," answered Chandos. "I feel deeply grateful for your kindness in coming over to see me; but I can assure you I have the cord and the gibbet before my eyes as the very probable termination of what you call a whim, but which I cannot help thinking may deserve a better name."

"The cord and the gibbet!" exclaimed General Tracy; "nonsense! I for one feel certain of your innocence; and I trust that the time of judicial murders is past."

"Judicial, but not juri-dical, if I may make a sorry jest in sorry circumstances," answered Chandos. "Do you think, General, that there are no innocent men hanged in England even in the present day?"

"God forbid that I should be such a fool," replied General Tracy. "Juries have now-a-days a great leaning to the side of mercy: they hang very few men comparatively, but it is always the wrong men. So far I agree with you—your innocence is decidedly against you; but still let us hope that if the case is very glaring the judge will recommend you to mercy. But, as you say, these are sad, bitter jests, my young friend. All that I see before me, around me, is painful, and I must be serious. Our method of treating prisoners before trial is a disgrace to a civilized age and a civilized nation. We have, in the first place, no regular law to rule the whole system. We have a regular principle which the law recognises, but which it breaks from the very beginning. 'Every man is to be considered innocent till he is found guilty,' says the law; but, whatever he is considered, he is treated as guilty of something, till he is found innocent of the charge on which he is committed. Every bench of magistrates varies its doctrine as it thinks best; but they all agree in taking measures for a prisoner's safe custody which the object does not require or justify, and in punishing him for being accused, before it is ascertained whether he is criminal or not. The very deprivation of liberty is an injustice towards an innocent man, for which the country that requires it should make compensation the moment he is acquitted; and every aggravation of that great hardship, inflicted by one or more magistrates, ought to be punishable as a misdemeanour. Here I had the greatest possible difficulty in getting an order to see you, and till that order was obtained the prison doors were shut against me. What an aggravation is this of the loss of liberty! Not only are you debarred the free use of your limbs, of your ability, of your will; but you are deprived of the comfort of sympathy, of the words of friendship, and affection, of the very sight of loved faces and familiar tones. Better far, as has been practised in several nations, to shut you up in a cage and let all your friends, if they would, come and speak to you through the bars."

"I fear," answered Chandos, "that the state of society requires a great many safeguards, which inflict innumerable individual hardships. To prevent a prisoner's escape, to prevent his suborning testimony, and

arranging a factitious tale with those without, may justify many precautions."

"Does society take as much pains to prevent the subornation of evidence against him?" asked General Tracy; "does it take pains to prevent or punish the light and wanton, or the ignorant and stupid committal of an honest man to the same infliction of imprisonment and privation which is assigned by the law to a convicted rogue. No, no, Chandos Winslow, it does not. Society is full of evil conventionalities, and the cases of individual hardship are so numerous, that I much doubt whether the benefits of society in its present state compensate for the evils. Nor is this all, my good friend: its operations are all iniquitous--iniquitous in their benefits as well as in their wrongs. One man is as unjustly exalted as another is abased, with a few splendid exceptions, just sufficient to prove the general rule. Society is, in fact, the concentration of the whole world's selfishness. But one sort, even of conventional virtue, is successful at any time, and it is extolled beyond all praise, rewarded beyond all discrimination; but one class of vices is punished, and it is persecuted rather than chastised. The very charge of one of the proscribed sins is sufficient to entail upon a man a punishment fit for a heinous offence, and in every other sort of wickedness, a sinner within convention may revel at his will."

"Nay, you are too severe, General," replied Chandos; "I suffer; but yet I do not think that society inflicts more hardships upon individuals than is perhaps inevitable."

"You say so because you have been accustomed to look at these things under one aspect alone," answered General Tracy. "Now, think how many committals take place in the course of the year in proportion to the convictions. Those can easily be ascertained; for the reports are published. Then, again, consider how many of the innocent are condemned, and you will find that an amount of punishment has been inflicted upon people who do not deserve it, which is more than should be necessary to chastise proved crime in any well organized state of society for a population of double the extent of that of Great Britain."

"But you assume," rejoined Chandos, "that all who are not convicted are innocent, which perhaps may not be exactly the case."

"I assume what the rule of society justifies, and no more," replied General Tracy. "Every man must be considered innocent till he is proved guilty."

"Besides," said the prisoner, "I hope that few of the innocent are really condemned, even if many of the guilty do not escape."

"Multitudes are condemned every day," replied his visitor. "I saw a woman condemned some time ago, a woman in a high rank of life, for stealing in a shop. She had taken up something off a counter, and carried it away with her. It was in vain that her habits, her station, her previous character, her fortune, the very money in her purse at the moment, were brought forward to prove the improbability of her filching a toy worth half a crown; the jury condemned her as a lady thief, and probably would have been hooted had they not done so. And yet the very same accident which sent her into a court of justice, occurred to me not ten days ago in London. I went into an inn where I am well known, with my mind full of anxious thoughts, and sent up to see if a gentleman I wished to speak with was at home, while I remained in the coffee-room. I had an umbrella under my arm. There was another lying on the table near which I stood. I found that the person I asked for was out; and, without thought, I took up the second umbrella, and walked away with it. The waiter did not remark what I was doing, and I had got to the end of two streets, when, to my horror and consternation, I found that I had one umbrella in my hand and another under my arm. It is a fact, I can assure you. I carried the umbrella back instantly, and found the whole house being hunted for it. 'Remember, my good friend,' I said to the waiter, 'if ever you are on a jury where no sufficient motive can be assigned for an offence, that it is well to doubt before you condemn.'"

"And what did he reply?" asked Chandos.

"'Very well, Sir.--Number six ringing his bell!'" said the old officer; "and if the next day he had been on a jury with a lady-thief case, he would have found the prisoner 'guilty,' and forgotten the umbrella."

"I am afraid, then," said Chandos, thoughtfully, "there is very little chance of my being acquitted."

"That does not exactly follow," replied General Tracy. "But you bring me back to the subject from which I have wandered wide. I trust there is no chance of your being found guilty; for I feel perfectly convinced of your innocence myself. You could have no motive for killing your brother's steward."

"Who was always attached to me from my youth," added Chandos; "and for whom I ever felt a sincere regard and affection. I wrote him a letter, indeed, in somewhat cold and formal terms, in regard to his having opened the drawers in some rooms, the whole contents of which were left by my father to myself without any reservation; but I did so because I thought that he had made the examination of which I complained by the orders of another. I also wished to render the letter such as he could show, in case of need, as a demand on my part, that whatever documents were found in those rooms should be safely preserved for me. This is the only matter in which human ingenuity can find the shadow of motive for such an act as I am charged with."

"That will not prove basis sufficient for their accusation," said General Tracy; "and doubtless, my young friend, if you are well defended, the whole case against you will fall to the ground. But let me ask you, if you have taken any means to ensure that good counsel shall be retained on your behalf."

"The best in the land," answered Chandos Winslow: "Sir ****, left me a short time before you were kind enough to come to see me."

"That was, of course, at your brother's request," said the old officer.

"Not in the least," replied the prisoner, sternly; "My brother and myself, General Tracy, have unfortunately not been friends for some years, and are less likely to be so now than ever. Sir ****, on the contrary, is an old and dear friend of mine; and the moment he heard of my situation from the worthy solicitor in this town, who wrote to him at my request, he came down to see me himself. My cause could not be in better hands."

"Assuredly," answered General Tracy. "But am I then to understand that your brother has taken no measures for your defence? that he has not been

to see you?"

"That he has taken no steps I cannot say, for I do not know," was Chandos Winslow's reply; "but I should think it most improbable. To see me he has assuredly not been. Nor would I have admitted him willingly, if he had come."

"It is very extraordinary," said General Tracy; "he received a letter suddenly, in the vestry of Northferry church, which we all understood came from you, and he set out immediately for S----, in order to see you."

"The letter doubtless did come from me," replied Chandos; "for I sent one to him privately, by the intervention of my solicitor. But if he ever intended to visit me here, he changed his mind by the way; for certainly he did not come."

General Tracy mused for a moment. Rose was evidently right in her suspicions. The letter of Sir William Winslow was not natural. He felt no affection for the brother by whose situation he pretended to be moved so much. Even the honour of his house could not be at the bottom of all the agitation he displayed, if he had taken no measures for his brother's defence. Did General Tracy's suspicions extend further? Perhaps they did; but if so he suffered them not to appear, but proceeded to touch delicately upon some of the principal links in the chain of evidence against his young companion, leaving him to give any explanation if he thought fit.

Chandos listened for some time in silence; but at length he cut short the observations of the old officer by saying, in a firm and placid tone, "My dear Sir, it is as well to tell you at once, that there are particular circumstances which will prevent me from explaining, even at the trial, many of the facts to which you allude; and if inferences to my disadvantage are drawn from my silence, I cannot help it. The motives which actuate me in the line of conduct I have resolved to pursue are in no degree personal. In fact, I could clear myself--at least I think so--of all suspicion in five minutes; but I cannot or rather will not, employ the necessary means to prove my complete innocence. Doubtless my counsel will adopt a good line of defence, and I must leave the rest to the will of God."

"Many persons," replied General Tracy, "would look upon you as guilty, because you do not choose to explain everything. I am not one of them, however, my young friend. It is a trick of women and the world to suppose evil in all that is not made clear; but I can easily conceive that there may be things hidden by a man, which imply no guilt in him; and, to say the truth, if I had doubted your innocence of this act, I should have been convinced of it by your unwillingness to account for many of the circumstances which give weight to the charge against you."

"Many thanks, my dear General, for your good opinion," said Chandos, "though I do not see exactly how you deduce your effect from your cause."

"By one very simple process," answered the General: "though it is a vulgar error to suppose that terror always follows guilt, yet every guilty man when placed in a situation of danger strives eagerly--generally too eagerly--to escape punishment, and devises some means of explaining away facts which tell against him. Now the absence of all effort on your part in that direction would be sufficient for me were there nothing more. But I will tell you, Chandos Winslow, that there is something more. Your resolution to withhold explanation excites suspicions, not in regard to yourself, but in regard to others, which I will not now attempt to define; and undoubtedly as soon as I return to Northferry, I will cause inquiries to be made for the purpose of confirming or removing those suspicions. And now tell me, is there anything I can do for your comfort? What means can be devised of solacing the weary hours of imprisonment?"

Chandos Winslow thought for a few moments deeply, and then replied, holding out his hand to General Tracy, "I thank you most deeply for your kindness; but let me entreat you not to suffer anything I have said to cast a suspicion upon others. I have no one to accuse. I meant not in the least to imply that I am aware of any facts connected with this sad event. I have my own reasons for the course I follow; but to explain them would be to debar myself from that course. What you are pleased to do in the matter, I cannot help; but pray let no inquiries be founded upon or directed by anything I have said."

The old officer bowed his head gravely, but merely replied, "What can we do to give you amusement during your confinement?"

"Oh, books, General," answered the prisoner; "that is the only solace allowed me here. If you could send me some of those at my cottage, you would indeed confer a great favour; for time flies heavily when my own dull thoughts bear down his wings; but I have often found that the current of imagination, when directed by authors that we love, has a buoyancy which bears our dull thoughts away upon the stream, till we lose sight of them in distance."

"You shall have your whole library before to-morrow night," replied General Tracy; "and now farewell. I will see you again; but if in the meantime I can serve you in any way, write to me at once." Thus saying, he left him; and immediately on his arrival at Northferry-house, he inquired strictly of all the servants if they had seen any one go out into the garden or return from it on the night of the murder, and at the hour when it was supposed to have taken place. Only one person, the second footman, recollected any circumstance of the kind, and he could give no definite information. He said, however, that just after sunset, as he was shutting the dining-room windows, he saw somebody pass into the house through the conservatory. He thought it was like the figure of Sir William Winslow, but he could not affirm that it was so; and with this confirmation, weak as it was, General Tracy was forced to be satisfied for the time.

CHAPTER XXV.

Rose Tracy sat in her own room, with her head resting on her hand. The tears were streaming from her eyes; and yet the expression of her countenance was not altogether that of grief. It seemed more as if her heart and feelings had been touched for another, than as if she were affected by personal sorrow. Such indeed was the case. The letter before her was from Horace Fleming. It was the first she had ever received from him; and it was couched in language which was guarded by delicate feeling towards her

sister, while it plainly suffered to appear the deep anguish of spirit which he himself endured.

After wiping the tears from her eyes, she re-read several detached passages from the letter, which we may as well place before the reader:--

"You will think it strange, my dear Miss Tracy," was the commencement, "that I should venture to write to you; but you have not only taken a kind interest in me, and in feelings which I know you saw without pain; but you also interested yourself much in the poor of my parish, and in the schools which I had established. However, I will not make an excuse which is not sincere for writing to you, for I have no one to whom I can pour out the feelings of my heart but yourself; and I should have written had my poor and my schools been out of the question. Your sister, of course, I cannot venture to address, though I should wish her to know that morning and night I offer earnest prayers for her happiness, and beseech Him from whom alone all good things come to avert those evils from her which I, perhaps weakly, apprehend. I would not have her made aware of the sorrow and disappointment I myself endure; for, if hers is a cup of joy, the grief of a friend would but turn the sweet drops to bitterness; and if it be already bitter, I would not for anything that earth can give add to the sorrow of one so well deserving happiness."

After some further expressions of the same kind, he went on to say, "Do not suppose, however, my dear Miss Tracy, that I give myself up to grief; I trust that my religious feelings are too strong for that. I struggle hard to cast all sorrowful thoughts from my mind. I occupy myself all day in the duties of the small living I hold in this part of the diocese, and I leave nothing undone--not to drive your sister from my mind, but--to reconcile myself to the knowledge that she is lost to me for ever, and to bow my heart humbly before the will of God. Nevertheless, I think it will be wise for me, in all respects, not to return to Northferry for some months; for I must avoid everything that can reawaken regret and make me discontented with the lot which it has pleased God to assign to me. Under these circumstances, I will request you, in your kindness, to do one or two things for me in the parish; for my curate, though an excellent man, has not much experience, and

moreover cannot be so well acquainted with the wants and character of the people of the place as yourself."

I will not pause upon all the details he gave, nor mention whom he recommended to Rose's bounty, nor to whom he called Mr. Tracy's attention; but will proceed at once to another part of the letter, which was the only portion thereof in which Rose could be said to have a personal interest.

"I have seen in the daily papers," continued Mr. Fleming, "some most extraordinary statements regarding a horrible event which has taken place at Northferry, in your own grounds. I allude, of course, to the murder of Mr. Roberts; and I am shocked to find that an innocent man has not only been charged with the crime, but has actually been committed for trial on the coroner's warrant. From your father's account of his head-gardener, who under the name of Acton excited so much wonder by his erudition, I was speedily led to believe that he was superior to the station he assumed. To hear therefore that he was in reality no other than Mr. Chandos Winslow, did not excite in me the same surprise which it did, I dare say, in others. I never spoke with him but once; and then he affected a certain roughness of manner, mingled strangely enough with quotations from Roman poets; but I saw him several times at a distance in your grounds, and felt sure from his walk and carriage that he was no ordinary man. I was informed accidentally of his relationship to Sir William Winslow the night before I left Northferry; but little expected to hear such a charge against him. Doubtless he will be able to prove his innocence; but still such things ought not to be left to chance, and I shall therefore tender my evidence, which, if the statements in the newspapers be correct, must have some weight."

The letter was dated from Sandbourne Vicarage, a place about forty miles distant, on the other side of the county; and Rose had just finished looking over it again, when her maid entered her room to tell her that a gentleman from London was below in the library, and wished to speak with her immediately. At the same time the girl handed her a card, on which was printed a name of which she had no knowledge, except from having seen it mentioned frequently in the public journals, as that of the most eminent barrister of the day.

Putting the letter she had previously received into her bag, she went down with some degree of trepidation to the library, to meet a complete, stranger, at a moment when her mind was by no means disposed to society of any kind; but her visitor soon put her at her ease, by the winning gentleness of his manner.

"I have to apologize Miss Tracy," he said, "for intruding thus upon a lady without any proper introduction; but my anxiety for the safety of a very dear friend must plead my excuse. Chandos Winslow, whom I think you know, and whom you must at all events be acquainted with under the strange guise of a gardener, is an old and intimate acquaintance of mine; and I have undertaken, against my ordinary rule, to conduct his defence, in the painful and dangerous circumstances in which he is now placed."

"Oh, I am so glad to see you," said Rose; "but your words frighten me. I had hoped that it would be perfectly easy to establish his innocence, of which I am sure you can have no more doubt than I have."

"None," answered the barrister; "but I must not deceive you, my dear young lady. His case is one of very great danger; for there never was a stronger chain of circumstantial evidence against any man than against him. But let us sit down and talk the matter over calmly;--nay, do not weep;--for on the evidence that you can give, may very likely depend the result of the trial."

Rose nevertheless wept only the more from that announcement; for to think that the life of the man she loved might depend upon the manner in which she told a tale, simple enough, but susceptible of being turned in various ways by the skill of any unscrupulous counsel, did not at all tend to decrease her agitation.

"This is very foolish of me," she said, at length, drying her eyes; "but I shall be better in a moment. Pray go on: what is it you wished to say?"

"I am altogether stepping out of the ordinary professional course, Miss Tracy," replied the barrister; "but I have thought it better to see you myself rather than trust the task to another, in order to ascertain the nature of the evidence you can give; first, for the purpose of judging whether it will be

expedient to call you at all on the part of my friend Winslow; and secondly, that I may so direct the questions to be put to you in your examination in chief as to prevent the cross-examining counsel from torturing you, or damaging the case of my client. Winslow tells me that he was speaking with you the moment before he quitted the garden. Now mind, in anything I say, my dear young lady, I wish to suggest nothing; for, in the first place, I am sure you are incapable of falsehood; and in the next, nothing can serve our friend but the simple truth."

"But that is quite true," said Rose, "he was speaking with me near a little basin of gold and silver fish, close by the spot where the body was afterwards found. He then ran across the path and the greensward beyond, and jumped over the hedge just above the haw-haw. I can show you the precise spot."

"By and by that may be useful," said the other; "but at present tell me, if you have no objection, what made you part so suddenly?"

Rose coloured a little: but she replied frankly, "We heard the voices of two people coming down the arbutus walk, as we call it--a path bounded by evergreens, which leads, with several turns, into the broad walk past the fish-pond."

"Were the persons speaking at any great distance?" inquired the barrister.

"In a direct line, I should think forty or fifty yards," she answered; "but by the arbutus walk more than a hundred, I dare say."

"Then were they speaking loud that you heard them so far?" asked her companion; "or only conversing quietly?"

"Oh, they were speaking very loud and angrily," replied the young lady, "Sir William Winslow especially."

"Then Sir William Winslow was one of the speakers," said the barrister.

Rose coloured a good deal, and was evidently agitated, but she answered, "He was, beyond all doubt. His voice is very peculiar. It was

raised high; and I can have no doubt of it."

The lawyer played slowly with the eye-glass at his buttonhole, and looked her full in the face; for he saw that there were suspicions in her mind; but he answered deliberately and with some emphasis: "We will avoid that point, Miss Tracy, in the examination in chief, and, if possible, so frame our questions as to give the opposite counsel no opportunity of inquiring who was the speaker; but, nevertheless, you may be pressed upon the subject, and then of course the truth must be told, whatever be the result. Where is Sir William now?"

"He has gone to the Continent, I believe," said Rose, with some embarrassment.

"And probably has taken with him the servants who were here during his stay," said the lawyer, drily: "nevertheless, we may get at some facts regarding him, perhaps, from your own domestics. But you will swear he was in the garden at that hour, should it be needed?"

"Without hesitation," answered Rose.

"And that he was conversing in loud and angry tones with some other person?" continued the barrister.

"Undoubtedly," she replied.

"Did you know the other person's voice?" asked her interrogator.

"No; it was quite strange to me," answered the lady. "It was not the voice of any of our own people, I am sure; but I remarked that he had a slight hesitation in his speech; for when he said 'No, Sir William; I tell you I will not,' he stammered at the word 'tell.'"

"You heard him say that?" inquired the lawyer.

"I did, distinctly," she answered; "but that was after Mr. Winslow was gone."

A long pause succeeded, during which the barrister seemed totally to forget Miss Tracy's presence, and leaned his head upon his hand, looking forth from the window with an air of anxious thoughtfulness. At length he said, as if reasoning with himself, "Perhaps it might do--yet it would be a hazardous game--but what is not? I must remember my promise, however, and that will turn the balance." Then again he paused and thought; but at length turning to Rose, who began to feel her position somewhat embarrassing, he said, "I thank you very much, Miss Tracy, for your frankness, and will make use of your evidence to a certain extent. It may not be necessary to enter into all the particulars, and the best way under examination and cross-examination is to answer perfectly sincerely and frankly the exact question that is asked, without going at all beyond it. I say this because it must be a painful thing at any time for a young lady like yourself to be put into a witness-box. It is true, a better feeling exists at the bar at present than was to be found some thirty or forty years ago. We do not now think it necessary to brow-beat a witness, nor clever to puzzle one, unless we find that there is a determination to conceal the truth or to pervert it. However, I shall tell the solicitor in the case to apply to your father, who I find is out, for a list of all the servants in the family, who could, perhaps, be serviceable as witnesses on behalf of our poor friend; and if you know of any other evidence which could be brought forward in his favour, either to show the probability of the unfortunate gentleman, Mr. Roberts, having been engaged in a personal dispute with any other person, or to prove that Chandos could not be guilty of the act, you would--"

"Why, I have received a letter this very morning," cried Rose, "from a gentleman who seems to think that his testimony would be important. I will read you what he says;" and, taking out Mr. Fleming's epistle, she read all that referred to the case of Chandos Winslow.

"From whom might that come?" asked the barrister.

"From the clergyman of our parish," answered Rose, "the Honourable Mr. Fleming. He is not at all likely to speak without good cause."

"Might I hear it again?" said the other.

Rose read it once more; and the lawyer, rising, took up his hat, saying, "I will go to him at once. There are some remarkable expressions there. He must have important evidence to give."

"I think so too," answered Rose Tracy; "for he never lays stress upon trifles. But yet I cannot see how he can know much, for he was not here that evening, and went away for Sandbourne early the next morning, I hear."

"We cannot tell what information he may possess," said her companion. "This gentleman is evidently a man of observation and ability. His character and holy calling will give weight to his testimony; and I will ascertain this very night what he knows of the circumstances."

"Unfortunately, he is absent," replied Rose; "Sandbourne, where he now is, lies fifteen or sixteen miles on the other side of S----."

The lawyer took out his watch. "That shall not stop me," he said. "It is now twelve: I can be there before dark, hold a consultation at S---- after dinner, and get to London by six to-morrow. Thanks to the marvellous combinations of railroads and post-horses, one sets distance at defiance. But I must have the address, Miss Tracy, if you will have the kindness to put it down for me."

Rose did as he required, and with a certain sort of antique gallantry--though for his standing in the profession he was a young man--the great lawyer, in taking his leave, raised his fair companion's hand to his lips, saying, "If I win this cause, Miss Tracy, my pleasure will be threefold: first, as I shall save my friend; secondly, as I shall triumph over some difficulties; and thirdly, as I shall gain a victory in which I think you have some interest."

In four hours he was at the door of Sandbourne Vicarage, for he had the secret of saving time by casting away sixpences, and the post-boys did their best. There was some difficulty as to his admission, for the servant informed him that Mr. Fleming did not like to see any one on Saturday night after four in the evening, unless the business was very important.

"Mine is business of life and death," answered the lawyer, with a faint and fatigued smile. "Give your master that card, and assure him I will not detain him long."

The servant went, returned, and admitted him. He remained nearly half-an-hour, and when he went forth he shook Mr. Fleming's hand, saying, "I would mention it to no one, my dear Sir; for we barristers are sometimes apt to puzzle counsel when we find testimony goes against us. The only place to state the fact is in the open court."

Then bidding him adieu, he got into his carriage again, waved his hand, and the horses dashed away towards S-----.

As soon as he was out of sight of the vicarage, he cast himself back on the cushions, saying aloud, "Well, this is most extraordinary. There must be some great falsehood amongst people who all seem the one more sincere than the other. God grant neither judge nor jury may find it out; but at all events we must keep to our story. Which shall it be?--" and, laying his finger on a temple that ached more often than the world knew of, he gave himself up to contemplation, the result of which the reader will see hereafter.

CHAPTER XXVI.

We once wandered, dearly beloved reader, you and I together, over some steep bare hills which lie between Winslow Park and Northferry, watching Chandos in his gardener's guise, as he travelled towards the house of Mr. Tracy. Those hills, not at all unlike the Mendips in some of their features, were somewhat different in others. The high road took the most sterile and desolate part of them, where the curlew loved to dwell in solitude, and the wild plover laid her spotted eggs. But here and there, in their long range--which might extend some five-and-thirty miles from the spot where they

began to tower above the plain in one county to that where they bend the head again in another--were some dells and valleys, in which the woods nestled and the streams glided on. The river which Chandos had swam at Winslow, and which, passing on, increasing in size, gave to the village or small town near Mr. Tracy's property the name it bore, by reason of what is called a horse-ferry established there from time immemorial, had at some period of the world's history undertaken the troublesome task of forcing a way for itself through the opposing barrier of hill, and had somehow succeeded. It is wonderful what feats rivers and people will perform when they are driven into a corner, and have no way out of it but by a great effort. Then, when they have accomplished their task, how they rejoice in the triumphant exertions of their vigour, and play in scorn with the obstacles they have surmounted.

In a deep valley amongst those hills, seldom if ever trodden by human foot--for there was wanting footing for man or beast in many parts of the gorge--is one scene of exceeding beauty, well worthy of being more frequently visited than it has been. I know not whether in the spring, when the young leaves coming out decorate the sides of the dell with every hue of yellow and green, or in the autumn, when the mellow brown and red of the decaying year spreads a melancholy splendour over the woods, the picture is more beautiful; but to see it in its best aspect must always be when the tears, either of the year's wayward youth or of its sorrowful age, have been pouring down for some days before. The reason is this,--that over a high shelf of rock, the river, having overcome all the obstructions of the previous way, bounds down towards the goal to which its eager course tends in the distant plains, then first in sight, and the boughs of a thousand kinds of trees and shrubs wave round the rejoicing waterfall as if in triumph. It is not indeed with one boisterous leap that the river springs from the height, some fifty feet above, to the tumbling pool beneath; but as if at two great steps it strides upon its way, setting one white foot in foam upon a rocky point about half-way down, and then again another in the depth of the valley. A projecting point of crag, upon which a sapling ash-tree has rooted itself, stands out between the two falls; and round the point, scattered amongst the roots of the trees, lie numerous large blocks of stone, riven from the rocks above, in times the remoteness of which is told by the yellow and white lichens and green moss with which they are covered.

About a hundred yards in front of the waterfall, one fine day in the early spring of the year, when several hours of heavy rain during the preceding night had gorged the river, and given the cataract the voice of thunder, sat the gipsey woman, Sally Stanley, with her picturesque costume in its varied and bright colouring, contrasting beautifully with the cold gray stone, the rushing water, and the brown tints of the uncovered branches; while, here and there, an early green leaf, or the warm reddish brown of the unevolved buds, served to harmonize in some degree the scene with the glowing hues of her dress, or at all events to render the contrast not too strong. Nobody else was seen in the neighbourhood; and yet there were the three cross sticks, with the suspended pot, the glowing wood fire well piled up, and one small dingy tent between two large masses of stone. The woman sat beside the pot and sewed, with her left shoulder turned towards the waterfall, and her eyes apparently looking down the dell.

Opposite to her, spanning the river, was a little rude bridge, made with two trunks of trees, joining a narrow path on the one side to its continuation on the other which might be seen winding from shelf to shelf of the rock in its way to the prolongation of the valley above.

Sally Stanley sat and sewed, as we have said, an unusual occupation for a gipsey; and while she sewed she sang, a much more frequent custom of her people. But to neither affair did she seem to give much attention, turning her ear towards the stream and path, as if for some expected voice or footfall.

At length a step was heard; but she made no sudden movement, and with her head bent, listened still, slowly turning her face in the direction of the descending path, so as to gain a sight of the person who was coming down, before he crossed the river. The figure which appeared was that of a man in the prime of life--in the early prime, well dressed after a country fashion, bearing himself with a free and easy air, and, with his well-turned powerful limbs, and fine cut features, presenting the aspect of as handsome a man as one would wish to see.

A faint, almost sad smile came over the face of the gipsey woman; but she took not the slightest notice till the traveller was in the midst of the bridge, when, dropping the coarse blue stocking she was mending, she

advanced towards him, and addressed him in the usual cant of her tribe, begging him to cross her hand and have his destiny told, and promising him as pretty a fortune, and as extensive a matrimonial connexion, as any moderate man could well desire.

Lockwood, for he it was who now approached, laughed, and replied, "I have not time now, my good girl; for I am hungry, thirsty, sad, and sorry, and have a long way to go before I can get food, drink, or consolation."

"Not so, Master, not so," answered Sally Stanley; "you only cross my hand with a pretty little half-crown, and I will give you food, drink, and consolation, such as you cannot get where you are going, I am sure."

"That is no bad offer either," answered Lockwood; "and I may as well sit down by the side of your pot, and have a chat with you, as go and eat bread and cheese, and drink beer by myself in a frowsy tap-room."

"A great deal better," said the woman with a laugh. "Where could you be more comfortable than here, if you were going to the best house in all the land? Do you think that man builds better than God?"

"Why, no," answered Lockwood; "and in those respects I am a bit of a gipsy myself. I am as fond of the free air as any of you, and do not much fear foul weather, even when Æolus unchains all his blasts. But come, let us see your promised fare. I dare say it is of the best in the county, as you certainly have the choice of all that is going. Here is your half-crown for you."

He was soon seated close to where the woman had been previously sitting, with a deep tin dish upon his knee, while she, with a large wooden ladle, dipped into the pot and brought up a mixed mess, very savory to the nose, and consisting of various materials, whereof a fine turkey's leg was at all events the most conspicuous. Bread she had none to give him, but a hard biscuit supplied its place very well, and to say sooth, Lockwood, whose appetite was sharpened by a long walk, enjoyed his meal exceedingly.

"Now then," he said, "for your drink and your consolation;" and the woman brought him forth from her little tent a black bottle, the odour

emitted by which, as soon as the cork was pulled out, announced it as that liquor to which we justly give the same name that eastern nations bestow upon an evil spirit. But Lockwood would none of it, and while he finished the contents of the platter, she brought him a large jug of water from the stream.

"Well," he said, after taking a long draught, "I must now wend on my way."

"You are in mighty haste," she answered, "to set out for a place you will not reach."

"How do you know I will not reach it?" he asked, smiling in his strength.

"Because I know all about you," answered Sally Stanley, "where you are going, why you are going, what has been in your thoughts all the way from Winslow hither."

"You are mighty wise," exclaimed Lockwood. "I know well enough that you gipsies are famous for fishing out of gentlemen's servants all about their masters and mistresses, but I did not know you troubled your heads with such people as myself. As to my thoughts, however, there I defy you."

"Do you?" said the woman, laughing aloud. "Now I will show you. You have been thinking of Chandos Winslow, your half-brother, and of the murder of good old Roberts, the steward; and you have been fancying that another hand, as near akin to your own, might have shed the blood that is charged upon Chandos Winslow's; and you are going down to Northferry to see what you can make out of the case."

"A marvellous good guess," replied Lockwood; "but I now recollect you, my pretty brown lass. You are the mother of the boy down at the cottage; and, like all your people, you are good at putting two and two together."

"I am the boy's mother," answered the woman; "but you are wrong in thinking that is my only way of knowing. I see more things than you fancy, hear more than people dream of; and I tell you, you will not get to Northferry to-day nor to-morrow either; nor will you go to the assizes, nor

give your evidence in court: and if you did, you would only mar what you try to mend."

"That won't stop me," answered Lockwood sturdily; "truth is truth, and it shall be told: 'Magna est veritas, et prævalebit,' my pretty lass. I will tell my plain, straightforward tale in spite of any one; but I do not know what you have to do with it, and am rather curious to hear; for, to tell you the truth, I do not like you the better for wanting to stop me. If there were any gratitude in human nature, you would be grateful to Chandos Winslow, for he did all in his power to make your boy a good scholar and a good Christian: though, by the way, I suppose you care very little about his being either."

The woman's eye flashed for an instant, with a very wild and peculiar gleam in it, which I think I mentioned before, and she answered vehemently, "You are wrong, Henry Lockwood, you are wrong; I am grateful to him for everything;" and then she burst into a flood of tears.

Lockwood gazed at her with some emotion, and then put his hand kindly upon her arm, saying, "I did not mean to grieve you, my good woman; but still I do not understand you rightly: you say that you are grateful to this young gentleman; and yet you would prevent me from doing what I can to save him when his life is in danger for another man's act. You seem to know so much, that perhaps you know more; for your people are always prying about, and it is not unlikely that some of them saw the deed done. However, from what you said just now, and from the way in which you divined what I had been thinking about, I am sure you do not suspect Chandos Winslow, and that your suspicions take the same direction as my own; though mine are well nigh certainties, and yours can be but doubts."

"Are yours well nigh certainties?" she exclaimed eagerly. "Can you prove it? Can you satisfy judge and jury? But, no," she added, in a mournful tone, "it were better not--you cannot prove it--you can have nothing but suspicions either. You did not see your bad brother's hand strike the blow--you cannot tell what was the provocation given--you can mention no cause for a man killing his own steward."

"Yes I can," answered Lockwood. "The blow struck I certainly did not see; for I was well nigh two miles off at the time."

"I know that as well as you do," said the woman with a laugh; "I know where you were, and all about you. But what is it you can prove if you were so far distant?"

"I can prove that there was a cause," answered Lockwood, "a cause for the act in one case, and none in the other; for the very night before, poor Roberts found a note in Sir Harry's own handwriting, declaring that he had left a copy of his second will, dated not five years ago, in the hands of his eldest son. Roberts showed me the memorandum himself, the moment after he had found it, and he was as well aware as I am that Sir William has destroyed the will, because it did not suit his purposes. Was that not cause enough for giving a knock on the head to one who possessed such dangerous information? Besides, there is a great deal more: the very next day he came over to seize on the furniture in those two rooms, and lock it all up; but I have been beforehand with him. All the papers that Roberts had found were safe enough, and the furniture was moved to farmer Richards's great barn and under my lock and key. He sent me down word that he would prosecute me. I told him to do so if he dared. But now I must go, my good woman; and I say the truth shall be told, whatever comes of it."

"Do you think, Lockwood," asked the gipsy woman, "that if Chandos Winslow himself had seen the murder committed, he would bring such a charge against his brother?"

"Perhaps not," replied Lockwood; "but that is not the question. Here am I, no way partial in the business, whose duty it is to an innocent man to tell the truth, whether he wishes it or not; and therefore I shall go on to Northferry at once, and see Mr. Tracy, and tell him all I know. If he does not do what is right, I will go on to the lawyers and tell them."

"Mr. Tracy you cannot and you will not see," said Sally Stanley. "Have you not heard he was arrested for debt, and taken to London yesterday afternoon; and the two girls and their uncle are gone up after him this morning?"

"Arrested?" exclaimed Lockwood; "what! the rich Mr. Tracy arrested? he who was supposed to be the most wealthy man in all the county?"

"Aye, there it is, Harry Lockwood," said the woman: "that is the difference between your people and the gipsies. We are content with food and clothing, the open sunshine, and the free air; but you are never content. If you are poor you must be rich; if you are rich, you must be richer. The madness of gain is upon you all; and this wealthy Mr. Tracy must needs speculate, to make himself more wealthy, till he has made beggars of himself and his children. All on account of these railroads, with which they are putting the whole land in fetters; he who, a month ago, was rolling in riches, has not so much in his pocket as Sally Stanley, who once begged her bread at a rich man's door, and was driven away with a cur at her heels. You will not see Mr. Tracy for a long time to come."

"Then I will go to the lawyers," rejoined Lockwood; "for the story shall be told."

"No, it shall not," answered the woman, "that I am resolved. I tell you, you will spoil all; and if you leave the matter alone, he is quite safe."

"I will not trust to that," answered Lockwood. "There, take off your hand!--you are not such a fool as to think you can stop me;" and at the same moment he shook off the grasp which she had laid upon his arm, somewhat rudely and impatiently, perhaps.

The next instant his collar was seized by a stout man, who sprang from behind the masses of broken stone, while another leaped out and caught his right arm, and a third seized him round the legs and tried to throw him down. His great strength, however, sufficed to frustrate their efforts for a moment or two. He disengaged his arm, aimed a blow at the man who grasped his collar, which was parried with difficulty, and kicked off the other gipsey who was grasping his legs; but three or four more came running down from amongst the woods, and after a sturdy resistance he was overpowered and his hands tied.

"What the devil do you mean by ill-treating one of our women?" demanded a tall, powerful fellow, of about fifty years of age. But Lockwood only replied by a loud laugh; and the gipsey grinned at the open falsehood of his own pretext.

"What shall we do with him, Sally?" said the latter, turning to the woman; "he must be looked sharp after if we are to keep him, for he is a rough customer, I can tell you."

"Ah, you have found that out," cried Lockwood; "you will find me rougher still before I have done with you."

"Hush! hush!" said Sally Stanley; "take him away and keep him where we agreed upon. I will find those who will watch him well. You had better go with them quietly, young man; for you must see by this time that there is no use of struggling."

"Not much, I believe," answered Lockwood. "But I should wish to know, before I go, my good woman, what it is you want, and what you are to do with me."

"To keep you from making mischief," replied Sally Stanley. "There, take him away, lads, and I will come up directly; but mind you keep him safe."

CHAPTER XXVII.

"This is weary work. Three days have I been alone; without the sight of any human face but that of the turnkey. How burdensome becomes the weight of thought as each hour goes by! It presses upon the brain as if a heavy stone were laid upon the head. What a terrible thing is solitude, notwithstanding all that Zimmermann has said of it--notwithstanding all that can be done to alleviate it! But this is something more than solitude. Alexander Selkirk on his desert island could change the scene, could vary the occupation every hour. Now, he could go up the Blue Mountain, and gaze afar, 'the monarch of all he surveyed.' Then he could wander down to the sea-shore, and send hope and expectation forth on a voyage of discovery over the green waters before his eyes, to see if ship or boat from the far

native land were winging its way like a bird towards his place of exile. Or else memory, like a bark freighted with treasure, would touch the land, and he would see the stores of other days, the joys, the loves, the dreams of youth and manhood spread out upon the beach. He could tame his wild birds or his free goats; he could plant or reap his little field; he could garner or grind his corn. He was no worse in fate than Eve-less Adam; and though it may not be good for man to be alone, yet, when there is variety and occupation, the evil is but small. Here, what is the variety? Four or five short steps from wall to wall; the heavy door on one side; the high grated window on the other. But yet, it might be worse. What a terrible thing solitary confinement must be! Here the jailor comes in and speaks civilly; will stop a minute or two to tell you what is going on without; will press me to walk in the yard, and tell me it is quite airy and *cheerful*. Cheerful! Good God, what a word in the stony heart of a prison! I declare I should regard the man who could be cheerful in such a place as ten times worse than even his crimes had made him. To be cheerful here would be an aggravation of every offence--and yet, perhaps, I am wrong. Cheerfulness in some men is constitutional.

"Oh! yes, it might be worse. To be condemned to perfect solitude, and silence too, with nothing but thought, thought, thought, rolling one upon the other, like the eternal billows of a dark and gloomy sea: not a sight for the eye, not a sound for the ear, till the one became blind, the other deaf, for want of objects. It is horrible! What monster could devise such a means of starving the senses one by one, till the living death of hopeless idiocy became the wretch's fate? What were the cord, or the axe, or the rack itself to that? Yet, even that might have an aggravation--if there were guilt upon the mind--some dark terrible crime--murder!--the death of a fellow-creature, sent before to be our accuser at God's throne! What awful storms would then move that black ocean of thought, prolonged through the whole of life! What would it be with me, even through three or four short days, when, innocent as I am, the passing of these solitary hours is well nigh intolerable.--Innocent as I am! Who is innocent? Who can lay his hand upon his heart, with God and his own conscience to witness, and say, 'I am innocent; I have done no wrong?'--Who can arraign the decree of the Almighty which strikes him for many a hidden fault, through the instrumentality of the false judgment or iniquitous persecution of his

fellow-man? Not I, for one! I raised my hand against Lord Overton unjustly; I shed his blood, though I did not take his life; I was a murderer in intention, if not in act; and now I am accused of--perhaps may suffer for--the death of one whom I would have shed my own blood to defend. The ways of God are strange and wonderful, but very just.

"How curious it is that in solitude all the things we have done amiss in life return upon the mind, distinct and clear--magnified even, if faults can be magnified--when in the pleasures, and the business, and the every-day cares of life, we forget them totally! And yet man was evidently meant for society. Is it that the ever-present consciousness of our errors in this mortal state, would be a burden too heavy to bear, were there not an alleviation in the thoughtful absorption of the world's concerns--a burden which even faith in a Saviour (as far as man's weakness will permit him to have faith) would not be sufficient to relieve, unless his worldly carelessness lightened the load, by deceiving him as to the weight? Perhaps it may be so; and yet, it is strange how often in this life, our weakness is our strength. Since I have been here, how reproachfully acts which I thought before perfectly venial have risen up in judgment against me I how dark have seemed many deeds committed! how sadly ungrateful many an omission has appeared! And shall not the same be the case hereafter? When a few hours of solitude are sufficient to draw back thus far the glittering veil which habit and the world cast over our faults, what will be the terrible sight when that veil is torn away altogether, and the dark array of a whole life's sins and follies stand naked and undisguised before us!--when the voice of conscience, fully awakened, never to sleep again, exclaims, 'Lo your own acts! The children of your mortal life! The witnesses against you for eternity!'"

The above is an extract from a journal of Chandos Winslow, kept during his imprisonment. I know that such grave subjects are not palatable to most readers: they call them *longueurs*; they skip them; they want the story, nothing more. Let them do as they please; the extract was necessary to the depiction of the character. But I must show another side of it also--a somewhat lighter and more cheerful one; but still one which is as likely to be skipped as the other, by the mere novel-reader. For some time Chandos went on in the same strain of gloomy thought; and occasionally dark forebodings would mingle with the text: for the more he reflected upon the

course he had determined to pursue, the more difficult, nay, hopeless, seemed to be the attempt to defend himself. At length, however, came the following passage:--

"But I will have no more of such reveries. It is very strange, that for the last four days I have not been able to read. The small space of my brain seems too much crowded with thoughts of my own, to give other people's thoughts admission. I will force myself to read, however; and think of what I read."

Then came another passage, evidently after he had been reading for some time.

"I know not how it is, but none of these Italian poets interest me much--perhaps the most, that mad-cap Ariosto. There is a reckless vigour about him which none of the rest possesses; and their prettinesses tire. Tasso is certainly very sweet and very graceful, but seldom powerful; and Dante, dark, terrible, and stern, wants the relief of beauty. His *Inferno* is certainly a grand poem, the personification of thousand hates and vengeance; but the *Paradise* is a poor affair.

"It is very strange how much more difficult men find it to imagine and to paint perfect happiness than exquisite torture. Perhaps it is because in this life we are much more familiar with pain than pleasure. Pain and grief are to human beings, positive; our greatest happiness here below rarely more than negative--at all events, never unmixed. But in none of the Italians do we find the grand march, the sustained majesty of the Greeks and the Romans. I cannot help thinking that Boccaccio had more poetry in his nature than most of his brethren; and there are some fine passages in his great poem, notwithstanding its many wants. Many of his novels, too, are full of poetry. But, after all, ten lines of Homer are worth all the Italian poetry that ever was written. Alfieri seems to have felt this inferiority of the poets of Italy to the ancients, even too much; and the effect has been a stiffness in his writings, produced by aiming at dignity in a language which is not dignified. When the thought itself is grand, its grandeur can only be preserved in so weak a tongue by clothing it in the very simplest words. Dante was not alone aware of this, but was impelled to that course by his own sharp character. He never strove to embellish by mere words, though

sometimes, as if to impress the idea upon the reader's mind, he reiterates it in another form, venturing upon pleonasm as a means of force, in which he was probably mistaken; at least, the effect upon my mind is always disagreeable. It would be better if the verses were spoken. I cannot but think--though perhaps it is national partiality--that the poets of England are superior to any that have ever lived since the fall of the Roman empire. The French have no poetry. The Germans have two or three great poets; but their literature may be considered as yet in its infancy. The Spaniards have some beautiful poems, it is true; but in all of them are blemishes which overbalance the perfections. In the English tongue there has been excellent poetry enough written in every different style and manner, to supply the whole world. A crowd of our poets are unknown even to ourselves; and many of the very best are imperfectly known, and that but to a few. The sonnet, indeed, attained its highest point with Petrarch; and yet how beautiful are some of Sir Philip Sidney's!--for instance, the one beginning--

'No more, my dear, no more these councils try,
Oh give my passions leave to run their race.'

I forget the rest. My memory fails me sadly. What a strange thing memory is! It seems as if the brain had a court painter, who sketches rapidly everything presented to the senses; and then the pictures are pushed into the lumber-room of the past, to grow dim and mouldy, with the smoke and damp of years, till they are wanted, when they are taken forth again, and the dust is brushed off, though sometimes not entirely--But who have we here? It is not the turnkey's hour."

Here ends the journal for the time; and it may be as well to inquire, what was the circumstance which caused the interruption; for it gave Chandos sufficient thought for the rest of the day.

Just as he had written the last words his solicitor was admitted, a shrewd little elderly man, not without some kindness of disposition, and with a great talent for making himself useful in small things, which is one of the most serviceable qualities to himself that a man can possess. His ostensible object was to tell Chandos that he had been to London for the purpose of holding a consultation upon his case, and to cheer him up with the prospect of certain acquittal; for as physicians often think it necessary (and with

good reason) to keep up the spirits of their patients, as long as there is any hope, by assuring them of recovery, so the solicitors in criminal causes judge it right to comfort the accused by promising them acquittal. I do believe that, there never yet was a man hanged, who had a hundred pounds to fee lawyers, without being promised, in the words of the toast, "long life and prosperity," till the very moment when the jury gave their verdict. But the worthy solicitor had another object too, it would seem; for as soon as he had disposed of all the evidence which had struck the great barrister as so important with a mere "Pshaw! we will soon get over that," he slipped a letter into Chandos's hand, saying, "That came to my office for you while I was gone, and I brought it myself; for you know they have a trick of opening prisoners' letters here. I gave General Tracy a hint, that all your friends had better address under cover to me; and if you have any answer to send, let it be ready and give it to me to-morrow. Keep it close until I am gone, and then you can read it at your leisure."

Chandos Winslow had glanced at the address, and had seen that the handwriting was that of a lady. He had never seen Rose Tracy's writing. The letter might come from either of a dozen other persons, friends or relations, who had heard of his situation, and might wish to express sympathy and kindness. Nevertheless Chandos did not doubt who was the writer; and as soon as the solicitor was gone, he tore it open, and pressed his lips on the name at the bottom.

"Dear Mr. Winslow," the letter began.--There had evidently been a struggle how to commence it. She had even blotted the words Mr. Winslow, though Rose Tracy was not apt to blot her letters. The prisoner thought that he could discern the name of Chandos traced and erased beneath; and he murmured to himself, "She might have left it."

"Dear Mr. Winslow," wrote Rose Tracy, "although I write under great distress of mind, from the very painful circumstances in which my father has been placed by the failure of some extensive speculations in which he was unfortunately led to engage, I cannot quit Northferry without writing you a few lines (for doing which I have my uncle's sanction) to say, that I am ready and willing to come down and give evidence at the approaching trial; being perfectly certain of your innocence, and believing in my heart

that the crime of which you are accused was committed by one of those persons whose voices we both heard when we last met. I have thought it necessary to write upon this subject, because your friend, Sir ---- seemed to doubt whether you would wish to call me as a witness. I thank you most sincerely for seeking to spare me the agitation which public examination in a court of justice must always cause; and I thank you still more for that delicate sense of honour which I know is one great cause of your hesitation. But I do beseech you, do not let any such feelings prevent you from using the means necessary to your exculpation. I know the world may blame me, when it is made public, that I was aware of your name and family; that I did not inform my father of the fact; and that I saw you at the same spot more than once--I dare not say by accident. The blame will perhaps be just, and probably will be more severe than if all the truth could be stated; but I will put it to your own heart, my friend, how much less grief the severest censure of the world would cause than to think that you had been lost for want of my testimony. Oh, spare me that pain, Chandos! spare me the most terrible anguish that could be inflicted on

"ROSE TRACY."

Chandos kissed the letter over and over again. It is wonderful in the moments of distress and abandonment, when false friends forsake, and the light world of acquaintances shun us, how sweetly, how cheerily, even small testimonies of undiminished regard come to us from the true and firm. Oh, how Chandos Winslow loved Rose Tracy at that moment! How he longed to tell her the sensations that her generous anxiety to save him even at the expense of pain and shame to herself inspired in his bosom! He dared not, however, write all he felt; but in the course of that evening he expressed his thanks in a way which he thought would shadow forth, to her eye at least, the deeper feelings which he could not venture to dwell upon. To write the letter was a happiness to him; but when he came to conclude it with a "farewell," something seemed to ask him, if it might not be the last. He fell into deep, sad thought again, and gloomy despondency took possession of him altogether. He thought he could have been careless of life but for Rose Tracy; and he felt sadly how acuminated and intense become

the affections which attach us to existence here when they all centre in one object.

CHAPTER XXVIII.

The assizes were opened at the town of S---- with all due solemnity. There were sheriffs, and magistrates, and town council, and javelin-men, all on the move. The judges went to church and to dinner. The day of that most disgraceful of exhibitions, an assize ball, was fixed, and the grand jury was sworn and charged. Did a grand jury perform its functions properly, or even know all its attributes as they were formerly exercised, and still exist, it would be one of the most useful institutions in the monarchy; but, alas! its just attributes are nearly forgotten, its functions are falling into desuetude, and it confines its operations, almost always, to returning as true those bills presented to it which have even a shadow of probability on their side; or, instead of denouncing real and serious evils, to the presentment of waggons overthrown and suffocating court-houses.

The lawyers were seen flitting about the streets; the usual morning consultations and evening revels took place: witnesses and jurymen crowded the inns; an enormous quantity of bad port, bad sherry, and worse madeira, was consumed; and solicitors merited well the simile applied by sailors to personages who are peculiarly busy.

The calendar was very heavy. Nine very hard-fisted farmers had had their ricks burnt; a manufacturer who indulged in truck, and was notorious for reductions on Saturday, had been awoken in the night by the blowing up of one of his factories; there had been a riot in one of the workhouses where the poor were starved according to law, on the pretence of feeding them, and punished for complaining. The magistrate, wisely or unwisely, had sent the case to the sessions; and it was flanked by those of a man who had died from the neglect of a relieving officer, and a woman who had drowned her

child from the insanity of destitution. There were several affrays with poachers, in which blood had been shed; and that of two gentlemen, who had first horsewhipped and then shot at each other, to the extinction of one life, and the risk of both. In short, it was an edifying display of the results of civilization up to the period at which we have now arrived, and of the peculiarly polished state of England, and its respect for social order. I say nothing of the brotherly love, the Christian charity, and the enlightened benevolence which oozed out through the pores of the calendar. Verily it was fitted to raise us high in the eyes of Europe.

It is marvellous with what celerity the grand jury returned true bills against the whole of the accused. Did I say against the whole? It was a mistake. Out of a hundred and thirty-four cases, they threw out one, just to keep up the privilege of rejection. It was the case of a small proprietor who had knocked down in the presence of three or four men, a rascally labourer, who would insist upon passing along a path which had been used by his ancestors for five generations. They threw it out, however, and the path was closed thenceforth to all men for ever and aye.

Amongst the other bills found, was one against Chandos Winslow, Esq., for the wilful murder of John Roberts, attorney-at-law, &c. &c. &c. But it was a late case on the roll, and a good deal of condemnation was done before that came on. The first sharp appetite was taken off from both judge and jury, and the solicitor congratulated himself and his client on the hanging period of the assizes being on the decline. It is strange and not pleasant to think of, on how many small circumstances a man's life hangs in the most civilized countries of Europe, especially in the most Christian. A famished juror or two will turn the balance any day; and I fear me that hunger is not an appetite which leans to mercy. The beginning of the assizes is always a bad time to be tried. I would not advise my felonious friend to attempt it if it can be put off. The jury then think themselves a many-headed Aristides. Brutus was nothing to them, and Cato a mere babe. They would condemn their own children to magnify the law. Then, again, the end of the assizes is as bad; for both judge and jurymen have got tired of the thing, and want to get home to their wives and families. This can only be accomplished by despatching their men out of hand; and haste is always cruel, rarely just.

The charge of the judge to the grand jury is a more important matter than people generally imagine. It is treated as a matter of course: or at best as an opportunity afforded once in so many months for a great functionary to make a clever speech on a very favourable subject. But it is much more than this. It frequently gives a tone to the whole proceedings of the court. From the grand jury it is reflected upon the petty jury, and affects them more than it does the former. If the judge represents strongly the serious increase of crime upon the calendar, and urges the necessity of vindicating the law and rigidly administering justice, the Aristides' spirit I have talked of becomes very rampant, and you are sure to hear, "Guilty, my lord," very frequently repeated in the court. If, on the contrary, he congratulates the county on the small amount of crime that has occurred since last he was seated in that place, and declares that there are but one or two serious cases for their consideration, the worthy jurymen think, when there are so few, it may be just as well to let the poor fellows get off, as it is cold work hanging without company.

As I have said, however, the calendar was heavy, and the judge made a very serious and impressive charge, alluding particularly to the case of the murder of Mr. Roberts. He called the attention of the grand jury particularly to it; recommended them to cast from their minds everything they had heard, and to consider the matter simply on the testimony which supported the charge. He represented their duties as merely preliminary; (in which, indeed, he was right;) but though he never mentioned the name of the accused person, he declared the act to have been most barbarous and horrible; spoke of the deceased as an innocent, honourable, industrious man, whose murder was an awful stain upon the county and the kingdom; and in aggravating the heinousness of the offence, produced, naturally enough, a very unfavourable opinion of the person charged with committing it. While he was speaking in reprobation of the crime with so much eloquence, the minds of the grand jury necessarily connected it with Chandos Winslow as the perpetrator, and of course they returned a true bill, as they would have done had not the evidence been half so strong against him. It is very possible that the grand jury did dismiss from their minds all they had heard before, though that is rarely done, and little to be expected; but they assuredly did not dismiss from their minds the judge's charge, and that was quite sufficient.

The speech of his lordship was printed and circulated in the town of S---- that night, and when the solicitor read it, he muttered between his teeth, "He will sum up against the prisoner, that is clear. Our only hope is in the striking of the jury."

How horrible that any man should be able to divine, or pretend to divine, how a judge will sum up in a case, the evidence upon which is not yet before him! But, nevertheless, a solicitor of experience is seldom wrong in such matters.

Chandos Winslow, too, read the charge, and came to the same conclusion. In the cold and measured phrase, in the well-poised and cautious words, even in the scrupulous abstinence from all allusion to himself, he saw an impression against him, and was sure that it had not only been felt, but communicated. The most deadly poison is that which acts with the least outward signs. He thought over the circumstances deeply, and remained in thought for many hours. He tried to view his own case as if it were not his own. He recalled every fact, and arranged the one in connexion with the other. He separated what he himself knew, but was resolved not to communicate, from that which was before the public eye, and a terrible mass of criminatory circumstances was left unmixed. He looked at the whole steadfastly and resolutely, and he asked himself what he had to oppose to it. The answer was--"Nothing."

Vague professions of innocence, the testimony of persons who had known him long to his general character--this was all; but he knew well that all this was nothing in a case like that before him. He was aware, moreover, that the refusal to give explanations would be construed into a mere consciousness of guilt, and yet he could neither do away the presumption of crime which existed in a thousand of the facts against him, nor even account for one moment of his time without casting back the charge of murder upon his own brother. It was a terrible situation. The thought of Rose Tracy aggravated it, shook his firmness, made his resolution waver; and starting up, he paced his cell backwards and forwards for some minutes. But he conquered himself; he conquered the repugnance to death and cold forgetfulness; he conquered the clinging of the heart to life and

love, and he sat down again, saying aloud, "No, I will not be the destroyer of my brother."

I will not say that hope went out, for the hope beyond this life remained; but the hope of saving himself, the hope of his counsel making any available defence, passed away as he reviewed the strong presumptive proofs against him, spreading out, link after link, in a long chain, which bound him ready for a death of ignominy. He made up his mind to it. He gave up the consideration of the charge and the defence. He took one step over the earthly future, and, as if standing at the ports of the tomb, he ventured to cast his eyes beyond. It is, it must be, an awful moment for any man, when the words of fate are pronounced and heard, when the irreversible decree has been notified to us, "This night shall thy soul be required of thee!" when all the soft ties are to be broken; when all the warm affections are to come to an end; when all the new cold things of an untried fate are before us, and the prospect from the top of the bleak hill of death swells into eternity. Then comes the terrible question, "How shall I answer at the Throne of one perfectly pure, perfectly holy, for all the trespasses committed in this mortal state? how have I stood the trial, trod the path assigned to me? how have I fought the fight? how have I employed the talent?"

Who is there at such a moment that can dare to answer, "Well?"

What would it be, when the presence of an earthly judge is terrible to an offender, to plead one's own cause, to be one's own advocate before the Almighty and Omniscient; to stand polluted in the Holy of Holies, in the presence of Him who will not behold iniquity? But there is an Advocate to raise his voice in our behalf; not to defend, but to mediate, to justify us by his righteousness, to atone for us by his blood, to make the compensation which eternal justice requires for sin, and reconcile the offending creature to the offended Creator.

To Him Chandos Winslow raised his spirit in faith, and his voice in prayer, and he found strength that no philosophy can give, hope when all the hopes of earth had passed away.

CHAPTER XXIX.

It was the morning of Thursday, and generally understood that the trial of Mr. Chandos Winslow, for the murder of his late father's steward, would come on that day. Moreover, it appeared likely that the case would occupy two days, unless it was early called on, as the number of witnesses was considerable. Those who are knowing in such things considered the arrangement as rather ominous: Friday being looked upon as an excellent day for condemnation. The court was crowded to suffocation; but the spectators had a long time to wait ere they had the pleasure of seeing a gentleman placed in the felon's dock. The court was occupied during the greater part of the morning with cases of small interest; and, between two and three in the afternoon, the crowd began in some degree to diminish; many persons growing tired, and a belief becoming prevalent that the cause would not be tried that day.

At length, however, when it was least expected, the cause was called on, and two or three solicitors' clerks ran out of the court to call the counsel in the case. The appearance of the leader for the crown excited some attention; but that of the famous barrister, whom every one knew to have been brought down especially from London, and who was generally reported to be the intimate friend of the prisoner, created a murmur which lasted for some minutes. The two lawyers were in the court, before Chandos Winslow was placed in the dock; for the officers of the prison had been taken somewhat by surprise, from the rapidity with which the preceding case had been brought to a conclusion. After a momentary pause, however, the accused appeared, and there was an instant movement, causing a good deal of confusion, from many persons endeavouring to gain a better sight of the prisoner.

It is probable that every one expected to behold a very different sort of person from that which was now presented to him; but certain it is, that the

actual impression produced was highly favourable. The tall, commanding, manly form; the air of calm unembarrassed grace; the grave, but firm, and almost stern look; the lofty brow and speaking eye; the lip that quivered a little with irrepressible emotion, at being made the gazing-stock of thousands: all excited in the multitude those feelings of admiration which predispose to sympathy and confidence. Bearing his head high, with his shoulders thrown back, and his chest open, with his eye fixed tranquilly on the judge, and his step as firm as if he had been treading his father's halls, Chandos Winslow advanced to the front of the dock; and immediately his friend Sir ---- rose from his place, and with a kindly nod of the head, spoke to him for a few moments, as if to show all persons that he was proud of his friendship.

The indictment was read, setting forth in various counts the charge against the prisoner. Sir ----, desired to see the instrument, and then merely remarked, that it was bad in law, and could not be sustained.

"When the case for the defence comes on, I will hear your objection," said the judge.

"I do not know that it will be necessary, my lord;" replied the counsel. "My friend and client has an invincible objection to take advantage of any technicality; and, I think, we can do without a flaw, although I may judge it my duty to show your lordship that there is a fatal one in this indictment."

When called upon to plead, Chandos replied, "Not guilty," in a firm, slow, and distinct voice; and the confident tone of the leader for the defence, as well as the calm self-possession of the prisoner, had its effect both upon the spectators and the jury. It was soon to be driven away, however; for the leader for the crown rose after a few words from a junior; and a very different impression was speedily produced. The lawyer who conducted the prosecution was a tall handsome man, with strongly marked and expressive features, a powerful and flexible voice, and great dignity of manner. He had one quality, however, which was greatly in favour of a prisoner if he were retained as counsel for the defence, but which told sadly against him if he appeared on behalf of the crown. He seemed--it was merely seeming--so fully, so firmly convinced of the justice of the cause he advocated, his manner was so sincere, his apparent candour so great, that

the jury, thoroughly believing he had no doubt, and weighing their wits against his, naturally asked themselves, "If so learned and shrewd a man has arrived at this conclusion, why should we venture to differ from him?"

On the present occasion, he paused for an instant and rested his hand upon the table, as if almost overpowered by his feelings--he never was calmer in his life--and then, raising his head, went on, with the clear, distinct, grave tones of his voice penetrating into every part of the court, in which there reigned a dead silence.

"My lord, and gentlemen of the jury," he said, "the most painful task of a life that has not been free from sorrows is imposed upon me this day; and I know--I feel--that I shall acquit myself ill. I beg you, therefore, to bear with me, if my statements are not so clear, if my reasonings are not so forcible as they ought to be; for, in my anxiety not to press anything too heavily against the prisoner at the bar, I fear I may fall into the opposite error, and not give due weight to many minor facts necessary to a full elucidation of the subject. That error, however, is far less important than the grave and serious fault--I might almost call it a crime, in a person in my present position--of suffering either professional vanity, or the spirit of partisanship, to seduce me into urging anything unjustly against a prisoner under trial. Into that fault, at least, I will not fall--of that crime, I will not render myself guilty. I will make no statement that I do not feel sure will be borne out by evidence, I will use no argument which may not be justly applied; and I do assure the court, aye, and the prisoner, that, if I could have avoided the task, I would have done so; that if he can prove himself innocent, I shall rejoice; and if my learned friend can show that my reasonings are not just, my views erroneous, I shall have a triumph in defeat, and sincere satisfaction in a verdict against me. But I have a high and solemn duty to perform to my country, gentlemen of the jury, as you have also; and we must not suffer any personal feeling to interfere with its due execution. We must recollect, that mercy to a criminal is cruelty to society, and that to spare the offender is to encourage the offence. With these views, I will 'nothing extenuate nor set down aught in malice,' but succinctly state to you the facts, as many witnesses will afterwards prove them, omitting all that seems to me doubtful, and urging nothing that is not necessary to the due understanding of the case. On the evening of the fifth of February, gentlemen of the jury, a

highly respectable gentleman, of the name of Roberts, called at the house of Mr. Tracy, of Northferry, in this county, and inquired for a person of the name of Acton, under which name, or *alias*, as it is termed, you will find that the prisoner is also indicted. This Mr. Roberts, it will be shown to you, was the steward and confidential law agent of the late Sir Harry Winslow, a gentleman of large property in this county; and in that capacity he was well acquainted and had had numerous transactions with the younger son of Sir Harry, a young gentleman, I must say, bearing a very high character, but, at the same time, of a disposition to which I can only apply the terms of *sharp* and *vindictive*, as I shall be enabled to show. This person, known by the name of Acton, was at the time acting in the capacity of head-gardener, at the house of Mr. Tracy, where he had been for nearly three months, or ever since the death of Sir Harry Winslow. Upon my life, gentlemen of the jury, if the truth of the whole were not too fatally established, I might think I was reciting a romance. Mr. Roberts did not mention his business with the person he inquired for, but being perfectly respectable in his exterior, was directed by the servants to seek the head-gardener in the grounds, where he was usually to be found at this hour. Now those grounds are very extensive, and an authentic plan has been taken of them--I hold it in my hand--of which a copy has been furnished for your guidance. You will there see that the real front of the house is turned towards the gardens, which are remarkable, I am told, for their beauty and high cultivation: an earthly Paradise, into which murder now first entered. Before the house is a very extensive lawn, bordered with thick shrubberies, through which run several gravel walks. This lawn is terminated by a belt of planting irregularly disposed, so as to admit here and there views of the distant country to any eye looking from the windows of the house; but completely concealing a second lawn, somewhat less in extent, surrounded again by other shrubberies and other walks, sloping down with a gradual descent to the open fields, (also the property of Mr. Tracy,) from which the grounds are separated by a hedge, and in some places by that peculiar species of enclosure called a haw-haw, or sunk wall, with a broad ditch on the external side, faced on the side of the grounds with perpendicular masonry, surmounted by a holly hedge; number 5 in the plan, gentlemen of the jury. In the inside of this haw-haw and the hedge which forms its continuation, is a broad walk under beech-trees, called the Lady's Walk; but just opposite to the part of the walk where the figure 5 appears, the beech-trees are

interrupted, and a plot of grass occupies the semicircular opening in the wood, in the bite or crescent of which is situated a small building, in imitation of a Greek temple, covering a fish-pond. Between that fish-pond and the haw-haw is a space of about twenty-five yards, which is the scene of the tragedy that is under our consideration: a narrow strip for so terrible an event. You will see that the broad gravel path, called the Lady's Walk, passes close to the little building, the temple, number 7 in the plan. Another walk, winding round the two lawns, and through the thick shrubberies, conducts to the western side of the building, where it enters the Lady's Walk. Down this winding path, it is probable, that poor Mr. Roberts came to meet his death, as it will be proved that he crossed the first lawn (number 2) towards it from the western side of the house. I should have mentioned that the hour at which he asked for Acton, the head-gardener, was five in the evening, when the sun is just down at that period of the year, but when the twilight is still clear. He was never seen alive afterwards, that we know of, but by his murderer; and about ten at night he was found lying on the grass between the little temple and the haw-haw, with two severe blows on the head, one of which had fractured the skull, and so severely injured the brain that death must have been instantaneous. By his side was found an implement used in gardening, and called, I believe, a Dutch hoe, which will be produced for your inspection. It was covered--at least, the iron head was covered--with blood and grey hair, and the surgeon who made a post mortem examination of the body will prove, that the wound which produced death must have been inflicted by an instrument very similar. Such are the bare facts of the murder of Mr. Roberts as they appear beyond all doubt; and I now approach with deep pain, reluctance, and even diffidence, the circumstances which connect the prisoner at the bar with the fatal event. First, gentlemen, it will be my duty to show you that the person who, under the name of Acton, filled the humble situation of head-gardener to Mr. Tracy, of Northferry, is one and the same person as Mr. Chandos Winslow, younger son of the late Sir Harry Winslow, of Elmsly and Winslow Abbey, in this county. It might be irrelevant to inquire what induced a gentleman of such birth and pretensions to condescend to such an office, but if it could be shown that he quitted his brother's mansion and abandoned the society in which he had moved from his birth on some disgust, occasioned by transactions in which this very unfortunate Mr.

Roberts had a share, it might, indeed, be important in establishing a motive for the act with which he is charged."

Sir ---- instantly rose, and said aloud, "I hope my learned brother will not make insinuations which he is not able fully to bear out by evidence."

"If my learned friend had not interrupted me," replied the leader for the Crown, "he would have heard me declare that I was unwilling to press against the prisoner anything that could not be proved beyond all doubt; and therefore, that it was not my intention to connect any former disputes between the prisoner and the unhappy Mr. Roberts with the present charge; but to beg the jury to dismiss from their minds everything in their consideration of motives but the actual subject of dispute which I am about to allude to, and which can be proved by evidence unimpeachable."

"I must beg the interference of the court in protection of my client," said the prisoner's counsel, in a firm and stern tone; "it is contrary to all practice, and, I must add, contrary to all justice, to allude to imaginary circumstances as facts when there is no intention of proving them, thereby producing an impression upon the minds of the jury most detrimental to a prisoner, without giving the prisoner's counsel a fair opportunity of removing it. Were it not a most dangerous precedent, I should say that I am very glad such a course has been pursued by my learned friend, as, in this case, I am in a condition to rebut his insinuations as well as to disprove his facts; but, reverencing law and justice, and seeing great inconvenience likely to occur hereafter from such a practice, I must most solemnly claim the protection of the court for my client."

"The jury will rely only upon evidence," said the judge; "the assertions or insinuations of counsel, unsupported by evidence, are mere wind. The course of alluding even to any circumstance not intended to be proved, I must say, is very mischievous; but I dare say it was in the brief."

"I bow to the decision of the court," said the leader for the Crown; "but I can assure my learned friend, that I intended to produce no impression upon the minds of the jury but a just one; and, without at all recurring to the past, I am perfectly prepared to show by evidence that at the time the murder was committed, the prisoner at the bar and the unfortunate Mr. Roberts were

engaged in a very sharp dispute about some property left to the former. I have said, gentlemen of the jury," he continued, with perfect tranquillity and satisfaction, "that it would be irrelevant to inquire what could induce a gentleman of the prisoner's rank and pretensions to accept the humble post of gardener in the family of Mr. Tracy. However, the fact that he did so will be established, and in that situation he inhabited a cottage (number 9 in the plan) close to the hedge bordering the Lady's Walk, and was entrusted with a key of the small gate into the grounds (at number 10.) It will be in evidence, gentlemen, that after having been absent for about a month, by Mr. Tracy's permission, during which he had resumed his station, mingled with his own rank of society in London, and fought a duel with Viscount Overton, in which the latter was desperately wounded, the prisoner returned to his cottage at Northferry on the afternoon of the fifth of February, the day of the murder, and almost immediately went out again. It will be shown to you, that the sun was then setting, or had already set, and that he entered the gardens, and took his way towards the very spot where the crime was committed, having in his hand the identical hoe (or one precisely similar) which was afterwards found by the dead body. This will be proved by two witnesses, whose veracity will not, I presume, be impeached. You will soon have it in evidence, that he did not return to his cottage till six, when he was in a state of much agitation; that he then went to his room, and, after washing his hands, threw the water he had used for the purpose out of the window; but that, nevertheless, there was upon the towel a red stain, as of blood diluted with water. You will find, that one arm of the fustian coat which he wore that night was stained with blood; and it will be also shown that footmarks, exactly corresponding with the shoes he wore, even to the most minute particulars, were found coming and going from the spot where the murdered man lay to the haw-haw. Now, gentlemen of the jury, it may seem difficult to prove to you that the murder, which was not discovered till ten, took place between the hours of five and six. There would indeed be a presumption that such was the case, from the fact of Mr. Roberts having gone down in that direction at five in search of the prisoner, who was then in the garden, and never having got further than the Lady's Walk; but still there would be a doubt, and I should be the first to entreat you to give the person accused the benefit of that doubt. But, unfortunately, I regret most deeply to say it, by one of those strange accidents which ever, sooner or later, bring their guilt home to the perpetrators of great crimes, I have the

means of showing that the fatal deed must have been done some time between ten minutes or a quarter after five and half-past five." Sir ---- leaned forward and listened eagerly, and the leader for the prosecution continued, with an air of solemn sadness, "I allow from ten minutes to a quarter of an hour for any error that Mr. Tracy's servants may have made in regard to the time of Mr. Roberts' visit to the house, and for the time occupied by him in seeking through the grounds for the prisoner; but at half-past five, it then being almost dark, a little boy, the son of a gipsey woman, saw, in passing along as he returned from the school at Northferry, a dark body lying on the ground, like the figure of a man asleep, close by the little fish-pond or basin near which Mr. Roberts was murdered. The boy's history is not without its interest. He had, it seems, aided in saving the life of General Tracy, Mr. Tracy's elder brother, from the attack of a furious bull. The General, in gratitude, took the boy under his protection, and placed him to board at the cottage of the head-gardener. The hour at which he ought to have returned from school to the cottage was somewhat earlier--about five, I believe; but he met with his mother in the village, and lingered for a time with her. In order to shorten the way, he stole through the gardens, and got over the gate near the head-gardener's cottage, thus passing within twenty or thirty yards of the spot where the body lay. He will prove that he thought it was a man asleep, and that he is quite certain that it was a man."

The learned gentleman paused, and, from under his bushy eyebrows, turned a glance towards the face of the leader for the defence. What he saw there he did not exactly understand; for there was a very slight smile on the great barrister's lip; but that smile had something of triumph in it. He knew not if the smile was sincere, or whether it was not assumed to cover mortification; but yet, it was evidently kept down rather than displayed, and in this state of doubt he might not have called the boy, perhaps, had it been possible to avoid it. The passing of these considerations through his mind did not arrest his eloquence for more than a moment, and he went on as follows:--

"I have now, gentlemen of the jury, given you a brief outline of the case against the prisoner, as I believe it will be fully proved by evidence; and I do not think, if such be the case, and if the respectability of the witnesses is

unimpeached and their testimony be not shaken by cross-examination, that you can come to any other conclusion than that which, I grieve to say, I myself have arrived at. You will hear what they have to say, you will judge from their words, and even the manner in which their evidence is given, what credence they deserve. God forbid that you should attach more to their evidence against the prisoner than to any testimony which can be fairly adduced in his favour. What course of defence my learned friend may adopt I cannot divine, but mere testimonials of character, learning, high qualities, and previous integrity cannot avail here. Nor must rank and station be taken for one moment into consideration. A prisoner at the bar of justice stands stripped of all adventitious advantages. He is there as before the throne of Heaven, only in the common character of man. If he be of high rank and good education, it is no reason for pre-supposing innocence or extenuating guilt. Quite on the contrary. Crimes of the most serious magnitude have been proved against persons greatly elevated in station. Peers of England have suffered on the scaffold for deliberate murder; and the advantages of rank and education, in the immunity which they give from ordinary temptation, only serve to aggravate the offence. Nor can a previous upright, honourable, and even peaceful life, if it could here be proved, weigh much to neutralize distinct evidence. We have too many instances, gentlemen, of men, the great bulk of whose life has been high, holy, and innocent, yielding to some strong temptation, and committing acts which on cooler reflection they have often shuddered at. Need I cite the case of the unfortunate Dr. Dodd? You must look upon the prisoner merely as a man; you must weigh well every tittle of the evidence against him. You will find that, as in almost all cases of murder, that evidence is purely circumstantial; no man but a madman commits such a crime when the eyes of any but accomplices are upon him. But you have all too much good sense and experience not to know that a long chain of circumstantial evidence, perfect and unbroken as this seems to me to be, is more strong, more conclusive than even direct evidence. In such cases, to suppose a fraud on the part of the witnesses for the crown, is to imagine that an immense number of persons are all combined in one common league to destroy another, and that they have so well arranged their scheme that cross-examination will not unravel it: whereas, in direct evidence, often afforded by one or two witnesses only, a much greater opportunity is to be found for successful falsehood if any motive for injuring a prisoner exists. I do not ask a verdict

at your hands. I am far from desiring one against the prisoner at the bar. I pray Heaven that he may be able to exculpate himself and quit that dock free from all suspicion. Even if there be a reasonable doubt in your minds, you must give him the advantage of it; but you will remember that it must be a reasonable doubt. You must not say to yourselves, 'Perhaps he did not commit the act, after all,' because no one saw him commit it; but if the chain of evidence is clear and convincing, you must remember your oaths, your duty to your country and your God; and, having consulted only conscience, express by your verdict the conviction of your minds, as you will answer for it at the dreadful day of judgment."

The learned gentleman sat down after having produced a terrible effect upon the minds of the jury; but the judge, who was accustomed to such speeches, and moreover hungry, interrupted the further proceedings by inquiring, in the most commonplace tone in the world, if the evidence for the prosecution could be got through that night. There seemed some doubt upon the subject; and as it was now late; for the counsel had spoken very slowly, his lordship suggested that it would be better to take the evidence of one witness, and then adjourn to the following day. The testimony given was of little importance, for it only went to prove the identity of Chandos Winslow with John Acton--a fact which there was no intention of denying; and after it had been heard the court rose.

CHAPTER XXX.

There had been long and anxious consultations during the evening upon the case of Chandos Winslow: first came the question whether the objection to the indictment should be pressed; and it was ultimately agreed that it should not be altogether abandoned, although the leader seemed much more confident of making a good defence than his junior. Then came the important question of cross-examination; and Sir ----, with tact and delicacy, but in a very decided manner, pointed out the course which he

thought it would be necessary to pursue, and the objects that he wanted to establish.

"Our good friend, the serjeant," he said, speaking to the younger lawyer, "thought he had made a hit this morning in regard to the gipsey boy; but he was doing our work for us. We must endeavour, my dear Sir, to-morrow, instead of shaking the boy's testimony, to render it as precise as possible, so as to leave not the slightest doubt that the murder was committed between ten minutes or a quarter past five and half-past five; and we must endeavour to get from the old woman--Humphries, I think, is her name," and he looked at his notes--"an admission that Mr. Winslow might have left the cottage some minutes before five. For these two objects we must try, more than for anything else."

"I almost think that the game is rash," said the junior; "but you know best."

"We are positively precluded," replied the great barrister, "from the straightforward course of defence. I, individually, am placed in the most awkward position as the friend of the prisoner. I believe I ought not to have seen him at all; but my regard for him overcame my prudence; and when I did see him, he made communications to me which, while they left no doubt of his innocence greatly embarrassed me, under the circumstances, as to the defence. Those circumstances I cannot explain, even to you, my dear friend, all legal etiquettes, notwithstanding; but you will forgive me when you know that he bound me by a solemn promise not to reveal them to any one."

The conference did not terminate till late; and the little solicitor was in a mighty fuss from having found that the general opinion of the bar was decidedly against his client; a matter of no slight importance, be it remarked; for the bar is very seldom wrong.

On the following morning, at the usual hour, the judge took his seat, and the jury their places; the court was even more crowded than on the day before, and the prisoner was once more placed in the dock. No change had taken place in his appearance, except, perhaps, that he was even a shade graver. He asked, however, to be permitted the use of a chair, and to be

furnished with pen, ink, and paper, which was granted to him. The name of James Wilson was then called, and one of Mr. Tracy's footmen got into the box. I shall give his testimony in his own words:--"I am a servant in the employment of Mr. Tracy, of Northferry House. I was so on the fifth of February last. I remember on that day, about five in the evening, a gentleman coming to the door and asking me if I could tell him where to find Acton, the head-gardener. I answered that I could not, for that he had been absent for some time, by Mr. Tracy's leave. The gentleman seemed very much vexed, and I think said, 'How unfortunate!' But Mr. Jones, my master's valet, who was crossing the hall at the time, came up, and said, 'No, no, Wilson; he came back this afternoon.' And then turning to the gentleman, he said, 'If you go through that glass-door, Sir, and across the lawn, you will most likely find him somewhere in the grounds. If not, he must be at his cottage in the lane just beyond; any of the gardener's men will show you the way.' The gentleman then crossed over, as he had been directed, and went out into the grounds. I had never seen him before, but I remarked his face well. I never saw him afterwards alive; but the same night, about ten o'clock, I was called upon, with several more, to go down to a tool-house not far from the fish-pond, and I then first heard that the body of a dead man had been found and conveyed thither. The moment I saw the corpse, I knew it was that of the gentleman who had been inquiring for Acton. The body did not seem to have been rifled; and some money, a pocket-book, a watch, and a pair of spectacles, were taken from it by Mr. Tracy, as well as several loose papers; all of which he gave to Taylor, the butler, to keep, telling him to mark them, and, as I understood him, to give them to the constable. After looking at the body, we all went down to the place where the under-gardener had found it; we looked, as well as we could by the light of a lantern, for steps, but we could not find much then. As we were looking for the marks of steps, I found what they call a Dutch hoe, the iron part of which was covered with blood, and there was some gray hair sticking about it. When we went back to the tool-house where the body lay, Mr. Tracy sent for Acton, the head-gardener, who came up directly; he walked straight up to the body, when he was told a man had been found murdered in the grounds; and, in answer to a question from Mr. Tracy, said, he knew the dead man quite well, that his name was Mr. Roberts, and that he was agent to the late Sir Harry Winslow. He seemed very sad, but quite calm and cool. I see the person I call Acton in the court.

He is the prisoner in the dock. I cannot say whether he was surprised or not; he certainly looked horrified. Mr. Tracy showed him the hoe, and asked him whose it was. He replied immediately that it was his, and said, that he had left it leaning against one of the pillars by the fish-pond, while he spoke a few words to Miss Rose Tracy; he also said that he had quitted the garden immediately after speaking with Miss Rose."

"Did he make any remarks upon the hoe?" asked the examining counsel.

"He took it up," answered the witness, "looked at it for a minute, and then said the murder must have been committed with this."

The examination in chief here closed, and the counsel for the defence rose to cross-examine the witness.

"You have told us," he said, "that when Mr. Roberts called at Northferry House, in the evening, you remarked his face well. Had you any light in the hall?"

Witness.--"No Sir; but there was light enough to see, and the gentleman was quite close to me. The evening light comes through the glass doors; and what there was of it fell right upon him, so that I could see him quite well."

"That might very well be," said the barrister, "at a quarter after five, or even later: is it not so?"

"Oh dear yes, Sir," replied the witness; "and I recollect now, it could not be more than ten minutes after five; for Mr. Taylor said to me just the minute before, 'James, it is past five, and you have not rung the first bell;' and I looked at the clock over the kitchen door, and saw it was six or seven minutes after. I was running up to ring the bell when the gentleman came, and asked for Mr. Acton."

"Then was it ten minutes past five when Mr. Roberts called?"

"About it," answered the witness.

The Judge.--"How long would it take to walk down from the house to the place where the body was found?"

Witness.--"About ten minutes by the walks, my lord."

Judge.--"What do you mean when you say 'by the walks?'"

"Why, a man may cut across the lawns," said the witness.

Judge.--"Did Mr. Roberts cut across the lawns?"

Witness.--"Only a little bit; and then took the gravel walk on the right, through the shrubbery."

After a short pause, this witness was ordered to go down; and Lloyd Jones was called.

I shall proceed, copying from the report of the trial in "The Times."

Lloyd Jones said--"I am valet to Mr. Tracy, of Northferry House. I remember the fifth of February last. On that day, about five o'clock, I was passing through the entrance hall, towards my master's dressing-room, when I saw a gentleman at the door, speaking to the last witness. I heard him ask for Acton, the gardener, and the last witness say that Mr. Acton was absent. Having heard one of the men say he had seen Acton a few minutes before, going to his cottage, I stepped forward and told the gentleman he had returned, and would most likely be found in the grounds, if he would go through the glass doors on the other side of the hall, and seek him. He said he would; and I opened the glass doors for him. He cut across the corner of the lawn, and went down the gravel walk. He walked rather fast, and seemed eager to see Mr. Acton. I did not go down to the tool-house with Mr. Tracy when the body was discovered. I happened to be out at the time; but I saw the corpse next morning. It was that of the gentleman I had seen speaking to James Wilson. I never saw the person before. The prisoner at the bar is the person we have always called Acton. It was about five o'clock when the gentleman came, I know; because the first bell had not rung, and it always rang at five. There are two bells rung every evening at Northferry; one at five and one at half-past. My master dines at six in the country, and

at half-past seven in London. The second is called the dressing-bell. I am quite sure it was not the second bell, which had not rung. It was the first; for I always go to put out Mr. Tracy's things when the first bell rings."

Cross-examined by Mr. B----. --"You say that you always go to put out Mr. Tracy's things when the first bell rings. How came you to do so on that night before it had rung?"

Witness.--"Because it was later than usual. I suppose Wilson had forgot it."

Counsel.--"Then you were in a great hurry, I suppose, to get your work over, and to go and play the gentleman in the housekeeper's room."

Witness.--"No, Sir, I was not; but I know my duty, if other people do not; and when I found by my watch that it was some time past five, and the bell had not been rung, I said to Mrs. Hilston, 'If they do not choose to ring the bell, it is no affair of mine. I will go and get master's things ready.'"

Counsel.--"You seem to be a very punctual gentleman, indeed."

Witness.--"I hope I am, Sir."

"And pray how far did your punctuality extend on this occasion," said the prisoner's counsel, in a sneering tone; "that you should risk getting a fellow-servant into a scrape, by taking notice that the bell had not rung at the right hour? It was not above two or three minutes too late, I dare say."

Witness.--"I beg your pardon, Sir; it was near a quarter-of-an-hour."

Counsel.--"Are you quite sure?"

"Yes, I am quite sure," answered the witness; "for I looked at my watch."

Re-examined.--"James Wilson is usually very accurate. I am sure I did not intend to say a word against him; but that night he was a little late. It might be ten minutes, or a quarter-of-an-hour. I cannot say to a minute. I know it was a good deal after the time."

Edward Taylor was then called, and identified the prisoner as the person who had served Mr. Tracy in the quality of gardener, under the name of Acton. He then went on as follows:--"About a quarter-past ten I was called to speak with Slater, the under-gardener, who seemed in a great fright. He told me that in going his round, as he always did at ten, he had found a dead man, lying near the pond of gold-fish. I went directly down with him, thinking he might be mistaken, and that the man might only be drunk. We took several of the servants with us and a lantern. James Wilson was one of the party. We found there the body of Mr. Roberts, quite dead and stiff, and took it up amongst us, and carried it to the tool-house in the shrubbery. I sent up at once to tell Mr. Tracy, who came down directly. We did not do anything to the corpse, but carry it to the tool-house and lay it on the bench. We did not examine the pockets till Mr. Tracy came. There was the mark of a blow just above the temple, and a deep wound a little further back, with some of the brains smashed upon the hair. There was a great deal of blood about the corpse: the shirt-collar was all soaked with it. When Mr. Tracy came he examined the pockets and took out a letter, which I have delivered to the constable of Northferry, The letter was addressed to 'Richard Roberts, Esq., Winslow Abbey;' and was signed, 'Chandos Winslow.' Besides the letter, Mr. Tracy took out two or three papers, a pocket-book, a purse, a watch and seals, and a pair of spectacles. As soon as he took anything out of the pockets, he handed it to me, and by his orders I marked it as well as I could with a pencil. I have delivered the whole to the constable, in whose possession I believe they still are. He will produce them."

The witness then went on to describe the examination of the spot where the body had been found, and confirmed, in all respects, the evidence of the footman.

The next questions were, as to the conduct and demeanour of the head-gardener when summoned to the tool-house, by Mr. Tracy's order.

To interrogatories upon this subject, the witness replied,--"When he came into the tool-house, he seemed grieved and sad, but not at all surprised. He expressed no surprise, but looked at the body very sadly, and told at once who it was. He acknowledged that the hoe was his, but said he had left it leaning against the pillar; and, after looking at it, he said the

murder must have been committed with it. He said, he left the garden immediately after speaking a few words with Miss Rose, near the fish-pond."

Judge.--"I suppose you call Miss Rose Tracy; but I do not see her name here."

"We took it for granted, my lord, that she would be called for the defence," said the counsel for the prosecution.

"I beg leave to say that the crown had no right to take that for granted," observed Sir ----; "all that we could wish to get from Miss Tracy could be obtained by cross-examination, or perhaps would appear in her evidence in chief."

Judge.--"I think she ought to have been called for the prosecution. Will you proceed?"

"Which way did the head-gardener return to his cottage after having left the tool-house?" was the next question.

Witness.--"By the house; for the door near the gardener's cottage was ordered to be locked. He could not pass to and fro between the spot where the body was found and the haw-haw, without coming round again by the house, or getting over the hedge or gate."

Here ended the examination-in-chief; and as it came to a conclusion, a small slip of paper was handed from the prisoner to his counsel, who read it, and immediately began the cross-examination. "You say that before Mr. Tracy was informed of the fact of the murder, you went down with some of the upper servants and removed the body to the tool-house. At that time did any of you go from the spot where the corpse lay to the haw-haw?"

Witness.--"No, Sir: we took up the body as soon as we were sure the man was quite dead, and carried it to the tool-house."

"Will you swear," asked the counsel, "that when you afterwards examined the spot with Mr. Tracy, none of you went down to the haw-haw?"

Remember, Sir, you are upon your oath."

Witness.--"I never said nobody went down. Perhaps they might. I don't recollect."

Counsel.--"Your memory seems to halt very strangely. Will you swear that one of the men did not go down and look over the hedge into the haw-haw to see if there was anybody there?"

Witness.--"I believe one of them did; but I am sure I do not recollect who it was."

Counsel.--"Oh! Now, Sir, for another part of the subject; and be so good as to be a little sincere; for recollect that you are sworn to tell 'the whole truth,' as well as 'the truth.' You have said that Mr. Tracy ordered the gate near the head-gardener's cottage to be locked. Pray, did he do this of his own mere motive, or was it suggested to him?"

Witness.--"It was suggested to him by Mr. Acton, that is to say, Mr. Winslow, who said, that it would be better to lock that gate, and then the men, having to go another way to their work, would not put out any marks that might be upon the ground; and he gave up to Mr. Tracy his own key."

Counsel.--"Well, that was not very like a guilty man. Now tell me, was the ground hard or soft at that time?"

"Soft, Sir," answered the butler; "for the frost had not long broke up."

"Then the marks of all the feet which went about the place would be very distinct?" said the counsel.

Witness.--"Why, Sir, there were such a number of them, that they must have cut one another up a good deal."

Counsel.--"Pray, were you with the constable on the following morning, when he went to trace and measure the steps?"

Witness.--"Yes, Sir."

Counsel.--"Pray which of the line of traces was it that corresponded with the shoes of the prisoner?"

Witness.--"They were all the same. There were two lines, one from the fish-pond to the haw-haw, and one back again to the spot where the corpse was found."

"That is to say, merely to and fro," said the counsel.

Witness.--"Yes, Sir; I did not see any more."

"Pray, did you measure any body else's shoes?" was the next question; but immediately the counsel for the prosecution rose and objected to the course of the cross-examination.

He said "that nothing in the examination-in-chief could naturally lead to the questions now asked."

"I seek, my lord," said Mr. B----, "simply to elicit the truth, which is, I believe, the object of the court. The witness has admitted that one of the men, in examining the spot after the murder, went from that spot to the haw-haw and back; and that there were but two lines of traces. Now I wish to show--"

Judge.--"I cannot allow the argument to go on. There are rules of evidence which no one is better acquainted with than the counsel for the defence. He must be aware that this line of cross-examination is inadmissible."

Counsel.--"I bow to the ruling of the court. You may go down, Sir."

He had, in fact, obtained nearly all he desired; and it may be as well to remark, that poor Mr. Taylor was one of those victims of the bar who, on entering a witness-box, show a certain sort of nervousness, which immediately indicates to cross-examining counsel, the existence in their minds of a quality which may be termed *perplexability*; which, like the scent of the hare or the fox, instantly leads the whole pack in full cry after them. Poor Taylor was as honest a man as ever lived; but yet, confounded

by his cross-examination, and not very well recollecting the exact circumstances of events which had taken place when his hair was standing on end with horror, he had told, or admitted--which comes to the same thing--an exceedingly great falsehood. None of the men who examined the spot with Mr. Tracy, had gone down to the haw-haw; but the counsel had put it in such a way that, in his confused remembrance of the events, he was at first afraid of denying it; and afterwards became persuaded it was true. Had he remained much longer in the witness-box, and had the counsel been permitted to pursue his own course, there is probably nothing in the range of possibility which Mr. Taylor would not have vouched upon oath; for he was becoming more and more confounded every moment.

The counsel for the prosecution saw the state he was in too well to venture to re-examine him; and thus he was suffered to depart in peace.

The next witness who was called was 'William Sandes;' and a stout countryman entered the witness-box, with a somewhat heavy, dogged countenance. He deposed as follows:--"I am a labouring gardener in the employment of Arthur Tracy, Esq. I remember the events of the fifth of February last distinctly. I had worked in the garden all day, and at five o'clock in the evening I was returning home with my son behind me. In the walk that leads from the pond of gold-fish--what we call the Temple basin--to the gate by the head-gardener's cottage, I met Mr. Acton, the prisoner at the bar--I did not know he had come back. He had a hoe in his hand--what we call a Dutch hoe. I have seen a similar one in his hands often before. I saw the same, or one very like it, before the crowner's jury--"

The prisoner here said aloud, "The hoe was mine."

The witness then continued: "Mr. Acton spoke a few words to me and to the boy. I know him quite well, having served under him some months. I can swear it was the prisoner I met. He was going from the gate near his own house towards the basin. He had on a fustian coat with large pockets, such as he generally wore on working days. I did not look at his shoes. I did not hear of the murder till late that evening, when one of the servants from the house came down for the key I have of the gate. He woke me out of bed, and told me a man had been found murdered in the grounds. I went the next morning before the crowner and told all I knew."

The witness was then cross-examined.--"What induced you to go before the coroner, when you knew nothing of the murder?"

Witness.--"Why the servant, that is, Burwash, the boy, who was sent for the key, said that they all thought Mr. Acton had done it; and so I said, 'Likely enough; for I met him just going down that way.' And then he said I must go before the crowner, for Mr. Tracy had sent for him; and I said I would."

Counsel.--"Very kind and liberal on all parts! But now tell me if you were quite sure it was the prisoner. Remember, the sun was down, and it must have been darkish."

Witness.--"Not a bit of if. It was quite light, master. I don't think the sun was down. I saw him as plain as I see you."

"Pray, how could that be at past five o'clock?" asked the counsel.

Witness.--"I did not say it was past five o'clock. It might be a minute or two before."

"But what I want to know is, are you quite sure?" continued the counsel; "suppose another man, very like the prisoner, had passed you in the same dress, at past five o'clock on a darkish evening, can you swear that you would have distinguished him from the prisoner at the bar?"

"Why, I tell you as plain as I can speak, it was not past five," cried the witness; "it might be a quarter afore, for that matter."

Counsel.--"Ah! Then it was a quarter before five, and broad daylight, was it?"

Witness.--"Yes, Sir, it was."

Counsel.--"Now then for another question, my man. I see you are a good downright fellow, who will speak the truth for or against, without caring. Did you and the head-gardener ever have any quarrel?"

Witness.--"We once had a bit of a tiff."

Counsel.--"What was it about?"

The counsel for the prosecution objected to the question. The judge said he did not see how it bore on the examination-in-chief; but Mr. B---- insisted, and he was supported strongly by his leader, who declared that the answer of the witness would immediately show the connexion. If it did not, it could be struck out of the evidence.

Counsel for the crown.--"After the impression has been produced?"

Counsel for the defence.--"Not at all. The cause of the quarrel is immediately connected with the examination-in-chief. My learned friend does not venture to put the question in a leading shape, as some counsel would not scruple to do. But if we are overruled, I will so frame the question in one minute as to be unobjectionable in point of form, and perhaps less pleasant to those who seek a conviction, than in its present shape."

He spoke with some heat, and the question was allowed, and repeated.

Witness.--"Why, it was in January last, when there was little to be done in the garden, and I went away a bit before the time, because it was our club night. He jawed me about it, and said as long as he was head-gardener the men should keep their time."

Counsel.--"On the night of the fifth of February, I think you said that you did not know the prisoner had returned till you saw him?"

Witness.--"No, that I didn't."

Counsel, emphatically.--"I have done."

Witness re-examined.--"I think it was five o'clock when I met the prisoner, I cannot exactly say. I have a watch, but I do not always look at it: I did not that night. I guessed it was five, and I went."

The next witness was Mr. Andrew Woodyard, surgeon, who deposed that he had examined the dead body of a person who, he was informed, had

been found in the grounds of Mr. Arthur Tracy, of Northferry House. He had discovered, he said, severe injuries on the head, consisting of a contusion over the left temple, and a contused wound further back, on the same side, which had fractured the skull and injured the brain. The latter was the immediate cause of death. It must have been inflicted with a sharp instrument. A blow from a Dutch hoe would probably produce all the appearances which he had observed. He had no doubt that the wound was the cause of death.

Counsel for the prosecution.--"Would such a blow always produce death as an inevitable consequence?"

Witness.--"No."

Counsel.--"In what cases do you think, Mr. Woodyard, a more favourable result might be anticipated?"

Witness.--"In cases of idiots, of atheists, and of young lawyers: that is to say, where the brain is soft, is wanting, or is wrong placed."

Counsel for the defence, laughing.--"We shall decline to cross-examine this witness;" and, without moving a muscle of his face, Mr. Woodyard was about to quit the box, when the judge exclaimed in a severe tone, "The witness will do well to remember, that to give evidence in a court of justice is a serious matter."

"I am perfectly serious, my lord," replied the surgeon, turning full upon him; "I am well aware that none but judges and queen's counsel at the lowest, are permitted to play the fool in such places as this."

"I have a great mind to commit you, Sir," thundered the judge, bending his brows upon him.

"In so doing, my lord, you would commit yourself," said Mr. Woodyard; and without waiting for the falling of the storm, he hurried out of the court. The judge hesitated. The judge was angry, but he saw that the trial was likely to be long. He did not like interludes; and Mr. Woodyard escaped.

Michael Burwash was then placed in the box, and deposed to all the facts which had been proved by the other witnesses who had accompanied Mr. Tracy to the tool-house on the night of the murder. He also stated that he had been sent to ask Sandes for the key; and in addition to the evidence of the others, he said he had seen the gentleman who was murdered cross a corner of the lawn a little after five o'clock, on his way to the spot where the body was afterwards found. The counsel for the defence did not cross-examine him upon any of the points deposed to by others. They were wise men, and let well alone. The first question the junior counsel asked was, "Pray, what did you say to Mr. Sandes when you asked him for the key?"

Witness.--"I told him a man had been found murdered in the grounds, and master did not wish to have the footmarks disturbed."

Counsel.--"Nothing more?"

Witness.--"I might say a word or two more."

Counsel.--"Out with it, young man; we must have the whole."

"Why, I told him," said the witness, after having looked at the stern face of the judge, and the impatient face of the leader for the prosecution, "that all the servants thought that Mr. Acton had done it; and that he ought to go before the coroner."

"What made you and the servants think the head-gardener had done it?" asked the barrister.

Witness.--"Because he was in the grounds the last; and because we all thought him so Eugene Aram like. He kept by himself, and talked Latin and all that."

Counsel.--"I am afraid we of the bar are in great danger of accusation of murder. This is the best reason ever given for having the pleadings in English. You say, witness, that Mr. Acton, or the prisoner at the bar, was the last person in the grounds; how did the servants know that?"

Witness, in a whimpering tone.--"I cannot tell."

Counsel.--"I must have some answer. Will you swear that you yourself did not see some person in the grounds after you saw Mr. Roberts cross the lawn?"

Witness.--"No, I won't swear, because I did."

Counsel.--"Who did you see; and when?"

Witness.--"I don't well know who it was; but about ten minutes after Mr. Roberts went across, I saw some one come up the dark walk--I was shutting the dining-room window-shutters at the time--and he went in by the door of the green-house."

"Then is there away through the green-house or conservatory in the house?" asked the counsel.

"Yes; it leads into the hall on the left hand side," replied the witness.

Counsel.--"Now we must hear more of the person. Who was it?"

Sir ---- turned and looked towards the dock. Chandos was sitting with his arms upon the bar, and his eyes buried on them.

"I do not know--I cannot swear," replied the witness.

Counsel.--"Was it Mr. Tracy?"

Witness.--"No; it was a taller man than he."

"Was it General Tracy?"

"No; not so stout by a good deal."

Counsel.--"In a word: was it the prisoner at the bar?"

Witness.--"No; he is a good deal taller than the gentleman I saw."

Counsel.--"Was it a gentleman, then; or any of the servants?"

Witness.--"It looked like a gentleman's figure; but it was growing dark, and he walked on very quick indeed. I could not clearly see who it was."

Counsel.--"I have done with you;" and he sat down with a look of satisfaction.

There was a murmur amongst the bar. The case for the prosecution seemed breaking down. It was a result not at all expected, and the cross-examination by the junior, who was a very young member of the profession, but blessed with several eminent solicitors for relations, was looked upon as highly creditable. None of the barristers were for a moment deceived. They all clearly saw and understood that several of the witnesses had been perplexed and confounded; and nothing had shaken their conviction of the guilt of Chandos Winslow till the admission made by the last witness, that some one had been seen entering the house of Mr. Tracy, in a hurried manner, and by a private and somewhat obscure entrance, some ten minutes or quarter-of-an-hour after the murdered man had passed across the lawn. It was, in truth, the first fact for the defence; and legal acumen instantly detected that this was a verity of great importance. None of the lawyers present, however, were ignorant of the great impression which the admissions extracted from other witnesses might make upon a jury, if followed up by any available line of defence; and they, therefore, as I have said, looked upon the case as breaking down, under a pressure of doubts, all of which must be favourable to the prisoner.

There has seldom been a trial, however, in which the opinions of the most acute and sensible men varied so often, under the different aspects which the evidence gave to it at different times. Through the examination of the next witness the same feeling prevailed, namely, that satisfactory proof would fail. The person who succeeded Burwash in the witness-box was Henry Haldemand, the constable of Northferry, who, after stating his rank, condition, and degree, went on as follows:--

"There were delivered to me, when I went down, on receiving Mr. Tracy's message, several articles which had been found on the person of the deceased. I here produce them. The first is a letter, marked No. 1."

This was the letter which Chandos had written to Mr. Roberts on the night preceding the murder, and it was ordered to be read aloud. As the reader has, however, already perused it, it will not be necessary to reproduce it here. The impression did not seem so great upon the court as the counsel for the prosecution expected.

The snuffling tone in which the letter was read detracted from the effect; and it was generally regarded as merely showing that some sort of dispute might have existed between the prisoner and the deceased, without by any means establishing a sufficient motive for so great a crime. It gave an additional shade of probability to the charge, but that was all. Other papers, marked Nos. 2 and 3, were produced; but the counsel for the prosecution thought they did not bear upon the case, and they were consequently not read. The watch, the purse, and the pocket-book, of course, threw no new light upon the matter, and only occupied a few minutes more of the time of the court. The constable then went on with his evidence in the following strain:--"Early on the morning of the sixth of February I went to the spot where the dead body had been found; I took with me Alfred Tims, shoemaker, of Northferry. We found a great many footmarks round the spot where the deceased had been lying, so many, that we could make nothing of them. One line of steps we traced from the spot to the haw-haw; they were very distinct upon the turf; the heel was towards the haw-haw, the toe towards the spot where the murder was committed. We found another line like it from the fish-pond to the haw-haw; the heel was towards the fish-pond, the toe towards the haw-haw. In the dry ditch beyond the hedge were several of the same footmarks, and the hedge seemed to have been broken through. We measured the footmarks exactly; there was but one line, either coming or going, made by a right and left foot. After we had measured the marks, I went up to the cottage of the head-gardener, from information I had received, and desired to measure his shoes. He offered no opposition, and produced the pair he had worn on the night before. They had not been cleaned; and it seemed to me that there was some blood on the toe of the right shoe: I can't swear it was blood; but there was certainly something red upon it. We took away the shoes with us, and went back to the spot in the grounds. The shoes corresponded exactly with the marks to and from the haw-haw, and with those in the dry ditch. In the latter we found one very distinct print; there were some small nails in the outside edge of the shoe,

and marks corresponding on the ground. I afterwards went back to the cottage of the prisoner, to examine his clothes; but found that he had gone down to Northferry, and taken the clothes he had worn on the preceding night with him."

The cross-examination then commenced, and the counsel for the defence said, "Two or three questions will be enough, witness. Are you aware why the prisoner went down to Northferry and took his clothes with him?"

Witness.--"To attend the coroner's inquest, I believe. I know he went there."

Counsel.--"Voluntarily?"

Witness.--"Yes, I believe so."

Counsel.--"Pray did you measure the shoes of any one else besides those of the prisoner?"

Witness.--"No, I did not."

Counsel.--"Were you informed that one of the men who accompanied Mr. Tracy on the night before had gone down to the haw-haw, to see if there was any one concealed in the ditch?"

Witness.--"No, I never heard it."

Counsel.--"That is a pity. I have done."

Judge.--"Where are the clothes? for by the notes of the inquest they are important."

Witness.--"They are in the hands of an officer of the rural police. I belong to the parish of Northferry: it is not in the same county. Mr. Tracy's house is in this county, but Northferry is not." All the counsel wrote rapid notes, expecting, probably, some nice points of law.

A sergeant of rural police was then called, who produced a fustian coat, upon the arm of which was evidently a large stain of blood. It was on the

inside of the arm, just at the bend, and there was no mark upon the cuff. His evidence was very short. "I took the prisoner into custody," he said, "after the coroner's jury had returned their verdict: he had the coat I produce with him. I examined his person: his hands were considerably torn and scratched, as if with thorns; in his pocket there was five-and-thirty pounds six shillings, in gold and silver, and also three letters, addressed to 'Chandos Winslow, Esq.' It was then I first became aware of his real name. I had seen him more than once before; but always thought his name was Acton. He gave no explanation whatever in regard to the charge against him; but said, when we were in the chaise together, that the coroner's jury had done very right; for the evidence was strong, although he was perfectly innocent."

Witness, in answer to the judge.--"The prisoner bore an exceedingly good character in the neighbourhood, as a kind and humane young man. He saved a lad from drowning--fetched him out from under the ice, where he had been sliding, and never left him till the doctor had brought him to."

This witness was not cross-examined; and the next witness that was called was "Alice Humphreys." The poor old woman, who for the last three months had acted as servant to Chandos Winslow, walked with anxious look and trembling steps into the witness-box, and cast a scared glance round the court, passing over the array of jurors and barristers, till at length it lighted on the prisoner's dock, when she exclaimed, in simple sorrow, "Oh, dear, Sir! dear me! To think of this!"

Chandos Winslow gave her a kind look; and the judge exclaimed, in a sharp tone, "Attend to the business before you, witness."

With a faltering voice, which called upon her many an injunction to speak out, the poor old woman deposed as follows:--"I am servant to the prisoner, and had kept house for him for about three months on the fifth of February last. He had then been absent, by Mr. Tracy's leave, about a month, and he came back on that day about half-past four. He seemed very gay and cheerful, and asked me a great number of questions, which I do not recollect. I remember he asked about the little boy, Tim, that is the gipsey woman's son, whom General Tracy took and put to live with us. Mr. Acton asked why he was not there, and where he was; and I told him the young ladies sent him every day to the day-school at Northferry. He seemed to be

in a hurry to go out again, however; and said he must take a look round the grounds before it was dark; so that he did not much listen to me. It was just five when he went out again. I know it was five, because the clock went as he opened the door. He was gone about an hour, or a little better. The boy, Tim, was late before he came home; he did not arrive till half-past five, or more; and he usually came at a quarter before five. When I scolded him, he said he had seen his mother in Northferry, and she had kept him; and he told me, besides, he had seen a man asleep in the grounds."

Judge.--"That cannot stand in evidence."

Counsel for the prosecution.--"Very well, my lord: we will have the boy. Now, my good woman, when did the prisoner return?"

Witness.--"He was away more than an hour, and it was quite dark when he came back."

Counsel.--"Describe his appearance."

Witness.--"Why, Sir, he was as white as a sheet, and his hands were all over blood. The little boy ran up to him directly; for Tim is very fond of him, as well he maybe, for he's a kind, good gentleman as ever lived. But he said, 'Stay a bit, Tim, I will come down again in a minute.' And then he went up stairs to his room, which is just over the parlour; and presently after, as I was putting out the tea-things, I heard some water thrown out of the window. When he came down again, the blood was off his hands, and he had another coat on."

Counsel.--"Did you observe anything particular in his manner or demeanour during the evening?"

Witness.--"He was very sad, and astray like, all the time. He took the boy and kept him by his knee, and asked him a great number of questions about his learning, and heard him a part of his catechism. He said he had been a very good boy, and if he always behaved well and did his duty, he would be a happy man; but he kept falling into studies, as if he was thinking of something else; and once or twice he got up and walked heavy up and down

the room. He did not say anything about what had made his hands bloody, nor take any notice of where he had been."

Counsel.--"Did you remark if his hands bled at all after he came down?"

Witness.--"No, Sir, I did not see them bleed. They seemed quite white, as they always were: whiter than most gardeners' hands."

In answer to other questions, she proceeded to state that the prisoner took a Dutch hoe with him when he went out, and had none when he came back; that about half-past ten he was called away to speak with Mr. Tracy, and then she heard of the murder; that she went up to his room during his absence, to see if anything wanted putting to rights, when she found his coat, all bloody on the sleeve, thrown over a chair, and the marks of bloody hands upon the towel. "When he came back," she deposed, "he seemed very sad, but not so astray-looking as before; and he told her that the gentleman who had been murdered was a friend of his, and that he should have to go down and give evidence before the coroner. He bade me wake him, too, if he overslept himself," continued the witness; "for he said he had walked a good way in the course of the day, and was very tired."

Here ended the examination by the counsel for the prosecution; and a momentary consultation was seen to take place between Sir ---- and his junior.

"No, no; go on," said the great barrister; "no one could have done it better. I am perfectly confident in your judgment."

"But I am somewhat fatigued," said Mr. B----; "and as it is of so much importance, I would rather you undertook it."

"Very well; to relieve you, but for no other reason," said Sir ----, and he rose to cross-examine the witness himself.

"When I remind you, witness, he said, that you are upon your oath, it is simply because I believe you to have a sincere affection for your master, as every one has who has the honour and pleasure of knowing him; and I wish you to understand that nothing can so well serve him as the plain,

undisguised truth. Give, therefore, clear and unhesitating answers to my questions, that the court, convinced of your sincerity, may attach due weight to your testimony. Did the prisoner, when he returned to his cottage, make any attempt to conceal the blood upon his hands or coat?"

"Oh dear no, Sir," replied the witness; "he held his hands straight before him, and came at once to the light."

Counsel.--"When you saw the coat, did it appear to you that any attempt had been made to wash out the blood upon the arm."

Witness.--"No, Sir. There it was, plain enough."

Counsel.--"Did you remark any scratches or wound upon his hands?"

Witness.--"Yes, Sir, they were a good deal scratched, specially the left. There was a good big tear in that."

Counsel.--"Now, you say, he came in first about half-past four. How long did he stay?"

Witness.--"Some quarter of an hour or twenty minutes."

"But you say he went away at five," said the barristers; "how can that be?"

The woman looked puzzled. "Why, I heard half-past four go just before he came in, by the church clock; and clocks differ you know Sir."

Counsel.--"They do. You marked his coming by the church clock. Pray what clock did you say struck when he went?"

Witness.--"No; it did not strike. It was the cuckoo that went."

Counsel.--"But does your cuckoo always sing right, my good woman?"

Witness.--"Not always, Sir. It is a bit too fast at times."

Counsel.--"It is not worse than other cuckoos, I dare say. There are some of them fast, some of them slow, like men's minds--

"Tis with our judgments as our watches, none
Go just alike, yet each believes his own.'

Can you give me any notion how much your cuckoo clock was usually before the church clock? It differed, of course; but on the average--at its ordinary rate of going?"

Witness.--"Why it got on two or three minutes a-day; but I do not recollect when I last put it back with my thumb."

Counsel.--

"Ay, 'tis beyond the date of memory:
Event upon event so oft hath trod,
With quick recurring foot, 'tis hard to trace
The worn-out print of Time's incessant step.'

But cannot you give me some idea of what day you usually put the cuckoo clock back with your thumb? These things acquire a regularity by habit which is rarely deviated from, especially in regard to clocks. Every man, woman, and child in the kingdom who has a clock, watch, or other indicator of Time's progress, has some particular day, or perhaps hour for winding up and putting it right. Can you tell me what day you wound up your cuckoo clock, and whether you put it by the church or not on that day?"

Witness.--"I always wound it up o' Saturday, at about eleven, when I had put the pot on; and I generally set it to rights by the church, if I could hear it, that we might not be late at service the next day."

Counsel.--"And if you did not set it on Saturday, did you ever meddle with it during the week?"

Witness.--"Not that I remember ever. I did the two jobs together; for I had to get up upon the stool, which I was not over fond of, for the stool was

old, and I was old; and if we had tumbled we might both have gone to pieces."

All the bar laughed heartily, and encouraged the good old woman amazingly: but the great barrister did not forget his point.

Counsel.--"Am I to understand you, that if you did not set the clock on Saturday, you did not set it during the week?"

Witness.--"No, never."

"Then can you tell me if you set it on the Saturday before the prisoner returned?" asked the counsel.

Witness.--"I can't justly recollect."

Counsel.--"Well, it got on two or three minutes a-day, you say; so if you did set it on Saturday, the thirty-first of January, it would have got on from ten to twelve minutes, at the least, and might have done so a quarter-of-an-hour, before the evening of Thursday, the fifth; which would make your other calculation right, that the prisoner returned about half-past four, by the church clock, remained a quarter-of-an-hour or twenty minutes, and went away at five by the cuckoo, or a quarter to five by the church."

"That is likely," said the witness; "I dare say our clock was a quarter too fast--it generally was. It was quite light, I know, when he went away."

Counsel.--"Then I won't trouble you with any more questions, Mrs. Humphreys; and I am very much obliged to you for replying to those you have answered."

Witness.--"Well, you are a civil gentleman, I do declare!"

Witness re-examined.--"I am sure the clock went fast, not slow. I said I put it back that we might not be too late at church, because when it was right we were right, and if it were wrong we might trust to its being more wrong than it was.--Well! you are a saucy one!--The other is a very civil gentleman. But I do not see why you should take liberties with old women."

A roar of laughter followed in the court; and the judge coughed sonorously.

I should say that the merriest place on earth--I go no further--is a court of justice during certain criminal trials. It seems as if the solemnity of the scene, and the awfulness of the circumstances, brought out all that is risible with extraordinary effect, as a black background throws out a bright figure. Perhaps, few trials had ever excited more strong feelings than that which was now proceeding. There stood the prisoner, whose life was at stake, an object of admiration to many, of interest to all; in the prime of his youth and strength; eminently handsome; richly endowed with powers of mind; of ancient lineage and high name; connected with some of the noblest in the land; kind, generous, high-spirited; with genius throned upon his brow and flashing from his eye: his life hung upon a word; and yet, the whole court laughed at the silly simplicity of a good but vulgar old woman--laughed cheerfully, as if there were nothing like life and death in the world--laughed as if human suffering and human crime were unknown in the place where they were met to inquire into the murder of one fellow-creature, and to adjudge another, either to prolonged existence with all its bright companionships, or to speedy death--the scaffold, the cord, the grave, the worm!

It was very horrible that laugh; and Chandos Winslow's brow grew dark, as if they were sporting with his fate. He could not laugh--he could not join in their heartless merriment. More than life was at stake for him--honour and good name--ay, and perhaps love. Verily, we human beings are lighter than vanity; and the lake of the spirits of men is rippled by the least of all possible breezes.

The judge was the only one ashamed at his gravity being upset; and he endeavoured to cover his merriment by saying in a stern tone. "Old woman--that is to say, witness, you must respect the court. Was your clock right or wrong on this identical evening, the fifth of February? That is the question."

"I dare say it was not quite right," answered Mrs. Humphreys; "it seldom is for two days together; but how far wrong it was on that day I cannot tell--may be a quarter-of-an-hour, my lord."

"It is a very extraordinary thing," said the judge, "that they will have such clocks in the country. Neither the clocks nor the rural police ever go right. You may go down, witness."

"Timothy Stanley" was now called; and something very small was seen making its way resolutely through the court towards the witness-box. The persons near stared at the child and drew back, treading on the toes of those behind; and one of the officers of the court caught hold of him to administer the oath. But the judge, who had a conscience, though it was peculiarly organized, shouted out: "Stay, stay! That is an infant. Put him in the box for a moment before you swear him. Give him something to stand upon;" and, adjusting his spectacles, he gazed at the small intelligent features of the boy with interest and curiosity.

"Do you know the nature of an oath, my little man?" asked the judge at length.

The boy remained silent for a few seconds; and then the voice of Chandos Winslow was heard amidst the stillness of the court, saying aloud, "That he does, my lord. I taught him."

"Why does he not answer then?" demanded the judge.

"Because your language, my lord, is perhaps above his comprehension," replied the prisoner. "He is here as a witness against me; but if you would permit me to suggest, you would ask him first, What are the consequences of a lie?"

"Tell me, my little man," said the judge; "do you know what are the consequences of a lie?"

"Disgrace and shame amongst men, and the anger of Almighty God," replied the boy, readily.

The judge wiped his spectacles; for something touched him.

"Now, if you would pardon me, my lord," said the prisoner, "you would inquire, What are the consequences of calling upon God to witness a

falsehood?"

"Do you know, boy," asked the judge, "what is the consequences of taking God's name to a falsehood?"

"The loss of his protection for ever," said the little witness, "for the greatest offence and insult to his truth and holiness."

There were several eyes had tears in them, and the judge said, "Swear him--you may swear him."

"I won't be sworn!" said Tim, stoutly.

"Why not, boy?" demanded the judge.

"Because I won't say anything that may hurt him," rejoined the boy, pointing to the dock.

There was again a silence, and Tim stood resolutely in the witness-box with his hands in his pockets, and his eyes fixed upon Chandos Winslow.

"My dear boy," said the prisoner; "nothing you can say will hurt me if you tell 'the truth, the whole truth, and nothing but the truth,' as they will put the oath to you. But if you are silent, they will think you know something against me."

"Oh! that I don't," cried the boy, clasping his hands.

"Then take the oath, and tell the whole truth," said Chandos; "by so doing you will do me more good than by any other course."

The boy gazed in his face for an instant, and then said, "Well, I will, then; for you always tell the truth; and I am sure you would not cheat me."

"Not for the world," said the prisoner; and the oath was administered.

The counsel for the prosecution hesitated for a moment or two, as if he doubted whether the boy's testimony would produce the effect he desired; but then he began the examination, touching but lightly on the point on

which he had laid most stress in his speech. He was a sagacious observer of an opponent's proceedings, and he had already divined from the course of examination pursued, that it was as much the object of the counsel for the defence to fix down the commission of the crime to a certain period, as it had at first been his own. He looked upon a criminal trial as a sort of game at chess, where there were certain moves of necessity, but where it was expedient to vary his play according to the skill and the moves of his adversary. The method in which he conducted the examination produced the following evidence.

Witness.--"On the fifth of February I went from the cottage of Mr. Acton--the prisoner--to the day-school at Northferry. I went about seven in the morning. I came back to dinner at one, and returned to school at two. I left school at a little past four. I met my mother at the corner of the lane, and went back with her into the town. She bought me two penny buns at the shop, and we sat down and talked in the marketplace while I ate them. She had been selling rabbit-skins to the hatter. I do not know how she got them. She talked to me of a great many things. She asked me if Mr. Acton had come home yet, and I said, 'No.' She said he would be home soon, for she had seen him. She did not say when she had seen him. She did not say whether that day or the day before. She only said she had seen him. The church clock had just gone five a few minutes before; and I said, 'I must get home, mother, or Dame Humphreys will scold.' She kept me about five minutes more, and then let me go. It was getting quite dark when I came to the gates of the house--Mr. Tracy's house; and as they were open and it saved a good bit I slipped in and down the walks, into the Lady's Walk. When I came into the Lady's Walk it was a little lighter there, for there were no trees to the west; and I saw some one lying upon the grass close to the fish-pond of gold and silver fishes. I am sure it was a man, for I said to myself, 'There is one of the fellows drunk.' He lay quite still, and I went up the walk and got over the gate to the cottage. The prisoner was not there when I arrived. He did not come in for more than half-an-hour. I ran up to him; but he said, 'Do not touch me, Tim. Stay a bit, and I will be down in a minute.' I saw that his hands were all bloody, and that there was a great mark of blood upon his arm. He went up stairs and stayed some time; and when he came down he had on another coat, and his hands were clean. He was very white when he came in. His face is not usually white. He seemed

heavy, but he heard me my catechism, and talked a good deal to me till I went to bed. I thought he looked strange, different from what I had ever seen him look before. Often while he was talking to me, he would begin to think, and stop in what he was saying; and once he got up and walked up and down the room. He was very strange till I went to bed."

Here ended the boy's examination-in-chief; and it was remarked that the counsel for the prosecution had not asked at what hour the witness had seen the man lying in Mr. Tracy's grounds, nor at what hour the boy had reached the cottage. Nevertheless, the impression produced by the witness's evidence was strongly against the prisoner. The simplicity with which it was given, and the evident bias of all his affections towards his friend and protector, when put in contrast with the facts which he disclosed--the pale face--the agitated demeanour--the moody thoughtfulness--the bloody hands--the stained garb, told wonderfully upon the minds of the court and the jury. Nor did the cross-examination remove this impression, though Sir ---- seemed perfectly unaffected by it, and rose with as calm and confident an air as ever.

"You are a dear, good little fellow," he said, in a kindly and almost playful tone; "and I wish to Heaven a great number of grown witnesses would take example from the clear and straightforward manner in which such a child gives his evidence. Pursue the same course, witness, and for my part, I will do nothing to puzzle or confound you; I seek but the truth."

Perhaps he took a little advantage of his high position at the bar, and the respect in which he was universally held, to commence the cross-examination in this discursive manner; but he then proceeded as follows. "You say that your mother asked you if the prisoner had returned home, and told you that he would do so soon, for that she had seen him. Can you recollect exactly at what time that was?"

Witness.--"It was after five, for the clock had struck."

Counsel.--"Did your mother leave you at any time after she first met you and bought you the two buns you have mentioned?"

Witness.--"Yes, she left me just the minute before she asked me that question: and she told me to sit by the pump till she came back."

Counsel.--"Did you yourself see the prisoner in the town while you were in Northferry that evening?"

Witness.--"No, I did not; but I think mother did; she kept looking down the street when she asked me."

Judge.--"That will not do; that is not evidence."

Counsel.--"Undoubtedly it is not, my lord; but I did not seek for it. Now, witness, tell me at what hour, as near as possible, you left the town."

Witness.--"The quarter had not gone, but it must have been hard upon it."

Counsel.--"And at what hour did you reach the gardener's cottage?"

Witness.--"I looked at the clock when I came in, and it wanted a quarter to six; but then our clock is well-nigh a quarter too fast, and more of Friday nights, for Dame Humphreys only sets it on Saturday morning."

"Then by that calculation," said the counsel, "it must have wanted five-and-twenty minutes, or an half-hour to six when you got home. But tell me, do you know the clock very accurately?"

Witness.--"Yes, Mr. Acton taught me two months ago."

Counsel.--"And his kindness will save his life. How long does it take you, witness, to go from the gardener's cottage to Northferry? I am told the distance, from Mr. Tracy's house to the village or town, is nearly two miles: can you walk that distance in a quarter of an hour?"

Counsel for the prosecution.--"That is a leading question."

Sir ----. --"I only wish to make the whole clear to the jury. I am not seeking to puzzle or to mislead; but it has been stated that the distance is nearly two miles. The boy has said he walked it in nearly twenty minutes,

and, without pretending to disbelieve him, I wish him to explain, to reconcile the two facts, which at first sight seem incompatible."

Judge.--"I think the question may be put. If not put by counsel, I will put it. The point must be made clear."

The counsel for the defence then repeated the question.

Witness.--"I walked, and I ran a part of the way, because I was late; but the distance is nothing like two miles by the fields. I never take more than twenty minutes to go or come; and that time I went through the grounds, which saves a good bit. I know Mr. Acton once walked there and back in half an hour, and bought me a book too."

Counsel.--"Thus the matter is easily explained. One can see, by the plan submitted by the prosecution, that the high road to Northferry takes innumerable turnings and windings. Can you give me any distinct idea, witness, of what o'clock it was when you saw the body of a man lying by the fish-pond?--By Northferry clock, I mean."

Witness.--"It must have been half-past five, as near as possible."

Counsel.--"You are sure it was not six?"

Witness.--"How could that be? When I got home it wanted a quarter to six by our clock, and that is always a good bit too fast."

Counsel.--"You are sure it is never too slow?"

Witness.--"Oh dear, no. If I were to go to school by it I should always be there before any of the other boys."

Counsel.--"And you are sure the prisoner did not return for full half an hour after your arrival?"

Witness.--"It was more than that--five or ten minutes more."

Counsel.--"Did you see any scratches on his hands, making them bleed?"

Witness.--"No, I did not see any. His hands did not bleed at all after he came down again."

Counsel.--"How long might he be absent when he went up to his room?"

"Some five or ten minutes, I dare say," said the boy.

The counsel here sat down, and the boy was re-examined at some length by the counsel for the prosecution, without eliciting any new fact, or causing him at all to vary in his statements.

Four or five other witnesses were examined to various minute facts, of no great importance in themselves, but all bearing more or less upon the case.

The exact distance from Mr. Tracy's house to the place where the murder was committed, the proximity of the body, when found, to the temple over the fish-pond, the extent of space between that building and the haw-haw, and the distance thence to the gardener's house, were amongst the facts proved; and at length the counsel for the prosecution declared his case closed.

It was between four and five in the afternoon, and the judge, who for some time had been showing symptoms of impatience, inquired of the prisoner's counsels whether they thought they could conclude, that night.

"The court is intensely hot," said the learned judge. "We have sat here from an early hour in the morning; but I am most anxious that to-morrow should be left free for the remaining business of the assize; and if sure of finishing to-night, we would proceed with the trial, after taking some refreshment. I would rather sit till midnight than not conclude to-day."

"Why, my lord," replied Sir----, "I and my learned friend who is with me in the cause, think that four or five hours would be quite enough for us; but if there is to be a long reply, of course the business cannot be concluded to-night."

"I cannot limit myself as to my reply," said Sergeant ----. "Having an important duty to perform, and not knowing what will be the line of defence, I can make no promise as to time; and I can see clearly that my reply cannot be very short."

"Then the court will adjourn," said the judge, somewhat sulkily; and at the same moment he rose to retire.

Let it be remembered, that this day was marked in the calendar as the ninth of the month; for dates may be important things even in a novel, and in this instance a man's life hung upon the events of a single day.

CHAPTER XXXI.

It was on the tenth of the month, in a very beautiful valley, between bare hills, which, carrying their bold heads high above the rich cloak of vegetation that clothed both sides of the dell, seemed to cool them in the calm blue sky. Just above a waterfall, the same which has been before described, two large irregular masses of stone, differing in size, but both enormous, reared themselves up as gigantic door-posts, to the entrance of a small amphitheatre of cliff, not less than two hundred feet in height. The one rock had somewhat the appearance of a chair of colossal size, the other, fancy might shape into a reading-desk; and thus, amongst the people of the neighbouring districts, the former had acquired the name of "the Pope's Throne;" while the other was called "the Puritan's Pulpit." Between them there was a narrow pass, of not more than ten feet in width, and on either side was piled up a mound of loose shingly fragments, forty or fifty feet high, with a tree or a shrub here and there, where some vegetable earth had accumulated, forming a sort of natural wall, which joined the rocky portal to the spurs of the amphitheatre of crag. At several points, it is true, a man might easily climb over the mound, either to enter or issue forth from the space within; but the only smooth way was between the two great masses of stone, where was a carpeting of soft mountain-turf, with not a blade of grass more than an inch long in anyplace, while in one appeared the evident marks of often-treading feet, in a narrow line worn nearly bare.

With his back leaning against the base of the Pope's Throne, and the sunshine and shadow of a spring day chasing each other across his brow, was seated a stout gipsey, of four or five and twenty. Half-way up the mound, on the right, reclining upon the shingle, might be perceived another, somewhat older than the former, in such a position that his eyes could rest from time to time, upon his companion below. The mound on the left hand had also its man; but he could not be seen from without the natural enclosure, for he had stationed himself just over the top of the heap,

obtaining a view into the little enclosure; and there he sat from six o'clock in the morning until eight, with a number of green osier twigs beside him, and a half-finished basket between his knees, at which he worked away like an honest, industrious man.

From within the circle, came forth at times the sounds of merry voices; and at one period of the morning there curled up a quantity of light bluish smoke. Shortly after, there trudged forth from the entrance an elderly man, with a pair of bellows slung over his shoulders, and an old spoutless tin kettle in his hand. Then all seemed quiet, and the man who had been making baskets, without changing his position, changed his attitude, and suffered himself to drop quietly back upon some mossy turf which had gathered round the root of a tree, planted, Heaven knows how, amongst the stones.

About half-past eight o'clock, the figure of a tall stout man appeared, close beside the basket-maker. His step was slow and cautious; and the gipsy man did not move. He was sound asleep. The other stood and looked at him for an instant, with a look not altogether friendly: but the moment after he moved quietly on again, passed behind the tree and began to climb the ridge of the mound, towards the spur of the cliff. He took a step higher, and another, and another, with great care and precaution, often looking back at the man he had passed, often looking down into the little amphitheatre: but still he advanced steadily towards a part where there was not a space of more than ten or twelve feet between the summit of the cliff and the top of the shingly mound, with an ash-tree waving its branches under the shelter of the bank. He was within half-a-dozen paces of the top, when some of the loose stones giving way beneath him, rolled down, and startled the sleeper from his slumbers.

In an instant he was upon his feet. The next, he gazed up and gave a loud shout. The scene of confusion that followed was wild and strange. From a number of gipsy tents which had been pitched in the circle below, issued forth some twenty or thirty persons, men, women, and children, all in a state of great excitement, and all looking in the direction from which the shout had proceeded. The basket-maker sprang up after the climber of the hill,

half-a-dozen young men followed from below; and one of the other watchers joined in what was evidently a pursuit.

But the fugitive had gained too much upon them; the shout warned him to quicken his pace; in an instant he was under the ash-tree; and in another, by the aid of its stout branches, he was at the top of the cliff. There he paused for but one instant, then turned and hurried on. His departing figure lessened rapidly to the eyes of those who followed him, and at length he disappeared.

Three of the pursuers climbed up by the aid of the ash-tree, as he had done; but as a fourth was mounting, he happened to turn his eyes below, and beheld the object of the chase down in the valley, and in the act of crossing the river, which rose to his arm-pits. By a bold manœuvre he had put the hounds at fault, and by the time the men were called down from above, was out of sight.

A short consultation was held amongst the tribe; and then they all quietly returned to their usual habits. The women and the children betook themselves again to their tents, the basket-maker came down and plied his trade more wakefully below; the young man who had been sitting with his back against the huge rock abandoned his post, and remained talking, within the little basin, to another of the tribe; and his fellow-watcher on the outside, lay down at the back of the encampment, and went to sleep.

About five minutes after, coming at great speed, the gipsy woman, Sally Stanley, approached the place from the lower part of the valley. There was anxiety in her look, and she gazed eagerly over the two shingly mounds, as if in search of what she did not see, and then with a step quickened almost to a run, she entered the little amphitheatre of cliff, advancing straight to the youth who had been stationed at the pass between the two rocks.

"Is he gone?" she asked, in breathless eagerness, "Is he gone?"

"Yes, Sally; he is gone," replied the young man; "but it was not my fault, for he--"

"Fault!" cried the woman, "it might be no one's fault; for what right have I to command? what need have you to obey? But cursed be he who let him go; for he has done a bad act; he has killed one who has always been kind to us; and the blood of the gipsy's friend be upon his head;" and without waiting for reply, she ran out of the circle of rock; and, with the speed of lightning, hurried down the valley. Cutting off every angle, finding paths where none appeared, and footing on places which a goat could hardly have trod, she darted on till she reached the spot where, opening out with an ever-gentle descent to the plain, the hill-valley was lost in other sweeps of the ground, and the common foot-path entered into the cultivated grounds, taking its onward course between two close hedges in the form of a lane. She looked upon the somewhat moist sand beneath her feet with eagerness, and examined it carefully for several yards. Then, murmuring to herself, "He has not passed!--he cannot have passed!" she placed herself behind the decayed trunk of an old willow, and, waiting, watched with an attentive ear.

Two minutes had not elapsed when a step was heard; and then Lockwood was seen coming along the lane at a rapid pace, with a thick newly-cut stick in his hand. The woman instantly darted forth and threw herself before him.

"Get out of my way!" he said, in a stern tone, as soon as he saw her. "I am angry, and I would not do anything unbecoming. You may have done mischief enough already. Do not do more by making me forget myself."

But she persevered in her attempts to stop him.

"I am a woman, and alone;" she answered, "you would not do anything unmanly, I am sure. But hear me, Lockwood," she continued, more vehemently; "hear me, and I will tell you what you are going to do. You wish to save him, and you are going to ruin him. If you set your foot in that court, he is lost. Nay, hear me! hear me!" she repeated, as he strove to push his way past her; "you must, you shall--for your own sake--for his sake--for my sake. I will beseech you--I will kneel to you, to hear me but a few words;" and casting herself down before him, she clasped his knees with her arms.

"I will not hear you," he answered, bitterly; "every moment is precious. You have detained me shamefully two days, and there is nothing to be told me that I could not tell you. I know all, girl--I know you, Susan Grey--I know your motives--I know that you are fool enough still to love him who ruined, betrayed, abandoned you--who left you to misery, starvation, and death, for aught he knew; and I know that to save him from the punishment of his crimes, you would sacrifice one who was kind and good to you, when there was none other to befriend you. Let me go, girl! for I will pass!" and, forcing himself from her grasp, he walked hastily onward towards S-----.

"Oh God! Oh God!" cried the woman, "he will destroy him he seeks to save!"

This took place, let the reader remember, on the tenth of the month; the second day of the trial of Chandos Winslow; and to that trial and the court in which it was taking place, we must now return.

CHAPTER XXXII.

In many cases the inhabitants of an assize town are very little affected by what is taking place in their courts. They see lawyers flock in and juries assemble, witnesses moving about in troops, and a rich crop of blue bags growing up. But with the causes or the prisoners, they very little trouble their heads. The host of the inn rubs his hands and rejoices: a heavy calendar to him is a God-send. His waiters, probably increased in number, bustle about to feed those classes which are proverbially ravenous; and the chamber-maids are in great request. The pastrycook becomes a person of importance; the cookshop has its share of business, and red tape and parchment rise in value; while the ladies of the place think a good deal of the young barristers, and very little of those whose causes brought them to the town.

But there are occasions, on the contrary, when, either from the intrinsic interest of the case, or from adventitious circumstances connected with it, the people even of the town in which the trial takes place become almost universally excited by what is occurring in the courts; and upon every turn of the trial as it proceeds hangs a world of emotions in the bosoms of men only linked to the transaction by the tie of sympathy.

Such was the case in regard to the trial of Chandos Winslow. Not a drawing-room, not a tea-table, not a chamber in a tavern, not even a coffee-room did not hear discussed during the whole evening of the ninth the various events which had taken place in the court-house during the day, while calculations were formed, and even bets made, on the probable result of the trial. The prisoner had become quite a hero of romance to all the youth and much of the age of the place. He was so young, so handsome, so noble-looking, that the women of S---- of course felt interest in his favour; and the men declared he bore it stoutly, struck by his firm and calm demeanour, and his resolute and gallant bearing. Nevertheless, at the close of the case for the prosecution, a very general impression prevailed that he would be found guilty. So many startling facts had been proved against him: his absence from his house precisely at the time of the murder; the exact correspondence of his shoes with the footsteps to and from the spot where the crime was committed; the bloody hands and coat; and the terribly agitated demeanour which had been witnessed by the boy and the old woman on his return, would almost have been enough for conviction, even without the terrible and seemingly conclusive fact, that the fatal deed had evidently been committed with the very hoe which he had carried out in his hand.

Under such circumstances, the rush at the doors of the court-house on the morning of the tenth was tremendous, and it was as much as the officers on duty could do, aided by a strong body of police, to prevent the multitude from crushing each other to death in the passages and in the very court itself. Several of the magnates of the county were accommodated with seats on the bench to hear the defence; and the voice of the judge himself was raised to its very highest tones to suppress the disorder that occurred when the prisoner appeared in the dock.

Wearing anxiety will have its effect on every frame, and Chandos Winslow looked paler and thinner than on the first day of the trial; but still the magnificent head, the fine person, the tranquil and undaunted bearing, and the firm, strong step had their effect upon those who beheld them, and the impression was that though the jury might and would say "Guilty," the man was innocent.

Sir ---- every one remarked, was exceedingly pale; and before he rose he turned over the papers under his hand several times, with a look of nervous anxiety; but the moment he was upon his feet, that look passed away; he raised his head high; he cast back his shoulders as if for full breath, and, fixing his fine and speaking eyes upon the jury, began,

"My lord and gentlemen of the jury,--The learned sergeant who has conducted the prosecution assured you that to do so was the most painful task of his life. I doubt it not in the least; for it must be a terrible task indeed to become the public accuser of such a man as the prisoner, with even a doubt upon the mind of his guilt: and how many doubts must have existed in this case? If such were the feelings of my learned friend, judge, gentlemen of the jury, what must be mine, when, in rising to defend the prisoner at the bar, I know that upon my feeble efforts depends not only the life of an innocent man, not only the life of one who is an ornament to the society in which he moves, but the life and honour of my dearest friend! With what anxieties must I be oppressed; how terrible must be the responsibility when the slightest failure of my powers, the least oversight on my part, any weakness, any indiscretion, may condemn to death one whom I love as a brother--one whom I know to be innocent, as I have trust in God! I am no paid advocate, retained to defend a bad cause; I am not a counsel doing merely his professional duties: but I am a friend standing forth in defence of a friend; an honest man raising his voice to save an innocent one. Terrible are the difficulties which all these cases present: more than ordinary are the difficulties in the present case; and all these are aggravated in an enormous degree by the very feelings of friendship which exist between myself and the prisoner, by the doubts and fears of myself, which make me tremble at my own incompetence, by the zeal which perplexes, by the eagerness which confounds. The burden would be too great, gentlemen of the jury; it would overwhelm me; but happily there are

circumstances which lighten the load. I see upon the bench one of the most learned and clear-sighted of those judges who are an honour to the nation to which they belong: I see in that box a body of Englishmen well calculated by judgment and experience to distinguish between truth and falsehood; between the factitious glozing of an artificial oratory, and the simple eloquence of right and conviction: and I hold under my hand the means of establishing, beyond all doubt, the innocence of my friend, if friendship do not deprive me of reason, if enthusiasm do not paralyse my tongue.

"I will now, however, do my best to grapple with the case as presented to you by my learned friend; and, doing him full justice for his high eloquence, believing most sincerely that he has stated nothing but what he was instructed was true, I will still venture to say, that a more terrible misrepresentation was never made to an English jury. Now, in the very first instance my learned friend asserted that the prisoner at the bar is of a sharp and vindictive disposition; and he said that he should be able to show that such was the case. Gentlemen, I will ask you, has he proved that fact? I will ask you if he has made any attempt to prove it? I will ask you if his own witnesses have not proved the exact reverse; if they have not shown that the prisoner is of a kind and gentle disposition, winning the love and esteem of all around, high and low, rich and poor? and, whether we see him teaching the uneducated child, saving the drowning boy, or tending him in his after sickness, I will ask, if all that *has* been proved does not excite admiration, and sympathy, and respect? Cast from your minds, then, such unjustified and vague expressions: look upon his general character as it is shown by the very evidence for the prosecution, tender rather than sharp, benevolent instead of vindictive. But the insinuation, gentlemen of the jury, has been made, though not supported; and it forces me to establish the contrary by proofs. Something was said too, gentlemen, of a duel between the prisoner and Viscount Overton, and a connexion must have instantly established itself in the minds of the jury, between that duel and the sharp and vindictive character ascribed to the prisoner. But, gentlemen, I will place that honourable nobleman in the witness-box, to speak to the character of the prisoner. He shall himself tell you what he thinks of the circumstances which produced the duel; and you shall judge from facts, not from insinuations. All this shall be triumphantly swept away, and I will not leave a vestige of such charges against my friend. I will call the old servants of

his father's house, I will call the tenants, the parishioners, the neighbours. Their evidence need not be long, but it will be conclusive to show that a more honourable, upright, generous, kind-hearted man never existed; full of noble enthusiasms, gentle in habits, benevolent in disposition, incapable of a base or a cruel action.

"So much, gentlemen of the jury, for the first part of the charge: for the general and vague insinuation, made for the purpose of preparing your minds to regard the prisoner as a man of blood. But it seemed necessary to my learned friend; and most necessary indeed it was to his case, to show some apparent motive for the crime of which the prisoner is accused; and a letter has been read in evidence to prove that there was some dispute between the prisoner and the murdered man. That letter shall be fully explained before I have done; and you shall see how ridiculously petty is the motive assigned for so great an offence. But besides that letter, allusion was made to former disputes between the unfortunate Mr. Roberts and the prisoner, which, though not proved, may have had some influence upon your minds. I will show that no such disputes ever existed; that the two were on the best and most kindly terms, that they had been so through life; and that those causes of disgust which had induced the prisoner to quit his brother's mansion were identical with the causes which induced Mr. Roberts to give notice to Sir William Winslow that he was about to leave his employment. In short, I will prove that Mr. Winslow and the man he is accused of murdering, were acting on the most friendly terms together; and that the letter which is supposed to prove that a dispute existed, was written in cold terms merely as an authority to Mr. Roberts for disregarding any orders he might have received from his employer to meddle with things in which that employer had no right. It was, in short, a formal notice to him to respect the rights of the prisoner, without any regard to the illegal directions of a third party. I shall be able to prove that Mr. Roberts possessed the full confidence of Mr. Chandos Winslow; that he was acting with due regard for Mr. Winslow's interests, and that he had actually applied or intended to apply to that gentleman for an authority or warning to respect, in his capacity of agent for Sir William Winslow, the rights of him, the prisoner at the bar. Thus the pretence of motive furnished by the letter which he, Mr. Roberts, had himself desired, falls entirely to the ground, and leaves the accusation totally without foundation, except such as a very doubtful train

of circumstantial evidence can afford. Mr. Roberts, in fact, was the only confidant of the prisoner at the bar, the only person to whom he confided his address, when disgust at some injuries he imagined he had received, and a desire to mingle as an equal with classes in which he had long taken a deep interest as a superior, led him to quit his high position in society, and accept the humble station of gardener to Mr. Arthur Tracy, of Northferry. Was this, gentlemen of the jury, like long disputes and acrimonious bickerings, ending in malevolence and murder? Is that the man to entertain such passions?--to commit such an act?

"But I will make no appeal to your feelings; I will address myself to your judgment only. I will break through this chain of circumstantial evidence; I will show that it cannot affect the prisoner, that it is not applicable to him. I will proceed logically with my inferences; though it may be somewhat out of the usual course. I will first convince you that the prisoner was not a man likely to commit such a crime, by the testimony of many witnesses. I will next prove that there was no earthly motive for his committing that crime; but every motive for his not doing so: and, in the end, I will establish beyond all question that it was impossible that he could have committed it. Before I proceed to call my witnesses, however, it may be necessary to examine closely the evidence already adduced, in order that we may separate the facts clearly and distinctly proved from an immense mass of irrelevant matter. In so doing, I shall not attempt to explain every fact and every circumstance; I shall not seek to prove why the prisoner did this, or why he did that. To do so would occupy unnecessarily the time and patience of the court. For, surely, if I establish beyond all doubt, those three great points I have named--That the prisoner was not a man likely by character, disposition, and previous conduct, to commit such a crime; secondly, that he had no possible motive for committing it; but the reverse: and thirdly, that if the testimony already given be not altogether false, he could not have committed it, that will be quite sufficient for the satisfaction of the court.

"The evidence, gentlemen of the jury, divides itself into two principal parts: that which relates to the death of Mr. Roberts: and that by which it is attempted to connect his death with some act of the prisoner. The simple facts regarding the death of the unhappy victim of some other man's bad passions are clearly proved in evidence, by the various witnesses you have

heard in their examination and cross-examination. Their testimony has not been shaken in the least; and I do not wish to shake it. In considering this evidence it is of the utmost importance to the establishment of truth, that everything should be precise; and I must therefore impress the facts upon your minds that you may take them in conjunction with the evidence I shall myself offer, and from the whole draw the only deduction which can logically be drawn: that it is impossible the prisoner could have committed the act with which he is charged. You have heard the testimony of James Wilson, the footman of Mr. Tracy, the last person that we know of who spoke with Mr. Roberts, before the murder; with the exception of Jones, the valet. This man stated at first, that Mr. Roberts called about five o'clock; but afterwards admitted, on cross-examination, that it was certainly ten minutes past five. It might have been more, but I am contented with that. The witness Jones corroborated the testimony of James Wilson, and fixed the time of Mr. Roberts's call at ten minutes or a quarter after five. These statements are not shaken. It was at least ten minutes past five when the murdered man was at Mr. Tracy's house. He stayed apparently a very short time there; but we find from Wilson's evidence in answer to the court, that it would take ten minutes more to go from the house to the spot where the murder was committed. We will not assume that any time was lost on the road. It was, therefore, at least twenty minutes after five before the criminal act was perpetrated. My learned friend has attempted to fix the period of the murder. I will try to do the same thing; but somewhat more accurately. The little boy, Timothy Stanley, in evidence which, from its perspicuity, simplicity, and truthful straightforwardness, you must all recollect, has shown that, at half-past five o'clock the murder had been actually committed. I take the time by Northferry clock to be the real time--at least it must be assumed to be so for our purposes; and I may as well inform the jury, here, that I last night sent off an express to Northferry to ascertain what difference, if any, exists between the clock at Mr. Tracy's house and that of Northferry church. By this man I shall prove that there is but one minute difference between the church clock and that in the hall so often alluded to, although that clock has not been set for one week, owing to Mr. Tracy's unfortunate absence. But I shall be in a condition to prove that it was set every day at noon precisely, during that gentleman's residence at Northferry, and set by the church clock. Thus it appears by testimony, which has not at all been shaken, that the murder of Mr. Roberts must have

taken place between twenty minutes and half-an-hour after five; that at ten minutes past five he was in Mr. Tracy's hall, and at half-past five was seen murdered at the end of the grounds, the distance between the two places being, I see by the plan, forty yards less than half-a-mile in a direct line, and rather more than three quarters of a mile by the walks. The body was not found till past ten o'clock, or more than four hours and a half after it was seen by the boy. At this time it was quite cold and stiff. The surgeon has proved that death was occasioned by an incised wound on the head, penetrating the brain, of a kind which might be given by a Dutch hoe, and a Dutch hoe was found on the ground near the body, with blood and gray hair upon it. There can be little doubt that this hoe was the instrument by which the murderer perpetrated his crime. That it was so, struck the prisoner at once, as you have heard; and moreover that he acknowledged the hoe to be his, and said that he had left it leaning against one of the pillars of the little temple over the fish-pond. These are the admitted facts concerning the murder, of which there can be no doubt.

"We will now turn to the circumstantial evidence, by which it is attempted to connect the prisoner with the crime. Now my learned friend has repeated to you an old axiom of law that circumstantial evidence is often more convincing than direct evidence; and he has reasoned ably upon that question. Nevertheless, the numerous instances of awful injustice which have been committed in consequence of giving too much weight to circumstantial evidence, has shaken the confidence of many of the wisest and most learned men in the reasoning by which the axiom is supported, and in the justice of the axiom itself. I need not call to your mind a sad instance which occurred not many years ago in France, where an amiable and excellent man, mayor of a great city, after submitting to the knife of the guillotine, was proved to be perfectly innocent; and very many such instances are on record; but I do believe that after the trial which now occupies this court has come to its conclusion, all thinking men will regard circumstantial evidence with much greater doubt than they have hitherto done, and juries will pause ere they take upon themselves the frightful responsibility of sending a fellow-creature to death while the shadow of a doubt remains. I say that the result of this trial will show that too great a dependence on circumstantial evidence may often betray wise and good men into acts which must burden their consciences for all their remaining

days. I wish to produce this effect. I wish to put in the very strongest point of view, not only for the present occasion, but for future instruction, the very fallible nature of circumstantial evidence; and therefore in this instance I shall deal with it in a peculiar manner. I will not attempt to struggle with it; I will not try to shake it; I will not even descend to explain it. It shall stand in full force, bearing against my client to the very last; but then I will prove that it is utterly worthless, that it does not affect him even in the slightest degree; that there is not even a possibility of his having committed the crime. I will explain not one of all the circumstances that tell against him; and yet, without quitting that box, you shall give a verdict of acquittal.

"Nevertheless, it will be necessary to examine the evidence, in order to extract from it those facts which have a real bearing on the case, and which fall into the line of defence. The rest I shall leave intact, without attempting to weaken it in the slightest degree. The evidence by which it is attempted to connect the prisoner with the crime, divides itself into three heads. One portion is that which shows that he was proceeding towards the spot where the dead body was found, nearly at the time when the murder must have been committed. The second refers to the traces of the deed left by the murderer, or supposed to have been left by him--the hoe with which the deed was done, the steps to and from the haw-haw and in the ditch. The third, relates to the demeanour and personal appearance of the prisoner after the murder had been committed. Under the first head we find from the witness, William Sandes, that he met the prisoner as he was going home from his work. The prisoner was going down towards the scene of the tragedy. The witness at first asserted, that it was about five o'clock when he met the prisoner, very naturally not wishing to make it appear that he had quitted his work before the proper time. But in cross-examination we got out of him, that he had on previous occasions left the garden earlier than he ought to have done, and had been reprimanded by the prisoner. He also admitted that it was broad daylight, and might be a quarter before five. Thus the time at which Sandes met the prisoner was rather more than half-an-hour before the murder could have been committed. I beg you to mark this fact well, gentlemen of the jury, for it is important. Then we have the evidence of the old woman, Humphries. She shows that he came into his cottage about half-past four, on the day of the murder, and went out again exactly at five, by a clock which is proved to have been on that night, from

ten minutes to a quarter-of-an-hour too fast, thus corroborating the statement on cross-examination of the witness, Sandes. You will recollect, gentlemen of the jury, that on the fifth of February the sun sets before five o'clock. The witness, Sandes, says, that when he met the prisoner he does not think the sun was down; that it was broad daylight. The good woman, Humphries, declares that the prisoner went to take a look round the grounds before it was dark, all showing that it must have been considerably before five o'clock when he went out. Now, the murder could not have been committed before twenty minutes past five. This is the evidence tending to show that the prisoner was in the grounds and went towards the fatal spot some time before the crime was perpetrated. He never denies, or has denied, that such was the case. He admitted it in conversation with Mr. Tracy. He said he had been speaking to Miss Tracy within a very few yards of the place where the body was found. And here I must remark upon two circumstances well worthy of your consideration. First: that the counsel for the prosecution have not thought fit to call Miss Tracy; but threw upon us the burden of so doing. Now, Acton, the gardener, might have no hesitation in calling that young lady; but, Mr. Chandos Winslow may have many reasons for not subjecting one towards whom he entertains high respect--may I not say affection?--to the torturing cross-examination of an adverse counsel. Suffice it, gentlemen of the jury, that he refuses to call her; and, respecting his motives, I have ventured to argue, but not to insist.--She should have been called for the prosecution. The other important fact to which I must call your particular attention is this, that although it is proved the prisoner was in the grounds a short time before the murder, we have it in evidence that some one else was in the grounds exactly at the time when the murder must have taken place. Michael Burwash, has sworn, that some ten minutes or quarter-of-an-hour after Mr. Roberts went to the place where he met his death, he saw some person enter the house from that very direction, walking in a quick and hurried manner; that he passed through the greenhouse instead of taking the usual entrance, as if he desired to avoid observation. Who was it? The witness says it was not Mr. Tracy, or General Tracy; and certainly not the prisoner at the bar. I do not wish to throw any imputations; but the fact is proved, that there was some man, not the prisoner, in the grounds at the very time the murder must have been committed.

"Now I come to the second head of evidence--the traces of the murderer's progress. The hoe has been admitted to be the prisoner's by himself in this court. More may be very safely admitted; namely, that he carried it out with him in his hand, that he had it out with him when he met the witness, Sandes, and that he rested it against one of the pillars while he spoke with Miss Tracy, leaving it there when he went away. What more natural than to suppose, that the murderer, seeing it there, snatched it up to effect his criminal design? The footmarks in the grass, I not only deny to have been the prisoner's, but I must say, that it is very nearly proved they were not. It is sworn that there were but two lines, one coming and one going, between the haw-haw and the spot; and it is admitted by the witness Taylor, that one of the men who accompanied Mr. Tracy at night went from the place where the body was found to the haw-haw and back. It is also shown that the ground was so soft as to receive the impression of any foot that trod upon it. These steps then could not have been the prisoner's; but servants, and constable, and all, seem to have made up their mind that the prisoner was the murderer, and the shoes of no other person were examined. Now, gentlemen of the jury, I will touch upon the third head of evidence--the prisoner's appearance and demeanour after the murder. He returned to his cottage, it is shown, somewhat after six o'clock, and I shall not in the slightest degree attempt, as I told you I would not, to lessen the weight of this evidence, nor even to explain the facts. I am precluded by his most positive injunctions from doing so. I admit then that he returned in a state of very considerable agitation; that he was annoyed, harassed, vexed; that there was blood upon his hands and upon his coat, and I will give no explanation of these facts. He forbids me to give the true one; and I will give no other. Were there no means of establishing his innocence, this refusal of explanation might create a reasonable doubt in your minds; but that doubt would be far from justifying you in a verdict of guilty. Any one can conceive a thousand circumstances which might have produced that agitation, and which might have covered his hands and stained his coat with blood, but which the most honourable motives would prevent him from explaining. The proof must always lie with the other side; the prosecutor is bound to leave no reasonable doubt in your minds. It is not enough to produce a doubt of the prisoner's innocence; and therefore it is I say that though if no means existed of proving the prisoner to be not guilty, this

refusal of explanation might produce a suspicion that he was guilty, yet that suspicion would be by no means sufficient to justify a verdict against him.

"But, gentlemen of the jury, I will not be satisfied with this. My friend must quit that dock without a stain upon his character. It must be in his case as in that of the famous Lord Cowper, who was tried in his youth for murder upon evidence much stronger than any which has been adduced on this occasion, who triumphed over a false accusation, left the court with honour unsullied, and rose to the very highest rank in his profession, holding the first official station in the realm beneath the crown. Nothing will content me but to see my friend so acquitted; and therefore I will not plead the benefit of a doubt. Nothing will content him but such an acquittal; and therefore he forbids me to urge upon the court a fatal flaw which I have discovered in the indictment. But I can ensure that acquittal; and before I have done, I will prove, upon evidence unimpeachable, clear, distinct, and positive, that the prisoner was far distant from the spot at the moment the crime was committed; that it was, in short, physically impossible that he could have had any share in it. I will prove it, by persons above all suspicion of collusion, without motive, without object of favouring or assisting him. I will show, I say, not alone that the man round whom such a long chain of circumstantial evidence has been entwined, did not commit the crime with which he is charged; but that he could not have committed it; and I will call upon you for such an immediate and unhesitating verdict as will leave his name and honour clear of every imputation. Gentlemen of the jury, there is a joyful task before you, after you have performed a long and arduous one. Painful, yet mingled with satisfaction, have been the duties which I have taken upon myself. At first the awful responsibility overwhelmed me; the anxiety for my client, the apprehension for my friend, the sense of my own incompetence, the tremendous stake in peril, seemed too much for my mind; but every step as I have proceeded has strengthened my confidence and reinvigorated my resolution. Knowing my friend's innocence, seeing the proofs of it accumulate, perceiving that the case for the prosecution crumbled away under cross-examination, and assured that without a word for the defence there was in reality no case to go to a jury, I felt that my own weakness could not much affect the result, and that his safely depended not on such feeble powers as mine. To God and to his country he has appealed; to God and to his country I leave his fate, certain

that the one will defend, where my voice fails, the other do him justice, whatever powers be arrayed against him."

The tears rose in his eyes; his voice trembled and almost failed at the last words; but those last words were as distinctly heard in the court as the most powerful tones of the adverse counsel; for there was a dead silence, unbroken by a breath.

CHAPTER XXXIII.

It is very difficult to say whether the change in the practice of our courts, by which prisoners are allowed counsel for their defence, is a real advantage to them or not. It is probable that in most cases the right of reply conceded to the prosecution, and the loss of that assistance which the judge formerly thought himself bound to afford the accused person, more than balances the advantage of a practised defender. Indeed the privilege of reply on the part of the public prosecutor seems a rank injustice. He brings the charge with all his materials prepared; he is bound to establish all the facts clearly, and at once, so as to leave no reasonable doubt. The prisoner replies by his counsel to an accusation made; and if that reply is satisfactory to the jury, the trial should end there, with the summing-up of the evidence, and the exposition of the law by the judge. Can any equitable motive be shown for granting the accuser the last word? I do not think it.

The impression made by the speech of the counsel for the defence on the trial of Chandos Winslow was very great. It carried the jury completely away with it; and one of them whispered to another, that he did not think they need hear any more evidence. It seemed to him that there was no case for the prosecution.

The bar, who regarded it critically, praised it amongst themselves very much, and took especial notice of the manner in which, as one of them

expressed it, "Sir ---- got lightly over the soft ground." They were not all sure of Chandos Winslow's innocence; and during the greater part of the speech, they even doubted whether the learned counsel would get a verdict, though they generally agreed he ought. But at the end, when he so boldly declared that he could prove an unexceptionable alibi, their opinions changed, for they knew he was not a rash man, or one to risk the whole success of his case by a mode of defence the slightest shade of suspicion attaching to which, would strengthen every unfavourable impression regarding his client.

The witnesses for the defence were called as soon as the speech was concluded; and all the first were, contrary to general custom, those who could speak to character only. Old servants, old friends of the family, tenants, and neighbours were examined, and each testified with zeal and affection that the prisoner was a man much more likely to save life than to take it. But it was evident that the judge was impatient for the conclusion of the trial; and the questions put for the defence were few and pertinent. A private memorandum found amongst the papers of Mr. Roberts, was then put in and proved to be in his handwriting by his executor, in which the deceased had thus expressed himself: "Mem: to ask Mr. Chandos for some formal notification to respect his rights, and protect them against others in case of need." A few witnesses then proved the terms of affectionate regard on which the prisoner had always lived with his father's steward; and then Lord Overton was called. The judge did not appear to like his evidence being taken; but the counsel for the defence so shaped his questions, that they could not be rejected, and the peer, in mild and dignified terms, very different from his former rude and haughty manner, acknowledged that he had been the aggressor in the quarrel between himself and Mr. Winslow; and that in the whole transaction he had behaved like a gentleman and a man of honour. It required some skill to hang this testimony on to the cause; but that skill was evinced, and the evidence received. All this part of the business was got over very rapidly; but it greatly damaged the case for the prosecution, so much so, that the judge more than once looked to Sergeant ---, as if he were inclined to ask whether they need proceed further.

At length "Thomas Muggeridge" was called, and, to the surprise of Chandos, a man in a plain livery got into the witness-box, and in answer to

the questions propounded to him, deposed as follows:--"I am servant to the Honourable and Reverend Horace Fleming, Rector of Northferry. I know the prisoner at the bar by sight. I have once spoken to him. I spoke to him on the night of the fifth of February last. He called and inquired for my master about five o'clock. It might be ten minutes after; for the sun was down. It could not be more; for it was still quite light. I am quite sure of the man; for I had seen him in the streets of Northferry before, and knew him to be Mr. Tracy's head-gardener. I went in and told Mr. Fleming that Mr. Acton wanted to speak with him; and he told me to show him in. When he had been with my master about ten minutes in the library, Mr. Fleming rang, and ordered me to bring lights. The prisoner was then seated on the opposite side of the table to my master. About five minutes after that, my master and the prisoner came out together, and walked through the large rooms which are unfurnished. They had a light with them. My master carried it. I ran to open the doors, and at the same time I said to my master that the gipsy woman, Sally Stanley, wanted to speak to him about her little boy. I had been talking with her at the outer door. Mr. Fleming said he would see her in a few minutes; and when I went back to tell her so, she asked me if I knew who that was talking to my master. I said, 'Oh! quite well;' and she answered, 'No, you don't! That is the son of the late Sir Harry Winslow.' After my master and the prisoner had come out of the empty rooms, they went back into the library and remained there till a quarter to six. The clock struck the quarter as the prisoner went out. He stopped a minute or two at the door to say something to Mr. Fleming. He said, 'It is very unlucky, indeed; but it cannot be helped;' and then he talked a word or two in a language I do not understand. It sounded like Latin; but I cannot say. It was not French; for I have heard that talked. I have not the slightest doubt that the prisoner is the man; I had seen him, half-a-dozen times before in the streets of Northferry; and I had every opportunity of seeing him well that night."

The cross-examination then began by the counsel for the prosecution giving the witness a long exhortation regarding the sanctity of an oath; he then proceeded as follows:--

Counsel.--"How long have you been in the service of the Rev. Mr. Fleming?"

Witness.--"Six years, Sir."

Counsel.--"And how long had you been in Northferry when this event took place?"

Witness.--"A little more than two months."

Counsel.--"Then am I to understand that Mr. Fleming was newly appointed to the rectory at Northferry?"

Witness.--"He had been there about five months at that time; but I remained at the vicarage at Sandbourn for more than two months after he got Northferry."

Counsel.--"Oh! he is a pluralist, is he? Will you swear that it was not half-past five when the prisoner called?"

Witness.--"Yes, I will; for at half-past five it is quite dark."

"Will you swear it was not twenty-five minutes past?" asked the counsel.

Witness.--"Yes, Sir, I think I will, quite safely; for, as I told the other gentleman, though the sun was just down, and it might be a little grayish, yet there was plenty of light, and I could see across the street; for I remember wondering what Higgins, the grocer, was doing with a barrel he was twisting round before his door."

Counsel.--"Now upon your oath, Sir, what time was it really when the prisoner came?"

Witness.--"As near as I can guess, from five to ten minutes after five."

Counsel.--"And on what day did you say?"

Witness.--"On the fifth of February."

Counsel.--"Do you happen to recollect some circumstances that took place at your master's house on the morning of the first of that month?"

Witness, rubbing his head.--"Not quite rightly, Sir. What circumstances do you mean? I don't remember what day the first was."

Counsel.--"Then how do you happen to remember so accurately all that took place upon the fifth?"

Witness, with a laugh.--"Oh, that is easily told. We came back to Sandbourn on the sixth, and I had a precious quantity of packing up to do on the fifth; so I recollect all about that day, well enough."

Counsel.--"Now as to the time when the prisoner went away, are you quite sure that it was not half-past five that struck?"

"Quite, Sir," answered the witness; "I heard the half-hour go while I was talking with the gipsy woman, and the quarter to six just as my master and the prisoner were walking from the library to the hall-door, which I had got open in my hand. I counted three-quarters."

"You can't struggle against that," growled the judge; and the witness was suffered to go down.

"The honourable and reverend Horace Fleming," was then called, and entered the witness-box with a calm, firm step, and a look of placid dignity. "I know the prisoner in the dock," he said, in answer to the counsel's questions. "I never spoke with him but once, but have seen him several times in the grounds of Mr. Tracy, of Northferry. I always believed his real name to be Acton, till the night of the fifth of February, when I was told by my servant that he was the son of the late Sir Harry Winslow. I recollect all the events of that night, perfectly. I went into my library a little before five o'clock, to select some sermons, as I was coming over to my vicarage at Sandbourn on the following day; and about ten minutes after, my servant informed me that Mr. Tracy's head-gardener wanted to speak to me. He was shown into the library by my orders, and I asked him to sit down. I had heard from Mr. Tracy that he was a man of extraordinary information for his station in life; and it did not therefore surprise me to find him mingle very appositely quotations in Latin and Greek with his conversation. At the same time, I will own, both his manner and the request he came to make, seemed to me very strange. He was a good deal excited; and, after

apologizing in a hurried manner for taking a liberty, he said, a friend of his--indeed, a relation--had been left, by Sir Harry Winslow, all the books and a great number of the pictures at Winslow Abbey; together with the large book cases, and a great deal of other furniture. Sir William Winslow, he said, was behaving very ill about the whole business; and his friend was anxious to have the various articles removed from Winslow Abbey at once, but had no place to put them in. He then went on to explain to me, that having heard I had several large apartments unfurnished in the rectory, he thought I might be induced to give these articles house-room for a few weeks, till they could be otherwise disposed of. I replied, that the rooms though large for a rectory, were low pitched and difficult of access, so that it would be impossible to place tall bookcases in them, whatever inclination I might have to render the gentleman he mentioned any service. We went to look at the rooms, and he acknowledged that what he had proposed could not be done. He stayed some little time afterwards, conversing on various subjects; and I found him a man of very extensive information, which decidedly induced me to believe that his original station in life was not that which he assumed. He spoke with considerable acerbity of Sir William Winslow; and although he affected a certain degree of roughness of manner, probably to harmonize with his assumed character, it was quite evident to me that he had received the education of a gentleman. I did suspect him to be Mr. Winslow before our conversation was at an end; so much so, indeed, that I asked him if he knew Sir William Winslow was at Northferry House. He replied, Yes; but he should keep out of his way. He left me just as the clock was striking a quarter to six. At the door, I expressed my sorrow that I could not take care of the valuable things he seemed to consider in danger; and he replied, 'It is very unfortunate, indeed; but it cannot be helped: Dominus providebit.'

Counsel.--"You say his manner was a good deal excited; pray, what do you mean by that expression?"

Witness.--"I mean, hurried, hasty, impatient, agitated. Once he fell into a reverie, which lasted two or three minutes."

Counsel.--"Will you have the goodness to state, Mr. Fleming, with as much precision as possible, at what hour the prisoner visited you?"

"Silence!" cried the judge, in a voice of thunder. "What is all that noise at the door?"

"A man will force his way in, my lord;" said one of the officers, from the other end of the court; "and there is not a bit of room."

"Take him into custody," cried the judge.

"He says, he wishes to give evidence for the prisoner, my lord," shouted the officer; the noise and confusion still continuing.

"He will be called if he is wanted," said the judge. "Take him into custody, if he continues disorderly."

The volunteer witness apparently did so; for there was a momentary scuffle at the door, and then some one was removed by the officers.

The question of the counsel was then repeated to Mr. Fleming; and he replied, "To a minute I cannot exactly say; but it must have been somewhere between five and a quarter past; for the clock upon my library table struck the quarter while he was sitting with me."

Counsel.--"Is that clock very accurate?"

Witness.--"It is set every day by that of the church; which is, I believe, a very good clock."

Counsel.--"Then it was before a quarter to five that he called at your door? How long does it take you generally to walk from the Rectory to Northferry House?"

Witness.--"From a quarter of an hour to twenty minutes by the fields; it would take about half-an-hour by the road."

"And you are quite certain that the prisoner left you at a quarter to six--not before?" said the counsel.

Witness.--"No, rather after; for the clock struck when we were in the passage, and I spoke to him for a short time at the door."

Counsel.--"Then, are you prepared to swear that the prisoner is the man who was with you on that night, as you have described?"

Mr. Fleming turned round his head and gazed for a moment or two at Chandos Winslow, after which he replied, in a firm, clear voice, "I am. He is dressed very differently on the present occasion; but I have not the slightest doubt."

Judge.--"I will put it to the counsel for the prosecution whether they can proceed any further after the evidence they have heard?"

"My lord, I have done," said the counsel for the prosecution. "I am not in the least prepared to invalidate the testimony of the reverend gentleman. His character is above reproach; and I have nothing more to say."

"Gentlemen of the jury," said the judge, "you have heard the evidence; but I will sum up, if you think fit."

"There is not the slightest occasion, my lord," said the foreman of the jury. "It would be only wasting your lordship's time, for we are all of one mind, and have been so for the last half-hour. We therefore beg at once to return a verdict of 'Not guilty.'"

Loud acclamations followed the verdict which were with difficulty repressed; but it was remarked that the face of the accused did not express the slightest pleasure, and that Sir ---- leaned his arms upon the table and covered his eyes with his hands, as if overpowered by deep emotion, or exhausted by his exertions. He was in very bad health at the time; but not a member of the bar had ever seen him give way before, and there was much marvelling. The judge addressed a few words to the late prisoner, declaring that he quitted the court with his honour unimpaired, and without a stain upon his name; but Chandos Winslow only bowed with a grave and stately air, and seemed in no way to participate in the satisfaction which his acquittal had produced in the court.

CHAPTER XXXIV.

"Sir ---- will be with you in ten minutes, Sir," said the landlord of the great inn, the Green Dragon, at S----, addressing the liberated prisoner. "He has been sent for by the judges. Dinner was ordered at six; but a message came to put it off for half-an-hour."

Chandos bowed his head, and the landlord withdrew, leaving him alone in the sitting-room of the great barrister, who, as soon as the trial was over, had sent him a note, begging him to dine with him. He took up a book. It was a volume of celebrated trials. A page was turned down at that of Mr. Cowper, afterwards Lord Cowper, for murder; and although we have seen the very sparing use made of it by the counsel, every page was marked with thick marginal notes in pencil, evidently freshly written. Chandos had not much time allowed him to read; for a minute or two after he had opened the work he heard the voice of his little solicitor, inquiring with quick reiteration, "Where is he? where is Mr. Winslow? What number did you say?" and in another moment he was in the room.

"My dear Sir," said the solicitor, shaking him warmly by the hand, "I congratulate you a thousand times upon the result of the trial. It was a most splendid defence--magnificent--unequalled,--our learned friend out-did himself. Did you mark how he jumped over all the difficulties? how lightly he trod upon the dangerous ground? Really it was a treat to hear him--the whole bar rings with it. It is really worth undergoing a trial for such a defence."

"It is at least some compensation for the pain of one, to find that I have such a friend," replied Chandos. "I am waiting for him now with a heart full of gratitude."

"He may be a little while first," said the solicitor, with a very cunning look, "he's about that little awkward affair; but it can make no difference now--verdict given. In the meantime, I have just come to say a word or two upon business, my dear Sir. You were considerate enough to give me a

power of attorney, and also to execute a deed in case of the worst, which, when you have a moment's leisure, must all be rearranged, as the best, and not the worst has happened. But in the meantime I have taken the most prompt measures to secure the furniture, books, statues, pictures, and other chattels, left you under your late worthy father's will. Now perhaps, as the fees and other expenses are heavy--perhaps you would--as I understand you are going to London directly--give me some little security in the shape of a lien upon said property for the amount of costs. I have got a small document here merely a few words, which will answer all the purposes, if you will look it over."

"Certainly," answered Chandos Winslow, taking the paper out of his hand. "But you will understand, my good Sir, that I intend to pay these costs from other resources; and therefore you must assure me that you will not use this paper, which, I see, gives you power to sell, unless I fail in discharging your account within a reasonable time."

"Undoubtedly, undoubtedly," cried the lawyer, "it is merely as a security--nothing more, I can assure you--all shall be taken care of, and held sacred as the great seal."

"An inventory of all these effects," continued Chandos, "has been already made by a friend of mine; and as it seems fair enough that you should have some means of paying yourself, I will sign the paper upon the understanding I have mentioned."

"Ah--oh--yes; here are pen and ink," said the solicitor: and the paper was signed.

"I thank you most sincerely, my dear Sir," said Chandos Winslow, "for the interest you have taken, and the skill you have displayed in this sad affair. But let me inquire what you meant just now? You spoke as if my friend, Sir ----, was absent on business of mine, and as if I knew what that business is. Will you have the goodness to explain?"

"Oh, it is about that fellow who is so unfortunately like you," said the lawyer, "the man whom Mr. Fleming and his servant must have mistaken for you. He came to the door of the court just at the end, and wanted to

force his way in--did you not hear all the hubbub? But Dickins, the tipstaff, is a capital fellow; and as soon as he had got authority, he took him into custody, and walked him off. If he had got in, he would have spoiled the whole defence, and played the devil."

Chandos Winslow sunk down into his chair in horror and mortification. "And is it possible," he exclaimed, "that the life of an innocent man can depend upon a mere mistake of one person for another, and that in an English court of justice too?"

"Quite possible, my dear Sir," replied the little lawyer, "when the party accused will not explain suspicious circumstances. I am perfectly confident of your innocence--always have been--all those who are well acquainted with you are the same; and it seems that our leader knows it from the facts that you have stated to him. Indeed, it was that carried him through; for if he had not been perfectly sure, I do not think even he could have made such a defence. But I can tell you, Mr. Winslow, that if that worthy had got into court when he tried, you'd have had a verdict of 'guilty' against you; unless, indeed, Sir ---- had some back card to play: which I think he had--always did think he had--and that kept my courage up. Perhaps the real story would have popped out, if the alibi had failed. However, there is no use thinking of these things now. We've got a verdict: all's safe; and not all the judges in England can overset it."

"But there is something more to an honest man than merely getting a verdict," said Chandos, gravely. "When it is known how the verdict has been obtained, what will men think of me? How can I be satisfied with such an acquittal, obtained by a gross and extraordinary error."

"Oh! in courts of justice, my dear Sir, it is very customary to combat error by error. You were likely to be hanged by one fallacious train of evidence: we have saved you by another. Error for error, that's all--rather odd, but very satisfactory."

"By no means satisfactory to me," replied Chandos Winslow.

The little lawyer grinned as if a merry reply was rising to his lips; for to win the cause was all he cared for; and the means seemed to him of very

little consequence. But his answer was cut short by the entrance of the great barrister, who shook the late prisoner warmly by the hand, without, however, venturing to congratulate him upon the result of the trial. The little solicitor took his leave; and as soon as he was gone Sir ---- turned kindly to his friend, and, taking him by the hand, he said, "I understand all that you feel, my dear Winslow; but put your mind at ease. No one will doubt your innocence, although we were obliged to take advantage of a good man's mistake to gain a verdict from the jury."

"It is bitterly mortifying to me," answered Chandos Winslow; "to feel that I have been acquitted solely by an error."

"What could be done?" answered the barrister. "You prohibited me from using the only legitimate means of defence; and, although the demolition of a great part of the evidence against you by my young friend B----'s cross-examination, taken with the fact of another person having been coming from the grounds at the very time of the murder, might have raised a doubt in the minds of the jury, and you might have obtained a verdict in your favour after long hesitation; yet the suspicion which would then have attached to you, would have been very strong, and very general. As it is, no doubt will rest with any one, but the two or three who may have seen your friend Lockwood, and remarked the extraordinary likeness between you."

"And yet that, my dear friend," replied Chandos, "will be enough to embitter the whole of the rest of my life."

"Do not suffer it to do so," answered his friend; "for the judge who tried the case is quite convinced of your innocence: and I must now tell you, though it may spoil your dinner, that suspicion has lighted on the right person."

"How so?" answered Chandos, starting up. "I trust you have not mentioned any of the facts."

"They are all still under the seal of confession," replied the barrister, with a smile; "but the circumstances are these. A person by the name of Lockwood, who, it seems, is your half-brother, was taken into custody for creating a disturbance at the door of the court. He mentioned some

circumstances to the constables, which were reported to the judge, who saw him in his room after the rising of the court. The great likeness instantly struck his lordship. He made inquiries which brought out the whole story of Lockwood's visit to Mr. Fleming. I was immediately sent for, and had to submit to a veiled and courteous reproach for the course I had thought fit to pursue. For a moment Lucifer had nearly prevailed to make me treat his lordship somewhat cavalierly; for the trial was over, and he had nothing to say to it; but thinking better of the matter, I showed him that it was impossible for me to refuse evidence in your favour voluntarily tendered; and, at the same time, I gave him my word of honour, that I would not have pursued the course I did pursue, unless I had the most positive certainty of your innocence, although circumstances which I was not permitted to mention, prevented me from proving the real facts before the jury. His lordship is very keen and quick in his combinations: he had Lockwood in again while I was there, and asked him two or three questions, which elicited the following facts: that your brother and Mr. Roberts were by no means upon good terms, and that several sharp discussions had taken place between them;--that Mr. Roberts had discovered, among some papers at Winslow Abbey, a memorandum in your father's handwriting, to the effect that a will of a much more recent date than the one proved had been given into your brother's hands some time before Sir Harry's death; that Roberts knew the particulars of that will, which were very favourable to yourself; and that he had gone over from Winslow Abbey to Northferry House, in order to communicate the facts to you. This, of course, was sufficient to show that you could have no earthly motive for taking the poor man's life; but when Lockwood went on to state, that Sir William at the very time of the murder was at Northferry House, his lordship immediately connected that fact with the hasty return of some one from the grounds through the green-house, and some strange circumstances which have got abroad regarding your brother's marriage with Miss Tracy--with Miss Emily Tracy, I mean," he added, seeing Chandos Winslow's face change as he spoke.

"My brother's marriage with Miss Tracy!" exclaimed the latter; "I never heard of it."

"Oh, yes," continued the barrister, "they were married--or half married; for I believe the lady fainted in the midst of the ceremony; and a letter

having been suddenly given to your brother, he left his bride in the church and went abroad. All these circumstances made out a case of suspicion in the judge's mind against Sir William, which he strove cunningly enough to confirm by putting some dexterous questions to me. I was as silent as the dead; and after some further conversation he dismissed your friend Lockwood with a reprimand. Nevertheless, I feel sure his lordship will hold some communication with the magistrates on the subject; but do not believe they will be able to prove anything against your brother without your evidence."

"Which they will never have," replied Chandos Winslow.

"But which they ought to have," replied the barrister, shaking his head; "and now my good friend, I must run away, to cleanse my face and hands from the filth of courts. I have invited two or three of the bar to meet you. After dinner, at half-past nine, and at a quarter-past ten, I have two consultations. At eleven I am off for London; and if you will take a place in my carriage, I will give you a little advice by the way; for, from Lockwood's information, I think you would have a good case for stopping the sale of Winslow Abbey."

"I must go over to Northferry first," replied Chandos; "but I will see you when I come to town. I am afraid, however, it is too late to stop the sale."

"Oh dear, no," replied his friend; "the only thing that is too late is my toilet; for I hear the voice of our learned antagonist, inquiring for my rooms;" and, running through the neighbouring door, he made his escape just as Sergeant ---- was announced.

It was with no very pleasant feelings, it must be confessed, that Chandos Winslow found himself tête-à-tête with a man who had moved heaven and earth to hang him, not more than four or five hours before. But whatever notion he had previously formed of the worthy sergeant's demeanour in private life, from the part he had borne in the trial, it was very speedily dissipated after he entered unwigged and ungowned. The sergeant shook him heartily by the hand, congratulated him with a very joyous laugh, upon the result of the trial, and talked of the whole affair in which a fellow-creature's life had been at stake, as if it had been a mere game at cards,

where Sir ---- had held most trumps, and won the rubber. Never was there a more jovial companion; and when they sat down to dinner, after several other barristers had arrived, the sergeant laughed and talked and cracked his jokes, and drank his champagne, till one of the uninitiated might have thought a consultation with him, after the meal, an expedient somewhat dangerous.

The conversation during dinner principally turned upon snipe-shooting. There was very little law; and the "feast of reason and the flow of soul" did not afford the banquet the lawyers seemed most to delight in. Habit is very strong in its power over the body; but, I think, even stronger with the mind. The most vehement rivalries, the most mournful ceremonies, the most tragic scenes, aye, even the most fatal events lose their great interest when they become habitual. The statesman, the undertaker, the physician, the soldier can bear witness to it, as they feast after the fierce debate, the solemn funeral, the painful death-bed, or the battle-field. Nothing on earth ever makes twice the same impression. How those lawyers laughed and talked, though two trials had taken place since that of Chandos Winslow had terminated, and a woman had been condemned to death, a man had been sent to expiate one half of a criminal life by labouring during the rest in chains and exile!

Chandos felt benumbed by the heavy weight of the past, and not cheered by the light emptiness of the present; so that he was glad when dinner was over, and coffee drunk. The men of law betook themselves to earnest consultations, reinvigorated by the temporary repose; for in reality and truth, during that seeming revel, the giant minds had but been sleeping. It was rest that they took: and happy are they who are enabled to cast off the burden of heavy thought, the moment that it is no longer necessary to bear it.

Chandos took leave of his friend for the time, and ordered a chaise for Northferry; but while it was in preparation he issued forth to inquire in the town for Lockwood. His search was vain, however. He found out the place where his half-brother had dined, after being discharged from custody by the judge's order; and he learned at the prison that he had been there to inquire after him; but nothing more could he discover, and the demeanour

of the people of whom he inquired was not pleasant. They neither said nor did indeed anything that was uncivil; but there was an instant look of intelligence wherever he presented himself, which said, as plainly as a look can speak, "There is the man who was tried for murder!" It was all very painful; and he returned to the inn, feeling himself a marked man for the rest of life.

It was a very painful feeling: it must ever be so; to know that his name would never be mentioned without suspicion--that wherever he appeared the tale would be told--the past spoken of. He fancied he saw the shrugged shoulder, the significant smile, the doubtful look--that he heard the poisonous insinuation, the affected tone of candour, and the half-veiled accusation. On his name there was a stain, in his reputation a vulnerable point: every enemy could strike him there--every false friend, every jealous rival could wound him, either with the bold broad charge, or the keen and bitter sneer. He had been tried for murder! It was a terrible fate; but it was irrevocable. The brand, he thought, was upon him which no Lethe can wash out.

CHAPTER XXXV.

The chaise rolled on rapidly in the darkness of the night. Chandos was fatigued--exhausted--but he slept not. Weariness of mind often produces the same effect as overfatigue of body, and refuses that rest which is needful for its cure. His thoughts, too, were very busy. What was next to be done? What was the course he was to pursue in life? A new chain was upon him, a fresh obstacle was in his way. He had stood in the felon's dock accused of the highest crime known to the law. What an impediment was that to all advancement! In what profession would it not prove a barrier almost insuperable? And Rose Tracy, what would be the effect upon her? He would not believe that it would change her; but yet, though she might still love, though that consolation might be left him, how could he expect that her

father would either listen to his suit, or permit his daughter to give even hope to a man marked out by such a record as that which stood against his name? Even if he did, what chance, what prospect was there of his ever being in a position to claim her hand?

On such subjects rolled his thoughts, one following another, innumerable, like the waves of an overflowing sea, while mile after mile of the way went by. The night was dark and warm; one of those dull, sultry spring nights, when the clouds seem to wrap the whole earth in a dull, damp pall, shutting out the breath of heaven. The windows were all down, and Chandos gazed forth upon the darkness, finding something therein congenial to the heavy obscurity of his own fate, offering nothing to interrupt the gloomy current of his thoughts, yet tranquillizing them with a solemn stillness.

"Mr. Tracy I must see," he thought; "for we have business to settle: and Rose I will endeavour to see, that I may know, or at least guess at her feelings. But I will not try to bind her to anything. It would be cruel--ungenerous. No, no; my fate must be cleared of these dark clouds, before I dare ask her to walk forth under the same sky as myself."

And then he thought of leaving her--perhaps, of losing her--of never seeing that fair face, that sweet smile again--of hearing that she was united to another. And his heart was very bitter.

On, on, rolled the chaise, as quick as the post-boy could induce the horses to go. It was a long stage, a dark night, and a weary way back. He wished it was over, and his boots off. They passed through Milltown, and rattled over Longheath, then down they went into stony Langburn, and then slowly up the hill again. When they got to the top, the horses were once more put into a brisk pace, and away they went over the downs, with darkness all around them, and the road hardly distinguishable from the turf. But still the post-boy kept upon his way, knowing the ground by habit, in the night as well as in the day. At length they went rapidly down the hill near the bottom of which stands the thirteenth milestone from S----, and just as the chaise crossed the little rivulet which winds on through the valley, Chandos felt a sudden jerk, and then a depression of the vehicle. A grating sound followed, while the horses pulled on for a yard or two, and then the

chaise stopped. The post-boy got down and poked his head under the carriage, swore a little, and approaching the door, told the traveller that the axle was broken.

"That is bad news, indeed," said Chandos Winslow. "How far are we from an inn?"

"About three miles, Sir," replied the man; "but if you just go back to the stone, and take the path to the right, it will save you half-a-mile. I must get the horses out, and leave the shay here; but I'll put your portmanteau on the off horse, and get it up that way."

"But can I miss the road?" asked Chandos. "It is long since I was in this part of the country."

"Lord bless you, Sir; you can't miss it, no how," rejoined the man; "it is as straight as a line. You just go by the old, tumble-down mill, and then half-a-mile further you come to the church, and then--"

"I know, I know," answered the young gentleman; "I recollect it now;" and he walked away, turning back for a moment to tell the driver to order him a fresh chaise for Northferry, if he arrived first at the inn.

The little path on which he had been directed rose gently from the place where the milestone stood, to surmount the shoulder of the high range of hills over which they had been passing for the last two miles; and it was plainly marked out by the white, chalky staff of which it was composed, from the dark hue of the short turf upon the downs. After Chandos had gone on for about the distance of a mile, there seemed to be a glimmering amongst the clouds to the east, and the objects around became more distinct. The moon was rising. Quarter of a mile further, he caught sight of a mill, which he now remembered well; for it had often served him as a sort of landmark in his youth, and was connected with memories both very pleasant and very painful. It lay upon his right hand as he went, and he knew that, from the high point on which it had been placed, to catch all the winds, Elmsly, one of his father's seats, was just seven miles distant by the hill paths, and Winslow Abbey, just eleven on the other side; though the distance between them by the roads was twenty-four.

He had not seen that mill, however, for many years; for unpleasant associations had attached themselves to it of late, and overbalanced the pleasant recollections of youth. As he now gazed on it, walking on, the sight, as it stood out from the sky, which was of a pale gray, with the moon's light amongst the clouds, did not cheer him; and the long, thin arms of the rotting sails called back to his mind the description which Lockwood had given of it.

From the point where the mill was passed by the path, the latter descended towards the little town where Chandos expected to get horses; but ere it reached that bourne, the road he was following had a labyrinth of lanes and hedges to go through. Before it came to that more cultivated part, however, it ran some way along at the bottom of the bare hills amongst some green pasture-ground with the downs on the right and the hedgerows on the left. Just in the midst on this track stood a little detached church, called St. Mildred's, with a tall conical spire, somewhat dilapidated, and a little churchyard, within a ruined stone-wall. Though the faint moon through the veil of cloud did not afford much light below the edge of the hill, yet the spot where the church stood was marked out by its spire rising over everything else around, and by the numerous black yew-trees in its garden of graves. Chandos saw it some time before he reached it, and the sight of it too was sad to him. Yet when he was opposite the rude gate; with its cross-beam over-head, he stopped to gaze at the old church and its dark funeral trees; and that sensation which sometimes comes salutary over us, of the nothingness of human joys and sorrows, stole upon him as he asked himself, where were the hands that raised the building--where those who planted the trees--where the many generations that had passed since the one arose, the others sprang up. As he paused--it was but an instant--he thought he heard a low moan, as of some one in distress. It was repeated, and came from the churchyard; and, opening the gate, he went in. The moans led him on nearly to the back of the church, which stood detached, with no other building near; but presently they ceased, and he looked around over the waves of graves, and their little head-stones, without seeing any one. He felt certain that the sounds had proceeded from a spot not far distant; and, raising his voice, he asked, "Is any one there? Does any one want help?"

There was no answer; and, after stopping for a moment, Chandos walked a step or two further; and then, looking a little to the left, he thought he saw something like a human form stretched out upon one of the little grassy mounds. He approached quietly, and looked down upon it, perceiving that he had not deceived himself. It was the form of a woman, lying with her face downwards upon a grave evidently not newly made. She was living, for her breath came thick, and laden with sobs; and Chandos asked in a kindly tone, "What is the matter, my good woman? Can I do anything to assist you?"

At the sound of his voice, the woman started up, exclaiming, "You!--You here? Oh, fiend!"--But then she suddenly stopped, gazed at his tall figure in the dim light, and then added, "Ah! is it you, Sir? I did not know you: I thought it was another." And she sat herself down upon the adjoining grave, and covered her eyes with her hands.

"Surely I know your voice," said Chandos. "Are you not the gipsey woman, Sally Stanley, the little boy's mother?"

"You know my voice better than I know yours, it seems," replied the woman; "for yours deceived me."

"But what are you doing here, my poor woman?" inquired Chandos. "You seem in great distress, on some account. Come, leave this place; it can do no good to you, or any one, to remain weeping over a grave at midnight."

"Every year of my life, at this day, and this hour, Chandos Winslow," replied the woman, "I come here to weep and pray over those I murdered."

"Murdered!" exclaimed her companion. "But it is nonsense, my good woman; your brain is wandering."

"I know it is," answered Sally Stanley; "I need no one to tell me that. It does wander often, and sometimes long; but on this night it wanders always. I said 'murdered,' did I not? Well, I said true. I did murder him; but not as your brother murdered Roberts, the steward, with one blow, that ended at once all pain and resistance--slowly, slowly, I murdered him--by

grief, and shame, and care, and despair; aye, and want too had its share at last."

"Good God! then who are you?" demanded Chandos Winslow.

"Ask me no questions," answered the woman. "Ever since those days a fire comes into my brain, from time to time, that nothing will put out till it burns out of itself; and I see more than other people, know more--I see the dead, alive; and I behold the unborn deeds before they are committed; and the hand of God is upon me. Ever on this night--the night when the old man died of sorrow, I am at the worst; for then it is that my heart is given up to the hell of its own making, and I come here to cool my brain and my bosom upon the green grass of his grave. Disturb me not; but go, and leave me. I can have no help of man."

"Nay, poor thing!" said Chandos Winslow, "I cannot, in truth, leave you in such sorrow and in such a place, without trying to give you some consolation. You have said you come here to pray. Do you not know then, that, whatever be your offences, there is pardon and comfort for all who pray in faith and with repentance?"

"Aye; but we must all bear our punishment, nevertheless," replied the woman. "Do not try to console me, young man. If you would needs stay, (and it is better that you should, for I have wanted much to see you, and have much to say to you,) sit down on the church step there for a while, till this hour is past, and I will tell you things you want to hear. But do not try to console me. God may give me consolation at his own time. Man can never."

Chandos was eager to get to his journey's end; but yet he felt real compassion for the poor woman, and a strong reluctance to leave her there alone. He thought that if he remained for a while, and humoured her sorrow, she might be the sooner induced to quit the spot; and he determined to sit down on the church steps, as she had said, and wait the result. Such as I have said were his strongest motives for remaining; but at the same time a doubt, a suspicion of the truth, to which he would hardly give a moment's attention, crossed his mind; and then her strange words regarding his brother and the steward awakened still stronger curiosity, and made him

almost believe that there had been other witnesses, besides himself, to the crime for which he had so lately been tried.

"Well, I will wait, then," he said; and, retiring from the spot, he seated himself at a distance, and gave himself up to thought. There is nought so variable as the influence of thought upon our appreciation of the passing of time. Sometimes it seems to extend the minutes into hours, the hours into months and years. Sometimes thought seems to swallow up time, and leave nought in existence but itself. The latter was more the case with Chandos Winslow than the former. The church clock struck one shortly after he sat down. It struck two before he fancied that the hand had half paced round the dial, and a minute or two after the woman was by his side.

"You have waited patiently," she said, "and I will try and repay you. I longed to see you as soon as I heard that it was all done, and you were free. I owe you much; but you owe the gipsy woman something, Chandos Winslow; for, had it not been for me, they would have found you guilty."

"Indeed!" said the young gentleman; "but how is that, Sally Stanley?"

"Did not the parson bear witness that you had been with him that night?--aye, and his servant too?" she asked. "Well, I found out that they had mistaken Lockwood for you, and had mistaken me in what I told them; and I went over to Sandbourne, and first told the good young man of what they accused you, and that he ought to go and give evidence at the trial. He was for setting out directly; but I let him know that the inquest was over, and that he could do no good till the trial, and bade him keep himself quiet till then. Lockwood would have spoiled it all," she added, in a rambling manner; "but I took care of Lockwood too, and kept him close till it was too late for him to do any harm. He had nearly done it though, they tell me. He is a harsh man, Lockwood."

"But he has a good, kind heart," replied Chandos.

"He does not mind treading on other people's hearts," she answered, leaning her head upon her hand, and seating herself upon one of the lower steps. "But whither are you going now, Sir? This is not the road to London."

"I am going to Northferry, Sally," replied Chandos. "I must see Mr. Tracy, and your poor little boy. The dear child gave his evidence nobly; but I find Mrs. Humphreys took him away out of the town as soon as the trial was over."

"Aye, he little knew whom he was giving evidence against," said the woman, in a wild way; "but they tell me he behaved well."

"You seem to have got intelligence of everything very soon," said Chandos.

"Sooner than anybody else," answered Sally Stanley; "we always do. You Englishmen may try what you like--coaches, and railroads, and telegraphs; but the gipsies will always have the news before you. There were many of our people there, and I soon had the tidings. But what do you want at Northferry? The boy is there, but he will do well enough without you; and as to Mr. Tracy, you will not find him. He is far enough away with all his. Have you not heard all that has happened?"

"No," answered Chandos; "I thought he was there. Has he gone to London?"

"They have taken him to London," answered the woman; "but I will try and tell you all about it, if my brain will let me. You know that he ruined himself with buying what are called shares; and that, to save himself from the first shock, he sold his child--his Lilly, as he used to call her--to a murderer--a murderer of old men. He thought, that by selling the best of his shares he would be able to stave off the rest of the sums he owed; and that the Northferry property would, at all events, be saved for his own daughter, as it would become her husband's--the murderer's. I told her how it would be long before. Then the other girl, I suppose, was to be provided for by the old General.--I only tell you what the people say. Well, let me see, where was I? All the shares were to be sold; but the shares could not be found; for a lawyer-man--a rogue, called Scriptolemus Bond, had run away and carried them all with him. So Mr. Tracy was arrested, you see, and taken to London; and his brother and the two girls went up the morning after."

"Good Heaven! did he really trust that man?" cried Chandos. "His looks, his words, almost his gestures spoke him a charlatan. I heard him boast he had a commission to buy shares for Mr. Tracy; but I doubted the very fact, because he said it; and never believed that he could be trusted to a large amount by a man not wanting in good sense."

"Everyman is a fool in some points, and every woman a fool in one," answered Sally Stanley. "But I have nothing to do with his folly or his wisdom.--What is it to me? However, he wanted to make his riches more; and then every man goes mad. He trusted a knave, and the knave ran off with the plunder. So Mr. Tracy is in prison, or something like it, and the knave is free."

"This is sad--this is very sad," said Chandos. "Is there no trace of this villain, who has brought a kind and generous family from affluence to beggary?"

"Oh! he will go at large like other villains," replied the woman. "The world is full of them, and they sit in high places. It is very strange that all men take so much interest, and feel so much compassion for a rich man that falls into poverty; while a world more misery may come upon a humble household without drawing a tear beyond the four walls of their own cottage."

"There is some truth in what you say," replied her companion, thoughtfully; "but yet, the fall from high to low is deeper than from low to lower: the contrast more painful. I should think, too, that you would much regret this misfortune to Mr. Tracy's family, as thousands of others, in a far inferior position to himself, in point of fortune, will mourn over it. Can you tell me a family who were more kind to all around them? Can you tell me a rich man whose wealth was more liberally shared with the poor and needy? Was any man suffered to want in his neighbourhood, if Mr. Tracy or his daughters could relieve him? Did any child lack education in his neighbourhood from the parents' poverty? Was he harsh even to those for whom the laws are harsh? Even your own child: did not these two young ladies, who now, perhaps, are weeping over their own and their father's ruin, show themselves kind, and tender, and generous to him?"

"I am wrong, I am wrong, Chandos Winslow," cried the woman; "but something makes me bitter this night. I am not myself, young man, I tell you. You must come and speak with me another day, and perhaps I can do something. The man you speak of is a good man, and should be saved. Let us try to save him."

"But how can that be done?" asked Chandos, sadly. "He is already ruined, it would seem."

"Oh, no; no one is ruined who has not broken a father's heart, and laid him in the grave," replied Sally Stanley: "that is ruin! that is ruin! It is ruin here--and here;" and she laid her hand upon her brow, and upon her heart. "But you will come and see me, and talk to me again, and see what can be done to save him."

"Why, what can you do in a matter like this?" asked her young companion.

"Did I not help to save your life?" she demanded, quickly. "I may do something in this too--come back and I will tell you more. I must have time to think. To-night I have no thoughts. Will you come?"

"But where shall I find you, and when?" asked Chandos. "Your abode, I fancy, is always varying; and I might seek you over the whole country without discovering you."

"Come in a fortnight to the place where we met three months ago, when you were going on a scheme that all the wise ones and the great ones would have thought madness," was the woman's reply. "You recollect the place in the lanes above Northferry: come there. I knew not at that time what drove you out of that fine house at Elmsly, and made you put on a gardener's coat, and take service like a hireling. I thought it was the Jacob and Laban story; and that you were going to serve for a fair wife; but I know more now. And a sweet, good girl she is, too. Her gay heart will be dull enough now, I dare say, poor thing; but you must go and comfort her."

"Where am I to find her? is the question," answered Chandos. "But, doubtless, I shall hear from the servants at Northferry."

"The servants!" cried the woman, with a laugh: "there are no servants there. The house is shut up. Half the servants are discharged; and the rest are gone with the old General and his nieces to London. But I will tell you where to find them. He has a house in a place they call Green-street though it is as brown as all the rest of the den. Go there, and ask for them, and you will find some of them, at least."

"Do you mean that Mr. Tracy has a house in Green-street?" asked Chandos. "Or are you still speaking of the General?"

"Of the General, to be sure," replied the woman. "It is a small, narrow house, fit for a solitary man. I was there once, and the old soldier, his servant, was kind to me, because I talked to him of Northferry, and the places round. He is not a bad man, General Tracy, as men go--better than most; and I think he will keep his word with the boy, whatever be his concern for his brother."

"You may be quite certain he will," replied her companion. "General Tracy is a man of honour, and never breaks his word."

"What! not to a woman?" demanded Sally Stanley, with a mocking laugh. "Well, go up to him, and see. Put him in mind of the boy; and tell him for me, that mice sometimes help lions, as the old fable-book says that I read at school. Then come down to me this day fortnight; and perhaps I may tell you more--I do not say that I will--I do not say that I can; but yet I have seen more unlikely things. Do you know anything of your brother?"

"Nothing," replied Chandos, "but that he has gone to the continent--whither, I know not."

"He has taken a bad heart and a heavy conscience with him," said the woman. "But you must learn where he has gone; for some day you will have to claim your own at his hands. He will not always triumph in his wickedness. A day of retribution will come."

"I trust he is not so wicked as you seem to think," answered Chandos Winslow; "and, at all events, I pray, if he have done wrong, as doubtless he has in some things, that repentance rather than retribution may reach him."

"If he has done wrong!" cried the woman, vehemently. "Chandos Winslow, do you not know that there is upon him a load of crime that may well weigh him down to perdition? I know not what you saw on that dark fifth of February; but there were those who saw you with a dead man's head upon your arm, mourning over him--there were those who saw that dead man walking alive with your own brother five minutes before; and fierce were the looks and sharp the words between them. Our people never go into your courts to bear witness for or against you; but there were words spoken and overheard that night which would have taken the charge from you and placed it where it ought to be, had those words been told again before the judge. There were words spoken which shall not be forgotten, and which may yet rise up and bear fruit that he wots not of."

Chandos Winslow laid his hand gently on her arm. "Vengeance," he said, "is a terrible passion. It is possible my brother may have injured you in times long past. I think it must be so, from much that you have said. But if so, I beseech you, seek not in anyway to injure him; for in so doing, you would but render yourself more wretched than you tell me you are. You too may have done wrong--you too may have brought unhappiness on others. Forgive, if you would be forgiven. I think I know you now; and if I do, it explains much that was doubtful regarding one for whom and for whose wrongs I have deeply grieved, believing her dead full eight years ago. My brother has, I have reason to believe, wronged me too; but if he has, I have forgiven him; and you may see that it is so when you recollect that even to save my own life I would not endanger his."

"And have you grieved for me, Chandos Winslow?" said the woman. "I knew you pitied me; but I thought not the bold, brave boy would long think of her he sought to see righted. I found sympathy and kindness with those who saved my life, and I became one of them; but I thought all the rest of the world had forgotten me. And you grieved for me! God's blessing be upon you for it; be you blest in your love, and in your fortune, and in your children; be you blessed in health of body and of heart; be your age tranquil and your death calm. But, hark! There are people calling. What can they want? It is not any of our people. They know themselves better than to make such a noise."

"It is most likely some of the people from the inn seeking me," replied Chandos. "I sent on the post-boy with orders to have a chaise ready for Northferry; and I am so late, they may think me lost, or murdered."

"Go then, go quick," cried the woman; "do not let them come hither: and forget not in a fortnight to return."

"I will remember," answered Chandos; and bidding her adieu in a kindly tone, he left the churchyard.

It was as he thought. The people of the inn had become alarmed at his long absence, and had sent out to seek him. He gave no account of his detention, however, when he met the messengers, but merely said he had stopped a while by the way.

On his arrival at the inn, he found the chaise he had ordered at the door, ready to carry him to Northferry; but a change had come over his purpose. He paused, indeed, and meditated for a moment or two, asking himself if he could depend upon the woman's information, and considering whether it might not be better to proceed as he had at first proposed. But he speedily concluded in favour of the more impetuous course; and, ordering the ticket to be changed, and the chaise to drive towards London, gave occasion for some marvel on the part of the landlord, at what the worthy host thought fit to call "the gentleman's queer ways."

CHAPTER XXXVI.

There is a nice little country inn at Mantes, on the Seine. The rooms are plain and small, but neat; and those three which were at the end of the corridor, that is to say, a sitting-room and two bed-rooms, were occupied by an English gentleman and his valet de chambre. The English gentleman's name appeared in his passport as Mr. Somers; but the valet when he was

dressing him in the morning, or serving him at dinner, which he did not trust to the waiters of the inn, called him "Sir William." This valet was an Italian, but he spoke English perfectly well; and nothing but his complexion and a very slight foreign accent betrayed that he was not a native of Great Britain. He was a quiet, exceedingly quiet man, with none of the vivacity of the South about him; saying very little to any one, but that little of the civillest possible character. Yet there was that in his eye which seemed to say the spirit was not quite as tranquil as the body--a sharp, quick glance when anything was said, be the subject what it might; a flush when he was blamed, which supplied the place of words. He had been brought over by Sir William (then Mr.) Winslow, from Rome, three or four years before; and had remained with him ever since. His fellow-servants loved him not; and it had been observed, that if any of them ventured to offend him, that man did not remain long in Sir William's service.

Now the people of the inn remarked two or three thing which they thought somewhat strange in their guest. He very seldom went out in the middle of the day, although the weather was by no means yet so warm as to render the early mornings and late evenings pleasant, or the high noon unpleasant. He seemed very restless, too, when he was in the house, would walk up and down the room by the hour together, or wander from his bedroom to his sitting-room and back, with unmeaning activity. Then he never read anything but a newspaper: but he was an Englishman, and that passed. He frequented no cafe either; and did not even go to see the three great ostriches when they were exhibited in the marketplace. All this seemed very strange; but the valet held his tongue, and neither landlord, nor landlady, nor head-waiter could make anything of it. They could not find out even whether he had lost his wife or not; though such was the landlady's opinion, for he was dressed in deep mourning. The head-waiter had vague notions of his having stolen silver spoons, and being uneasy in his mind.

One morning he had either passed a very good or a very bad night, for he rose before it was light; and as soon as it was, went and walked upon the bank of the river. At a little after seven he came in again, hurried up stairs, called loudly for Benini, his valet, did not find him, and went into his bedroom to conclude his toilet, which was only half finished when he went out.

At the end of half-an-hour he was in his sitting-room, and found the cloth laid for breakfast. He rang, and his servant appeared.

"Have you got the letters and newspapers, Benini?" asked Sir William.

"No, Sir," replied the man.

Sir William gave him a fierce oath, and a bad name, and asked him why the devil he had not, when he knew that his master was so anxious to see the result of that cursed trial.

"Because the post never comes in till after eight, Sir William," answered the man calmly.

"Sometimes sooner, sometimes later," replied his master; "you should have gone to see when you knew I was impatient for news. Go directly, and do not let me find you grow negligent, or, by--! I will send you packing back to your beggarly country a great deal faster than you came out of it."

The gleam came up in the man's eyes; but he answered nothing, and went quietly to the post-office.

In five minutes he came back again, without either letters or newspapers. The post from Paris had not come in. Sir William ordered breakfast, and told him to go again, and wait till he could bring the packets. The man went, and was absent an hour. Either he or the post had resolved to punish Sir William's impatience. It might be either; for assuredly there is a perversity about fate in regard to letters, which makes those most desired tarry by the way, those least longed for come quick and unexpected. When he did come he brought several letters and two newspapers; but it was the latter which were first opened. The first and second pages of the voluminous sheet were passed over unread, and part of the third; but then Sir William's eye fastened upon the tall column, and with a straining gaze he went on to read the defence in the case of the crown against Chandos Winslow. Rapidly he ran the whole over, and his face lighted up with joy. His name had never been mentioned; the defence was an alibi; his brother had him not in his power. Chandos could not pretend to have witnessed anything when he had proved that he was far from the spot; and Sir William started up with joy

and relief, saying aloud, "This is excellent!" Then seeing the eye of the valet coldly fixed upon him, he added, "You will be glad to hear, Benini, that my brother is acquitted. He has shown that he was at a distance when the murder was committed, by the evidence of Mr. Fleming and his servant--perfectly unimpeachable--and I have no longer the dread of having my name coupled with that of a felon, in such near relationship. I shall go back to England directly: so get ready, and order horses at eleven."

"I am very glad to hear such news, indeed, Sir William," said the Italian; "I knew Mr. Winslow was not guilty."

The words struck his master, and raised a momentary fear. "I knew Mr. Winslow was not guilty!" he repeated to himself, when the man had retired. "How could he know? Pooh! it was only his foreign way of speaking! Now, dear Emily, in a few short hours you shall be mine!" and he proceeded to read the letters he had received. The two first he merely glanced at; the third he read attentively. "Ha!" he cried; "Mr. Tracy arrested! It is lucky the mortgage is perfect. The man, Bond, run away with all the shares; and this fair, cold Emily a beggar! It matters not. By Heaven! with such charms as hers, she has wealth beyond the Indies. That swelling bosom, that proud, pouting lip, those glorious limbs, are worth a diadem. Aye! and the liquid eyes, too, were they not so cold! I will put fire into those dark orbs, give me but time! We can surely have the horses by ten."

There was no difficulty; the post had little to do in the spring of the year; the carriage was soon ready, the horses too, the town of Mantes left behind; Rouen, Dieppe, reached, and then the town of Brighton. It looked gay and cheerful, with all its lights lighted, and its population in motion, on a fine spring night, and the broad ocean rolling dark and heavy along the shore. The fly was ordered to the York, and Sir William Winslow walked into the nice rooms ready for him, thinking still of Emily Tracy. Every man's mind is a web of which one fixed and predominant idea forms the woof, while other threads cross and recross it. With him the intense and vehement passion for the fair girl whom he could hardly call his bride, was the foundation of all his thoughts, as soon as the apprehension springing from present peril of death and disgrace was removed. That passion had been quelled and kept down for a time; but, like a fire upon which a load of cold

and heavy matter has been thrown, it burst forth again with more vehement flame than ever, the moment it made its way through. Remorse chequered it; vague, indefinite fears wove strange figures in the web: but still the eager passion ran through all. When he felt himself on English ground again, a certain degree of trepidation seized him; and he remained in his handsome sitting-room at the York, dull and heavy for sometime. His dinner at first would not down, and it needed several glasses of Madeira and a pint of champagne to help him through the meal. But then he grew quite gay again, and went out to take a stroll in the town. He went into a library, and took share in a raffle, and came back to set off early the next morning for London. His mood was gay and happy, though an occasional touch of gloom crossed it; but at all events it seemed to encourage his valet to ask him for his quarter's wages, which were not due for four or five days. The baronet, however, paid the money readily, and that appeared to encourage the man still further.

"I hope, Sir William," he said; "you will consider the difference between wages here and in Italy, and will make a small advance in mine."

"Why, you damned vagabond," cried his master; "I give you half as much again as most English gentlemen give their servants."

"I thought, Sir, considering the circumstances," replied the valet; "you might be pleased to allow me a little advance."

"Considering the circumstances!" cried his master. "I know not what circumstances you mean; but depend upon it you will not have a penny more from me."

The man bowed without reply; but in a minute or two he re-entered with one of his master's morning coats over his arm. The right sleeve was turned inside out, and he said, "Please, Sir William, what am I to do with this coat. There are two or three spirts of blood upon it, which it had fresh when you dressed for dinner on the fifth of February. I have got them out of the cloth, but the water has soaked them through into the lining."

Sir William Winslow's face grew as pale as death, and then flushed again, as he saw the man's cool, clear, dark eye fixed upon it. For an instant

he did not reply; but then he said, "I remember, my nose bled several times in the spring. It does not matter; leave it as it is."

The man folded it up, and laid it on a chair; and the next morning, before they set off for town, his master himself began upon the subject of wages. Benini was very moderate in his views; but before the conversation was ended his wages were nearly doubled.

Sir William Winslow seated himself in his carriage, with the comfortable feeling, that the man who had such wages would be a fool to deprive himself of such a master; but he recollected that he had played the fool too--at least he thought so. "I ought to have told the whole story at once," he said to himself. "The man insulted me, and I struck him with the first thing at hand--harder than I intended; but after all it was but a scuffle. If I had had the presence of mind to state the facts at once, the inquest must have brought it in *chance medley*." He forgot that juries sometimes inquire into motives too, and might have asked whether the insult Mr. Roberts offered was not the telling of too dangerous a truth. With the servant silenced, however, by an annuity for secrecy, he thought the only grounds even for a suspicion buried in oblivion; but nevertheless there came across him a vague conviction, that he was for life a bondman to his own valet.

It was but the beginning of unpleasant sensations; but that was enough. Man is a strange animal; but there is an inherent love of freedom in his heart which is often the source of very high and noble actions--sometimes of actions the reverse of high and noble. The lightest chain upon the once free limb, how it galls and presses! but what is the shackle of steel upon the body, to the chain upon the mind? To find the spirit a serf, the thoughts manacled! that is to be a slave indeed. No custom can lighten the load of those fetters, no habit render them less corroding, nought can harden us to their endurance. On the contrary, every hour, every minute that we bear them, the burden grows more oppressive; and Sir William Winslow felt it, as his carriage rolled on, and he groaned in bitterness of spirit.

CHAPTER XXXVII.

Small progress is made in post-chaises across country at night. On the public high road it may do very well. One may go from London to York as fast as Turpin, even without a railroad; but from county town A to county town B, you had better wait for daylight. So did Chandos Winslow find it; and it was broad day when he reached the fine old town of Salisbury. As he got out of the chaise, he inquired if there were not a coach to the railroad. The answer was, that it had gone by ten minutes. There was another three hours after; but the waiter informed him, that the light coach, the Hero, direct to London, set out for town in an hour, and beat the rail by an hour and a half; (the landlord was a proprietor of the Hero;) and upon this assurance being reiterated from various quarters, Chandos, though not very fond of heros, determined to try this specimen of the class, as he thought it very likely that the promised enterprise would be achieved. His finances, also, were not in a nourishing condition. For the first time in life he was obliged to calculate shillings: the Hero was a far cheaper conveyance than the railroad and coach combined; and after having ordered and obtained some breakfast, he got upon the top of the stage, and was driven away on the road to London.

The number of passengers was very scanty; but some one had monopolized the box; and Chandos was obliged to take up his position on the roof, with a stout countryman on one side, a grazier by trade, who was full of the famous cause which had just come off, as he termed it, at S----. Chandos certainly gave him no encouragement; but when bottles are filled too full they will run over; and his entertainment for the next twenty miles was his own trial for felony. He had the satisfaction, however, of finding a stout partisan in the good grazier, who declared that he had been sure from the first the young gentleman was innocent; for didn't he pay the fine two years before for Matthew Green, the farmer's son, who was brought up for killing some pheasants upon his father's farm? The reasoning did not seem quite conclusive to Chandos, even in his own defence; but he knew that he was not guilty of murder, and was glad to find that a good action could live a day beyond its date.

It was dark when the coach rolled into London, for it was not heroic as to time; and the crowded streets, the blaze of gas-lamps, the illuminated shops with their wide crystal fronts, and the multitudes pouring hither and thither, each busy with his particular selfishness, had a strange effect upon one who, for so many days preceding, had been engrossed with the weighing of his own life and death in the mere chance-balance of a court of justice. If there were any in all the masses of human mites he saw who had ever heard of him, it was but as the prisoner in the felon's dock; and by this time they had forgotten, and thought of him no more.

His own case had, in his eyes, seemed of immense importance not many hours before. It had connected itself, in his imagination, with the general administration of justice: it seemed to affect millions in its chances and results. But now, in the midst of that wide ocean of life, and feelings, and interests, all separate, all alone, yet all connected with each other, it lost its magnitude, and seemed small and insignificant in the diversified infinite around. "Birch, pastry-cook;" "Gobble, mercer;" "Walker, fish-monger;" what was the trial of Chandos Winslow to them? A tart, a yard of silk, a red mullet, was of much more importance to each. And what more did care any of the many who rushed past like ripples on a quick stream? Verily there is truth in the saying, that the greatest solitude is in multitudes; for there each man raises a thorny hedge of selfishness around him, which excludes every other human being except the few for whom he will be pleased to open the wicket.

On arriving at the dull-looking inn where the coach stopped, the young wanderer paid his fare, sought a bed-room, removed the dusty garments in which he had travelled, and set out for the other end of the town. As he passed through some small, quiet squares of smoked brick houses, and escaped from the pressure of the multitude, Chandos, for the first time, began to ask himself, what was the object of his visit, and what the excuse he was to make for so speedy an appearance at General Tracy's house. He went to see Rose Tracy--to hear of her, if not to see her. But what could he say when he did see her? How was he to act towards her?--how towards her uncle and her father? Though Mr. Tracy might be ruined, yet Emily and Rose were the co-heiresses of their uncle, a man of ample fortune; and Chandos could not shut his ears to the question, Was he--just tried for

murder, and acquitted on evidence which must soon be proved to have been given in error--he whose pittance, originally so small, had been further diminished by an expensive trial--was he in a position to ask the hand or seek the promise of one of General Tracy's nieces? He found it difficult to answer. Then he inquired what he should assign as his motive for following the family at once to London; and he thought of many things, but at length determined to trust to chance, as, perhaps, was the wisest plan.

Ah! that chapter of accidents, with its manifold pages, how often do its magic spells relieve poor mortals from their greatest difficulties! What wonders has it not done for every man! Which man amongst us, if he were to look back through life with sane and scrutinizing eyes, would not find that far more than one-half of all his successes--far more than one-half of all his reverses--far more than one-half of all that has befallen him in life, is attributable to that broad chapter of accidents, and not to his own efforts, his own errors, or his own fore-thought.

Chandos Winslow walked up Green-street, at length; and then the question became, which is General Tracy's house? He fixed upon one, and rang the right-hand bell. An unknown and powdered servant appeared, and informed him very civilly, (for Chandos Winslow's appearance was not easily to be mistaken for anything but that of a gentleman,) that the house was Lord ----'s; but he added the information that was wanted. General Tracy's abode, he said, was about ten doors further up, nearer to the Park: the gentleman would see a small brass-plate upon the door. Chandos soon found the door and the brass-plate, and as that house still possessed a knocker, he knocked. The door was opened by the General's old servant, who had been with him at Northferry; and the man almost started, certainly gazed with wonder, when he saw the well-known face which presented itself. He was an elderly man, whose wits when they once got into that state which I must call "stirred-up," did not easily settle again; and in his ideas regarding Chandos Winslow, there was some confusion. In his eyes Chandos was, according to the happy figure of a celebrated lady, "three gentlemen in one;" namely, Acton, the gardener, Sir William Winslow's brother, and the prisoner upon trial for the murder of Mr. Roberts; and there was in the man's air and manner a mixture of all the expressions which

those three personages were severally calculated to call up--there was familiarity, there was respect, there was consternation.

"Lord, Mr. Acton!" he exclaimed, "is that you? Well, I am very glad to see you, Sir; Lord 'a mercy! only to think!"

"Is General Tracy, at home?" asked Chandos, in a somewhat agitated tone.

"No, Sir," replied the man; "he has gone with Mr. Tracy to a meeting of the lawyers; but the young ladies are upstairs, and I am sure they will be glad to see you."

"Pray, tell them I am here," said Chandos: and the man went up to the drawing-room accordingly. In a minute after, he came half-way down, and, looking over, desired Chandos to walk up. With a quick step he did so, and was ushered into the drawing-room, where he found those two beautiful girls, both somewhat pale, and both somewhat agitated. Emily remained upon the sofa; but Rose, with her lip quivering, and tears in her eyes, advanced to meet him.

"Oh, I am so glad to see you," she said, holding out her hand. "This is very kind of you, indeed, to come so soon."

Chandos could not refrain; he pressed his lips upon the hand she gave him; and then turned his eyes for a moment to the face of Emily, to see if the act surprised her. She only smiled kindly. Chandos saw at once from her eyes, that the two sisters trusted each other; and a restraint was at once removed.

"I am very happy, indeed, to see you, Mr. Winslow," said Emily; "for till this morning we have been sadly anxious about you; and poor Rose nearly ill with apprehension."

She too gave him her hand, as she spoke; but Chandos did not kiss it. Yet Emily was quite satisfied.

It would be difficult to detail what followed; for it was but a confused crowd of questions and answers, in all of which appeared the deep interest which the parties took in each other.

Chandos found that they were already acquainted with all the details of the trial; for the whole family had devoured rather than read the report, which had appeared in the evening papers. They spoke not of the particulars, indeed; and, with them, Chandos was not inclined, to dwell upon the subject; but it was evident and gratifying to him, that not one of all Mr. Tracy's family had felt a doubt of his innocence. Yet whenever the matter was named, the conversation became strange and vague; so much so, indeed, that had any person unacquainted with them been a witness of what passed, he might have supposed, had it not been for the warmth of manner displayed, that a suspicion had existed and still lingered. There was a cloudy sort of doubt, indeed, which overshadowed the minds of both those fair girls, but a doubt which attached not in the least degree to Chandos Winslow. In the mind of Rose, that doubt amounted almost to a certainty; and some words which she had incautiously dropped in her agonizing suspense as to the result of the trial, had communicated suspicions to her sister, less defined, but more painful, than those which she herself entertained. With Chandos, of course, there was no doubt; he knew the truth too well; but all the horror of that truth seemed to present itself more strongly to his imagination, when he sat in the presence of poor Emily, and recollected the tie, imperfect as it was, which bound her to his brother.

At length, after about a quarter of an hour had passed, Emily rose, saying, with a smile, "I will leave you a little; for I know you must have much to say to each other. My father and my uncle will soon be back, and then I will join you again."

When she was gone, a few minutes were given to tenderness. Dark and sad events are skilful pioneers for love and confidence. They hew down in no time all the barriers of restraint and reserve, and leave the way free for heart to approach heart, unresisted.

But Chandos Winslow felt that in deep enjoyment they were losing moments precious for explanation: and at length he turned the conversation, somewhat abruptly, perhaps, to his own situation, in relation to herself.

"I see, dearest Rose," he said, "that you have made a confidant of your sister, and I am delighted that it is so; but I must not let my hopes carry me too far, and lead me to believe that the pain and anxiety which you must have suffered, have driven you to communicate all that is between us to your father and your uncle."

"I did not know that I might, Chandos," she answered: "in the dreadful state of suspense and anguish in which your trial placed me, I could not, indeed, refrain from sharing my thoughts with poor Emily. Thus much, however, I thought myself bound to tell my father--that I had known your real name from the moment you came to Northferry--that we had met before, and passed one long, happy day together; but that you had exacted from me a promise not to betray you, because you particularly wished your brother not to know where you were. My father asked but one question, which was, whether I believed I was myself in any degree the cause of your coming to Northferry? I replied, certainly not; for that I had every reason to believe you did not know that I was there, or was his daughter. This seemed to satisfy him perfectly; but indeed he has had so many painful things to think of, that I do not wonder at his giving no further attention to the subject. With my uncle, it is very different; for I am sure he suspects, if he does not know the whole. You have heard, of course, the sad change of fortune we have met with. My father is at liberty now, on what they call bail, I believe; but I tremble every moment, for what each ensuing day may produce. It is supposed, that the man who has carried away all the shares, and bonds, and papers of that kind, does not intend to sell them; as there would be difficulty and danger in so doing, even in a foreign country; but is likely to negotiate with my father for the restitution, in consideration of a sum of money, and indemnity for the past. Nothing has been heard of him, however; and in the meantime it is ruin to my father."

"Has no part of his course been traced, dear Rose?" asked Chandos.

"It was at first supposed he had gone to the Continent," replied his fair companion; "but every inquiry has been made at the passport offices, and no trace of a person of his peculiar appearance can be found at any of those places. They now fear that he may have escaped to America."

"He is not a man to be mistaken," said Chandos: "I saw him once when I was travelling up to London in January; and in the public carriage itself he could not refrain from making use of your father's name to entrap others. He tempted even me, Rose, poor as I am: and those words bring me, dear girl, to matters which had better be spoken of at once--spoken of even between you and me, although, perhaps, it is strange to mention them to you at all--."

"Tempted you, Chandos!" exclaimed Rose Tracy. "Oh! I hope he did not succeed."

"Oh, no!" answered her lover; "but yet I was in a degree tempted. I was going to London, with my thoughts full of Rose Tracy, with my heart full of passionate attachment. I felt that under the will of my father, which had been proved, my means were far too small, without some great exertion on my own part, to justify me in pretending to her hand; and at the very moment when I was thinking of how I could mend my broken fortunes--by what effort, by what scheme, however bold, I could acquire a position which would give me even hope, this man crossed me with visioned promises of speedy wealth. But a moment's reflection on the means, a moment's examination of the man himself, dispelled the illusion. Now, however, dear Rose, it behoves me to put the same questions to myself which I then put. I am not richer, but poorer; all I have on earth is but a pittance, barely enough to maintain myself in the rank of a gentleman. What will your father, what will your uncle say, if I presume to tell them of my love, and ask for it their countenance and approbation?"

Rose leaned her head upon her hand, and her eyes filled with tears; but she answered at length, "You must tell them, at all events, Chandos. You cannot tell, you cannot imagine the pain--the agony of mind which the concealment I have already practised has brought upon me--innocent and justifiable as I thought it. Oh! Chandos, for my sake you must abandon all further disguise."

"For your sake, dear Rose, I would do anything," replied Chandos Winslow; "but of course you do not wish me to enter upon the subject to-night. To-morrow I must go into the city to sell out a part of my small portion, in order to pay the expenses of the late trial. I must also see my

friend, Sir ----, who so nobly and ably defended me. He seems to entertain a belief--on which, however, I would not found the slightest hope--that a subsequent will of my father's may either be recovered, or the intention of it proved, or something of the kind--I really do not exactly know what; and that I may be thereby enabled to stop the sale of Winslow Abbey."

Rose started; but ere she could explain the effect which such a step, if it were practicable, might have upon the fortunes of her father, a carriage drew up to the house, and there was a footman's knock at the door. Emily immediately joined them, and it was evident that she had been weeping. Chandos knew not his strange position: but could he have seen into the hearts of those two fair girls, what would he have beheld?--That the one rejoiced at his acquittal of a crime she knew he had not committed, yet saw therein the prospect of misery to herself by the probable consequence of his brother's return to England; that the other, while she could not but hope that he might establish his rights, whatever they were, feared that her own father's utter ruin would be thereby consummated.

The next moment General Tracy and his brother entered the room. Mr. Tracy's face bore evident marks of the mental suffering he had endured and was enduring. The tranquil, well-satisfied, somewhat self-sufficient air was gone; and there was a look of sadness, bordering on the morose, in its place. No man likes to find himself a fool; and most men try to prevent others from discovering the same fact, or at all events to hide their own mental assent thereunto, by assuming a cold pride which will not bate a jot of its dignity. Thus, though he was shaken and evidently enfeebled in frame, he walked into the room with as stately a step as if he had never committed a folly in his life.

General Tracy, on the contrary, was unchanged either in person or demeanour. There was the stout, soldier-like, upright form; there was the warm, rosy complexion; there was the frank, straightforward bearing, and the warm, good-humoured smile, betokening the cheerful disposition, so charming in an old man. He walked straight up to Chandos Winslow and shook him heartily by the hand, saying, "Delighted to see you, my young friend. None have taken a deeper interest in late events than we have done in this small house; though it was impossible for any of us to be down at S--

--. None have more rejoiced that you have had fair play shown, and justice done you; for that was all we feared--that some of the quirks and quibbles of the law, some of the follies or obstinacies of jurymen, might make wrong seem right."

Mr. Tracy also held out his hand to his former gardener, but it was more coldly; and he only said, "I can assure you, Mr. Winslow, I never entertained the slightest doubt regarding you, and rejoice much that you have been able so fully to justify the opinion every one entertained of you; though why you thought fit to play gardener for so many months, I have not yet been able to divine."

"That will be easily explained, Mr. Tracy," replied Chandos; "and to explain it is one of the great objects of my coming here directly after the trial. The facts are simply these: I had long entertained a strong desire--a whim if you please to call it--to see the poorer classes nearer than a rich man can usually see them. A good many years ago, a very severe dispute occurred between my brother and myself, into the particulars of which I need not enter. Whoever was in fault, it left a coldness between us which never decreased. When my father's will was read, I found that he had made me a dependent on my brother, as far as it was in his power to do so. I was not disposed to be dependent upon any man, nor to be under any obligation to one with whom I was not on good terms. I expressed my determination--I trust, in no ungentlemanly manner--to receive nothing from my brother; and a sharp altercation ensued, which ended in my leaving a house that had become his. A small property had been left me some time before by a relation; my father had added by his will a very valuable library and some fine pictures. With these I might either have limited my ambition to what I had, or I might have opened for myself a new career; but I accidentally heard, immediately after I quitted my brother's house, that you were seeking a head-gardener. I had for four or five years taken upon myself the entire superintendence of the fine gardens at Elmsly, and my old whim of descending for a time from the station in which I was born, and mingling with the poorer classes of the people, as one of themselves, came back upon me. I had no knowledge that in your daughter I should meet one who had known me in a different rank of life; for the scenes where we had formerly met were so different from the quiet seclusion of Northferry, that the

identity of the name of my fair acquaintance with that of the gentleman whose service I sought, never struck me. I feel, however, Mr. Tracy, that I owe you an apology for having deceived you as to who I was; but you will clearly see that I had no hope of carrying out my scheme with any one, unless my name and station were concealed."

"A curious whim, indeed," said General Tracy; "and one which has had very serious results. Nevertheless, I can perfectly understand the feelings in which it was conceived, my young friend; for it is a sort of thing I have often entertained an idea of myself, without having ever had the spirit to carry it out. I dreamed of it even as a boy, when reading the adventures of the disguised Haroun al Raschid."

"I never had such visions," said Mr. Tracy; "nor do I think that the enterprise would answer at all the object for which it was undertaken. A man who descends, either voluntarily or involuntarily, from a higher to a lower station in life, carries his own world of habits, thoughts, feelings, and prejudices with him; and sees through the same discoloured spectacles, though he may see a little nearer. But I cannot afford to discuss such things to-night; for, to say the truth, I am weary and harassed."

Chandos received the last words as a somewhat broad and not very civil hint to go, and accordingly rose and took his hat; but General Tracy stopped him, saying, "Stay a minute, stay a minute; I want to talk to you about two or three things, Winslow: first, I must know where you are to be found; next, when we shall see you again."

"I am, for to-night, the denizen of a very unfashionable part of the world," replied Chandos, "and under the auspices of a somewhat strange-looking monster, called the Swan with Two Necks, in Lad-lane; but to-morrow I shall be at the ---- Hotel, in Cork-street. A man who has been tried for murder will, of course, be an object of curiosity and remark for a few days; and I wish to get it over as soon as possible."

"You are right," said the General; "but come down into the dining-room, and let me talk to you about one or two things connected with that same trial. Arthur, I suppose you will be gone to bed before I come up. Good night!" and, taking up a light, the old officer led the way down.

Chandos bade adieu to the rest of the party, warmly in some cases, somewhat coolly in another, and followed. When they were below the General closed the door, and then shook his young companion by the hand again, saying, "I congratulate you from the heart at the issue of the trial, though that issue was brought about by means to me totally unexpected."

"Not more so to you than to myself, General," replied Chandos Winslow, frankly; "that is to say, if you mean the evidence of Mr. Fleming and his servant. Nor will I conceal from you for a moment, that the whole of that evidence was false--under an error, I am quite sure; but none the less false. I was not at Northferry at all that night after I returned to my own cottage. Mr. Fleming must have mistaken Lockwood, my half-brother, a natural son of my father's, for me. Indeed, the likeness, I believe, is very great."

"It is strange," said General Tracy, musing; and Chandos continued: "Most strange! That the evidence which saved my life should be as false as the accusation against me, is very curious indeed. Had I known what Mr. Fleming was called for before he appeared, I would not have suffered it; although I believe, had it not been for his testimony, I should have been condemned for an act of which I am as innocent as yourself; for, if you remark, there was but one circumstance which could raise a reasonable doubt in my favour: that of the servant lad, Michael Burwash, who saw some one return from the grounds into the house after poor Roberts had crossed the lawn."

"Do you know who that was?" asked General Tracy, quickly.

Chandos was silent; and the old officer added: "It was your own brother. You owe me that lad's evidence, Winslow; for, as soon as I returned to Northferry, after seeing you in prison, I examined all the servants myself, and sent word to your lawyer, that Burwash had acknowledged the important fact you have mentioned. I then gave up some time to an investigation of who the person could be who had come in so late, and by such an unusual entrance. My brother was at home at the time, I found. I was absent. None of the servants would think of entering by the Greenhouse. On inquiring of Emily, whose room was opposite to that where Sir William Winslow slept, I found that she recollected having heard his door shut sharply just before she rang for lights. Further, I found that he was very

late down at dinner that day; that he was agitated and strange in his manner; complained of having over fatigued himself, and being unwell; and at length sent for old Woodyard, and was bled. Since then, however, Rose has acknowledged to me, that when speaking with you at the basin of gold-fish, she heard your brother's voice, in the grounds, raised loud. After that I had no doubt that Sir William was the person who returned in so curious a manner--more I am not justified in saying."

Still Chandos was silent, and sat with his eyes bent down upon the Turkey carpet; and after gazing at him for a moment, General Tracy turned abruptly to another part of the subject.

"That brings me," he said, "to a point which I have hitherto forgotten, Chandos, though it is one which should have been first remembered. I have not yet thanked you, my dear young man, for the delicacy and kindness you have shown in not calling Rose as a witness. She was prepared to do her duty firmly; and when she spoke to me upon the subject, I advised her to write to you and say so; but it is not necessary to tell you what a painful task it would have been for her. You must feel--indeed, you have shown you feel it; and I thank you deeply for your consideration in this matter."

"I would not have had her called for the world," answered Chandos; "I know what a frightful thing to a woman must be a cross-examination in a court of justice. If the opposite party called her, I could not, of course, help it; but then I could have ensured--at least, I trust so--that she was subject to no pain by the cross-examination of my own counsel; and that was something."

"Everything," answered the General; "and it seems strange to me that they did not call her."

"All things concerned with the trial were strange," said Chandos. "I suppose in this instance the lawyers were well aware that your niece's evidence was not likely to suit their purpose; for, I am sorry to say, it was but too evident that the object of the counsel for the prosecution was to get a verdict against me."

"I remarked it, I remarked it," said General Tracy; "and, I am sorry to say, I have seen the same very often in criminal cases. Man is a beastly animal, my young friend, and the cause of half his brutality is vanity, it was so here, and is so always. A counsel does not choose to be beaten; and he moves heaven and earth, not so much to hang the prisoner, as to triumph over his opponents. But it must all seem very strange to you now, sitting here quietly in this dining-room, to think that, only yesterday you were made the sport of circumstances which held your life continually in the balance."

"Like a dream," answered Chandos Winslow; "and by no means a pleasant one."

"Well, it is happy, at all events, that the dream has ended so well," rejoined the old officer; "you have come off with flying colours; and although we are in sad tribulation here just now, from circumstances which you have no doubt heard of, you must come and dine with me, and we will have a long chat upon other affairs, which must be spoken of before we have done. Can you come to-morrow?"

"I fear not," answered his young companion. "I shall be the greater part of the day in the city; and have, besides, to consult lawyers upon matters greatly affecting my interests, although I much fear that no good will result from our consultations."

"Don't plunge into law! don't plunge into law!" said the General, shaking his head ruefully. "I declare, I would rather lose all I have, than to get into a law-suit about it. The roguery and folly of the world, are the fields from which lawyers reap their harvests; and a plentiful crop they get. In England, at least, there is as much philosophy as charity in that passage of the Bible which says, 'If a man take your cloak, give him your coat also;' for if you go to law with him, hang me, if those human sharks, the lawyers, do not contrive to get your breeches into the bargain. But can you come the day after to-morrow then?"

Chandos assented, and, the hour being fixed at half-past seven, took his leave, and returned to his inn in the city. The chamber assigned to him was large and gloomy: the wainscoted walls were covered, besides the paint,

with the smoke and dust of half a century; the bed in the far corner rose tall and ghastly, in curtains of brown moreen; and the hangings at the windows had acquired a hue which can only be given by long immersion in a London atmosphere. There was a feeling of foul misery about the whole, which fell depressing upon the spirit of Chandos Winslow. It was much more like poverty and wretchedness than the gardener's cottage at Northferry. He thought of Rose Tracy; he recalled her father's cold and repulsive manner; he inquired of his own heart if it were possible to ask her to share poverty with him; to expose her to all the ills of penury, the daily cares and grinding inconveniences of narrow means, and to bind down her free spirit, unaccustomed to a want unsatisfied, a wish unfulfilled, in the hard chain of straitened circumstances. Chandos Winslow would not answer the question; but his heart sunk as he propounded it to himself: and he went to bed weary of the working-day world and the battle of anxious thought.

CHAPTER XXXVIII.

The next was a busy day with Chandos Winslow. His first occupation was to sell out a sum sufficient to pay the costs of the late trial, as far as he was able to calculate them, from the rough data which he had received. He added thereunto, two hundred and fifty pounds, for his current expenses; and having arranged that affair, and placed the money in his banker's hands, he proceeded to seek the friend who had so ably pleaded his cause. From his house, he was sent to his chambers; from his chambers, to a court of law, where he found him, wigged and gowned, in the midst of a long and laborious argument, which seemed likely never to come to an end. After enduring full two hours, however, the speech was concluded; and Chandos, sending his card, obtained a moment's interview with his friend. Sir---- shook him warmly by the hand, saying rapidly, "Come to me at nine to-night, Winslow: I cannot stay with you now; for I must hear what the gentlemen opposite have to say. Don't eat much dinner; for I shall eat nothing till then."

"At your own house, or at your chambers?" asked Chandos.

"At chambers, at chambers," said the barrister, turning to go back into the court. "I shall not get home till two. Our lives are not easy ones."

It was now about four o'clock; and, with feelings difficult to describe, but to which he was resolved not to yield, Chandos Winslow proceeded to call upon several of his most intimate acquaintances. It required an effort to knock at the first door. The feeling of having stood in the felon's dock, was strong upon him. The uncertainty of the reception he should meet with; the knowledge that, with a mind which: has the slightest tincture of vulgarity--that is to say, with nine hundred and ninety-nine thousand nine hundred and ninety-nine persons out of every million--an accusation, however false, leaves some stain; he felt irritable and impatient beforehand, at the idea of

being treated coldly at a moment when he felt that society owed him something, for having inflicted on him undeserved hardships.

Luckily he had chosen well in the person whom he had selected for his first visit. She was the widow of a nobleman who had been distinguished for many virtues himself; and she was mild, kind, and charitable, though not without a certain degree of dignified stateliness, which showed that she felt her high station, without the slightest touch of pride. She received her young visitor almost as if nothing had happened. I say, almost, because there was the least possible difference in the warmth of her reception. It was more cordial, less tranquil, than it might have been under ordinary circumstances. She rose from her seat more quickly, held out her hand, and said, "Oh, Mr. Winslow, is that really you? Well, this is very kind of you, to call upon me so soon. Now sit down, pray, and tell me all about yourself, and what you are going to do; how long you are to be in London, and all."

Chandos was soon at his ease; and he thought, "With some few friends such as this, I can afford to set the general world at nought." About twenty minutes passed very pleasantly; and then he rose to proceed to another house. His reception there was very different: the whole family was cold; and he stayed not ten minutes. Then again, at the next place, he heard the owner of the house, even after he had been admitted to the drawing-room, tell the servant from a neighbouring chamber to say that he had made a mistake, and that his master was out. When the man re-entered to utter the prescribed lie Chandos had his hat on his head, and was walking towards the door: "You may spare yourself, my good man," he said, bowing his head haughtily, "I have heard the whole," and he walked out of the house, never to enter it again.

He made one other call. The lady of the house was at home, and delighted to see him. She talked to him incessantly of his trial, declared that it was the funniest and most delightful thing that had ever happened; and invited him to a ball, where all the great people in London were to be present.

Chandos had no inclination to be exhibited as a felon-lion; and did not promise to go.

At nine o'clock precisely, Chandos was at his friend's chambers, and found him alone, with a table spread for two, in a little dull room. A note-book and some stray papers lay on one side of the table; and the moment after the young gentleman had entered, a servant brought in a tray, with soup and several other dishes upon it, sent from some neighbouring hotel.

"Now, Winslow, sit down," said the barrister, "and we will talk as we eat; for I can afford but one hour for repose and refreshment to-day." The servant uncovered the dishes, and instantly disappeared. The barrister took his place, helped his guest and himself to soup; and between each spoonful, looked at the papers and notes beside him, without apology. As soon as the soup was done, he rang a bell, which was tied by a string to his chair; and while the servant took away the plates, and handed some cutlets to his master's guest, the great lawyer rubbed his temple with one finger, in a profound reverie. The servant then disappeared, without venturing to disturb his master's meditations by presenting the dish; and the next moment the barrister roused himself, saying, "Come, Winslow, a glass of wine, and then I will tell you what you must do. I think you must take a solicitor with you, and go down very quietly into the neighbourhood of Winslow Abbey. The first person you had better see is your good friend, Lockwood. Let him dictate to the solicitor everything he knows regarding certain papers found by Mr. Roberts, at the Abbey. He will do it willingly enough, I am sure. Then you must get hold of a young gentleman, whose relationship to yourself, or connexion with your family, I do not know; but his name is--let me see--Faber."

"Oh! poor Faber," said Chandos; "he is a good young man, but weak; and as to his relationship with me, I believe it is very much the same as Lockwood's."

He spoke with a faint smile, and his friend laughed, saying, "Well then, you must exercise your brotherly influence over him, for the purpose of inducing him to give a full, true, and particular account of all he knows concerning these papers, and of a will, made five years posterior to the one proved, but which has not yet appeared."

Chandos mused for a moment, and the barrister took another glass of wine. "I am afraid," said the former, at length, "that Faber will not be easily

induced to speak. He certainly loves me better than he does my brother. He has been with me more, is kind and well disposed; but still his is one of those characters on which the stern and determined work easily, and which may be led to wrong those whom they love best, for the sake of those whom they fear. I have seen him actually shake in my brother's presence; and I do not think he dare utter a word which would offend Sir William Winslow, even if he were at a thousand miles' distance."

"If he is only to be moved by sternness and determination, you must be stern and determined, too," said his friend; "you can be so when you like, I know, Winslow."

"But Faber will never believe I shall prove so to him," answered Chandos: "I may threaten; but he will trust to my regard for him to render my threats of no avail."

"At all events, you must try every means to make him speak," rejoined Sir ----; "for his testimony might be very important. He was present, it seems, when Mr. Roberts found, in a drawer of the library, a memorandum, in your father's handwriting, of his having given the last will, which he made about five years ago, into the keeping of your brother."

"Indeed!" said Chandos. "This is new to me. But if we have not the will itself, I suppose the memorandum will be of little avail."

"Unsupported, of course, it will be of none at all," replied his friend; "but I find that when the memorandum was discovered, Faber showed so much agitation, that those who witnessed it were led to suspect that he knew more of what had become of the will than he chose to acknowledge. At all events, you must try every means with him; and having got all the information you can from those two sources, I would advise you to cross the country to see Mr. Roberts's executor, and endeavour to obtain an inspection of his papers. If amongst them there should be found a copy of a will of that date, though not signed, or a sketch of one in your father's handwriting, and if you can prove that the other will has been lately destroyed, I think--mind, I speak doubtingly--but I think we might do something, by one means or another."

"A law-suit with a brother," said Chandos, musing, "based on an accusation of his having destroyed his father's will, and wronged his brother! It would be a terrible thing!"

"It would, indeed!" replied Sir ----; "but my hope is, Chandos, that we may not be driven to a law-suit, if we can accumulate sufficient proofs to alarm the opposite party. Take some of that Sillery, and do not let what I am going to say startle you. Mark me well, however. You have your brother's life in your hands. As soon as he has time to think, he will perceive, from the course of defence pursued on your trial, that such is the case--that a foundation is already laid, indeed, for building up a truth that would destroy him--that you have nothing to do but to say in the ear of Justice, 'I would not let my counsel defend me at the expense of a brother's life,' and to prove that Lockwood was mistaken for you, in order to render your evidence conclusive against him. These are terrible weapons, it is true; and I would not have you use them even in menace, unless it be established to your full conviction that your brother has destroyed your father's last will, or has concealed it. Then, I think, you will be justified in demanding that right be done you, in terms which cannot be mistaken. But I do not think he has destroyed the will. Men seldom dare to commit great crimes unless under the influence of hasty passion--when lesser ones will serve their purpose. I think the will is concealed; and if we can prove the clauses distinctly, I doubt not, under all the circumstances, a search will be made for it, and it will be found. Look here at a train of evidence that would not be pleasant for your brother to have brought forward in a court, even though you used no menace in reference to the terrible facts within your own knowledge. I am already prepared to prove that Mr. Roberts came over to Northferry to inform you of his having found the memorandum I have mentioned; that your brother was at Mr. Tracy's house at the time; that some one, hearing the appearance of a gentleman, entered the house by the most private entrance, immediately after the murder; that it was not yourself, Mr. Tracy, or his brother; that the only person who could be injured by the tale Mr. Roberts had to tell was Sir William Winslow. Do you not think, Chandos, that he must have a consciousness that there are a thousand circumstances likely to be brought out in any trial, which would render the train of evidence complete against him, and bring the heavy hand of justice on his head, even if you should remain silent? Depend upon it, if he have not

destroyed the will, he will speedily find it, as soon as you have collected all the proofs of its having existed, and been in his possession; and if he have destroyed it, and you can show what were its provisions, that he will concede them all, rather than incur a suit which must entail disclosures tending to consequences more fatal. It is on this account that I advise you to go down at once, while he is still absent, and collect all the information you can get. But, in the very first place, you must enter a protest against the sale of Winslow Abbey."

"I understood that it was already sold, and the money paid," replied Chandos.

"Two-thirds of the money have been paid, I hear," replied the barrister, "upon an undertaking, under Sir William's hand, to complete the transfer within a given time. But still the transfer is incomplete; and you must show, by a caveat, that you are not a consenting party, so as to guard against even the semblance of laches on your side. Get your protest drawn up in due form by a solicitor to-morrow, have it laid before counsel for an opinion, and furnish both *vendor* and *emptor* with a copy; then set out again upon your voyage of discovery, and let me know the result. Linger not here, fond youth, by the side of beauty; but away, in search of that which, in the present day alone, can unchain Andromeda from the rock. Depend upon it, my dear Winslow, that pretty fable of the lady upon the sea-shore, and the Gorgon-slaying Perseus, has a very unpoetic interpretation. Andromeda is the representative of a fashionable young lady; the rock, the hard state of single blessedness to which her parents chain her, in default of a suitable match; the sea-monster destined to devour her, old maidenism; and Perseus, a rich East-Indian, very bilious, who, with the sword of wealth, slays the monster, and frees the damsel from her chains, to marry her himself. And now let us empty that bottle of Sillery, and have another; for alas! in the life that I lead, I am forced to combat corporal weakness with that which saps corporal strength; and wine versus weariness is the cause I am trying every day."

Chandos Winslow remained till a few minutes after ten, and then proceeded, not to the inn which he had tenanted the night before, but to his new abode in Cork Street. What a contrast! Damask curtains, gay coloured

carpets, polished mahogany, shining fire-irons, clean walls, and a bright fire! But the contrast was not greater than between his own mood that night and the mood of the night preceding. The words of his friend had relighted the lamp of Hope, of which the everlasting fire of Vesta was but a faint image.

CHAPTER XXXIX.

How many fruitless beatings of the heart there are in the world! Whether it be from fear, anxiety, agitation, hope, anger, love, hatred, that beating of the heart is one of the most vain and useless operations which any part of the human frame performs. The heart of Chandos Winslow beat very idly at the door of General Tracy's house, in Green-street. He fancied that in about a minute and a half he would be in the presence of Rose Tracy, he painted to himself her looks, he seemed to hear her words; but when he found himself in the drawing-room, the General was there alone; and the very simple words, "Bring dinner," which were uttered as soon as he entered, showed him as plainly as if the General had spoken an oration, that he and his host were to dine tête-à-tête. He felt a good deal disappointed; but he did not suffer his mortification to appear; and in about ten minutes he was seated at the hospitable board and partaking of a very excellent, though plain dinner. The wines were all exceedingly good, though not very various; and Sherry, of the best vintage, Madeira, which had twice seen the Cape, with Oporto, which had lived as wine in part of two centuries, supplied well the place of Champagne, of Claret, and of Burgundy.

The General suffered the meal to pass by, and also the two first glasses of wine after dinner, without touching upon anything which had a business tone in it. Chandos found that Rose, Emily, and Mr. Tracy had moved during the preceding day to that gentleman's house, in Berkeley-square.

"There is a great deal to be done there," said General Tracy; "and it is well that they should be on the spot."

Some short time after dinner, came one of those pauses which are generally produced by a slight feeling of embarrassment on both parts. Chandos was not sure whether General Tracy expected him to begin upon the subject nearest his heart, or not; and the General himself, though a very brave and determined man in most matters, shrunk a little from the commencement of a conversation, in the course of which he felt that pain might be given to one whom he liked and esteemed.

At length he forced himself to the task; and, after putting over the decanter to his guest, and rubbing his right temple for a moment, he said, "Your friend, Sir ----, made an admirable defence for you, Winslow. I could only have wished that he had omitted a few words about my pretty niece, Rose. I think it was unnecessary, and not altogether judicious."

"Had I possessed any power of stopping him," replied Chandos Winslow; "those words should never have been spoken, my dear Sir. But I very well understand the motives on which Sir ---- acted. He only thought of his client's defence; and judged it was necessary to assign or hint some reason for not calling Miss Tracy on my part, as it had already appeared that she was the last person with whom I spoke before the murder. I am exceedingly grieved, however, that the slightest pain should have been inflicted upon her for my sake."

"No, no," said General Tracy; "do not vex yourself about that. I am not inclined to think that Rose has felt any pain on that account. The reason why I feel sorry, is, that what he said must force forward explanations, my young friend, which might have been better delayed. No one can accuse you, Chandos, of having acted in any way but with the most perfect delicacy, except, perhaps, in having induced Rose to conceal from her family your real rank and name, while playing gardener at Northferry."

"I trust, General Tracy," replied Chandos, "that you and your brother are both perfectly well aware, I had no notion whatever, when I came to Northferry, that my London acquaintance, Miss Tracy, was a daughter of the master of the house. Had I been informed of the fact, I give you my word of

honour, I should not have played gardener there at all. When I had once applied for the place, however, if I had not bound her to secrecy, of course, I must have abandoned my whole scheme."

"That certainly makes a difference," said General Tracy, with a smile; "and would make a greater difference still, if there had not been a little bit of love in the case, my young friend."

"There was none when I came there," exclaimed Chandos, eagerly; "I had but seen Miss Tracy once. I admired her, as all who see her must admire her; but I can assure you there was nothing more: though I do not mean to deny that longer acquaintance, and the circumstances in which we have been placed with regard to each other, have changed what was then mere admiration into the most sincere and devoted attachment."

"Well, well," said General Tracy, "we will not dwell upon the past, Chandos, but rather turn to consider the future. I must enter into explanations with you, my young friend, painful for me to give, and which, in their deductions, may be painful, I fear, to you also."

"Do not tell me not to hope, General Tracy," replied Chandos, in a gloomy tone; "for that would take all power from the efforts which I am called upon to make to change a bad situation into a good one."

"Such is not at all my intention," said the old officer. "But it is necessary that your position with my sweet niece should be exactly defined; and as my brother was not willing to enter upon any explanation, I have taken it upon myself: so listen patiently. You must have heard, at least, I will take it for granted you are aware, that grave embarrassments have most suddenly and unexpectedly fallen upon Rose's father. In short, he has acted like a great fool; and has only for his excuse, that the madness is epidemic just now. The Northferry estate was engaged for its full value, or very nearly so, to meet the first pressing difficulty some time ago. A further debt, to the amount of more than one hundred thousand pounds remained to be paid; but to meet that, he had shares which at their then value would have covered the sum within a few thousand pounds. Some of the shares fell in value; and I saw that there would be a necessity for my stepping in to his aid. I exacted from him authority, however, to sell the whole of the rubbish

on which he had been spending his fortune, in order to realize as much as possible; but when I came to inquire, I found that the shares were in the hands of a broker; and two days after I discovered that this broker has absconded, carrying all with him. A reaction is taking place--several of the lines have risen much in the market. If my brother had possession of the papers, all could be cleared in an hour. But the man's retreat is not to be discovered; and though he cannot sell them himself without great danger, he has taken no steps as yet to negotiate for the restitution of the property to my brother, as we supposed might be the rascal's course. In the mean while my brother was arrested and brought to London, where the action was bailed; but a threat has been held out to make him a bankrupt as a dealer--a thing most disgraceful to a gentleman. I have always been anxious to spare my brother Arthur all unnecessary pain on the subject, and willing to make any personal sacrifices for him; and, after due consideration, I yesterday made a proposal to the creditors to the following effect:--To sell my own estate; and, with the reservation of ten thousand pounds for each of the girls, and ten thousand more to buy an annuity for my own and my brother's lives, to make over to them all the proceeds, upon their giving him a release, and forbearing to strike a docket against him, with a covenant, that if the papers respecting the shares are ever recovered, the whole shall be sold to pay off what debt may remain. It is estimated by competent persons, that what I offer, together with the proceeds of the sale of his house in town, the books, pictures, &c., will afford a dividend of about seventy per cent., and I think they will accept it. My brother will then be saved from the disgrace of a bankruptcy court; but you will remark that Rose's portion will be but ten thousand pounds."

"I think I need hardly tell you, General Tracy," replied Chandos; "that Miss Tracy's fortune was never for one moment a consideration with me. Little or great, my attachment is the same, and would remain so if she had nought but her hand to bestow."

General Tracy smiled. "You are too impetuous," he said. "I can easily conceive that her fortune was no *inducement*, young gentleman; but a matter of consideration it must be both with you and me. Could I divide all I have at this moment between my two nieces, and give Rose a portion which would enable you to live at ease, I should have no hesitation, no care;

but such is not the case. She has but a small dower; you, if I mistake not, have not much more, and the amount that you could together supply would not be sufficient to maintain you in the station of life in which you have both been born. You have at present no profession, Chandos; no means of increasing your income. You must seek one--you must choose some course which will give a reasonable hope of securing competence; and then, claim the dear girl's hand if you will. I am not ambitious for my niece--I seek for her neither high nor wealthy alliance; but I have lived long enough to learn that, after health, competence is the best blessing of God. The days of love in a cottage have long passed by; and as my brother has fully authorized me to deal with this matter as I think fit, I say thus shall it be--apply yourself to find some honourable means of supporting a lady by your own abilities in the station of a lady, and Rose Tracy's friends will oppose no obstacle; but till then, no sworn vows or solemn engagements. If you cannot trust to her affection, her affection is not worth having. If she cannot rely upon your honour, she is better without yourself."

Chandos took his hand and pressed it warmly. "So be it," he said; "but two questions more, General Tracy. What will you think sufficient to justify us in marrying?"

"I have thought of no particular income," replied the old officer. "A pursuit that may lead to one, is the first thing. As to the rest, say five hundred a year more than you already possess together. Now for the second question."

"It is, whether you intend to refuse me her society till such a point be obtained," was Chandos Winslow's reply.

"Nay, Heaven forbid!" cried the old officer; "that were to inflict unnecessary pain, and to take from you the best encouragement to exertion. No! I trust entirely to your honour, my young friend, that you do not pursue your suit beyond the bounds agreed upon; and, with that understanding, when she becomes the inmate of my dwelling, as will most likely soon be the case, you may see her when you please--with due moderation, Chandos--with due moderation, remember."

"You thought that what you had to say would give me pain, my dear General," answered Chandos; "but it is all I could wish or expect. I have now an object in life, now a hope to lead me on; and energetic efforts under such circumstances will not fail of success, I am sure. I have, however, other tasks before me, which I must execute in the first place, although I anticipate little success. If therefore, you have any commands for Northferry, I am ready to perform them, as I shall be down in that neighbourhood for a fortnight to come."

"I have none," replied the General. "Northferry and ourselves will soon, I suppose, have to part for ever; and I should have thought your connexion with that pleasant place was already severed. Alas! that it should be so. I have come to that time of life, Chandos, when the mind's food is memory. Hope is the pabulum of youth, my young friend; recollection the diet of old age: and we cling to everything that recalls pleasant memories, as one of your London diner's-out attaches himself to a giver of good dinners. But what, I wonder, takes you to Northferry?"

"A wild goose chase, I believe," answered Chandos; "I would fain encourage expectation of some good resulting from it; but the hopes fade away as soon as they are born; and I go more because a good and a wise friend advises me, than from any conviction on my own part. Neither do I exactly go to Northferry; but very near it I shall certainly be, if you have any commands."

"Few, few," replied the General. "One thing, indeed, you may do, if you will; namely, bring the little boy, Tim, to London with you. I must put him to a school in the neighbourhood; for even misfortune must not make me forget my given word."

Chandos promised to take all care of the boy; and the conversation turned to other subjects.

CHAPTER XL.

Four days passed after Chandos Winslow's conference with General Tracy ere he could quit London. Lawyers are not fond of moving fast. Some difficulties occurred in drawing up the notice to be served upon Sir William Winslow and Lord Overton, regarding the sale of Winslow Abbey; and the whole arrangements were not completed till late on the fourth night. Chandos consoled himself easily, however; for during those four days he twice saw Rose Tracy; and he began to comprehend better than he had ever done before, how Mark Antony had lost a world for Cleopatra's eyes. At length, however, on the fifth morning, one of those machines which the Londoners, in their monosyllabic propensity call a "cab," whirled him and his light portmanteau down to the railway terminus, and in two minutes after, Chandos was rolling away upon the rails towards his native place. The morning had been beautiful, dawning with a brightness and a lustre which do not always promise well for the risen day; and ere the train had reached the second station, the sky was covered with gray cloud, and a thin, fine rain was dewing the whole earth. Thicker and faster it came down as the traveller proceeded on his way, till at length when he got out, about sixty miles from town, to perform the rest of his journey by coach, a perfect deluge was pattering upon the roof of the shed under which he alighted. He had neither umbrella nor great coat; and he was glad to find an inside place disengaged, to carry him at least part of the way warm and dry.

His companions were an elderly woman, with a large basket, well furnished with sandwiches, and a wicker bottle full of gin-and-water; and a tall, stout man, of about forty-five or forty-six, tolerably well dressed, in a long brown great-coat, and endowed with an exceedingly yellow complexion. The lady did not seem inclined for much conversation, but consoled herself from time to time for the evils of travelling by the sources of comfort which she had provided in her bottle and basket. The male traveller was somewhat more communicative, though in a peculiarly short, dry way. He saluted Chandos on his entering the coach with a "Good morning, Sir;" which act of homeliness of course bespoke the rude countryman, in a land where every well-educated man demeans himself towards his neighbour as an enemy, till something occurs to make them friends. Chandos, on his part, was not in the slightest degree afraid of

having his pocket picked, his character injured, or his mind contaminated; and therefore he answered his new companion civilly, and asked if he had come down by the train.

"Yes, Sir," replied the other; "from a fool's errand."

"How so?" asked Chandos.

"Seeking in London what I might have found in the country, and what I did not find there," rejoined the stranger; "travelling up to look for that which travelled down with me, without looking for."

"I never could find out riddles in my life," said Chandos. "How hard it rains! I did not see you on the train."

"I saw you," answered the man: "I see everything."

"Indeed!" replied Chandos Winslow, not particularly well pleased with his companion: "then you must see a great deal that does not please you."

"Not much," said the other: "I am easily pleased. Did you see a green chariot behind the train, and a gentleman in it, and a vally--an Italian vagabond?"

Chandos started, and turned round, saying, "No. Whose carriage was it?"

"The master of Elmsly was in it," said the man.

"Indeed!" said Chandos. And, after a moment's thought, he added, "You seem to know me, I think."

"Oh, yes; I know you quite well," replied the stranger. "I was in the court when you were tried for murder."

The old lady opposite gave a start, and exclaimed, "Lord a-mercy!" and Chandos's face flushed, partly in anger, partly in shame.

"A recollection of such things is not particularly pleasant to me," he replied, sharply.

"I don't see why not," answered his fellow-traveller. "You knew you were innocent, and you proved it to the jury. If it should be unpleasant to anybody, it is to those who accused you, and to the man who committed the murder, and would have let you be hanged for it."

Chandos made no answer, but fell into thought; and full half-an-hour passed without a word being spoken. At length the young gentleman inquired, "Are you of the town of S----?"

"No," answered the other; "I do not live in a town, I live in the country; but I happened to be there that day by accident, and I went into the court to see what was going on. It was wonderful hot; but yet I stayed it out, though I thought I should have been suffocated."

Another long pause succeeded; the man seemed determined to hunt down a subject the most disagreeable for Chandos to pursue; and therefore the young gentleman refrained from all further conversation till the coach stopped to change horses, near a spot where a road branched off towards Winslow Abbey. There Chandos alighted, and ordered his portmanteau to be carried up to a bed-room in the neat little road-side inn. The old lady and the stout, yellow-faced traveller, proceeded on their way together; and Chandos ordered some refreshment, preparatory to a long walk which he contemplated.

While the mutton-chop was in preparation, and he was taking out some necessary articles from his portmanteau, the thick veil of clouds which covered the sky became of a paler grey, and then, towards the westward, where a wide open country extended before the windows of the inn, the edge of the vapour drew up like a curtain, showing the yellow gleam of evening between the woods and hedgerows in the distance. Before the young traveller's light meal was concluded, the rain had ceased entirely, and no trace of clouds remained upon the heaven, except some white feathery streaks of rising vapour, chequering the fresh deep blue.

Telling the people of the inn that he might not return till the following morning, Chandos walked on, taking the narrow lane which led along the side of the hill towards Winslow Abbey, then at the distance of about seven miles. The sun was within half an hour of its setting; but the sweet, long

twilight of the late spring evenings was to be depended upon for many minutes after the star of day was down, and Chandos did not wish to reach the cottage of Lockwood before it was dark. He walked therefore calmly and somewhat slowly, now mounting, now descending, amongst the trees and copses of the hill side, as the road pursued its varying course. Sometimes the view was shut out by trees, and nothing was seen but the green branches and the round silvery trunks of the old beeches, with the rays of the setting sun stealing in amongst them, and tipping the moss and underwood with gold; but more frequently he caught sight of the wide extended plains to the west, lying in definite lines of purple and grey, with the varied scenery of the hill-slope forming the foreground, the trees of the old wood tossed here and there amongst the yellow, broken banks, and every now and then part of the outline of a cottage or small country-house contrasting its straight forms with the wavey lines of the landscape, and bringing in images of social life amongst the wildness of uncultivated nature.

The sun was more than half down; but a bright spot of gold upon the edge of the horizon, with one line of dark cloud drawn across it, still poured forth a flood of splendour, when a little turn of the road brought Chandos nearly in front of a human habitation. It was a simple little cottage, of two stories high, with a row of green paling before it, a little garden in front, and two doors, one in the centre, and the other at the side leading probably to the kitchen. It was built upon the extreme verge of the steep bank, so that there seemed no exit behind; and the road spread out wide before, under a cliffy piece of the hill, which seemed to have been scooped out by man's hands, probably for sand or gravel. It was a sequestered little nook; and, in the green evening light, as it streamed through the trees, looked as peaceful an abode as a weary heart could well desire.

The pleasant tranquillity of the scene had apparently attracted another person, besides the inhabitants of the cottage, to make a temporary sojourn there; for, underneath the high bank just opposite, was a stream of silver-gray smoke rising up against the cliff, and curling in amongst the trees which topped it; and below was seen the dilapidated tin-kettle from which it proceeded, with an old man blowing hard into the hole where once a spout had been. A number of pots and pans lay around, and a wallet was cast upon

the ground hard by. The old man whistled a wild air in time as he blew, and his face was turned rather towards the house than his work, so that Chandos had a full view of his features. It required not two looks to bring to his recollection the travelling tinker, who had conducted him to the gipsey encampment on his first visit to Northferry.

Walking up to him with a smile, the young gentleman asked if he remembered him; and the old man, laughing, winked his eye, answering, in his peculiar cracked voice, "Aye, do I, master gardener. Do you want food, and drink, and information to-day, as you did the last time we met?"

"Food and drink I can dispense with to-day," replied Chandos; "but a little information would not be amiss. Can you tell me, my good friend, where I can find Sally Stanley."

"I can find her myself," answered the tinker; "that is to say, I could find her if I could quit this; but I mustn't."

"Indeed!" said Chandos, in some surprise: "why not? I suppose you will go before night; for you have not got even a tent here to cover you."

"That's nothing," answered the gipsey; "I shall be here all night, unless some one comes to relieve me, as they call it."

"Why, are you on guard, then?" asked Chandos.

"I'm on watch, and that is as good," replied the tinker, winking his eye, and looking towards the house.

"Who are you watching there, then?" demanded the young gentleman; but the old man only grinned, and made no reply for a minute or two, till Chandos repeated his question.

"Very likely!" said the tinker; "don't you think I'll tell you, master? I'm watching some one who will not come out in a hurry while I am here; and when I'm gone, there will be another, and when he's gone, another, till we starve the rat out of his hole, or at all events find out if he is in it. But you

have nothing to do with that. You are not one of us, you know. You've your own trade, and that's a gardener's. Stick to that."

"I've given that up sometime, as I think you know," answered Chandos.

"Aye, may be, may be," said the old tinker; "I've heard something of it. But what is it you want to say to Sally Stanley? Do you want your new fortune told? She is the rarest hand amongst them for that. Never was such a one; for she is always right, one way or another: and our people think she has got a spirit that tells her all that is going to happen, at those times when she gets into her tantrums and goes about amongst the dead men's graves and that. I would not bide her curse for a great deal. It fell hard upon poor Harry Chambers; for you know he was sent over the water for life, just three months after. But what do you want with her?"

"Nay, that is my business," answered Chandos; "only you tell her I am down here again, and will speak to her when she likes. I have a good many things to say that she may wish to hear; and she has something to say to me."

"But where shall she look for you?" asked the tinker. "Though I dare say she knows well enough; for she knows everything."

"It is better to make sure," replied the young gentleman; "so let her know that I shall be at Lockwood's cottage to-night, and be gone by day-break. I shall then be at my place at Northferry, for a day or two, or between that and S----; and then, perhaps, over at Elmsly."

"I shan't see her to-night," said the tinker; "for she is a good way off; and Garon comes up when I am to go. After that I'll find her out.--But look, look--quietly, quietly! Don't you see a man in there, at the back of the little parlour--a man with a round face and a pair of green spectacles?"

"Yes, I do," said Chandos; "now that they have opened that window at the back to let the light in, I see a man there; but I cannot well see what he is like."

"Use your young eyes well," said the tinker; "and tell me if he has not a round, red face, and a pair of green spectacles on, and a flaxen wig, and a cravat high up about his chin--why, I can see the spectacles myself."

"So do I now," said Chandos. But the next moment the front window was shut, and all further view into the interior of the room cut off. Chandos mused. He had more than once, as a native of a well-wooded country greatly frequented by gipsies, remarked the extraordinary knowledge which that curious race of wanderers acquire of all that is passing in their neighbourhood, and had wondered how they arrived at their information. The uses which they put it to when gained was more evident; but he knew not till that night, and indeed few do know the marvellous pains which gipsies often take to find out minute and apparently insignificant facts, and the no less wonderful skill with which they combine them when obtained, and draw deductions from them, generally approaching very close to the truth. Sometimes they have an object, and sometimes none; for curiosity by habit becomes a passion with them. But in the present instance there was evidently some end in view; and Chandos, from various circumstances, felt inclined to inquire further ere he proceeded.

Following the same train of combinations which a gipsey would most likely have followed, suspicions were excited which he longed to turn into certainties; and after thinking over the matter for a time, he said, "And so, my good friend, the gentleman with the round, red face and green spectacles is hidden down here, is he?"

"I did not say he was hidden," answered the tinker, instantly upon his guard.

"You said what amounts to the same thing," replied Chandos; "for you told me he would not come out as long as you were here."

"Aye; that may be for fear of having his bones broke," said the other; "you know, we don't easily forgive them who offend us."

"Come, come; I am not to be put upon the wrong scent," replied Chandos. "Sally Stanley told me something of this before; but I did not think she would have found out his hiding-place so soon."

"Why, what does she know of it?" asked the tinker, with the most natural air in the world; "you are out in your guesses, master gardener. You can't come over an old cove like me. If you know anything of the gemman, go and ring the bell, and ask if Mr. Wilson's at home. I dare say he'll see *you*;" and the old man laid a strong emphasis on the last word.

"Is it a Mr. Wilson who lives there, then?" asked Chandos.

The gipsey nodded his head, and Chandos, saying, "It is not a bad plan," walked straight up to the little gate, and rang the bell. The gipsey put his tongue in his cheek, and winked his eye; but the next moment a maidservant came to the door of the house, and, without approaching the garden-gate, inquired, in a flippant tone, "What do you want, young man?"

"Is Mr. Wilson at home?" demanded Chandos, not at all expecting that the girl would admit the residence of such a person there. To his surprise, however, she answered, more civilly than at first, "No, Sir; he's gone to town."

"But I saw him in that room, a minute or two ago," replied the young gentleman.

"Lord, Sir, no," said the maid; "that is his father, the old gentleman who is ill with a quinsy, and don't see any one. Master has been in London this week. He'll be down o' Thursday."

Convinced that his suspicions had led him wrong, Chandos turned away, and saw the old tinker laughing heartily. It is not pleasant to be laughed at, as the sapient reader is probably aware. But laughs sometimes lose; and in this instance the half-crown which had been destined for the old man remained in Chandos's pocket: not that it was kept there by any feeling of anger on his part; but because the young gentleman was not inclined to face the merriment his disappointment had created, he turned away, and walked straight on in the direction of Winslow Abbey.

Night fell when he was at the distance of three miles from the park; and, hurrying his pace, he soon after stood before the gates of tall, hammered iron-work, erected more than two centuries before. The great gates were

chained and padlocked; but the lesser one, at the side, was open, and Chandos entered the park where he had played in boyhood, with a bitter feeling at his heart, when he thought that all his efforts might not be able to prevent it passing away from his name and race for ever.

He followed the path which he had trod every Sunday during his mother's life, from the Abbey to the parish church, and back; and at the distance of about half-a-mile from the gates, he caught sight of the mansion. There was a single, solitary light in one of the windows, shining faint, like the last hope in his breast; and as he advanced it flitted along the whole range, till at length, at the further extreme, it blazed brighter, as if several candles had been suddenly lighted. At the same time, turning to the right, the young gentleman took the path which led away to the house of his half-brother. The park seemed to him even more melancholy than when last he visited it. It had a more deserted feeling to his mind. It was to be sold; and yet for all that he clung to it the more. If it had cost him his right hand, he would have kept it. As we attach ourselves the more fondly to a friend in distress, so he held more firmly by the old place he loved, because those who ought to have loved it likewise, abandoned it.

"Would that my father had left it to me!" he repeated to himself more than once. "Had it been nought but the Abbey and the Park, I would have worked the flesh from my bones to keep it up. But it is gone--gone! and the hope is vain they hold out to me. I feel it, I know it!"

With such melancholy thoughts he walked on, through the chestnut-wood, all in green leaf, across the ferny savannah, where the deer lay thick, amongst the old hawthorn trees, loading the air with aromatic balm. He approached the park wall, and saw, by the clear gray light sent before the yet invisible moon, the enclosure round the house of Lockwood, and the house itself--a dark, black mass, upon the silvery eastern sky. Yet the trees and shrubs in the garden before the windows caught another ray, and in long beamy lines the misty light poured forth from the lozenge panes of the casements. Chandos opened the little garden gate and went in; but as he approached the door, he heard voices speaking, and even laughter, very dissonant to his ear. He was in no mood for merry company: there were few people he could wish to meet, and many he would not meet; and ere he

gave any indication of his presence, he walked along the path before the windows and looked in, to ascertain who were the guests within. Before him, with his back to the casement, the neat white dimity curtain of which was not drawn, appeared the tall, powerful frame of Lockwood himself, while a bowl of smoking punch stood upon the table before him, and his hand was stretched out, armed with a curious, old-fashioned ladle, which he was dipping in the fragrant compound, to supply the glass which another person opposite was holding out towards him. In the face of that other person, which was turned towards the window, Chandos instantly recognized the handsome but too delicate features of Faber. Lockwood filled the glass to the brim, and then raised his own, already full, exclaiming so loud that the words were heard without, "Here's to him, then. Health to our good brother Chandos: may God grant him his rights, and send confusion to those who would wrong him!"

Chandos waited to hear no more, but approaching the door of the house, was about to ring the bell. A peal of laughter, not from Lockwood's lips, though with a far more joyous sound than he had ever before heard those of Faber utter, made the visitor pause for a moment; and then with a sudden and somewhat impatient movement, he lifted the latch, and entered unannounced.

CHAPTER XLI.

As Chandos extended one hand to Faber and the other to Lockwood, he remarked that the cheek of the former was a good deal flushed, and his eye more bright and sparkling than usual. The bowl of strong punch on the table was nearly empty, and the deduction was evident. Lockwood's strong head and strong frame had resisted the effects of his potations; but Faber, though not at all drunk, was a good deal excited.

"Welcome, welcome back!" said Lockwood. "I was just going to write you a letter, ending after Mrs. Penelope's fashion--'Nil mihi rescribas attamen ipse veni.' You have come at the very nick of time, Chandos; for here Mr. Faber has been telling me things which prove that your father was not so unkindly negligent of you as you have supposed."

"For that, I am thankful," answered Chandos, "even if no other result take place. What is it, Faber? Let me hear."

Lockwood's eyes were fixed upon the countenance of the young man to whom Mr. Winslow spoke; and he saw the timid, hesitating look, which was its habitual expression, steal over it again. "Come, Faber, you and Chandos finish the punch between you," he said; "I have had enough."

"And so have I too," answered Faber. But he suffered Lockwood to fill his glass again, and drank it off at once. The effect was quick. He reflected, perhaps, that what he had just said he could not unsay; and at all events, the punch gave him courage to repeat it. The manner was diffuse and circumlocutory, it is true; and where there was an opportunity of putting anything in a doubtful manner, by a change in the mood of the verb, from the direct indicative to the potential, he never failed to do so; but the substance of the story was as follows.--"He had seen, read, and copied," he said, "the will, to which the memorandum found by Mr. Roberts referred. The late Sir Harry Winslow, who had ordered him to copy it, had kept the transcript; but he recollected the whole particulars. To himself, an annuity of four hundred a year had been left, chargeable upon the Winslow Abbey estate. The whole of that property, with the Abbey and all that it contained, had been left to Chandos. The Elmsly property had been assigned to his brother, as well as the whole personal property, with the exception of four thousand pounds to Lockwood, in lieu of all other claims, and a few legacies to servants."

There the young man paused; and Lockwood, after having given him a little time to proceed, if he pleased, exclaimed, "Go on, Mr. Faber; you have not half done! Remember about the burning of the will."

"I did not say he burned the will," cried Faber, turning white; "I only said he burned a good many papers just after Sir Harry's death. I saw him, as I

was looking out of my window at Elmsly, which is just in the corner, near the strong-room. What they were, I do not know."

"Then he burned papers in the strong-room?" said Chandos.

"Yes, Mr. Winslow," replied Faber, "that he certainly did. Three or four, I saw him burn, with a great iron chest open before him; he held them to the candle one after the other, and then threw them down on the stone floor, and watched them till they went out. But, mind, I do not know what they were. I never said that any one of them was the will."

"Of course, you could not do so, Faber," replied Chandos; "for I know the position of the two rooms well; and you could not at that distance see what the papers were."

"No, I could not see," reiterated Faber.

"Nevertheless," said Chandos, gravely, "what you did see, and what you do know, is so important, that I must request to have it in writing."

"Oh no, indeed, I cannot, Mr. Winslow," said the young man, very pale, "Why, if Sir William Winslow were to know, what would happen? You will not ask me, I am sure."

"Be quite sure, Faber, not only that I will ask; but that I will insist," answered Chandos, with a frown. "Let me have pen and ink, Lockwood, and we will have this down at once. My good friend, you have no choice. You have made a statement this night which you will soon have to repeat in a court of justice. Now your fault, Faber, is timidity: that timidity might lead you to gloss over or attempt to conceal facts in court, which would be speedily wrung from you by cross-examination, and you would be put to shame, But by insisting upon your signing the account you have given, I guard you against yourself; for you will have no motive for hesitation or concealment. You must there state what you have here stated, without a consideration of the consequences."

"I cannot, indeed I cannot," exclaimed Faber, trembling violently.

"Faber, I insist," replied Chandos; "I did not think that you, whom I have so often befriended, so often protected, would refuse to do a simple act of justice in my favour, out of regard for a man comparatively a stranger to you. Write down his words, Lockwood, as well as you can recollect them. They shall then be read over to him, that he may sign them."

"Oh, Mr. Winslow, I did not think you would do this," cried Faber; "you know what a terrible man Sir William is."

"Write, Lockwood, write," cried Chandos, his lip slightly curling with contempt. But Faber started up from the table, saying in a more resolute tone than he had hitherto used, "It is of no use, I will not sign it, I will go."

Chandos, however, threw himself between him and the door, locked it, and took out the key. "Your pardon, Mr. Faber," he said; "you do not go. You stay here, and sign the statement you have just made, or if you go, you go in custody."

"In custody?" exclaimed the young man, his eyes staring wildly with fear.

"Yes, Sir," answered Chandos; "in custody, on a charge of being accessory to the destruction of my father's will, which, allow me to tell you, is a felony. Sir William Winslow may be a very violent man, but you will find that his brother is a very resolute one."

"Oh, Mr. Winslow, I am sure you would not do such a thing," cried Faber.

"You will see in two minutes," replied Chandos sternly. "When Lockwood has finished the paper, you shall have your choice. You either sign it, or he fetches a constable. In the mean while, sit down; for I am in no humour to be trifled with."

The young man cast himself on his chair, covering his eyes with his hand. Lockwood wrote rapidly; and in about ten minutes the short statement he drew up was finished. He then read it aloud, pausing upon each sentence; and Chandos, satisfied that it was substantially the same as the account

which Faber had himself given, placed it before him, saying, "There is pen and ink."

The young man hesitated for more than a minute; and then Chandos withdrew the paper from before him, and turned to Lockwood, saying coldly, "Fetch the constable, Lockwood. I will guard him till you return."

"Stop, stop," cried Faber; "I will sign it. Only give me a little time. You should have put in, that I was accidentally looking out of my window that night."

"Put it in yourself above," answered Lockwood, handing him the pen.

Faber took it, and made the alteration he proposed; then paused and hesitated again, but in the end wrote his name rapidly at the bottom.

"And now, Faber," said Chandos, laying his hand kindly on his shoulder, "you will yourself have more peace of mind. Depend upon it, the only way to preserve a man's dignity of character, his peace, and self-respect, is to do what he knows is right, perfectly careless of consequences. You were aware that I had been wronged. You had the means of assisting me to regain my right, and that, by only making a declaration which you were bound in honour and justice to make. You should, indeed, have made it before; but I forgive your not having done so, because I know you are afraid of a man whose violence gives him anything but a claim to respect."

"Why I should gain more than lose," said the weak young man, bursting into tears; "if you could prove this other will, I should have two hundred a year more than by the other; so you must see it was not my own interest I was consulting, Mr. Winslow."

"No, you were consulting nothing but your fears, Faber," said Chandos; "and those fears of Sir William Winslow, depend upon it, are quite vain and foolish. He has no power over you; he can do nought to injure you."

"How I shall ever meet him again, when he comes hack, I know not," answered Faber, with a melancholy shake of the head.

"He Is back already," replied Chandos; "at least, I am told so."

The young man started off his chair at this announcement, actually as if some one had fired a pistol at him; but while he was gazing in Mr. Winslow's face with a look of terror almost ludicrous, some one shook the door of Lockwood's house, and Faber darted away into the inner room, as if he thought that it could be none other than the man he so much dreaded.

"Who is there?" asked Lockwood.

"It is I, Sir," answered the voice of Garbett, the keeper; and, at a sign from Chandos, Lockwood opened the door, saying, "What is it, Garbett?"

The man started at beholding Chandos Winslow, and exclaimed, "Bless me, Sir, is that you? Well, Sir, I am glad to see you, now I know who you are. Why I taught you to shoot when you were a young lad at Eton."

"I am very glad to see you," answered Chandos; "but you wanted to tell Lockwood something."

"Why, Sir, it is a night of surprises," said Garbett: "your brother, Sir William, arrived at the Abbey about an hour ago. We have been looking for Mr. Faber everywhere, and can't find him; and so he sent me down to tell Mr. Lockwood that he wants to see him."

"If he wants me, he must come down to seek me," said Lockwood, bluntly. "I want nothing with him; and therefore shall not go near him. Just tell him what I say, Garbett. He knows me well enough, and won't expect any civil messages."

While Lockwood had been giving this answer, Chandos Winslow had remained with his arms crossed upon his chest, his teeth set fast, and his lips compressed. There was a great struggle going on in his breast. The feelings of indignation which had been raised against his brother were very strong. He did not comprehend that it was vindictive pride, rather than avarice, which had made Sir William Winslow destroy his father's will--the desire of triumphing over, and trampling upon, a brother who had offended him, rather than the love of mere money; he called the transaction pitiful, as

well as base; and when Garbett entered, Chandos was resolved, without pause, to expose the whole in a court of justice, at all risks. But, as the man spoke, gentler emotions arose--feelings strong, though tender. He remembered early days. He hesitated, though he did not yield. He asked himself, "Is there not a middle course?" and before the keeper could reply to Lockwood, he said aloud, "I will go up to him myself;" and he moved towards the door.

"Think twice, think twice," said Lockwood, laying his hand upon his arm.

"No; I am resolved," said Chandos, in a sad, but determined tone. "We will meet once more as brothers, before we meet as adversaries. I will forget for the time there is ought within his bosom but kindred blood, and a brother's spirit. I will entreat, I will persuade, I will argue, as a last resource before I am driven to menace and to act. I will try what reason will do, in order to escape a course, the results of which I dread to think of."

"Well," said Lockwood; "well, it is the right way; but he does not deserve it, and no good will come of it."

Chandos made no reply, but walked out into the park, and took his way, with a quick step, towards the Abbey.

"We had better go after him at once, Garbett," said Lockwood; "there is no knowing what may follow. They are both sharp spirits; and I should not wonder if there were blood shed."

"Lord, Mr. Lockwood, I hope not," cried the keeper; "but let us be after him, then; for it is as well to be near to part them in case of need."

"It might be difficult to part them," answered Lockwood; "but come along;" and taking up his hat, he accompanied the keeper into the park, leaving Faber, still trembling with apprehension, in the inner room of the cottage.

CHAPTER XLII.

In the large drawing-room at Winslow Abbey, with four tallow candles on the table, to give some light to its great extent, stood Sir William Winslow, his brow heavy with thought, his cheek pale, and his eye haggard with anxiety. The gloomy room, the faded hangings of dull crimson velvet, which seemed to drink in all the rays of light and give none back again, the many memories with which the place was stored, the solitary aspect of the nearly deserted mansion, the melancholy sighing of the wind through its courts and corridors, tended not to raise the spirit in a heart already depressed by crime. He had sent his valet to Elmsly, glad to be freed from his oppressive presence, and had come on alone, full of bitter and even angry fancies. The worm that never dies was in his heart, the fire that cannot be quenched consumed his brain. He had given way to an intemperate burst of passion at not finding Faber there waiting to receive him, though the young man knew not of his coming; but when he had sent Garbett out to find Lockwood, and he remained alone in that wide room, his feelings became more gloomy and less fierce, his heart sunk, to think of what he was, and of what he might yet become.

The memories of pleasant childhood, too, of innocence, if not of peace, (for he had been turbulent from his infancy,) came back in mournful contrast with the present, when peace and innocence were gone together, when nought remained but bitter anxiety, and corroding fear, and dark remorse. It was well nigh despair he felt.

Yet there was something like a gleam of sunshine upon the long, long past which made him fix his eyes by preference upon it. He thought of the young days when he had sported in that room, piled up the chairs into castles, or built himself houses with the sofa cushions. He saw his father's stately form stand gazing at him with pride; he beheld his mother sit and watch him with affection; he knew that both had looked forward with expectation of high things to his future career; he asked himself where were these hopes? how were they fulfilled? Gone, gone, with those days of

childhood, with those innocent sports, with the calm of infancy, with the fleeting ills of boyhood. Gone for ever--a bar between them and fruition, which no repentance could ever remove, no reformation ever do away.

He took a candle from the table, and held it up to the large picture of his mother, gazing earnestly upon features which had almost faded from memory. Suddenly his eye fell upon a ticket in the corner, marked, "Lot 60;" and he exclaimed, "Good God! was I going to sell that? No, that must not be sold!" And taking the ticket, he tore it from the frame.

The next instant there was a timid knock at the door, and he said, in a milder voice than usual, "Come in."

It was the keeper Garbett's wife, with something like a letter in her hand; which, advancing many curtsies, she presented to Sir William.

"Who was it gave you this?" asked the baronet, taking a curiously folded piece of vellum from her hand.

"A strange-looking man, Sir," she said, "gave it in at the door: more like a corpse than a living man."

"You may go," said Sir William Winslow, without opening the letter, which he conceived to be some law paper, connected perhaps with the relations regarding property between his brother and himself; and when she was gone he paused a moment, in thought. Whatever were his meditations, they ended by his exclaiming, "No! Curse me if he shall! It is unfair and unjust. I am the eldest son; and he had no right to have it. I will fight it out to the last penny I have."

As he spoke, he tore open the letter hastily. What was his surprise to find that the few lines it contained were written in blood-red ink, and in a fine, clear, steady female hand. He held it to the candle and read the following words:--

"William Winslow, alive or dead, meet me on Thursday at your father's grave in the churchyard of Elmsly, at midnight. Fail not, or I will come to fetch you.

"SUSAN GREY."

He let the parchment fall from his hand, and gazed at it as it lay upon the floor with a wild and straining eye. No one had scoffed more loudly at all superstitions--no one in his life and conduct had shown a more practical contempt for the very idea of supernatural visitations. But his nerves were shaken by remorse and apprehension. Terror and anxiety had enlisted fancy on their side. He knew the handwriting well; he believed that no one was aware of his return to England; he thought that the hand which must have traced those lines had long been consigned to the grave. Hardihood, and firmness, and the powers of reason, gave way together; and the fierce, firm, proud Sir William Winslow, trembled in every limb. He called it a fraud--an absurd, a ludicrous invention, an idle deceit, a scheme only fit to frighten a child. But yet he gazed upon the parchment, yet his limbs shook; notwithstanding every effort, yet his heart sunk; and he thought of the injured and the dead; he thought of his violated promises, his unfeeling abandonment, his brutal repulse of the prayer for mercy and support; and he felt, ay, he felt in the heart of the spirit, that if ever the dead are permitted to revisit earth and warn those who have wronged them of approaching retribution, his was a case in which such an awful interruption of the ordinary laws that govern all things might well take place: in short, that he had called upon himself a special curse, and might well expect a special punishment.

Ere he could nerve himself to throw off the first dark impression, the door opened suddenly; and with a fearful start Sir William Winslow sank into a chair. The next instant his brother stood before him.

"What brings you here?" cried the baronet, recovering himself the next moment; "what brings you to this house? I thought, Sir, we had parted not to meet again."

"You were mistaken, Sir William," answered Chandos, shutting the door behind him. "Events have taken place since we parted which render our meeting again necessary. When I left you, I told you I would never enter your house again; but in coming hither I only come to my own."

"Your own!" exclaimed Sir William; "what do you mean? Have you gone mad?"

"Far from it, my brother," answered Chandos, taking a chair and seating himself before him; "let us not begin, William, with violence and altercation. What may result from our conversation, God knows; but let it, at all events, commence with calmness. That I bear you no ill will, you ought to feel; for when your life was in my power I spared it: nay, I spare it still."

"It is false," cried Sir William Winslow; "you have no power over my life; you never have had. It was your own was in danger."

Chandos commanded himself: "You are very foolish to believe," he said, "that deeds such as you have done, can ever be done in perfect secrecy. Two words spoken by me at *my* trial for *your* crime, would have brought forward such a mass of evidence against you, that by no subtlety could you have escaped. I saw you strike the blow--ay, and repeat it, as the old man fell; but my testimony would have been of little avail, perhaps, unless corroborated. But corroboration was not wanting. There were other eyes that saw you go down with him; there were other ears that heard your angry words; there were those too who saw you return; there were persons who watched your agitation, and your wild whirling conversation, and drew the right deduction. But, more than all, in your case there was a motive for the deed, which explained all, and rendered it more horrible. Shall I tell you what that motive was?"

Sir William Winslow sat silent, with his eyes bent down upon the floor; and after a pause, Chandos went on. "You learned that night, that your victim had discovered you had burnt your father's will to wrong your brother; he taxed you with it; and you killed him!--Be silent!--Do not deny it; but listen to me. I have the proofs, strong and speaking proofs, of the crime with which he charged you, as well as of the other. I know every item of the will, each legacy that it contained; and I know, moreover, what is of greater importance still--the very moment, and the very place at which you destroyed it. Shall I tell you where and when? In the strong room at Elmsly, on the night after my father's death. Alone, and with the door closed, you thought no eyes saw you; but you were mistaken. Everything that you did

was observed by one competent to bear witness of the facts, and I now ask you, William Winslow, whether you will drive me to bring forward that witness in a court of justice? For, of one thing be perfectly assured, that Winslow Abbey shall not be sold; and that you shall do me justice, either voluntarily, or by compulsion."

He spoke slowly; and during the time that he did speak his brother's hardy and resolute spirit had leisure to recover itself, and prepare for resistance,

"You are violent, I see, as ever. But let me inform you that you are mistaken--mistaken, first, as to your facts, and secondly as to the person you have to deal with. Do you not know, Sir," he continued, changing his whole manner, and assuming the stern and overbearing tone more natural to him: "do you not know that I am not a man to be bullied or insulted with impunity?"

"I neither bully nor insult you, Sir William Winslow," replied his brother; "I tell you plain and undeniable facts. I do so in order that you may spare yourself and me the pain of forcing me, much against my will, to compel the concession of my just demands."

"And pray what are your sweet demands?" asked Sir William Winslow, with his lip curling.

"The execution of my father's last will," answered Chandos. "If your memory fail you as to the particulars, I can refresh it from a paper in my pocket."

A momentary shade of hesitation appeared upon the face of Sir William Winslow; but it passed away again immediately, and he answered boldly, "The only will, Sir, that your father left has been proved, and is in course of execution. In that I find no right or title given to you to interfere with the disposal of Winslow Abbey; and I rather imagine you will think twice, before you afford the world the disgraceful spectacle of a younger brother attempting to dispossess the elder of his patrimonial property."

"You did not go to Elmsly, I perceive, Sir William," said Chandos, "or you would have discovered, before now, that such calculations upon my forbearance are erroneous. When you do go there, you will find a notice in due form, not to proceed with the pretended sale of that which is not yours; and probably a letter from Lord Overton, to tell you that he has received my protest against the whole transaction between you and him, regarding Winslow Abbey."

"You have not done it," cried Sir William, starting up.

"You are mistaken; I have!" replied Chandos, firmly; "I have taken the first step in a course which I will tread unremittingly to the end--if I am driven to do so. But I beg of you, I beseech you, to think of the consequences, and to spare me the pain. Remember, I entreat, what must be proved in the course of such a suit. I shall have to prove," he continued, "that poor Roberts discovered in the drawer of the library here, a memorandum in my father's own handwriting, of having given a signed copy of the will to you. I shall have to prove, by the same witnesses, who were present when that memorandum was found, that he came over in haste to Northferry, to bear me the important information; and that he was murdered before he reached me. I shall have to prove that he believed that you had burned the will: perhaps I shall have to prove, also, that he told you so as you stood together by the fish-pond at Northferry, the moment before his death."

His voice sunk almost to a whisper as he spoke; and a livid paleness spread over Sir William Winslow's face.

Chandos thought he had produced some effect, and he went on more eagerly. "Oh, William!" he said, "consider, and do what is right; for the sake of our father's and our mother's memory; for the sake of the honour of our name and race--for your own sake, if not for mine, do me justice. Remember, O remember, that even to save my own life I would not peril yours; that I abandoned and would not use the plain, straightforward defence which would have freed me from danger and anxiety in a moment; that I would not be a witness against a brother; that I would not bring an accusation against you, even to cast the burden from myself--an accusation which, once made, would have been supported by a thousand other facts--

by the testimony of her who heard you speaking with poor Roberts, by the testimony of those who saw you walking with him, by the evidence of the man who witnessed your return to the house, by that of your own servants, who must have seen things which could leave no doubt."

Sir William sank into his chair again, and grasped the arm tight, but made no answer.

"Remember that I forbore," continued Chandos; "and do me simple justice. But hear why I forbore:--I believed that you struck the fatal blow under the influence of blind and headlong passion; but I knew that a jury would not take that into account, when they found the crime committed tended to cover another crime. I think so still: I do believe, I do trust that with time for thought, that with any pause for consideration, you would not deliberately have brought that old man's gray hair to the dust, even to hide the wrong that you did me."

"I did you no wrong," muttered Sir William Winslow; "this is my patrimonial inheritance. You have no right to it."

"You know at this moment," answered Chandos; "that my father left it to me, because he was well aware that you do not value it as I do."

Sir William Winslow set his teeth hard, and said from between them, in a low, bitter voice, "You shall never possess it!"

"Is that your last word upon the subject," asked Chandos.

Sir William Winslow nodded his head, and answered, slowly and deliberately, "The very last."

"Then there is no resource," said the young gentleman, in a tone more of sadness than irritation; and turning to the door he left the room.

A few steps down the corridor, he found Lockwood and the keeper standing together, silent; but he was too much agitated by all that had taken place to think of the motives which brought them there.

"Come, Lockwood," he said, in a low voice; "it is all in vain. He will yield to no inducements. Where is Faber?"

"Down at my house still," answered Lockwood; "he is not likely to come out, for he is as timid as a hare."

"He had better not see my brother any more till after the trial," answered Chandos. "I must go down and speak with him;" and walking hastily away with Lockwood, he left the Abbey and crossed the park.

When they entered the little front room in Lockwood's house, they found everything exactly as they had left it, except, indeed, that the unsnuffed candles had guttered down nearly into the sockets. When they came to try the inner door, however, in search of Faber, they found it locked; and it was only when the young man heard the voices of Chandos and his half-brother calling to him, that he ventured to speak or come forth. Even then he was in a terrible state of agitation; and his first words were, "Oh, Mr. Winslow, I cannot, I dare not go up to the Abbey, or see your brother."

"I do not think it necessary or right that you should," replied Chandos. "You had better come with me to the little village inn, and go over with me to S---- to-morrow. You can thence write to Sir William, informing him that you have made up your mind to tell the whole truth regarding the will."

"I won't date the letter," said Faber; "and if you stay long at S----, depend upon it he will come over, and find us out."

Sad as he was, Chandos could not refrain a smile; but he replied, "Do not be alarmed, I will take care no harm happens to you. Moreover, I shall only remain in S---- a few hours with my solicitor. I shall then either go to Elmsly, to the house of poor Mr. Roberts, as I understand his cousin, who is his executor, has taken up his abode there for the time, or shall return to Northferry, as I find advisable. But if I go to Elmsly, I will not ask you to go with me. Now, Lockwood, I think I will set out for the inn; but you had better either come over with us now, or join us early to-morrow morning; for there is much I wish to say to you, and your presence, too, may be needed at S----."

"I will come now," said Lockwood; "there is no use of losing time. *Carpe diem*, master Chandos. Only let me leave my place safe; for these candles have been dropping perpendiculars too long."

Thus saying, he bolted the windows in both the rooms, shut and locked the front door, extinguished the lights, and then led his two guests out by the back door into the lane which ran under the park wall.

The walk through the narrow and tortuous roads passed nearly in silence; for Chandos was sad, as well as thoughtful; and Lockwood, though somewhat curious to know what had taken place between the brothers, did not like to inquire, especially in the presence of Faber. Nor was it a subject on which Chandos could venture to speak. He saw and knew that Lockwood entertained suspicions in regard to his brother's share in the death of poor Roberts, which were but too just; but he could not tell him the words which had passed between himself and Sir William Winslow, without confirming those suspicions--without converting them into certainties. He did not choose to do so. He had resolved indeed to let events take their course; to claim his own boldly; and if discovery and destruction fell on him who opposed his right, to let it fall; but not by any spontaneous act of his to move the tottering rock which hung impending over a brother's head.

They arrived at the inn; they sat down in a small, neat, cheerful room; but still they remained silent, till at length Faber rose, saying he was tired, and would go to bed. As soon as he had retired, Chandos saw questions hanging upon Lockwood's lips; but he stopped them at once in his usual bold and decided way.

"Ask nothing, Lockwood," he said, before the other spoke. "My brother is resolute: so am I. What passed between us must rest between us. My plan at present is to go over to S----; and after seeing my solicitor there, to proceed with him perhaps to Elmsly, where I hope to find some confirmation of the facts of my case. Indeed there may be, not unlikely, a draft of the will. You must make a formal statement of all you know regarding the memorandum; we must induce Faber to do the same; and when we have collected all the information which is to be procured, I will lay it before counsel, and proceed as they advise. Let us now to bed; for I

would fain set out to-morrow as soon after dawn as possible; for this is a business in which no time must be lost."

CHAPTER XLIII.

"Hist! hist!" cried a small voice, as Chandos Winslow was walking along in the cool of the early morning, with Lockwood on one side and Faber on the other, towards the nearest place to Winslow Abbey where post-horses were to be obtained. They were in the wood, clothing the side of the hill through which he had passed on the preceding evening; and though the path was wide, and the trees far apart, with no underwood, he looked about in vain for the body whence the sounds proceeded. Still, however, the voice cried, "Hist! hist!" and in a minute after, a boy slid down the boll of one of the large trees, and, running forward, sprang affectionately into Chandos's arms.

"Why, Tim, my little man, you here?" cried the young gentleman. "How came you to be playing truant so far from Northferry?"

"I am not playing truant," replied the boy. "My mother took me; because she said that it should be me who served you, and good old General Tracy. She wants to see you very much; but would not go away. You will find her on there; but I must go up the tree again to look out."

"Is she before the cottage, a quarter of a mile on?" asked Chandos.

"No, no!" said the boy. "Go forward till you see a straw on the branches, on the left; then you will come to two others, and then to three. Whistle where the three straws are, and she'll come. Good bye, good bye!" and running away again, he climbed up the tree like a squirrel.

"He's a nice lad," said Lockwood: "'tis a pity!"--but he left *the what* unexplained, and the party walked on, looking carefully on the left for the

signs which the boy had mentioned. The first straw, however, must have escaped their notice; for they came to the two, without having perceived it; and the three were found not far on. But Chandos had no occasion to give the signal; for he had hardly seen the place, when Sally Stanley was before him. She looked worn and ill; but her large, dark eyes had lost none of their wild lustre; and she exclaimed as soon as she beheld him, "Ah! you have come: I knew you would come. Fate would have it so. And you too, Lockwood: you are a hard man; but you do not mean ill. But, who is this white-faced thing? and what is he fit for?"

She looked full at Faber as she spoke; but Lockwood took upon him to reply, saying, "Ay, my good girl, I'm not so hard, perhaps, as you think: you made me savage with your strange ways. After all, you were right in the main; and if you had not stopped me, I should have spoilt all: but you should have told me what you were about; for how could I tell? However, I am sorry for what I said. I did not mean to act so harshly, and was sorry for it before I had gone half a mile."

"Enough, enough," answered the woman: "we all do things we are sorry for;--I have done many. But you should have stayed to listen, and I would have told you all."

"You had plenty of time to tell me before that," answered Lockwood, who did not like any one to have the last word with him. "But we were both a bit wrong; you for keeping me, when you had no right, without any explanation; and I for hitting you upon a sore place, without sufficient cause: so let us forget and forgive."

"So be it!" answered Sally Stanley. "You have no trust or faith; but that is your nature."

"How the devil should I have trust or faith in a set of gipsy ragamuffins, who take me by the throat, and make a prisoner of me, without why or wherefore?" exclaimed Lockwood. "I am a plain man, and will listen to reason, when it is given me; but I don't like force; and will resist it to my dying day, my lass: so don't meddle with me any more; or if you do, tell me why."

"Do not let us lose time in recurring to the past," said Chandos. "Your son tells me, Sally, that you wish to speak with me; and to say truth, I wish much to speak with you: but it must be alone. Tell me now, what you are about here, if it be not a secret; for, to say truth, I have some suspicions that I--or rather those I love are interested therein."

"I am about that, in which you must help," said the woman. "I was sure you would come; and yet, like a fool, I doubted, and had up our own people to do the work if you did not arrive. But they are rude hands; and though we have our own rules, they may be rough with the man. They will not peach--they will not give him up; but they might break his bones, or worse. You two shall do it; but you must promise to observe our laws, and not betray him."

"I really do not clearly comprehend you," said Chandos. "Before I make any promise, I must know fully what it implies."

"Stay, stay: I will go and talk to the men," said Sally Stanley; and without waiting for reply, she darted in amongst the trees. She was absent about ten minutes; and from time to time, Chandos could hear the murmur of speaking voices. Neither he nor his companions uttered a word; for they had thoughts in plenty; but they did not listen; and Lockwood whistled a tune in an under tone, as if to pass the time. He did not know that he was whistling. At length, Sally Stanley returned, and standing in the midst of the three, she said, "First and foremost, you must all promise me that this man shall go free, if he does what is right, and restores what he has taken wrongfully."

"You speak ever in riddles," replied Chandos. "I know not of whom you speak."

"Never mind," answered the woman: "it is a rule with us, not to betray any one to that which you call justice--which no one should know better than yourself, is always injustice. You must promise, that whoever and whatever he is, you will not give him up to the vile instruments of your bad laws. You may use the threat to frighten him; but you must do no more. I have a certain power over those who are round me; for I know more than they do; I see further than they do, far as they can see. But that power has a

boundary, and they will resist. If you do not promise, and keep your promise, you will repent it."

"I always keep my promise, when it is given," answered Chandos; "but I tell you fairly, that if this man be, as I suspect, the person who has so basely defrauded Mr. Tracy, he shall not escape out of England without restoring the property he has attempted to carry off."

"Then, do your worst," said Sally Stanley, with a laugh; "Go and take him, if you can! I tell you, Chandos Winslow, that it will require more skill and power than you possess even to speak with him. One more such word as you have spoken, and I hold my tongue for ever on the means of catching him. Do not think that you can deal with me in such sort. For your sake, and for the sake of the old man who has befriended my poor boy, I have watched and laboured; but I will not be made a reproach among the people that are now my people. You must promise, or I give you no assistance. If I give you no assistance, all your strength and foolish wisdom are vain. In ten hours from this moment he will be beyond your reach. The wind is in his ship's sail; the sea coast is but eight hours distant; and you may fret yourself in vain, if you lose the present moment for the great object you have before you."

"Promise, promise!" said Lockwood. "It is better to have the deer less the umbles, than by refusing the keeper's fee to lose the buck."

"I am quite willing to promise," answered Chandos, "that if he restores Mr. Tracy's property, I will make no attempt to stay him. I am not a thief-taker; and though I believe it would be but right to give him up to justice, and to inquire into many of his acts more strictly; yet, as I owe all knowledge of his abode to you, my good woman, I am ready so far to abide by your conditions. But still, I say, if he do not give up Mr. Tracy's property, I will not let him go."

"You must bargain with him for that," replied the woman; "he has got an advantage over a man, who, like all others, has been seeking advantages over his fellows. There are some advantages within your law; some beyond it: but, your laws are nothing to us; and he has only done what many of our own people would do, but in another way. When cheat robs cheat, it is all

fair. This Tracy wanted to gain great wealth; some one must lose--nay, many must lose--to swell his fortune. Then comes a bolder rogue, and says, 'What you intended to gain, I will pocket.' Who can blame the man for being as greedy as his employer? But all this is foolish babble. If you will promise, you shall have him in your power in ten minutes; if not, you may follow your own course."

"Well, I promise," said Chandos, after some consideration, "only to use the opportunity you give me to make a bargain with him for the restoration of the shares. Will that satisfy you?"

"Yes," replied the woman; "but there are more things to be thought of. Come hither apart with me." And leading Chandos a few steps into the wood, she remained for several minutes in eager conversation with him.

"That is but fair," he said, as they came back; "I will do all that; but the people must wait for a few days."

"That they will do readily, on your word," replied Sally Stanley; "now I will send them away. You three stay here a moment; and mind, do everything very silently."

In about five minutes she returned alone, and made a sign to Chandos to follow, which he did, with Lockwood and Faber, through a narrow path amongst the trees, only wide enough to admit the passage of one person at a time. It wound in and out considerably; but the direct distance from the spot where they held their conference, to the top of the bank, under which Chandos had found the old tinker on the preceding night, could not be more than a hundred yards. I have before mentioned that the top of the bank was thickly covered with trees and underwood; but when the party reached the top, Chandos could perceive that the path they were then following took a turn through the bushes, and then descended in a sidelong manner to the road below. The cottage, with all the windows still shut, was clearly to be seen through the branches; and pointing to it with her hand, Sally Stanley whispered, "You will have to wait a while. Keep quite still and silent till you see the door opened; then down like lightning, and in."

"She will shut the door as soon as she sees us," answered Chandos, in the same tone.

"I will provide for that," replied the woman; and after cautioning Lockwood and Faber to be still, she left them on their watch.

For nearly half-an-hour they remained without seeing any movement of human life upon the road or in the cottage; and Faber asked Chandos, in a nervous whisper, if what they were about was legal. The only reply was an injunction to silence; and the moment after the two upper windows of the cottage were opened, and then the two lower ones. The maid next put her head out, and looked round on every side, then drew it in again, and pulled down the sash. Two or three minutes after a boy was seen coming along the road, dressed in a blue smock-frock and leathern leggings, with a white jug full of milk in his hand. For some moments, so complete was the disguise, that Chandos himself did not recognise Tim Stanley; but the boy at length gave a glance up towards the top of the bank, and then approached the little gate of the cottage garden. He tried it with his hand, apparently to see if it was open, then put his shoulder to it and pushed it in. The instant he had done so the door of the house was thrown violently open, and the woman, rushing out, began to abuse him for breaking the gate, at the same time snatching the jug of milk out of his hand. Chandos sprang forward and darted down the bank, followed by Lockwood. Their sudden apparition instantly changed the tactics of the woman, who ran towards the house and endeavoured to shut the door; but little Tim was before her, and setting his back stoutly against it, he resisted all her efforts. Another force, however, seemed to be suddenly applied from within; for the door was pushed forward, catching the boy between it and the wall; and as he resolutely maintained his place, he was in danger of being seriously injured, when Chandos came up, and by his superior strength drove it open.

"Run, run!" cried the woman servant; and as the young gentleman forced his way into the passage; a man's figure disappeared at the other end. Pushing the woman aside, he pursued without pause, and found a door leading out at once to the top of the high and precipitous bank, at the edge of which the house was situated; and a rapid glance down showed him a stout figure running along a narrow, ledge-like path on the face of the cliff.

Chandos took a few hurried steps down, fearing that amongst the trees at the bottom he might still lose the object of his pursuit; but no sooner did the fugitive reach the comparatively level ground below, than a tall man, starting out from the bushes, caught him by the collar, and threw him rudely back upon the ground.

"Here he is. Come and take him," cried the man, beckoning to Chandos; and in another minute the young gentleman had his hand upon the shoulder of Mr. Scriptolemus Bond. Lockwood was also by his side; and between them, they raised the worthy gentleman from the ground, and made him walk up the bank again. There is, certainly, something very ludicrous in fear; and the expression of the rogue's countenance, as he silently rolled his sharp black eyes from the face of Chandos to that of Lockwood, had well nigh made the young gentleman laugh, notwithstanding all the grave thoughts that were in his bosom.

"Walk in there, Sir," said Chandos, when they reached the door of the little parlour; and then, turning to the maid who stood crying beside Faber and little Tim, in the passage, he added, "If you have hurt the boy by your brutality, my good woman, you shall not go without punishment."

"Oh I am not hurt!" cried Tim; "she's not so bad as a bull."

"Now," said Chandos, entering the parlour, of which Lockwood already had possession, "I think I have at length the pleasure of seeing Mr. Scriptolemus Bond, alias Wilson, &c.; and I have to inform him that he must immediately produce all the scrip, bonds, and papers of all kinds belonging to Mr. Arthur Tracy."

"Who are you, Sir?" exclaimed Mr. Scriptolemus Bond, recovering himself a little. "What authority have you to force your way into my house? Where is your warrant or your staff? Do you suppose that without authority I--"

"You ask for authority, do you, Sir," said Chandos. "By so doing you will force me to seek it, and convey yourself to prison and to Van-Diemen's-Land. I was willing to spare you, if you thought fit to make restitution of that which you have wrongly taken from Mr. Tracy; but let me tell you that

you have no choice but to do so instantly, and without hesitation, or go before a magistrate on a charge of robbery."

"Stay, stay," said Mr. Scriptolemus Bond; "let us talk about the matter quietly. Perhaps we can arrange it.--Betty, Betty, give me a glass of brandy."

"Not a drop," said Chandos, sternly: "the matter needs no arrangement. You have heard what I demand, and what are my intentions, and you have but to answer 'Yes,' or 'No,' to this plain question--Will you deliver up the papers?"

"But you are so hasty, so hasty," cried Mr. Bond. "For Heaven's sake, shut the door, and let us speak two words. First of all, I must know who you are, Sir; for one does not trust papers of consequence to a stranger. I have been very ill, Sir; or I should have seen Mr. Tracy before, and given the papers to himself. Very ill, indeed, I have been, with a nasty affection of the throat."

"You are likely to be troubled with a still nastier one," said Lockwood, drily.

"Mr. Bond," replied Chandos, "none of these evasions will serve your turn in the least. My name is Winslow, a friend of General Tracy and his brother. The fact of your having absconded is well known to everyone: officers are in pursuit of you; you have been publicly advertised in the newspapers; and I have nothing to do but to take you before a magistrate, in order to send you to jail. Once more, then, I ask you, Will you deliver the papers?"

"I don't see what good it would do me," said Mr. Scriptolemus Bond; "I must see my way clearly, Sir. Pray, are you one of the Winslows of Elmsly?"

Chandos was provoked by the rapid return of his cool impudence; and he replied, "You shall see your way clearly, but it shall be to prison."

At the same time he laid his hand upon the worthy gentleman's collar again, and turning to Lockwood, added, "You can pinion him with my

handkerchief, Lockwood. Then I and Faber can take him over to S----, while you remain here to see that nothing is abstracted till a proper search can be made."

"There, there, you are so very hasty," said the culprit; "now do be a little reasonable. Can you expect me to give up such sums without some small consideration for my pains."

"The consideration which you will get," answered Chandos, "is an escape from punishment."

"I must have something more than that," said Mr. Bond. "And now, Sir, I will tell you in one word how we stand; for you seem to think you can have it all your own way; but you cannot. You have got the whip hand of me in one way, and I have got the whip hand of Mr. Tracy in another. It is very lucky for him that you are not an officer, as I thought at first; for if you had been, not one shred of all his shares would he ever have seen in his life. You think it is in this house, or perhaps in my pocket; but you may search the premises and the pockets too, and if you find a single share you may eat me. Now, Mr. Winslow, I tell you there is nobody knows where the whole amount is but myself, and there it shall lie till it rots, unless I have ten thousand pounds for giving it up. That is my last word upon the subject."

"Then perhaps you will have the goodness to walk with me," said Chandos; "only just a little way, till we can get a post-chaise to carry you before a magistrate; for ten thousand pounds you certainly will not have, or anything the least like it. If it had been a fifty pound note you demanded, just to help you into some foreign country, I might have given it to you on receiving the shares."

"But what am I to do when I get to a foreign country?" said Mr. Bond, coolly. "You forget, my dear Sir, that a man must live. And if I am not to live comfortably, I might as well go to Van-Diemen's-Land, and let Mr. Tracy do without his shares."

"You had better give him something, Mr. Winslow," said Faber; "the poor devil must have something to start with."

"Thank you, thank you, Mr. Faber," said Mr. Bond; "that is the right view of the case. I wonder if you are any relation of Faber, my old college chum--a wonderfully clever fellow he was."

Chandos could have knocked him down; but the negotiation was renewed by Faber and Lockwood; and, after a great deal of haggling and resistance, the rogue's demand was reduced to the sum of fifty pounds in hand, and a draft for five hundred pounds at seven days' date, to be drawn by him and accepted by Chandos on the spot. He moreover exacted from the young gentleman, acting as agent for Mr. Tracy, a receipt in full of all demands; and when these points were conceded, he drew the draft and the receipt with his own hand, and even made an effort to get them both signed by Chandos, before he produced the papers.

Chandos, however, declined; and Lockwood laughed aloud, not without being joined in his merriment by Mr. Bond himself; for there is a point of roguery where all shame dies, and a man becomes vain of his very impudence.

"Well now, gentlemen," he said, at length, "just have the kindness to lock the door, that we may not be interrupted, and then we will see what can be done."

There was a rosewood table in the middle of the room, with a drawer in it; and, to the surprise of Chandos, it was to that drawer that the knave applied a key which he drew from his breeches-pocket.

"Why, I thought you told me I might search the house for these papers in vain," said Chandos, indignant at having been cheated.

"So you might," answered Mr. Bond, coolly, and drew open the drawer, which presented nothing but a void.

The next instant, however, Mr. Bond pressed his thumbs tight on the two sides of the drawer, and with a sudden click the bottom started up. Removing the thin piece of wood thus displaced, the worthy gentleman exhibited to the eyes of the bystanders some fifteen or twenty bundles of papers, neatly tied up and ticketed.

"Now Sir," he said, "you have got my secret, be so good as to accept the draft and sign the receipt." He turned towards Chandos as he spoke; but that gentleman had suddenly seated himself at the other side of the table, and was leaning his head upon his hand, lost in thought. The words of Mr. Bond roused him, however, and he replied, "Not till I am sure, Sir, that all the shares are there. Give them to Mr. Faber, he will count them, and I will compare the number with the printed list which I have in my pocket-book."

This was accordingly done, much to Mr. Bond's mortification; for there is much reason to believe that it was his intention to lay claim to some part of the spoil, in order to drive a second bargain at an after period. But Chandos's precaution, in having cut out of a newspaper a full description of the shares purloined, frustrated this last attempt, and all were restored. There still remained in the drawer three bundles, similar to those which were given up, belonging probably to some other unfortunate clients of the worthy Scriptolemus Bond; but with these of course Chandos had no power to meddle, and he accordingly signed the papers which had been drawn up.

"Now," cried Mr. Bond, snapping his fingers as soon as he had received them, "I am a free man. This paper is as good as a passport; and to-morrow morning I shall be safe in France."

"I should think, Mr. Bond," said Chandos, with a somewhat contemptuous smile, "that there are things in that drawer which will yet take the wind out of your sail."

"A very pretty figure, but not applicable," replied Mr. Bond. "All the other gentlemen have trusted to Mr. Tracy's catching me, and so his passport is, as the French say, *valable* for the present."

"I shall take care, at all events," said Chandos, "to make this matter generally known when I reach London."

"Now that is not fair, that is not fair," said Mr. Bond. "But I will be beforehand with you; and, as I think our business is concluded, I will go and pack up my trunk. Good morning, Mr. Winslow; good morning, gentlemen all."

Chandos did not deign to make any reply; but, taking the papers from Faber, walked out of the house.

The little boy, Tim, was found in the garden, near the gate, which he had burst open; for the proximity of Mr. Bond's strapping maidservant did not seem pleasant to him.

"Have you got it? have you got it?" cried the boy. And when Chandos, patting him on the head, answered in the affirmative, he clapped his little hands with joy, exclaiming, "I will run and tell my mother; she will be so glad!"

"I will go with you, Tim," said Chandos; "for she must take you home to Northferry. All my plans are altered by this morning's work, Lockwood; and I must speed up to London without delay. I will be down, however, tomorrow or the day after, for a new light has broken upon me in an instant, which I think may lead to great results. I wish to Heaven I could see the memorandum which poor Roberts found."

"I can show it you, Sir," said Faber; "for by his direction I took a copy of it, and have got it in my pocket-book."

It was produced in a moment, and, still standing in the open space before the cottage, Chandos read it attentively.

"Were these initials at the end copied accurately?" he said, turning to Faber, and pointing to some capital letters written under his father's name.

"Yes, Mr. Winslow," answered Faber; "as far as I could make them out, they stood just so, in two lines. No. 2, I.S. B.E. No. 3, P.D."

"Then there is still a chance," said Chandos. "But come, I will away to London, and take advice upon these points also."

His companions could not at all make out what he meant; but the new light which he said he had got, greatly accelerated all Chandos's movements. With a quick step he led the way to the copse where he had left the gipsy woman; and having given little Tim into her charge, he explained

to her all that had occurred; but in terms so brief that none but one of her rapid intelligence could have comprehended what he meant. Then promising to see her again soon, he hurried away towards the high-road to London, accompanied as before by Faber and Lockwood. As they approached the little inn where Chandos had stopped on the preceding day, but before they could see the road, the sound of rolling wheels was heard; and with an impatient exclamation he said, "There is the coach gone!"

But he was mistaken, for it still wanted a quarter of an hour of the time at which the stage appeared. Faber would fain have gone with him to London; but Chandos begged him to go over to Northferry, and wait for him, saying, "Sir William will not come there, you may be very sure."

In a few minutes after, the coach rolled up, the portmanteau was put in the boot, Chandos sprang upon the top, and after a short delay, away the vehicle rolled towards the great city.

"He's in a vast hurry," said Lockwood; "what can have struck him?"

"I don't know, I am sure," replied Faber; and they turned away.

CHAPTER XLIV.

It was about half-past four in the afternoon, when a common street-cabriolet drove up to a house in Berkeley Square, in the windows of which were exhibited large bills, stating that the lease and furniture would be sold by auction, on a certain day, then not far distant. Chandos Winslow sprang out of the vehicle, and knocked at the door, which was opened almost immediately by a coarse-looking woman, with her arms bare, and a wet cloth in her hand. In answer to the young gentleman's inquiry for Mr. Tracy, the charwoman replied, that he was not there; adding that he had left the house the day before with his family, but that she did not know where he

was gone. The next drive of the cabriolet was to Green Street; but there Chandos paid the driver before he got out. He then knocked at General Tracy's door, and the face of his old servant, who soon appeared, showed him at once, that no favourable change had taken place in the circumstances of the family.

"My master and Mr. Tracy are both out, Sir," he said, even before he was asked; "but Miss Rose is in the drawing-room."

"Are they all well?" asked Chandos.

"Pretty well; but very sad," replied the man. "Miss Emily, indeed, is not very well; and has not been out of her room to-day."

"I hope I bring them all good news," replied Chandos, willing to lighten the grief even of an attached dependent. "I will, therefore, make bold, to go up at once, my good friend, without being announced:" and walking rapidly up the stairs, he opened the drawing-room door.

Rose was seated at a table, writing; for she had not heard the sound of a footfall on the well-carpeted stairs: but, the moment Chandos entered the room, she looked up; and though there were still tears in her eyes, a low exclamation of pleasure broke from her lips, when she saw him.

"Oh, Chandos!" she said, "I was writing to you, by my uncle's permission; for we thought you had left town yesterday--indeed, the people at the hotel said so."

"I did, dearest Rose," he answered; "but I have come back to-day on business of importance."

"I am exceedingly glad of it," replied Rose, as Chandos seated himself beside her; "not alone because I am glad to see you; but because you can answer in person the questions which I was going to put;--and yet I do not know how I can put them, now you are here."

"What!--between you and me, dear Rose?" said Chandos. "Can you have any hesitation in asking Chandos Winslow anything? Tell me frankly, my

beloved what it is you wish to know; and I will answer at once."

"Why, the fact is this," said Rose, looking down at the letter she had been writing, till the rich beautiful hair fell over her fair face, "the creditors have, this morning, returned an unfavourable answer. They will not consent to my uncle's proposal. They will not permit the reservation of ten thousand pounds from the sale of his estate for Emily, and the same for myself; though they do not object to the sum appropriated to purchase an annuity for my uncle and papa. Emily at once begged that she might not be considered for a moment; and so did I: but my uncle said, that, in my case, he was not a free agent; for that he had promised that sum of ten thousand pounds to you: and that he could not even propose to withdraw from his word. I took upon me, Chandos, to answer for you; but he said that the proposal must come from yourself, if at all, when you knew the whole circumstances; and I had even a difficulty in gaining permission to write to you, though everything must be decided by half-past twelve the day after to-morrow. Was I wrong, Chandos, in what I said on your behalf?"

"No, dearest Rose, you were not wrong," answered Chandos; and then kissing her fair hand, he gazed with a look of mingled gaiety and tenderness in her face; adding, "and yet, my Rose, I do not think I shall consent after all."

"Not consent!" she exclaimed; and then, shaking her head, as she saw the bright look with which he regarded her, she said, "Nay, I know you better: you are jesting, Chandos."

"No, my Rose," he answered, "I am not jesting. But I will not tease you with suspense: what I mean, my love, is, that I do not think there will be any need of my consent; for I trust the clouds are passing away, and that your father's fortunes may be re-established, without the noble sacrifice your uncle proposes to make."

"The change must be soon, Chandos," said Rose, sadly; "for these people have announced their intention of making him a bankrupt the day after to-morrow, if their demands are not complied with."

"The change has taken place, dear Rose," replied Chandos; "and I thank God that I have been made the instrument of bringing good news and comfort to you all. It is this which has brought me so suddenly back to town. But, hark! that is the General's knock, or I am mistaken."

"My father is with him," said Rose; "but tell me, dear Chandos, tell me the news. Let me be the first to give it him."

"It is that I have recovered all the property carried off by that villain, Bond," answered Chandos Winslow. "I have the whole of the shares with me now."

Rose clasped her hands in joy, and at the same moment the door opened, and the dejected face of Mr. Tracy appeared. He gazed for an instant sternly at the laughing countenance of his daughter, and then made a movement as if to quit the room; but Rose sprang up and cast her arms round him--whispered some words in his ear, and then, in the excess of her joy, burst into tears.

"What? what?" cried Mr. Tracy. "I did not hear. What does she say? What does she mean?" and he turned towards Chandos with an eager and impatient look, while the foot of General Tracy was heard ascending the stairs.

"She has good news to give you, my dear Sir," replied Chandos; "the best that you have received for some time; but I really must not take it from her lips. Be calm, be calm, dear Rose, and tell your father."

"Oh he has got them all!" cried Rose, still weeping; "all the shares--all that the wretched man carried off."

"You, you, Chandos?" cried Mr. Tracy.

"Got them all!" exclaimed General Tracy, pushing past his brother.

"All," replied Chandos; "at least all that were advertised. They are here, my dear Sir. I never was so loaded with riches before;" and he produced the various packets from his pockets.

Mr. Tracy sat quietly down on the sofa, in profound silence; he did not touch the papers; he did not even look at them. His emotions were too strong, too overpowering; and he remained with his eyes bent upon the floor, till Rose sat down beside him, and took his hand in hers, when he threw his arms round her, and kissed her tenderly, whispering, "Go and tell our dear Emily, my child."

General Tracy in the meantime ran hastily over the shares, comparing them with a memorandum in his pocket-book. Then laid them down upon the table; and marching across to Chandos, shook both his hands heartily, but without a word. Chandos understood him, however, and it was enough. The next minute the old officer rang the bell; and on the servant appearing, said in a quiet tone, "Bring me the paper out of my room, Joseph."

As soon as he had got it, he set to work, with pencil in hand, upon the prices of the share market; and after a rapid calculation, looked with a triumphant smile to his brother, saying, "Twenty-three thousand pounds to spare, Arthur. Tomorrow, please God, they all go, for I shall never have peace till the cursed trash is out of the house. Now, Chandos, my dear boy, let us hear no more--."

But before Mr. Winslow could answer, Emily Tracy followed Rose into the room, and cast herself into her father's arms. Her next movement was to hold out her hand to Chandos, saying, "Oh, thank you, thank you! You have saved us from horrors. But how has it been done?"

"Why I have now my confession to make," answered Chandos; "and if I had been politic, I should have done it while the first pleasant surprise was upon you all; for I have taken upon me, Mr. Tracy, to act for you very boldly."

"Whatever you have promised, I will perform," answered Mr. Tracy, "and that with deep and heartfelt thanks; for you have saved me from disgrace which I could never have survived."

"If it be for twenty thousand pounds, it shall be paid gladly," said the General.

"Nay, it is not so bad as that," replied Chandos; "the worse part of my case, my dear Sir, is, that, unauthorised, I have taken upon me to act as your agent, and in that quality to give the man a general release. As to the money, there was not any great difficulty, for I gave the scoundrel fifty pounds in hand to help him to France, and accepted his bill at seven days for the rest, to close the whole transaction at once; as at all events if I acted wrong, I could but be the loser of the sum. He demanded ten thousand pounds--."

"Well, let him have it," said General Tracy.

"No," answered Chandos, "I would not let him have it; but I engaged myself for five hundred; and it is for you to judge whether I acted right in so doing, knowing, as I did, that in this case time was of the greatest importance."

"You acted admirably," said Mr. Tracy; "and I have to thank you for your decision, as well as for your prudent management."

"If it had been in my hands, I fear I should have given him whatever he asked," said the old officer; "for the fearful idea of my brother being made a bankrupt--a bankrupt, Chandos, like a mere trader--would have swallowed up all cool prudence. But now tell us all about the how, the when, and the where you found this pitiful knave."

"Do you know, General," replied Chandos, "I fear I must leave that part of the tale untold for to-night. I have some matters of much moment on which I wish to have the best legal advice I can get; and I must seek it instantly. If I can obtain the opinion and directions I want to-night, I shall leave town early to-morrow. If not, I shall come in during the morning, and will tell you all."

"But do give me a hint, however slight," said Mr. Tracy; "it seems to me like a happy dream; and I fear I shall wake and find it unreal, unless I have some confirmation."

"All I can stop to say," replied Chandos, "is, that your little protégé, General, the gipsy boy, acted a great part in the adventure; and gallantly did he perform it, I assure you, at the hazard of life and limb."

"I will make a soldier of him," answered the old officer; "I will buy him a commission. But there has been danger then, in this affair."

"Oh no!" replied Chandos; "only danger to the poor boy. But now I will bid you adieu. Farewell, dear Rose. The greatest happiness I have ever known in life, has been to bring you news which took a heavy load from your kind warm heart."

Chandos Winslow shook hands with the rest of the party, and was then leaving the room, when the General exclaimed, "Chandos, Chandos!" and followed him to the top of the stairs.

"My dear friend," said the officer, "you have done us the greatest service that man could render us; but, in so doing, you have removed obstacles to your own happiness. Rose and Emily, are, of course, my heiresses. I do not see why they should not have now the greater part of their future fortunes: for I have no expenses; and now, with changed circumstances, it would not, of course, be so imprudent to marry, as it appeared some days ago. Poor Emily is sad; for she has heard from your brother, announcing his return to England; and claiming the completion of her engagement with him. I must take it in hand myself, I see; for I will not have the dear girl's happiness thrown away. Now, however, farewell: for I see you are in haste; but come in, whenever you return from your journey; and remember, that the causes which induced me to exact a promise of you, to refrain from pressing Rose to a speedy union have been removed. Only one word more; and that on business. Are you at the same hotel where you were the other day?"

"Yes," replied Chandos; "I left my baggage there as I came."

"Well then, I will send a cheque for the five hundred pounds there, this evening," said the General.

"Perhaps, it would be better," answered Chandos, "if you would have the kindness to pay it into my account at Curtis's; as it is very possible, that I may not be home till very late to-night. Any time within a week will do."

"It shall be done to-morrow," replied the old officer; and they parted: Chandos to seek his friend, Sir----, through courts and chambers; and the

General, to rejoice with his brother on a deliverance from that which had seemed an inevitable disgrace not half-an-hour before. General Tracy was a good, kind man; but, like everybody else in the world who fancies he has no prejudices, he had several; and those he had were strong. He looked upon it undoubtedly as a disgrace not to pay a just debt under any circumstances; but the sting of the calamity which had menaced his brother, was to him that he might be "made a bankrupt like a mere trader." There was the rub with General Tracy. If none but "gentlemen and soldiers" could be made bankrupts, he would not have felt it half as much, though he would have deplored it still. But to be put in the *Gazette* like a ruined pork-butcher, that was terrible indeed! How strange it is, that in estimating disgraces, we never look to the act, but to the consequences!

CHAPTER XLV.

The ground-floor of Sir William Winslow's house at Elmsly, contained as splendid a suite of rooms as any in England; and nothing that taste could do to give grace to the decorations, or that skill could effect to afford that comfort of which we are so fond, had been neglected by the last possessor, during a period of three years before his death. Sir William Winslow, however, was in some sort a stranger to the house, which was now his own: for, during several years, great coldness had subsisted between himself and his father. He had spent much of his time on the Continent; and had not, in fact, been at Elmsly for two years, when he was summoned thither in haste, a few hours before Sir Harry's death. The interview between himself and his brother Chandos at Winslow Abbey took place on the Tuesday; and on the Thursday following, about nine o'clock at night, he was seated in the large dining-room of the magnificent suite I have mentioned, with the clergyman of the parish opposite to him.

The table, looking like a little island, in the ocean of Turkey carpet which flowed around, was covered with the desert, and with sundry

decanter of choice wines; and two servants handed the plates of fruit and preserves to their master, and their master's guest. When this ceremony had been performed, the attendants left the room; and a desultory conversation, mingled with wine took place between Sir William and the clergyman. The latter was a stout, portly man, with a good deal of the animal in his original composition; but rigidly and pertinaciously kept down by a strong moral sense, and high religious feelings. The motives which had produced so speedy an invitation on the part of Sir William Winslow were various: but one was, that Sir William did not like to be left alone. His own thoughts were unpleasant companions. Again, he was anxious to retrieve some part of the good opinions he had lost. He felt that he had undervalued character; and, of late, things had appeared important to him, which he had looked upon with contempt before. Amongst others, some sort of religious opinions began to be objects of desire. He did not much care what, for his notions on the subject were very indefinite; but he felt a want, a craving for something that could give him the support which he possessed not in his own heart--for something that would afford him hope, when there was nought within him but despair. He had heard--he knew, indeed--that the Christian religion promised pardon for offences, hope to the sinner, peace to the repentant. And he sent to the clergyman to seek a certain portion of religion, just as a thirsty labourer would send to a public-house for a jug of beer.

The conversation, as I have said, was of a desultory kind: the subject of religion was approached in a timid, uncertain sort of way by Sir William Winslow; more as an opening than anything else: and the clergyman answered in a few brief, but very striking words; which produced a deep effect. He treated the matter less doctrinally than philosophically, and in such a manner, that Sir William Winslow was inclined to fancy what he said had a personal application to himself; although the good man had no such intention.

"It is beautifully and happily ordained," said the clergyman, in answer to something which had preceded, "that the commission of crime, and the reproaches of conscience, very frequently, by the desolation which they produce in worldly things, should awaken in us the conviction of another state; give us a sense of our immortality; and teach the man who has only known himself as a mere animal, that he possesses a spirit, to be lost or

saved, to live for ever to punishment or felicity. That conviction once gained, and the question naturally follows: 'What can I do to be saved?' The Word of God replies 'Repent'; and repentance to salvation is not unfrequently the consequence."

Sir William Winslow mused; but after a time he replied, in a discursive manner, "It is a curious consideration what this same spirit can be. I doubt not its existence; for I feel a moving power within me, apart from, and independent of, mere *will*. But what is it? I see it not. No one has ever seen it."

"Hold, hold," cried the clergyman; "you must not say that. The records of Scripture bear witness, that spirits have been seen; and it can be shown philosophically, that there is no reason for supposing such a thing impossible."

The worthy pastor had been set upon a subject which was a favourite one with him, and he went on, citing history after history, and instance after instance, to prove that, under certain circumstances, there were means of communication established between the dead and the living. He even went so far as to argue that it would be absurd to suppose it otherwise; that granting that there is such a thing as spirit, and that spirit is immortal, all analogy would show that there must be a power in the disembodied of producing certain influences upon their brethren in the flesh. "You cannot point out any order of beings," he said, "from the most imperfect to the most perfect, which has not some knowledge and communication with those next to it in the great scale of animated nature."

Sir William Winslow listened, but replied not, keeping his teeth tight shut, and his lips compressed; and the clergyman proceeded in the same strain, till the clock struck ten, when he suddenly rose to depart.

His host would willingly have detained him a little longer; for, as I have said, he loved not to be alone; but he was too haughty to press it beyond one request; and the clergyman, who was a man of habits, always retired at ten.

When he was gone Sir William walked into the drawing-room and ordered coffee. He took it very strong, and that agitated rather than calmed

his nerves. He walked up and down for half-an-hour, and then he said to himself, "I will go and look over those letters. There is no use in going to bed, I should not sleep." He then ordered candles in the library; but he would not go thither till they were lighted. When that was done he walked slowly in, and took up some of the unopened letters with which the table was strewed. The second which he broke was signed "Overton;" and after having run his eye down the page, he threw it away with a look of anger. He would read no more, and sitting down in the large arm chair, where so often his father had sat, he gnawed his lip, with his eyes bent upon the ground.

The clock struck eleven, and Sir William started in his seat and counted it. A minute or two after, he took out his pocket-book, and drew from it a folded piece of vellum. He did not then look at the contents, however, but thrust it into a drawer of the table. Then, rising from his seat, he walked to the window and looked out. It was a beautiful moonlight night, the soft, silvery rays resting on the lawns and woods of the park, and the little stars, faint and sleepy in the sky. He gazed for several minutes; but I know not whether he beheld anything but the objects of his own fancy. Then he walked up and down the room again, and twice stood for a moment or two opposite the drawer in the library table. At length he suddenly pulled it open, took out the vellum, unfolded it, and read the strange contents.

"By--," he exclaimed, after thinking for a moment, "this is devilish strange! it is the very day she drowned herself!" and the vellum trembled in his hand. "I won't go. Why should I go?"

He looked at the writing again: "She will come and fetch me!" he repeated, with his lip curling; "I should like to see her;" and the proud spirit seemed to rise up again in full force. But then he shook his head sadly, and murmured, "Poor girl! she told me once before she would come, and she did--to her own destruction."

The clock struck the half hour, and in great agitation--agitation scarcely sane--Sir William Winslow walked up and down the room again, with a wild, irregular step, his eyes rolling in his head, as if he saw some strange sight, and his hand frequently carried to his brow, and pressed tight upon his forehead.

At the end of about ten minutes, he stopped, gazed vacantly upon the floor, and then, with a sudden start, exclaimed aloud, "I will go to her! She shall not say that I feared her. She shall not come here--no, no--yet I believe, alive or dead, she would do it, if she said it.--It is her hand too. That name, how often have I seen it with different feelings! Poor Susan!" and walking out of the library, and through the corridor, he took his hat and quitted the house.

The moon lighted him on his way through the park. He could see every pebble in the ground; but yet his step was as irregular as if the way had been rough and rude. Nevertheless he went very quick; he seemed impatient; and when he found the park-gates shut, he did not wait to awaken the people of the lodge, but cut across to a stile which went over the paling; and there he issued forth into the road. About two hundred yards before him rose the church, with its good broad cemetery, encircled by a low wall. The moon shone full on the white building, rising like a spectre amongst the dark trees and fields around.

Sir William Winslow stopped suddenly, crossed his arms upon his chest, and thought. Then the heavy bell of the church clock began to strike the hour of midnight; and walking rapidly on he reached the gate of the churchyard, while the sound of the last stroke still swung trembling in the air. He passed through the little turnstile, and walked up the path. There was a new tombstone close upon the right, which he had never seen before; and his eyes fixed upon it. The letters of the inscription were all plain in the moonlight, and the name "Roberts" stared him in the face, with these words following, "Brutally murdered, by some person unknown, on the fifth of February, one thousand eight hundred and forty-five, in the sixtieth year of his age."

Sir William Winslow trembled violently, and murmured, "Who has done this? Who has done this?"

His courage had well nigh deserted him entirely; and he paused, hardly able to go on, when a voice from the farther side of the cemetery asked, "Are you come?"

He knew the tongue, though it had sounded sweeter in other days; and striding forward, he answered, "I am here! Where are you?"

"Here," answered the voice from the direction of a tall mausoleum, over the mouth of the Winslow vault: "Come on!"

He advanced, but could perceive no one. He walked round the monument; the space was quite clear around. "Where are you? What would you with me?" he cried.

"I am where I have a right to be," answered the voice from a spot apparently below his feet. "I am amongst those from whom sprang a man who promised to make me one of them, and broke his promise. I am amongst your dead, William Winslow! Your father is on my right hand, and your mother on my left. Your place is here beside me, and will not be long vacant, if your spirit does not bow itself to repentance, your strong will does not yield to right."

"God of Heaven!" he cried, laying his hand upon the gate in the iron railing which surrounded the tomb, and shaking it violently; but instantly there was a low laugh, and a voice said, "Poor fool!--You ask," continued the voice, "what I would with you? For myself, I seek nothing. You can neither harm nor benefit me more. The time is past. The hour is gone by; and what you could once have done, is now beyond your power. But for our boy, you can do much; you can atone to the mother, by love to the child. Take him to yourself; own him as yours; and oh! above all things, teach him to avoid and to abhor such crimes as you yourself have committed."

"Our boy!" cried Sir William Winslow, "I knew not that you had one, Susan. Oh, Susan, in mercy, in pity, tell me where he is?"

"Ask your brother," answered the voice; "ask that kind, noble brother, whom you have wronged, who has been a father to your child, when you were depriving himself of his inheritance; who has taught him virtue, and honour, and the love of God. He will give him to your arms, if you show yourself worthy of him. Thus much for myself, William Winslow; but, oh that there were any power in prayers, to make you grant that which is needful for another."

"Speak, speak!" said he eagerly; "I will grant whatever you ask. I wronged you basely, I know; I broke my plighted word; I forfeited my honour given. Speak, Susan! Let me make atonement, as far as it can now be made."

"The other for whom I prayed is yourself," answered the voice. "Oh, William Winslow, beware. The cup is well nigh full. You cannot wake the dead; but you can do justice to the living. Bend your knees to God, and implore mercy; humble your heart even before men, and do not persist in evil. Restore what you have wrongly taken, and all may go well; but hear the last words that ever you will hear on earth, from her you wronged on earth: If you persist in the evil you can by a word redress, the crime that you think is buried for ever in darkness, will rise up into light by the consequences of your own acts. Such is judgment--such is retribution--such is the will of God. Amen."

"But of what particular wrong do you speak?" asked Sir William Winslow.

There was no answer, and he exclaimed, "Speak, Susan! speak!"

All was silent, and again and again he endeavoured to obtain a reply, but in vain.

At length, moving slowly away, he passed round the other side of the church, to avoid the grave of the steward, and soon reached the park. He hurried homeward; but he entered not his own house so speedily. For two long hours he walked backwards and forwards upon the terrace, with his head bent down and his eyes fixed upon the sand. Who shall undertake to detail the terrible turns of the struggle then within him. It was a battle between the whole host of darkness and the cherubim of the Lord. Fear, and Doubt, and Pride, and Vanity, and all their tribes were arrayed against the small, bright legion which had gained one small spot of vantage ground in his heart. Doubt and Fear he knew must remain for ever on this side of the grave, to hold that part of the castle to which he had given them admittance; but their very presence there made him anxious to exclude them from the rest; and he repeated a thousand times in spirit, "Would to God I had not burned that will! Would to God that aught would afford me a fair excuse for

acting as it dictated! What can I do? Where can I turn? Heaven send me, light and help!"

Still the internal strife lasted long; and when at length he re-entered the house, body and mind felt worn and exhausted. His valet gazed at him with one of his quiet, serpent looks, and said, "You seem ill, Sir. Had you not better have some cordial?"

"No, no," answered Sir William Winslow, turning from him with a faint shudder; "I want nothing but rest. It matters not."

But that night he did not lie down to rest without bending the knee, and imploring mercy and protection. It was the first time for many years. It was the first night, too, that he had slept for more than an hour at a time for several months; but now he remained in slumber undisturbed till ten o'clock, and when he woke he felt the effect of repose. He rose, threw on his dressing-gown, and approached the glass on his dressing-table. He hardly knew the face that it reflected. He did not feel ill. Sleep had refreshed him; his limbs were strong and vigorous, but all colour had fled from his cheek. He was thenceforth as pale as the dead.

He then went to the window for air, and the first thing his eye lighted upon was his valet, advanced a step or two on the terrace, talking to a tall, stout man, of a very sallow complexion, in a long, brown great coat. Sir William Winslow's heart sunk, he knew not why. He did not like to see that Italian talking with any one since he had mentioned the spots of blood upon his coat; and he gazed for a moment at the servant as he stood with his back towards him, with feelings of pain and alarm. Suddenly a change came over him. He raised his head high, and his proud nostril expanded. "It matters not," he said to himself; "I will be no man's slave long. I will do Chandos justice--I will provide for my poor boy--see him--embrace him--and then that scoundrel shall go forth to do his worst."

With these thoughts he rang his bell sharply, and soon after descended to breakfast. His meal was speedily concluded; and going into the library, he wrote for some time. One paper which he covered seemed to be a mere note; but for the other he consulted several times a law book, which he took down out of the library.

When that was done, he rang again, and ordered the servant who appeared to send the butler, the bailiff, and the housekeeper to him, all together. Before they could be collected he had folded the note and addressed it to "Chandos Winslow, Esq.," and when the three persons he had sent for appeared, with some surprise at their unusual summons, he said, I wish you to witness my signature of this paper. Then taking the pen, he wrote his name at the bottom, saying, "This is my last will and testament." The witnesses put their hands to the paper and withdrew, each observing how ill their master looked, and arguing by the sudden signature of his will that he felt more unwell than he appeared.

The event became a matter of gossip in the housekeeper's room, and the Italian valet rubbed his forehead and looked thoughtful; but he had not much time for consideration before he was called to carry a note, which had just arrived, to Sir William, who had gone to his dressing-room previous to going out. The man looked at it somewhat wistfully as he took it up; but he dared not finger the envelope, and it was delivered without the contents having escaped by the way.

"Countermand my horse," said his master; "I will write an answer directly. Some one is waiting, of course."

"Yes, Sir William," replied the valet, and his master walked out at once, and descended to the library. There, he again spread out the letter before him, and read to the following effect:--

"The Golden Bull, Elmsly,
"May, 1845.

"SIR,--I am directed by my client, Chandos Winslow, Esq., to inform you, that from documents lately in the possession of Mr. Roberts, deceased, and from private marks thereon, in the handwriting of the late Sir Harry Winslow, of the true intent and meaning of which private marks the said Chandos Winslow is cognizant, he has reason to believe, that an authentic copy of the last will and testament of the aforesaid Sir Harry Winslow, Bart., signed with his name, and dated, '25th June, 1840,' is still to be found in a certain depository, at Elmsly House; hitherto unsearched by you: and, in consequence, I beg, in his name, to request that you will cause search to

be made in the said place or depository, with all convenient speed, in the presence of myself, his attorney, or any other person or persons whom he may select: or otherwise, that you will sanction and permit the said search to be made by the said Chandos Winslow, Esq., or myself, as his attorney, in presence of yourself, or any other person or persons by yourself selected, as witnesses that the search or examination is well and properly made, without fraud or favour, by, SIR,

"Your most obedient Servant,
"HENRY MILES,

"Attorney-at-Law and Solicitor to the firm of
Miles, Furlong, and Miles, S----."

"P. S. Sir, I am directed by my client to inform you, that he has no desire to be present in person at the proposed search, as he judges that, under circumstances, his visit to Elmsly might not be agreeable."

When he had read, Sir William Winslow held the letter up with a trembling hand, and there was evidently a renewed struggle in his bosom. But his eye rested on the note he had written to Chandos; and perhaps, he compared the feelings with which he had spontaneously addressed his brother, with those which were now excited by irritated pride, at what he conceived an attempt to drive him to that which he had been willing to do undriven. At all events, he smiled--very likely, at the first discovery of the secret springs of his own actions; and sitting down again--for he had risen for a moment--he wrote the following words:--

"Sir William Winslow presents his compliments to Mr. Miles, and begs to inform him that he is perfectly at liberty to make the proposed search at Elmsly. Sir William, however, would prefer that it should be made in the presence of his brother, Mr. Chandos Winslow, whom he will be happy to see at Elmsly, as soon as possible, for that purpose. He sincerely hopes that the will maybe found, as it may save some trouble; but, at the same time, he begs Mr. Miles to forward, or present the inclosed note (written some hours ago) to Mr. Winslow, begging him to understand that Sir William adheres to the contents, irrespective of the result of the search now demanded.

"Elmsly, &c."

The note was immediately despatched, and the master of the house leaned his head upon his hand in deep thought. He was disturbed by the entrance of the valet, who advanced with a low and humble bow, saying, "Could I speak with you for a moment, Sir?"

"No," replied the baronet, sternly; "I am engaged."

"But, Sir William," said the man.

"Leave the room, Sir!" thundered his master; "did you not hear me?"

The man obeyed; but as he quitted the library, he muttered, "Oh! very well."

Sir William Winslow felt he had gained something during the last few hours. It was courage of a peculiar sort. The day before he would not have found resolution so to answer a man, who, to a certain degree, had his life and honour in his hands. Now he had no hesitation; and as he sat and thought, he asked himself if it was the having taken the first step towards atonement which had restored to him his long-lost firmness. He thought it was; and he resolved to go on boldly. Perhaps he mistook the cause of the change in himself. His was one of those quick and irritable dispositions which cannot bear suspense of any kind, which will rather confront the utmost peril than wait an hour in fear; and the very fact of having taken a strong resolution gave the power to execute it. But still he fancied that the purpose of doing right, of making atonement, was the result of his renewed vigour; and the mistake was salutary.

In the meantime, the man whom he had dismissed from his presence so abruptly went out to one of the several backdoors of the house, and looked about, casting his eyes over the wood, which there came near the house. For a minute or two he seemed to be looking for something and not discovering it; but then, he beckoned with his finger, and a dark man, in a long great-coat, came across from under the trees and joined him.

They spoke in low tones, but eagerly, for about five minutes; and at last the dark man said, "No; we had better work separate. I will manage it, you'll see; and you can do the same if you do but frighten him enough. I must speak with the woman first; but I'll be back in an hour, if you think he'll be alone then."

"I dare say he will," answered the valet, "there are not many people come here now; but if there should be any one, you can wait about till they are gone."

"Very well," replied the other; and with a nod and a low laugh, he turned away, and left the Italian standing at the door.

CHAPTER XLVI.

Chandos Winslow sat in the little village inn at Elmsly, with his keen old solicitor from S----; who had, as the reader has seen, just mingled in a note to Sir William Winslow, a certain degree of lawyer-like formality, with an affection of commonplace ease, which he thought was masterly in its kind. They were awaiting the reply; and the lawyer calculated upon either one or two courses being adopted by the baronet to meet the pungent contents of his missive. "Sir William," he said, addressing Chandos, "will, I imagine, either beg to know where the will is supposed to be concealed, promising to cause search to be made himself; or else he will roughly refer us to his solicitors in London. Mark my words, if he does not. At all events, that last hit of our's yesterday--coming in, and finding the rough draught of the will in Roberts's handwriting, amongst the papers in the cabinet left to you with the other things--was capital. Hang me, Mr. Winslow, if I did not think for a minute that it was the will itself. However, as it is, we shall have an excellent case of it; and I should not wonder if it were to go through every court in England, up to the House of Lords."

"A pleasant prospect," said Chandos, drily; and he fell into the silence of expectation.

"Is Mr. Chandos Winslow here?" asked a good, clear, round voice, upon the stairs about five minutes after; and starting up, Chandos opened the door, when, to his surprise, he beheld Lockwood with the little boy, Tim Stanley.

"Well, I hope I've got him here in time," said Lockwood, "though I could not get over by noon, as you wished; for you see, Chandos, it is a good long round first to Northferry and then to Elmsly; and I did not receive the message till five this morning."

Chandos gazed on him in surprise, but shook him warmly, by the hand, and caressed the boy, saying, at the same time, "I am glad to see you both, Lockwood; but I certainly had no notion you were coming."

"Didn't you send?" exclaimed Lockwood. "Then who the devil did, I wonder? I had a message this morning shouted in at my window, at five, to bring the boy over here by noon to-day to meet you. But now we must have some dinner; for I am hungry enough, and the boy is ravenous. What have you done with Faber? Where's *Atra Cura*, if he is no longer behind the horseman?"

"We left him at S----," replied Chandos; "he was afraid to come within ten miles of Elmsly."

"He's a poor creature," cried Lockwood, "a very poor creature indeed. There is something in such weakness that debases prosperity, and makes even misfortune contemptible; though it is often an element of grandeur, as Seneca justly says: '*Nihil æque magnam apud nos admirationem occupet, quam homo fortiter miser.*'"

"He's a little chicken-hearted," said the lawyer; "but he's very right to keep out of harm's way when he is not paid for going into it. And now, Mr. Winslow, I had better ring for something to eat for the nice little fellow--a son of yours, I presume--we can take a bit of lunch at the same time. It is an agreeable way of occupying time."

The luncheon was ordered; and though Chandos denied the degree of relationship to little Tim imputed, the lawyer remained in the same opinion. It did not at all spoil Tim's appetite, however. He was not at all aware that he had ever had a father, and would quite as soon have had Chandos in that capacity as any one else. He set to heartily then; and so did Lockwood, and eke the lawyer; but before the latter had eaten two mouthfuls, the messenger who had been sent to Elmsly returned with a letter for him.

"Soon decided!" said Mr. Miles; "he has not taken long to consider." And after opening the cover containing the epistle addressed to himself, he held the one enclosed in his hand, without looking at the direction, while he read the other.

"Well, this takes me by surprise!" said the lawyer; "remorse of conscience, evidently! Read that, Mr. Winslow; the other is for you too."

Chandos took the letters, and read first, with much wonder, the one which had been opened; and then broke the seal of the other, which contained these words:--

"Come to me, Chandos. Let us forget the past, and be really brothers for the future. If you can show me, as I think you hinted, the particulars of the last will, it shall be acted upon by me as if it were before me. If not, I will put it in force as far as I recollect it; for I certainly did read it once; but that is a long time ago, and I do not perfectly remember it. At all events, come to me; for there is a sort of heavy presentiment upon me, that my life will not last long; and I would fain die in friendship with my brother.

"Yours,

"WILLIAM WINSLOW."

"It must be so, indeed!" said Chandos Winslow; "this change is too great, too sudden to be in the ordinary course of events. Some severe illness must be hanging over him. Come, Mr. Miles, let us go at once, Lockwood will stay with the boy till we return."

"Nay, I will go with you part of the way, at least," said Lockwood; "and you shall tell me what is the drift of all this as you go; for I am in darkness. Tim can take care of himself; can't you, Tim?"

Chandos threw Lockwood his brother's two letters; and, while he read them over in silence, little Tim declared he could take care of himself very well. Lockwood, however, took his hat and accompanied his half-brother and the lawyer on their way, sometimes asking a question, sometimes falling into a fit of thought.

"I'll tell you what, Chandos," he said at length, "I cannot help thinking there is some trick in all this. I never saw such a sudden change. Why it is only three nights ago that he growled at you like a dog."

"No, no, there is no trick," replied Mr. Winslow; "but I fear there is some serious illness, either commenced or approaching, which has thus depressed his spirits, and given conscience power to make her voice heard in the stillness of the passions."

"Well, I am not quite satisfied of that," answered Lockwood, "and shall be glad to hear the result; but I will not go in with you. We were never friends, and the sight of me might raise the devil again. I shall look out for you, however, as you come back."

"I will lead you the shortest way," said Chandos, speaking to the lawyer, who was approaching the great gates; "that path takes one half a mile round;" and proceeding along the road, he did not enter the park till he reached a small doorway, which stood open during the day.

The path with which this doorway communicated, led through the depth of a splendid wood of Spanish chestnuts, divided by somewhat formal alleys, which crossed each other in various directions. When Chandos and his companions had walked on not more than two hundred yards, they could hear the voices of two persons speaking vehemently, and at the first traversing alley which they came to, they all turned their heads to the right, whence the sounds proceeded. Perhaps eighty or ninety yards from them, under the green shade of the wide leafy trees, were standing a man and a woman. The man Chandos immediately recognized as his companion in the stage-coach some days before, and in the woman, whose face was turned towards them, he saw Sally Stanley. She was throwing about her arms in wild and even fierce gesticulation, and in the stillness of their footfalls over the turf, he could hear her exclaim, "If you do, a curse will cleave to you and destroy you, which never failed yet--a curse which will,"--but then her eyes lighted on the three persons who were passing, and she darted in amongst the trees.

The man followed her, after taking a look round; and Lockwood asked, "Do you know who those are?"

"Tim's mother," answered Chandos; "and one of her tribe, I suppose."

"One of the gipsies, if you mean that," replied Lockwood; "and the worst fellow amongst them. If I catch him, I will break every bone in his skin. He gave me a blow when I had my hands tied, and I will not forget him. But as to Sally Stanley being one of the gipsies, Chandos, that is a mistake."

"Then my suspicions are correct;" said Mr. Winslow, with an inquiring look at the other's face. "How was she saved from the river?"

"That I don't know," replied Lockwood; "the gipsies pulled her out, I suppose. But I thought you must have known all about it, from your fondness for the boy. If you come to calculate, you will see whose son he must be."

"How strange are the turns of fate!" said Chandos; and the whole party fell into deep thought.

Two or three minutes after, Lockwood halted, saying, "I will go out into the open part of the park, and wait for you under a tree; for I am anxious to have the first news:" and Chandos and the lawyer walked on to the house, which was not more than a quarter of a mile in advance. When they were gone, Lockwood sauntered up and down for about ten minutes--perhaps it might be a little more; for he was a man accustomed to solitude and his own thoughts; so that lonely time flew fast with him. At length, however, he thought he heard a light step running; and the next moment Sally Stanley was by his side. Her face was eager, and her eyes sparkling, but not with joy.

"Lockwood," she said, in a low tone, "Lockwood, run up to the village; to the inn."

"Has anything happened to the boy?" cried Lockwood, with a look of apprehension.

"No, no!" answered the woman; "but run up--find out what the two men are doing over here--the two men from S----. Listen to what they say-- and save him if they are seeking him."

Her meaning was not very clear; but there was so much apprehension and impatience in her look, that Lockwood, saying, "Well, well, I suppose I shall find out what you mean when I get there," turned away and left her.

His long legs and his quick steps soon brought him to the door of the Golden Bull, at Elmsly; but all seemed quiet on the outside of the house, at least. There was a little sort of gig, with the horse taken out, standing in the road, and no other thing to attract attention. Lockwood entered the house, and was about to walk up to the room where the boy had been left, when in what was called the parlour, on the left, he heard some men's voices speaking; and in he went.

The room contained two men and a servant girl, putting down some beer and glasses before them; and Lockwood sat down and asked for a glass of ale. Two or three sentences passed between the previous occupants of the room, which seemed principally to refer to their own dinner; but there were words mingled with their discourse which made the last comer lend an attentive ear; and before the ale was brought to him, he rose, walked slowly out of the room with a careless air, hurried up stairs, and spoke a few eager words to the boy Tim.

He was answered only by a look of quick intelligence; and after receiving a few words of clear direction as to the way to Elmsly House, Tim snatched up his cap and ran off.

Lockwood then descended to the parlour again, drunk his ale, and took up an old newspaper that lay on one of the tables.

CHAPTER XLVII.

We must now turn to Sir William Winslow again. He remained for full a quarter of an hour in thought; but then he rose, and walked backwards and

forwards in the library, with a quick step: there was a struggle within him. While he had remained seated, old feelings, old habits of thought, old vices of the mind began to return upon him. None of the devils which torture and tempt humanity ever give up their prey without strife; and they wrestled with his spirit still; but remorse, and wearing, constant apprehension had shaken their hold of him, and he was strong enough to cast them off. There came too, in aid of better feelings that longing for companionship, for the support of love or friendship, which grows upon the heart when worldly enjoyments fail. He thought, what a pity it was that he and Chandos had not lived together in affection; he knew that it was his own fault, and he resolved it should be his own fault no longer. Yet he doubted himself--yet he feared; and at length, after he had walked up and down at the same hurried pace for full three-quarters of an hour, he started with a feeling almost of irritation, when the servant opened the door, and announced that Mr. Winslow and another gentleman were in the drawing-room.

"Show them in," said Sir William Winslow, and he stood leaning on the library table, watching the door.

The expression of his brother's countenance at once did away all that was painful in his feelings. It was full of kindness and tenderness, and advancing with a quick step, Chandos took Sir William's proffered hand in both his own, and pressed it warmly.

"This is very kind of you, William," he said. "But, good God! how ill you look! In Heaven's name send for some physician."

"No, no, Chandos," said Sir William Winslow; "there is no need. I have gone through much mental pain since I saw you--but of that no more: let us for the future be brothers indeed--but now to business: you may search where you please for the will you mention; and I trust in God you may find it."

"No, William," said Chandos, frankly. "I will tell you where I think it is. Search for it yourself; I trust you fully."

Mr. Miles pulled him by the sleeve, saying, "But my dear Sir, my dear Sir--"

"Hush," said Chandos, sternly.--"I think, William," he continued, "from a memorandum I have found, that the will is in the drawer of that table; and I and my solicitor will quit the room, if you please, while you search."

"Not for the world," replied Sir William Winslow. "But you are mistaken, Chandos; the will is not there, as you may see;" and he drew out the drawer with a sharp pull. There appeared nothing but a small piece of vellum, folded like a letter, and the lawyer immediately exclaimed, "There it is!"

"No, Sir, it is not," answered Sir William Winslow, sharply; "that is a letter addressed to me, nothing more."

Chandos smiled, saying, "That is only a part of the contents of the drawer. Press your thumb tightly on the right side at the back, William. The memorandum is marked with the initials, S. D. E. which I interpret 'Secret Drawer, Elmsly.' Now, I know of no secret drawer but the one in that table, which I have once or twice seen my father open."

Sir William instantly pressed on the inside, as he was directed, but without effect; and he turned towards the bell, saying, "I will have it broken open; for I feel it yield under my hand."

"Stay, stay," said Chandos, "let me try;" and coming round to that side of the table, he put his hand into the drawer, and pressed hard. At the first touch the piece of wood which formed the false back flew out, and an inner drawer was pushed forward by a spring from behind. It contained a considerable number of papers, and a small basket full of gold coin. At the top of the papers, however, was a packet, sealed with black, and marked, in a lawyer's hand, "Last will and testament of Sir Harry Graves Winslow, Bart." Underneath was written, in Sir Harry's own handwriting, "For Chandos Winslow, Esq. To be opened before the funeral."

Chandos did not touch the will; but Sir William took it out and put it into his hands, saying, "Stay! We had better have more witnesses before you open it;" and ringing the bell, he ordered the butler to be sent.

"My brother, Mr. Winslow," he said, when the man appeared, "has pointed out to me this secret drawer, which I had not before discovered; and in it we have found this paper, which seems to be a later will of my father's than that already read. I wish you to be present while it is examined. Now, Chandos, let us hear the contents."

Chandos opened it, and placed the paper which he found within the cover in the hands of Mr. Miles, who, with spectacles on nose, proceeded to read it aloud, having first ascertained that it was duly signed and attested.

The purport of the will was precisely that which Faber had stated. Winslow Abbey, and the estates attached, with all the furniture, books, and pictures in the house, were left to Chandos Winslow; but the property was charged with an annuity of four hundred a year to Faber. A few legacies were given to servants. Five thousand pounds, in lieu of all other demands, was assigned to Lockwood; and all other property, real and personal, including a large sum in public securities, of the existence of which Sir William had been hitherto ignorant, was left to the deceased baronet's eldest son. The clergyman of the village, and a gentleman in London, were named as executors, together with Mr. Roberts, whom Sir Harry probably expected to act for all.

When the will had been read, Sir William took his brother's hand, and pressed it in his own; and nodding his head to the butler, he said, "You may go. Now, my good Sir," he continued, turning to Mr. Miles, "the best thing you can do is to take that paper down to the gentleman there named, in the village of Elmsly; tell him how we found it, and ask him if he is prepared to act. In fact, take all the necessary steps for substituting this will for the other. I shall of course consent to all that is required. There may be some difficulty indeed as to the Abbey property, in regard to which I have acted rashly; but that I must settle as I can. My brother will join you in a little, at the inn. At present I wish to speak to him for a few minutes."

He spoke in somewhat of his old imperious tone; and the little lawyer took the hint, and departed rapidly.

"And now, Chandos," said Sir William Winslow, in a voice that trembled with emotion, "tell me one thing. Have you not a boy under your charge, a

boy of about seven or eight years old?"

"I have, William," answered Chandos, with a faint smile; "and as fine and brave a boy he is as ever lived."

"Is he not my son?" demanded Sir William Winslow, in a low tone.

"I have every reason to think he is," answered Chandos.

"Where is he? where is he?" exclaimed his brother. "I must see him, Chandos; I must have him here."

"That you can have in half-an-hour," answered Chandos: "I left him at the village inn."

"Oh, send him to me!" cried Sir William: "I knew not she had had a child. Yet, stay one moment; promise me, Chandos, as a man of honour, if anything befalls to take me hence, that you will be a father to my boy."

"Be you sure I will, William," answered Chandos Winslow. "Is there anything more?"

"Yes, one thing more," replied his brother, taking up the paper he had written in the morning; "I have there put down my wishes--informally perhaps--in the shape of a will. I have named you my executor; and I am sure that, whether the will be valid or not, you will carry it out."

"Upon my honour," answered Chandos Winslow, "if you have left the boy your whole property, it shall be his."

"No, I have not done that," said Sir William; "I have not wronged you, Chandos, in this at least: and now send me my boy as soon as may be; but come yourself afterwards. Take the will with you. No one can tell what may happen from hour to hour in this life."

"That is true, William;" answered Chandos; "but yet I trust there is no such imminent danger, though it is evident you are far from well. If you would see a physician, you would really greatly oblige me; but I will speak with you more on that subject, when I return, which shall be ere long."

The moment his brother was gone, Sir William Winslow rang the bell, and sent for his valet. The man entered with a peculiarly placable and even smiling look; a visitation with which his countenance was seldom troubled. But it was soon changed into one of dark malevolence; for the first words of his master were:--"I sent for you, Benini, to tell you that I shall have no further need of your services after the end of a month. You have warning to that effect. You may go."

"Very well, Sir William," replied the man; "but it might be better for you to think."

"I have thought," answered Sir William, sternly; "you may retire, I say."

The man bowed, and left the room; and Sir Winslow murmured, "That is done--I will not live in fear. Death is better."

"There is a man at the hall-door wishes to speak with you, Sir;" said a footman, entering.

"I am busy," said his master; "I cannot be disturbed--Who is he?"

"I do not know, Sir," answered the servant; "a tall, strong man, well dressed enough; but with a face like a gipsy, or a mulatto--he said he must and would see you, as he had business of importance to speak about."

"Well, if he must and will see me, send him in," said the baronet; "I think I will soon dispatch his business."

The man retired, and soon returned with the same personage whom Chandos had seen speaking with her whom we have called hitherto Sally Stanley, in the park.

"What do you want with me?" asked Sir William Winslow, fiercely.

His visitor paused till the door was shut, and then replied, in a rude, familiar tone, "I want a little money, Sir William; that's the truth. But if I get money, I can give money's worth."

Sir William Winslow's heart sunk. "Indeed!" he said; "pray, what can you give?"

"Silence," answered the man.

"Silence!" repeated the baronet in a low voice; "silence about what?"

"I will tell you a little story, Sir," was the answer; "I am a poor man, who get my living how I can. On the fifth of last February, I was in the grounds of Northferry-house, from a little before five till an hour or two after. Now, I want a thousand pounds. When I have got it, I will go abroad and join some of my own people in another country."

Sir William Winslow had fallen into a deep fit of thought, and his lips were very white. Though conscience had cowed him, at first, even with the valet; yet, on further consideration, his courage had revived; and he had argued that the Italian could prove little or nothing unsupported by the evidence of others. But this case was different. He dared not grapple with it. His brain seemed to reel. His heart felt as if the blood stood still in it. The man had been on the spot at the time; he had evidently seen all. His testimony joined to that of the Italian was death. Would he brave it? Would he dare him to do his worst? Would he undergo trial--risk condemnation. He thought of his son, of his brother, of his family, of the honour of his name and race: and when the man went away, the basket, full of gold pieces, which had been found in the secret drawer, was empty.

The unhappy man he left sat for a few minutes with his hands covering his eyes. Who shall tell the agony of his thoughts? He was roused by some one tapping at one of the windows which descended to the ground; and starting up, he beheld a beautiful boy, with a sun-burned face, plainly, but well dressed, gazing in.

Sir William strode forward, threw the window open, and gazed at the boy with strange and new sensations: "Who are you, my dear?" he said, taking his hand, and leading him in. "Did Mr. Winslow send you?"

"No," answered the boy; "I came to seek him: Mr. Lockwood sent me."

"But do you not live with Mr. Winslow?" asked Sir William; "is he not kind to you?"

"Oh! that he is," replied the boy, warmly. "But is he here?"

Sir William Winslow cast his arms round him, held him to his heart, and wept, without reply.

"No harm has happened to him?" asked the boy, anxiously.

"Oh no!" said his father; "no. He promised to send you down to me; but he must have taken a different road from you. What did you want with him? Do you know who I am?"

"No, I do not," replied the boy; "but if you are Sir William Winslow, his brother, I was to tell you, in case he was gone"--

"And what were you to tell?" demanded the baronet. "I am Sir William Winslow."

"Then put down your ear, and I will whisper it," said the boy; "for I was not to let any one else hear. Mr. Lockwood said that you were to mount your horse and ride over to Winslow Abbey as fast as possible, by the east gates of the park; because there are two constables come over from S----, drinking at the inn; and we heard them say that they would have you in gaol in an hour, as they had your brother; but that they would dine first."

Sir William gazed at the boy with straining eyes, but without reply; and the sweet young voice added, "Oh go, go! It is a horrible place a gaol. Any place is better than that."

"It is!" said Sir William Winslow, solemnly; "It is!"

Again he held the boy to his heart; he pressed a warm and eager kiss upon his broad forehead; laid his hand upon his head, and said aloud, "May God bless thee, my child!" He then turned abruptly, and quitted the room by a door which led to a small cabinet beyond. The boy gazed over all the fine things the library contained for a minute or two; and then asked himself if

he should go or stay. The next moment there was a report of fire-arms, a heavy fall, and a low groan. The boy was terrified; he knew not at what. He crept towards the door and listened; but the moment after he heard the voice of Chandos in the hall; and running out, he caught him by the hand as he was speaking to one of the old footmen, and said, in a low voice, "Some one has been shooting in the house; and there is a groaning in that room."

"What does he mean?" cried Chandos, addressing the old man in much agitation.

"I thought I heard a shot too, Sir, when I was coming to answer your bell," said the servant, with a white face; "I hope nothing has happened. Master has been very odd all day."

"Where is it, Tim? Where is it?" cried Chandos.

"Here!" said the boy, leading the way to the library, and then pointing to the door.

They opened it; and found what had been Sir William Winslow on the floor, with a pistol firmly clenched in his right hand, and the barrel grasped between his teeth. A powder-flask and bag of balls lay on a chair; and the carpet was drenched with blood.

CHAPTER XLVIII.

Crowds came and went to and from Elmsly House. For a long week the little world of the neighbourhood was kept in agitation by facts and falsehoods. Coroner's juries sat, and returned a verdict as much opposed to common sense as usual. The constables from S---- went back to their own place unaccompanied, and lost their labour. The Great Devourer had swallowed up the destined prey of judges and juries. Sir William Winslow was pronounced to have destroyed himself in a moment of temporary

insanity; and there is no trying the dead for murder. The people viewed the plain and unostentatious funeral with feelings of greater awe than is usually felt; for crime, by its happy rarity, has a greater effect than common death. Wild tales were told; some near to, some far from, the truth; and the nine days' wonder subsided, leaving the sky clear, and the waters smooth again.

So much for the outside of Elmsly House. In the inside, other scenes were taking place. Chandos did not quit the house, but, with his solicitor, remained in possession of that which was now his own; but the second night after the fatal event, when the coroner had sat and his jury had returned their verdict, the old servant Jacob came to his young master in the library, to tell him that there was a woman walking round and round the house, and weeping. "I saw her just now, Sir," said the man; "and she seems flesh and blood; but were it not for that, I could almost swear that it was poor Susan Grey, of the mill, who drowned herself, you may remember."

"She was saved, my good friend," answered Chandos. "I will go and speak to her."

He went, and what took place he did not ever care to repeat; but on his return he ordered the hall door to be left open night and day, and no one to oppose the entrance of that woman at any time, or to speak to her if they saw her. Each night she visited the room where the body of Sir William Winslow lay, and sat beside it from the hour of midnight till the east grew gray. On the night before the funeral she covered the coffin with ivy-leaves, and lingered till it was quite light ere she departed. Chandos Winslow was already up; and a servant, who watched at the door, instantly gave him notice that she was going forth. He followed her at once, and spoke to her both long and earnestly. The servants from the windows saw him show her a paper too; but she did not return with him to the house, which they judged by his gestures that he asked her to do.

On the following day, he and the boy Tim went out on foot, in deep mourning, and remained away for several hours; and in the evening they set out for London.

The first visit of Chandos was, as might be expected to the house of General Tracy; but he had little more to tell than the party there already

knew, for his letters had been frequent during the last week. He thought Rose looked more lovely than ever; and though all that she had gone through, and the dark events which had connected themselves with the rise and progress of their love, had cast a saddening shade over the sparkling brightness of her face, yet there seemed to the eyes of Chandos more gained than lost by that softening melancholy. When Emily appeared, she was in mourning, not very deep, yet sufficient to mark a sense of the painful circumstances under which she had been freed from her ill-starred engagement to his brother. She greeted him warmly and affectionately; and gazed at him and Rose as they sat together on the sofa, as if she fancied, in her desponding mood, that in their happiness would consist her future. A brighter fate, however, was reserved for her at last.

A good deal of business remained for Chandos to transact. His brother's will, by which a thousand per annum was bequeathed to "the boy, now under the charge of Chandos Winslow, Esq.," was proved; and, to avoid all doubt or cavil which such vague expressions might cause at a future period, Chandos at once secured the annuity to his little protégé by deed. With Lord Overton, he found no difficulty. The production of his father's second will showed at once that Sir William Winslow had no power to sell the Winslow Abbey estate; and the money to repay the sum which had been received as part payment was easily raised upon the Elmsly property. The remainder of the rents of that portion of his land the young baronet set aside as a sinking-fund to pay off the encumbrance; and from that source, with the money in the public funds, the property was cleared in a few years. When all the necessary arrangements were complete in London, Chandos left the little boy at the house of General Tracy, and went down again to prepare Winslow Abbey for the reception of a bride. Much was wanting; but skill, and taste, and ample means accomplished with great speed the reparation of all that many years of neglect had done to dilapidate the building, and desolate the grounds.

It was one day while thus employed that he was joined in the park by Lockwood, who came to tell him that a young gipsey had been to his house to ask where Chandos was, and to request him to come down to the wood on the other side of the river.

"I fear," said Lockwood, "that poor girl is very ill, from what the lad told me."

Chandos went instantly to the spot pointed out, and found the apprehensions of Lockwood fully verified. Under a coarse, dingy blanket, hung between two trees, to give more air than one of the ordinary gipsy tents afforded, with dimmed eyes and sunken cheeks, lay the once lovely Susan Grey. Her mind was wandering very much; but she knew Chandos at once; and from time to time the troubled stream of her thoughts seemed to become suddenly clear. The young gentleman remained by her side for more than two hours with several of the gipsies, both male and female, looking on. In the course of her rambling and broken conversation, much of her preceding history was told. It seemed that when she had cast herself headlong from the bank into the river, near Elmsly, some gipsies had been passing by; and an old man, the head of the tribe, had rescued her. It was an exploit of his old age, and he was proud of it; and loving her because he had saved her from destruction, he adopted her as his daughter. Her superior knowledge, for she had been carefully educated, and even the occasional aberration of her intellect, and the quick decision of character which bitter misfortune sometimes gives, soon obtained for her great consideration in the tribe, which was confirmed by the accidental fulfilment of many of her fortunate guesses. So of course we must call them; but it is to be remarked that she herself, even in her last hour, maintained that her predictions proceeded from a real foresight of coming events. Although she had eagerly sought to see Chandos, he could only discover that she had one request to make, and that referred to her interment.

"Let me have Christian burial," she said more than once; "for I die a Christian; and lay me beside him who should have been my husband."

Chandos promised, and he kept his word; for, much to the scandal of some, the poor miller's erring daughter, the wandering gipsy woman, lies in the vault of the Winslow family.

"Ay, she came to choose her place more than a month ago," said the old sexton, after the funeral: "she gave me two golden sovereigns one night, to let her have the keys of the vault for two hours; and I knew very well what she came for, so I didn't disturb her."

It was in the brown autumn time that Rose Tracy gave her hand to Chandos Winslow; and at Christmas the whole party assembled round the fire at Northferry. By the side of Emily, whose cheek had regained the rose, and whose lip had won back its smiles, sat Horace Fleming. He looked very happy. Something was whispered to Emily, while the rest were busy with other things. "No Horace," she said; "yet three months, and then if you will."

A few other characters remain to be disposed of; but as no great length of time has passed since the events just detailed took place, the fate of several of our people is still hanging in the balance where we weigh till death. Little Tim is now, I believe, at Eton; and is a remarkably intelligent and amiable boy. The young gentleman will excuse my not mentioning the name he now goes by. It is neither Winslow nor Stanley. Lockwood is precisely the same being as when Chandos first met with him--down to the leather gaiters. One satisfactory thing has occurred within my own knowledge. The Italian, Benini, is working in chains at Leghorn. He went into the service of a Russian nobleman, who, to Benini's great grief, was cruelly assassinated at Sienna. The police of Tuscany, however, did not like Benini to be so much afflicted; and they tried him for murder. He persisted in declaring his innocence; but the incredulous brutes would not believe him; and under the mild laws of that mild government, he was condemned to hard labour for life.

One word more: Mr. Scriptolemus Bond is a Valet de Place, in Paris, where he exercises his abilities in the same direction as before, though in a narrower sphere. He, however, is contented with his fate, although repinings will sometimes visit him, especially when a share list meets his eyes.

On the contrary, Chandos Winslow, and Rose his wife, are contented, without repining. They may have to suffer some evils, as a healthy man will have a cold now and then; but if we were to look into all hearts, the grand secret which they would display is this, that, balance the account of life how we will, the sum of happiness is in favour of virtue. Without it, there is no contentment; and with it, the peace of God which passes all understanding, surpasses everything that earth can give.

THE END.

***** END OF THE PROJECT GUTENBERG EBOOK A WHIM, AND ITS
CONSEQUENCES *****

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